

Execution Version

Dated 3 July 2024

[REDACTED]

and

[REDACTED]

BUSINESS PROCESS OUTSOURCING AGREEMENT

[REDACTED]

[REDACTED]

[REDACTED]

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[REDACTED] RELATIONSHIP48

21.	Implementation Agreements	48
22.	Cost savings and Productivity Guarantee	49
23.	Annual Review Process	53
24.	Co-operation, support, integration and access	55
25.	Third Party suppliers.....	57
26.	Customer Satisfaction Surveys	57
27.	Governance	57
28.	Personnel	59
29.	Supplier Subcontractors.....	62
30.	Disaster and Business Continuity	64
31.	Auditing	66
32.	Non-solicitation	70
	PART 7 – INTELLECTUAL PROPERTY & CONFIDENTIALITY	70
33.	Materials	70
34.	Customer Data	73
35.	Residual knowledge	74
36.	Safeguarding of Customer Information.....	74
37.	Confidentiality.....	78
	PART 8 – UNDERTAKINGS & LIABILITY	80
38.	Warranties	80
39.	Indemnities.....	82
40.	Liability	83
41.	Insurance and risk of loss	85
	PART 9 – TERMINATION.....	87
42.	Termination	87
43.	Termination/Expiration Assistance	92
44.	Effects of termination.....	95
	PART 10 – GENERAL PROVISIONS.....	96
45.	Supplier Parent Guarantee	96

46.	Privity of Contract	96
47.	Assignment	97
48.	Consents & Approvals	97
49.	Publicity.....	97
50.	Partnership.....	97
51.	Costs and expenses.....	98
52.	Waivers	98
53.	Informal Dispute Resolution.....	98
54.	Governing law and jurisdiction	98
55.	Services to continue during dispute resolution	99
56.	Entire agreement	99
57.	Survival.....	99
58.	Counterparts	99
59.	Force Majeure	99
60.	Rights of Third Parties	100
61.	Variation	100
62.	Injunctive Relief	100
63.	Cumulative rights and remedies	101
64.	Schedules.....	101
65.	Notices.....	101
66.	Severability	101
67.	Use of name	102
	Schedule 1 (Definitions & Interpretation).....	103
	Schedule 2 (Statements of Work)	121
	Schedule 3 (Form of Statements of Work and Acceptance Certificate).....	122
	Schedule 4 (Service Levels)	131
	Schedule 5 (Pricing)	182
	Schedule 6 (Governance)	210
	Schedule 7 (Customer Sites and Customer Group Members)	214

Schedule 8 (Supplier Systems, Technical Architecture and Product Standards).....	218
Schedule 9 (Reports).....	234
Schedule 10 (Business Continuity Plan).....	236
Schedule 11 (IT Disaster Recovery Plan)	243
Schedule 12 (Customer Safety Security Policy and Procedures).....	246
Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).....	264
Schedule 14 (Key Supplier Personnel).....	320
Schedule 15 (Supplier Sites)	322
Schedule 16 (Post-Termination Transfer Procedures)	323
Schedule 17 (Supplier Parent Guarantee).....	330
Schedule 18 (Non-Commercially Available Supplier Materials).....	335
Schedule 19 (Specific Commercially Available Supplier Materials)	336
Schedule 20 (Form of Implementation Agreement)	338
Schedule 21 (Territory & Implementation Agreement Countries).....	346
Schedule 22 (Change Control)	348
Schedule 23 (New Services).....	350
Schedule 24 (Joint Innovation Fund).....	354
Schedule 25 (Periodic Productivity Commitment Table).....	355
Schedule 26 (Model for Withholding Tax Estimation).....	360

This Agreement is made on 3 July 2024 between:

- (1) [REDACTED] a company incorporated in Singapore having its registered address at [REDACTED] ("**Customer**"); and
- (2) [REDACTED] a company incorporated in England having its registered address at [REDACTED] ("**Supplier**").

Whereas:

- (A) Supplier is in the business of providing business process management and outsourcing services and related services and has expertise in all aspects of the provision of such services as well as the requisite skills, resources, and experience to provide such services.
- (B) Customer issued an RFP (defined below) to qualified suppliers, including Supplier, seeking proposals for the provision of business process outsourcing services for Customer.
- (C) Supplier submitted a proposal, dated 12 November 2023 in response to the RFP and has amended such proposal pursuant to certain communications and other documentation provided during the selection process (collectively, "**Proposal**").
- (D) Supplier, understanding Customer's requirements as set out in the RFP, has held itself out to Customer as having the best credentials to assist Customer, by providing Customer with the Services (defined below) contemplated by this Agreement.
- (E) Customer has selected Supplier to provide, and Supplier has agreed to supply, the Services to Customer, Customer Group Members (defined below) and Authorised Users (defined below), on the terms and conditions set out in this Agreement.

It is agreed as follows:

PART 1 - INTRODUCTION

1. Definitions & Interpretation

- 1.1 Unless otherwise defined, the definitions and provisions in respect of interpretation set out in in Schedule 1 (Definitions & Interpretation) will apply to this Agreement.

2. Objectives

- 2.1 Supplier acknowledges and agrees that the specific goals and objectives of Customer in entering into this Agreement are to:
- 2.1.1 obtain and receive ongoing high-quality services, including finance, accounting, consulting, analytics, import and export documentation, contract and booking management, equipment control and information technology services, at market-competitive prices;
 - 2.1.2 enhance productivity, reduce operating risk and enjoy better quality and consistency of output and continuous improvement in consistency of service quality via introduction and deployment of state-of-the-art tools, workflows and processes;
 - 2.1.3 allow and enhance the ability of the Customer Group to streamline its operations, improve its processes and focus on its core businesses and required core

competencies;

- 2.1.4 achieve sustainable long-term cost savings derived from continuous improvement and access to the superior leverage and scale economies of a first-tier service provider;
 - 2.1.5 obtain continual access to global best practices in finance, accounting, consulting, analytics, import and export documentation, contract and booking management, equipment control and information technology services and access to and use of more dynamic and responsive systems;
 - 2.1.6 achieve flexibility and agility to rapidly adapt to changing requirements and changes in the business environment;
 - 2.1.7 ensure that services maximise the use of information technology industry leading standards, protocols and best practices relating to application, data and systems security; and
 - 2.1.8 allow the Customer Group to have access to data to track and monitor service levels and performance metrics actively for issues identification and performance improvement,
 - 2.1.9 (collectively, the “**Objectives**”).
- 2.2 To the extent the terms and conditions of this Agreement do not address a particular circumstance or are otherwise unclear or ambiguous, such terms and conditions are to be interpreted and construed so as to give the fullest possible effect to the Objectives.

3. Term of Contract

3.1 Term

- 3.1.1 Unless sooner terminated in accordance with the terms of this Agreement, this Agreement shall take effect on the Commencement Date and expire five (5) years from the Commencement Date (such period, “**Initial Term**”) or on the last day of any Extension Period required by Customer under Clause 3.2 (Renewal Notice and Process), whichever is later (such period from the Commencement Date to the date of expiry to be referred to as the “**Term**”).

3.2 Renewal Notice and Process

- 3.2.1 At least nine (9) months before the 5th Anniversary Date, or at any earlier time if requested by the Customer, Supplier shall provide to Customer, at Supplier’s cost and expense, a proposal setting out the terms and conditions on which it would continue to provide Services to the Customer after the then-current Term.
- 3.2.2 If by four (4) months prior to the 5th Anniversary Date, the Parties have not agreed to the terms and conditions upon which Supplier will continue to provide the Services after the then-current Term, Customer may, at any time before the last three (3) months prior to the 5th Anniversary Date, notify Supplier that it wishes to extend the Term for a period of up to twenty-four (24) months from the 5th Anniversary Date and if Customer does so, this Agreement shall be so extended for the specified period (“**Extension Period**”).
- 3.2.3 An extension under Clause 3.2.2 shall be on the then-current terms and conditions of this Agreement, including as to Fees, save where expressly agreed in writing between the Parties.

3.3 Upfront Monetisation

- 3.3.1 In consideration of the Customer’s entry into this Agreement, the Supplier shall pay the

Customer a total sum of USD 5,500,000 (the “**Upfront Monetisation Sum**”), payable to the Customer in the following manner:

- (i) the sum of USD 3,500,000 to be paid within the 1st year of the Term, to be paid in quarterly instalments each amounting to USD 875,000, with the first instalment paid on the Commencement Date; and
- (ii) the sum of USD 2,000,000 to be paid within the 2nd year of the Term, to be paid in quarterly instalments each amounting to USD 500,000, with the first instalment paid on the first day of the thirteenth month from the Commencement Date, i.e. the 1st Anniversary Date.

3.3.2 Subject to Clauses 3.3.3 and 3.3.6 below, the Customer shall repay the Upfront Monetisation Sum (or any portion thereof) received pursuant to Clause 3.3.1 above (the “**Repayment Amount**”) in instalments (each a “**Repayment Instalment**”) by repaying no later than each date set out in the table below (each, a “**Repayment Date**”) an amount which reduces the Repayment Amount by the amount set out opposite that Repayment Date set out in the table below:

Repayment Date	Repayment Instalment
The first business day following the date falling 24 calendar months from the Commencement Date	USD 875,000
The first business day following the date falling 27 calendar months from the Commencement Date	USD 875,000
The first business day following the date falling 30 calendar months from the Commencement Date	USD 875,000
The first business day following the date falling 33 calendar months from the Commencement Date	USD 875,000
The first business day following the date falling 36 calendar months from the Commencement Date	USD 500,000
The first business day following the date falling 39 calendar months from the Commencement Date	USD 500,000
The first business day following the date falling 42 calendar months from the Commencement Date	USD 500,000
The first business day following the date falling 45 calendar months from the Commencement Date	USD 500,000

3.3.3 If:

- (i) only a portion of the Upfront Monetisation Sum is received by the Customer pursuant to Clause 3.3.1 above; or
- (ii) the Customer is entitled to exercise its rights of set-off pursuant to Clause 3.3.4 below,

then the amount of the Repayment Instalment for each Repayment Date will reduce *pro rata* by: (A) in respect of sub-paragraph (i) above, the amount representing the shortfall between the Upfront Monetisation Sum and the amount actually received by the Customer pursuant to Clause 3.3.1 above; and/or (as the case may be) (B) in respect of sub-paragraph (ii) above, the amount which the Customer is entitled to set-off against the Repayment Amount pursuant to Clause 3.3.4 below.

3.3.4 The Customer (acting for itself and for and on behalf of any other Customer Indemnitee) may, at any time, set-off any matured obligation due from the Supplier to the Customer and any other Customer Indemnitee under this Agreement against the Repayment Amount. If the obligations are in different currencies, the Customer (acting for itself and for and on behalf of any other Customer Indemnitee) may convert either obligation at a market rate of exchange in its usual course of business for the purpose of the set-off.

3.3.5 The Upfront Monetisation Sum shall not be interest-bearing.

3.3.6 Repayment of Upfront Monetisation Sum on Termination

- (i) **Termination in whole:** The Customer acknowledges and agrees that upon expiry or termination of this Agreement in whole for any reason, the Upfront Monetisation Sum (or any portion thereof) received pursuant to Clause 3.3.1 above shall become immediately due and repayable to the Supplier on the effective date of termination.
- (ii) **Termination in part:** The Customer acknowledges and agrees that:
 - (a) where the termination of this Agreement in part under Clause 42.8 would result in the total number of FTEs deployed for the Operational Services being reduced by 30% or more within a Contract Year (excluding any such reduction resulting from any productivity improvements or efforts to meet the Productivity Guarantees), the Customer shall repay to the Supplier, the Upfront Monetisation Sum (or such portion thereof) pro-rated to the extent of the percentage of the FTEs reduced as a result of the termination, on the effective date of such partial termination; and
 - (b) where the termination of this Agreement in part under Clause 42.8 would result in the total number of FTEs deployed for the Services being reduced by less than 30% within a Contract Year (excluding any such reduction resulting from any productivity improvements or efforts to meet the Productivity Guarantees), Customer shall continue to repay the Upfront Monetisation Sum (or such portion thereof) in accordance with Clauses 3.3.2 and 3.3.3 above.

PART 2 – THE SERVICES

4. Services

4.1 Scope of Services

4.1.1 Customer hereby appoints Supplier, and Supplier hereby agrees, to undertake the obligations under this Agreement, to deliver the Deliverables, and to provide each of the following services

and functions to, and for the benefit of, Customer, each Customer Group Member and each Authorised User, as such services, functions and obligations may change and evolve and as they may be supplemented, enhanced, modified or replaced from time to time throughout the Term:

- 4.1.2** Transition Services;
- 4.1.3** Transformation Implementation Services;
- 4.1.4** Transformation Recurring Services;
- 4.1.5** Technology Implementation Services;
- 4.1.6** Technology Recurring Services;
- 4.1.7** Operational Services as set out in the relevant Statements of Work;
- 4.1.8** any other services, functions and responsibilities described in this Agreement, including Termination/Expiration Assistance and all services, functions and responsibilities specified in all Schedules, including specifically all Statements of Work and Work Orders; and
- 4.1.9** any services, functions and responsibilities, even if not specifically described in this Agreement, that are required for the proper performance or provision of the services, functions and responsibilities described in any of the provisions of this Clause 4.1 (Scope of Services) in accordance with this Agreement or that are an inherent, necessary or customary part of such aforementioned services, functions and responsibilities,

(collectively, “**Services**”) upon the terms and conditions contained in this Agreement, including (where applicable) the Transition and Transformation Plan, the relevant Statements of Work and Clause 12 (Service Levels). Supplier accepts prime contractor responsibility for the Services and Deliverables. Supplier acknowledges and agrees that Customer, each Customer Group Member, and each Authorised User relies fully on the expertise, experience, skill and judgment of Supplier in providing and delivering the Services and Deliverables to meet Customer's, each of Customer Group Member's and/or each Authorised User's requirements.

5. Transition and Transformation

- 5.1** Supplier shall provide the Deliverables and provide the Services in accordance with, and by the dates specified in the Transition and Transformation Plan attached as Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services), to the extent that it is within Supplier's control, with no disruption to, without any adverse impact on and without causing degradation to any part of the Customer and/or any Customer Group Member's operations and business, the Services or the Service Levels.

5.2 Schedule of implementation

- 5.2.1** Supplier shall ensure that all Waves are completed by the applicable Transition Milestones and/or Transformation Milestones, as the case may be, and the applicable Services and/or Deliverables are Ready for Use on or before the relevant Completion Date. Any change or extension of a Completion Date must be mutually agreed through an Agreement Change Request. Supplier, however, will not be responsible for any delay in ensuring that any applicable Services, and/or Deliverables, as the case may be, are Ready for Use to the extent that such delay solely arises out of the failure of the Customer to take delivery of the applicable Services, and/or Deliverables.
- 5.2.2** Unless the failure is substantially caused by the Customer, if Supplier fails to provide

the relevant Services and/or Deliverables Ready for Use within the period prescribed in the Transition and Transformation Plan after the Completion Date, Customer shall be entitled to cancel the relevant Services and/or Deliverables on giving notice to Supplier, without any liability to Customer.

- 5.3** If Supplier fails to ensure that any Wave is completed by the applicable Transition Milestones and/or Transformation Milestones, as the case may be, such failure shall for the purposes of Clause 42.1 (Termination for cause by Customer) be deemed to be a material breach of this Agreement which is not capable of being cured within 30 days, and Customer shall be entitled to immediately terminate this Agreement, in whole or in part, in accordance with Clause 42.1.1, without prejudice to the Customer's right to recover from Supplier the amount of all losses (whether direct or consequential) suffered by Customer resulting from such failure to the extent that such failure is attributable to the Supplier.

6. Operational Services and Statements of Work / Implementation Agreements

- 6.1** Supplier shall in accordance with the Transition and Transformation Plan:

6.1.1 conduct and complete in accordance with the requirements specified in this Agreement (including the Transition and Transformation Plan), a detailed study and analysis of the requirements of the Services required to be delivered under the relevant Wave ("**Detailed Requirements Study**"), including collating Customer's inputs and requirements in relation to Services and providing any further information as may be requested by Customer; and

6.1.2 upon the completion of the Detailed Requirements Study, prepare the draft Statement(s) of Work and/or draft Implementation Agreement(s) for the Operational Services, which must include specifications and functionalities to meet and address all of Customer's inputs and requirements furnished to or collated by Supplier during the Detailed Requirements Study, including the relevant Resource Baseline(s), relevant Volume Baseline(s) and relevant [REDACTED] Scope FTEs, for Customer's approval,

in accordance with the Transition and Transformation Plan.

- 6.2** Each draft Statement of Work shall be in the form set out in Schedule 3 (Form of Statements of Work and Acceptance Certificate). and each Statement of Work executed by the Parties shall be added to this Agreement attached as Schedule 2-X (each a "*Service Schedule*"), where "X" is a unique numerical designator to identify the particular Schedule (for example, Schedule 2-1, Schedule 2-2 and etc) and Supplier shall be obliged to commence provision of the Operational Services pursuant to each such Statement of Work.

- 6.3** In the event that any Statement of Work is not finalised (i.e. Customer has not approved the relevant draft Statement of Work, for whatever reason, submitted by Supplier) by the applicable deadlines set out in the Transition and Transformation Plan, the Parties shall use all reasonable endeavours towards a second attempt to finalise and agree on the relevant Statement of Work as soon as reasonably possible. Should the failure to finalise and agree on the relevant Statement of Works for at least 6 Territories continue for a period of 60 days from the relevant deadline despite the endeavours of the Parties, Customer may (but shall not be obliged to) terminate this Agreement or the relevant Wave by giving notice in writing to Supplier, in accordance with Clause 42.1.1.

7. General

7.1 Supply or activation of software, equipment or hardware

Where software, equipment or hardware are required to be supplied, developed, set up,

activated, connected, installed and/or implemented for the purposes of the provision of any Services and/or Deliverables, Supplier shall:

- 7.1.1 procure, supply, Customise, implement, install and/or assemble all equipment and perform all connection, activation and/or other services necessary to enable the Authorised Users to access and use the Services and/or Deliverables in question by the relevant date of commencement as mutually agreed by the Parties, in accordance with this Agreement, including the applicable Statements of Work, Service Levels and the Transition and Transformation Plan; and
- 7.1.2 Integrate all components of hardware, software, equipment and systems used for the provision of the Services and/or Deliverables to operate as complete functional and inter-operable system(s), and operate, manage and man the infrastructure, systems, centres and facilities as specified in this Agreement, including the applicable Statements of Work, Service Levels and the Transition and Transformation Plan.

7.2 Acceptance testing

7.2.1 **General evaluation and acceptance testing:** Supplier shall, by the Completion Date, carry out or where requested to by Customer, assist Customer to carry out, any and all necessary and appropriate verification, evaluation and acceptance tests ("**General Acceptance Tests**") for the purpose of ensuring that:

- (i) the relevant Services and/or Deliverables:
 - (a) comply in all respects with this Agreement, the relevant Statement(s) of Work and any applicable acceptance and testing criteria set out in the Transition and Transformation Plan, and in a manner satisfactory to Customer, Customer Group Members and/or the Authorised Users (as applicable); and
 - (b) are activated or delivered to Customer, Customer Group Members and/or the Authorised Users (as applicable) in accordance with the Transition and Transformation Plan;
- (ii) all Transition and Transformation Services associated or required for such Services and/or Deliverables have been completed by Supplier in compliance with the Transition and Transformation Plan; and
- (iii) such Services and/or Deliverables are available for use and access by Customer, Customer Group Members and/or the Authorised Users (as applicable) and are providing their intended functions in a reliable manner.

7.2.2 **Specific acceptance testing:** In lieu of General Acceptance Tests, where the scope requirement for any Service or Deliverable or where any requirement specified in the Transition and Transformation Plan includes a specific testing phase as part of the Transition and Transformation Plan, Supplier shall conduct tests ("**Specific Acceptance Tests**") in accordance with test procedures which are capable of demonstrating whether the Transition Services and/or Transformation Services comply in all respects with the specific acceptance and testing criteria set out in the Transition and Transformation Plan and/or whether the Service, Deliverable or requirement in question complies in all respects with this Agreement and the relevant Statement of Work (such procedures, "**Specific Test Procedures**").

7.2.3 For the purposes of any General Acceptance Test or Specific Acceptance Test, Customer shall be entitled to:

- (i) determine any procedures, data or criteria (including Specific Test Procedures) that it deems necessary for such test; and
- (ii) direct and request Supplier to prepare preliminary documents, procedures, data and criteria for its approval, and Supplier shall comply with such direction or request.

7.2.4 Except as expressly agreed in writing between Parties in the relevant Statement of Work, Supplier shall bear any costs that may be incurred in conducting and facilitating any General Acceptance Tests or Specific Acceptance Tests, and shall be solely responsible for:

- (i) providing and supplying all tools, equipment, hardware and software necessary for conducting such tests; and
- (ii) furnishing all relevant test reports to Customer after any such tests have been successfully completed.

7.2.5 Issuance of Acceptance Certificate

- (i) For each Territory, a notice indicating successful completion and acceptance of a Service or Deliverable ("**Acceptance Certificate**") will only be issued upon the successful completion of the Transition Plan for that Territory and the commencement of Operational Services for the Territory as set out in the relevant Statement of Work.
- (ii) The relevant Customer Group Member's signing of any Acceptance Certificate shall not constitute any evidence or representation by such Customer Group Member that all warranties, obligations and undertakings of Supplier which are or have become due to be discharged and observed have been discharged or observed and shall not constitute a waiver by such Customer Group Member of any claims it may have against Supplier as of that date with respect to those warranties, obligations and undertakings.

7.3 Service Levels

Supplier shall provide the Services in the manner and to the standard specified in this Agreement, including under Clause 12 (Service Levels).

7.4 Service orders or requests

7.4.1 Customer may, at its absolute discretion and from time to time authorise, request or order Services or any part thereof from Supplier.

7.4.2 In consideration of Customer's agreement to pay the Fees, Supplier hereby agrees to provide the Services to Customer, Customer Group Members and Authorised Users in accordance with the terms and conditions of this Agreement, including the applicable Statement of Work or Work Order, as the case may be.

7.5 Adjustments to volume or amount of Services

Supplier shall increase or decrease the volume or amount of the whole or any part of the Services in accordance with Customer's business requirements and demands from time to time, in accordance with this Agreement.

7.6 Compliance with Laws and Legal Requirements

7.6.1 Supplier shall comply with all Laws and Legal Requirements applicable to it as a business process outsourcing services provider to the business that Customer and the

Customer Group Members are engaged in or necessary for the performance of its obligations under this Agreement, including any outsourcing regulations or guidelines issued by any Government Authority, and shall meet Customer's compliance requirements, which may be more stringent than regulatory requirements, including performing the following:

- (i) disclosing to the applicable Government Authority and discussing with such Government Authority, the relationship between Supplier and Customer, the Services to be provided by Supplier, the terms of this Agreement and any other information requested by the aforementioned authorities;
- (ii) in connection with the provision of the Services, complying with all Laws and Legal Requirements which are or which may in the future be applicable to the Customer Data or to information relating to customers of Customer or to any Customer Group Member;
- (iii) providing and making available to Customer up-to-date and accurate information required or useful for preparation and maintenance of any and all records related to the Services and/or Deliverables that any Government Authority may at any time require or wish to inspect, and insofar as it is possible, with prior written notice; and
- (iv) permitting any Government Authority to inspect and review the operations and controls of Supplier as they relate to the Services wherever located.

7.6.2 Customer shall endeavour to provide to Supplier, updates to its internal and external audit and compliance requirements.

7.6.3 Supplier undertakes to identify, obtain and maintain, all licenses, certificates, approvals, permits and authorisations required by the applicable Laws and Legal Requirements regulating the provision of the Services and Supplier of such Services (whether by Supplier or any Supplier Subcontractor), for Supplier and/or such Supplier Subcontractor to provide the Services and to perform its obligations under this Agreement. Except as expressly stated otherwise under this Agreement, Supplier shall be responsible for all costs, expenses, fees and taxes associated with identifying, obtaining and maintaining such licenses, certificates, approvals, permits and authorisations and Supplier's compliance with this Clause 7.6.3 shall be at no additional charge to Customer.

7.6.4 Supplier will cooperate with Customer and provide, to Customer's satisfaction, all support and assistance (including administrative and support services) reasonably related to the scope of Services that is required for Customer and any Customer Group Member to meet all of its requirements which are imposed by:

- (i) Laws and Legal Requirements; and
- (ii) Customer's internal and external audit and compliance requirements, which may be more stringent than regulatory requirements.

7.6.5 Supplier warrants that it has, through its global businesses and operations and in the course of the provision of services similar to the Services to customers in the shipping, logistics, and transportation industry and industries related to services, products and businesses that the Customer Group Members are engaged in, acquired extensive knowledge of, and understands its obligation to comply with, the Laws and Legal Requirements applicable to Supplier and the provision of all aspects of the Services and will maintain such level of knowledge with such Laws and Legal Requirements

during the Term and will closely monitor the appropriate information sources for changes in such Laws and Legal Requirements during the Term.

7.6.6 Supplier undertakes to promptly notify Customer of any changes in Laws and Legal Requirements relating to Supplier's or any Supplier Subcontractor's provision of the Services to any Customer Group Member or any Authorised User, or which may affect any Customer's Group Member's or any Authorised User's access to, use and enjoyment of the Services.

7.6.7 Supplier will, with Customer's written approval (which shall not be unreasonably withheld), modify the Services to conform with any changes in Laws and Legal Requirements.

7.6.8 If Customer so requires, Supplier shall certify in writing to Customer that Supplier is complying with Clauses 7.6.1 to 7.6.7.

7.6.9 Authorisation removal

(i) If any licence, authorisation, consent, approval or permit required by applicable Laws and Legal Requirements for the provision of the Services by Supplier or any Supplier Subcontractor cannot be obtained from, or is withdrawn by, any Government Authority or other Third Party, Supplier shall first notify Customer in writing and, at first instance, use its Best Endeavours to obtain or procure (such as by re-applying for or renewing) the required licence, authorisation, consent, approval or permit necessary for the provision of the Services. In the event Supplier or any Supplier Subcontractor fails to obtain or procure the required licence, authorisation, consent, approval or permit or otherwise carry out the foregoing obligations to Customer's satisfaction within a reasonable period of time from such notification (which shall not exceed seven days), then, without limiting Clause 25 (Third Party suppliers), Customer may cease to obtain from Supplier, or may procure from a Third Party, the relevant part of the Services and, if Customer does so, it is entitled to apply all fees and any other sums incurred (during the first 6 months of Customer procuring such services from the Third Party in question or the Customer carrying out the Services) in connection with carrying out, procuring, receiving and paying for such Services as a credit against any amounts payable to Supplier under this Agreement. If on the expiry of the 6 month period, Supplier or such Supplier Subcontractor is still not able to recommence the provision of the Services in accordance with the terms and conditions of this Agreement to Customer's satisfaction, then, without limiting Clause 25 (Third Party suppliers), Customer may terminate this Agreement in whole or any part, without liability in accordance with Clause 42.1.1.

(ii) In the event that Customer or any Customer Group Member is prohibited by mandatory laws from accessing, enjoying or using any part of the Services, Customer may terminate, forthwith by giving written notice to Supplier, the whole or any part of this Agreement in its sole discretion, in accordance with Clause 42.1.1.

7.7 Customer Associates

Supplier acknowledges that one or more Customer Group Members has and will have duties and obligations to:

7.7.1 Authorised Users;

7.7.2  Customers;

7.7.3 [REDACTED] Vendors; and

7.7.4 any person to whom the Customer Group undertakes certain obligations from time to time,

(collectively, "**Customer Associates**") which will or may be dependent on the proper provision of the Services by Supplier under this Agreement. To the extent that it is within Supplier's control, Supplier shall supply the Services so as to enable each Customer Group Member to comply with all duties and obligations referred to in this Clause 7.7 (Customer Associates) of which Supplier is aware or of which Supplier has been notified by Customer.

7.8 Customer Service Handbook

7.8.1 Supplier shall provide the Services in accordance with the Customer Service Handbook.

7.9 Authorised Users of the Services

7.9.1 Supplier shall provide the Services to Customer, any Customer Group Member, any Authorised User, and any Customer Associates whose business relationship with Customer involves the use of the Services.

7.9.2 In the event that an entity receiving Services as an Authorised User ceases to be an Affiliate of Customer, Supplier shall continue to provide the Services to such entity after the date such entity becomes a former Affiliate of Customer for up to 6 months as requested by Customer and the terms and conditions of Clause 19 (Business Restructure) shall apply. Services shall be provided to such former Affiliate of Customer in accordance with the then-current terms and conditions of this Agreement.

7.9.3 Any reference in this Agreement to Customer's property, material, premises, facilities, hardware, software or any other rights, licenses and entitlements (including those set out, granted or provided in this Agreement) shall be deemed to include the Authorised User's property, material, premises, facilities, hardware, software or any other rights, licenses and entitlements as the context permits.

7.9.4 Notwithstanding the foregoing Clauses 7.9.1 to 7.9.3, Customer shall be solely responsible for all Fees in accordance with Clause 15 (Fees) regardless of the recipient of the Services.

7.10 Acceptance Procedure for Deliverables

All Deliverables required to be provided by Supplier to Customer under this Agreement shall first be presented to Customer for acceptance in accordance with Clause 7.2 (Acceptance Testing), the Customer's prescribed procedure as agreed from time to time and/or the relevant specific acceptance procedure prescribed in any Schedule (if any), as applicable.

7.11 Access-Based Services

7.11.1 In respect of Access-Based Services, Supplier undertakes to provide to all relevant Authorised Users on or before the proposed commencement date of the Service in question, all Service Security Codes required by such Authorised Users for accessing and using the Service in question.

7.12 Customer Systems & Third Party Systems

7.12.1 Supplier undertakes to, and shall ensure that all Supplier Subcontractors undertake to, observe any reasonable terms, conditions and/or restrictions which Customer notifies to Supplier regarding the use of any Customer Systems and the Third Party Systems including any reasonable terms, conditions or restrictions imposed by the relevant

Customer Group Members and any procedures and access procedures required to be complied with by the Third Party licensor or proprietor of the Third Party Systems.

7.12.2 Where the provision of the Services involves the access and use of any Customer Systems or Third Party Systems by Supplier, Supplier undertakes:

- (a) where it is required to access and use the Customer Systems or the Third Party Systems under this Agreement, to do so strictly for the performance of the Services;
- (b) not to tamper with (by hacking, logical or remote access or otherwise) the Customer Systems or the Third Party Systems and any Customer Data contained therein;
- (c) unless expressly authorised by Customer or unless expressly required for the provision of the Services, not to allow or permit any party (including any Supplier's Personnel or any Supplier Subcontractor) to use, access, interfere or tamper with the Customer Systems and any Customer Data contained therein; and
- (d) to ensure that all of its Personnel, agents, sub-suppliers, Supplier Subcontractors, employees and other representatives observe all security and safety procedures applicable to the Customer Systems or the Third Party Systems as may be notified to Supplier by Customer from time to time.

7.12.3 Customer or the relevant Customer Group Member, as the case may be, shall at all times retain the ownership of the Customer Systems and Supplier shall have no interest in the Customer Systems whatsoever. Notwithstanding that the Customer Systems may have been affixed to any land or building, Customer or the relevant Customer Group Member, as the case may be, shall continue to be the owner of the Customer Systems, which shall as between Supplier and Customer (or the relevant Customer Group Member, as the case may be) and each Parties' respective successors in title, remain the property of Customer or the relevant Customer Group Member, as the case may be, at all times. Supplier undertakes not to create or enable any charges, liens, pledges, or other encumbrances whatsoever to be placed on the Customer Systems.

7.12.4 Supplier shall ensure that, as the case may be and as applicable to or necessary for the performance of its obligations under this Agreement, Supplier Systems used by Supplier or any Supplier Subcontractor in providing the Services interface, integrate or interoperate with, or connect to the Customer Systems and the Third Party Systems.

7.12.5 Supplier shall:

- (i) ensure that it does not by any act or omission adversely affect or alter the operation, functionality, technical environment or costs to Customer of the Customer Systems and the Third Party Systems without the prior written consent of Customer; and
- (ii) notify Customer and any relevant Third Party if it becomes aware of any deficiencies or errors in the Customer Systems or the Third Party Systems.

7.12.6 Supplier shall provide Customer with such reasonable information and access as may be reasonably required to allow it to inform itself and keep itself informed, about all aspects of the existing and future Customer Systems and Third Party Systems.

7.12.7 As part of the Services, Supplier shall provide Customer on request with services in relation to such Customer Systems and/or Third Party Systems, including liaising with

Customer or Third Parties on the impact of any alterations to Supplier Systems on the Customer Systems/Third Party Systems and vice versa.

- 7.12.8** Supplier shall not be liable for any breach of its obligations under the Agreement or for any Losses arising as a result of a deficiency in the Customer Systems and/or Third Party Systems, including any Losses caused by the Supplier Personnel following any instructions provided by a Customer or Customer Group Member in relation to Customer Systems and/or Third Party Systems.

7.13 Documenting modifications to Customer's business processes

Supplier shall ensure that all modifications made by Supplier to the Customer Group's business processes, workflows and procedures provided to Supplier pursuant to this Agreement, are and will be properly documented throughout the Term.

7.14 Provision of information

7.14.1 General disclosure

- (i) Supplier agrees to furnish Customer with all information in connection with the provision of the Services in such format, form and detail as Customer may require, including but not limited to the following:
- (ii) all data and information relating to the modifications made by Supplier to the Customer Groups' business processes, workflows and procedures referred to in Clause 7.13 (Documenting modifications to Customer's business processes); and
- (iii) all information relating to the tracking of Authorised Users' profile and preferences as recipients of the Services.

7.14.2 Information relating to Supplier's performance of obligations under this Agreement

- (i) Supplier must promptly notify and fully disclose to Customer in writing any event or occurrence, actual or threatened, during the Term which could or would materially affect Supplier's ability to perform any of its obligations under this Agreement.
- (ii) Without limiting the generality of the foregoing, Supplier undertakes to promptly notify Customer of the occurrence of any of any of the events referred to in Clause 42 (Termination), any adverse developments in Supplier's provision of the Services that could impact Customer (including any event that could potentially lead to prolonged service failure or disruption in the Services, or any breach of security and confidentiality of Customer's or any Customer Group Member's information), any non-compliance by Supplier with the terms of this Agreement and any breach of legal or regulatory requirements by Supplier.

7.14.3 Information on Personnel

On Customer's request, but subject to any Laws and Legal Requirements, including those in relation to confidentiality, or data privacy or data protection (such as the Personal Data Protection Act 2012 of Singapore or other similar legislation in any jurisdiction), Supplier must provide Customer with all information reasonably required by Customer relating to any of Supplier's Personnel. Supplier shall ensure that Customer is from time to time notified in writing of all Personnel that Supplier proposes to engage or has engaged in the performance of the Services and whose presence is required at the Supplier Sites and/or Customer Sites.

7.14.4 Documentation

7.14.5 Supplier must provide Customer with such manuals, documentation and other materials (collectively, “**Documentation**”) as may be necessary to allow the Customer Group and the Authorised Users to understand, access and use the deliverables supplied or managed by Supplier as part of the Services effectively and efficiently, and such other materials as may be further specified in the relevant Statements of Work or the Transition and Transformation Plan. Without limitation, such material must:

- (i) be of a reasonable standard of accuracy, presentation and scope;
- (ii) be the most current version available; and
- (iii) contain such information as would reasonably be required by any person wishing to use the end-result/deliverables of the relevant Services.

7.15 Technology

7.15.1 Supplier Systems

- (i) Supplier shall ensure that:
 - (a) Supplier Systems shall at all times during the Term of this Agreement, comply with the standards and requirements set out in Schedule 8 (Supplier Systems, Technical Architecture and Product Standards), and if at any time Supplier Systems does not comply fully with the standards and requirements set out in Schedule 8 (Supplier Systems, Technical Architecture and Product Standards) (referred to as “**non-compliance**”), then without limiting its other rights and remedies under this Agreement and without prejudice to the other provisions of this Agreement:
 - (I) Customer may issue a notice (a “**Compliance Notice**”) to Supplier requiring Supplier to remedy the relevant non-compliance; and
 - (II) Supplier shall as soon as reasonably possible after receiving the Compliance Notice or otherwise becoming aware of any non-compliance, remedy at Supplier’s sole cost the non-compliance so as to ensure that the requirements of Clause 7.15.1(i)(a) are satisfied.
 - (ii) Supplier Systems shall contain or utilise security software and/or hardware and such other features as may be required for the prevention of tampering and other interference. Any threat to the security or integrity of Supplier Systems shall be reported to Customer and corrected or remedied by Supplier in an expeditious manner.

7.15.2 Data linkages & transfers

(i) Data linkages

Supplier shall be responsible, at its sole cost, for all the network, telecommunications and/or data connections between Supplier Systems (wherever situated), the Customer Systems (wherever situated) and/or the Third Party Systems (wherever situated), and for the maintenance and operation of the foregoing connections in compliance with the level, manner and mode set out in the Schedule 8 (Supplier Systems, Technical Architecture and Product Standards).

(ii) Data transfers

Supplier is responsible, at its sole cost, for the implementation, integration, planning and execution of all data transfers (one-off as well as those required on a recurring basis) between the Customer Systems and Supplier Systems and between the Third Party Systems and Supplier Systems.

7.15.3 Technology Evolution

- (i) Supplier acknowledges that technologies employed and required by the Customer Group in relation to the Services will continue to evolve and change over the Term. At a minimum, Supplier must ensure that the technologies used to perform the Services will remain compatible and consistent with the Customer Group's then current business and technology objectives and competitive needs as communicated to Supplier.
- (ii) Supplier must continually introduce and implement, with the Customer's written approval, Technology Evolution to improve the provision of the Services and deploy the most-up-to-date Supplier Systems in its provision of the Services to ensure that it keeps pace with technology advancements or improvements throughout the Term, unless Customer directs otherwise.
- (iii) The cost of Technology Evolution in relation to Supplier's Systems shall be borne solely by Supplier.
- (iv) **No effect on Resource Units**

Supplier must ensure that each Resource Unit will not increase over the Term as a result of Technology Evolution.

7.15.4 Supplier's Technological Flexibility

- (i) Supplier must ensure that the technologies it employs to provide the Services are able to integrate with and are capable of interworking and interfacing with other technology platforms or solutions that the Customer Group may incorporate with the Customer Systems during the Term, and the outputs of those technologies employed by Supplier are capable of being utilised by the Customer Group given its then current operating environment.
- (ii) Any of the costs incurred by the Customer Group arising from any Technology Evolution that has the effect of changing the Customer Group's technological interfacing systems or requires any Customer Group Member to purchase or upgrade any System or make any alterations to its standard operating environment shall be agreed via the Change Control Procedure.

7.15.5 Refresh & Standardisation

7.15.6 Supplier will be fully responsible for the implementation of new versions and releases of tools, methodologies, applications, Supplier Systems in the ordinary course of business, and of the tools, methodologies, applications, Software and Equipment detailed in Schedule 8 (Supplier Systems, Technical Architecture and Product Standards), and must:

- (i) promptly inform the Customer of any new versions and/or releases of such tools, methodologies, applications, Software and Equipment;
- (ii) subject to the Customer's written approval, refresh such tools, methodologies, applications, Software and Equipment to ensure that such tools, methodologies, applications, Software and Equipment shall always be up to date and suitable for the efficient performance and provision of the Services;

- (iii) in respect of each item of Supplier Systems, with any modifications or updates agreed via the Change Control Procedure, maintain the release that is used by Supplier in performing the Service to the generation level agreed by the Parties; and
- (iv) maintain multiple release levels of Software forming part of Supplier Systems as directed by Customer (including to ensure compatibility with other system applications or hardware components), without any increase in the Fees.

7.15.7 Use and implementation of new processes and technology

7.15.8 In providing the Services to the Customer Group, Supplier will perform the following:

- (i) together with Customer, identify opportunities to implement new technology and work processes advantageous to Customer's business operations;
- (ii) maintain a level of currency, knowledge and technology that allows Customer to take advantage of technological advances in order to remain competitive; and
- (iii) meet with Customer periodically to inform Customer of any new technology or technology trends and directions that Supplier is developing or is otherwise aware of that could reasonably be expected to have an impact on the Customer Group's businesses,

and in connection with the performance of the above services, comply with Clauses 15.6.1 (Passing through reductions in costs) and 22, as applicable.

7.16 Adequacy of Design

The Supplier shall be solely responsible for ensuring the suitability and adequacy of the design relating to every respect of the provision of the Services and the Deliverables, including the design relating to the resources, materials and technology stack used, and the performance function, reliability and construction of the Services, except that where the Supplier is required to make use of a design provided by the Customer, the Supplier shall not be responsible for any defects in such a design if the Supplier can reasonably show that Customer has failed to rectify such defects even after reasonable notice and proof has been given by the Supplier to the Customer, in which event, the Customer shall have the option to either:

- 7.16.1** accept the disclaimer and continue to require the use of the design; or
- 7.16.2** withdraw the design and allow the Supplier to use its own design in lieu thereof, in which case the Supplier shall be entitled to such costs and extension of time as may be reasonable having regard to the effort required of the Supplier in providing such replacement design. For the avoidance of doubt, the Supplier shall be solely responsible for ensuring the suitability and adequacy of such replacement design.

7.17 Obsolete Technology

- 7.17.1** The Supplier shall: (a) promptly notify the Customer in writing prior to any of the tools, methodologies, applications, Software and/or Equipment detailed in Schedule 8 (Supplier Systems, Technical Architecture and Product Standards) becoming obsolete; (b) propose an equivalent or improved replacement for such tools, methodologies, applications, Software and/or Equipment for the Customer's approval; and (c) use Best Endeavours to ensure that such equivalent or improved replacement can be procured at the same or lower cost to the Customer to the extent possible. The Customer may:

- (i) grant its approval to such replacement, in which case, the relevant tools, methodologies, applications, Software and Equipment shall be deemed to have been replaced at the approved costs at the date of the Customer's approval; or
- (ii) withhold its approval, but only in such cases where non-replacement of obsolete tools, methodologies, applications, Software and equipment is permissible and functional, in which case, the Supplier shall be obliged to continue utilising or providing the said tools, methodologies, applications, Software and Equipment. In such an event, the Customer acknowledges that future defects or changes to the obsolete technology may not be supported.

Notwithstanding the foregoing, any replacement or non-replacement of obsolete tools, methodologies, applications, Software and Equipment shall not construed to be in any way a reduction or waiver of the Supplier's obligations pursuant to this Agreement.

7.18 RFP Assistance

7.18.1 During the Term and the Termination/Expiration Assistance Period, Supplier shall provide Customer with information related to the Services and Supplier's performance thereof that Customer reasonably requests during the Term and upon the termination or expiration of this Agreement to enable Customer to draft a request for proposals(s) relating to the Services or services similar to the Services and to provide due diligence information for recipients of such request for proposal. Supplier may or may not be a recipient of such request for proposal.

7.19 Policy and Procedures Manual

7.19.1 Supplier will develop and periodically update a Policy and Procedures Manual that describes how the Parties will work together and how the Services are to be performed in compliance with the terms and conditions of this Agreement. In connection with the foregoing, both Customer and Supplier will comply with the requirements contained in Schedule 6 (Governance); and the Supplier will comply with the requirements contained in Schedule 4 (Service Levels).

7.19.2 Supplier shall not implement the Policy and Procedures Manual without the prior written approval of Customer.

7.19.3 Each Party shall comply with each of its obligations in the Policy and Procedures Manual.

7.19.4 Supplier shall update, in accordance with the requirements set out in Schedule 4 (Service Levels), the Policy and Procedures Manual not less than annually and as often as necessary to incorporate all changes, within the time frames set out in Schedule 4 (Service Levels) after such changes are made, in the operations or procedures described in the Policy and Procedures Manual. Prior to implementation of the Policy and Procedures Manual by Supplier, Supplier shall provide Customer with each such updated version of the Policy and Procedures Manual for Customer's written approval.

8. Security

8.1 General

8.1.1 Supplier shall comply, and shall ensure the compliance of all Supplier Subcontractors, with:

- (i) the security policies which shall be set out in Schedule 12 (Customer Safety Security Policy and Procedures); and
- (ii) all security requirements set out in the Policy and Procedures Manual.

8.1.2 Supplier acknowledges that the security of Customer Data and Supplier Systems it uses to provide the Services is fundamental to the business of each Customer Group Member, and that, without limitation, any security breach may directly affect one or more Customer Group Member's:

- (i) duties to the Customer Associates;
- (ii) relationship with its shareholders and employees; and
- (iii) compliance with or obligations under applicable Laws and Legal Requirements.

8.1.3 Supplier shall ensure that the Policy and Procedures Manual shall contain, and Supplier shall establish and maintain, safety and security procedures and safeguards (including procedures and safeguards against the destruction, loss, disclosure, alteration or unauthorised use of Customer Data) that are and continue to be at least equal to the highest of:

- (i) the best practices, procedures and safeguards worldwide in the industries in which Customer and Supplier operate as those practices, procedures and safeguards evolve;
- (ii) safety and security requirements set out in this Agreement (including the Schedules);
- (iii) safety and security requirements set out in applicable Laws and Legal Requirements; and
- (iv) any higher standard otherwise agreed between Customer and Supplier.

8.1.4 Without limiting Clause 8.1.3, Supplier shall:

- (i) comply with all Customer security policies, standards, requirements and specifications;
- (ii) provide appropriate Equipment and Software to implement security solutions in accordance with Customer standards and requirements;
- (iii) segregate all Customer Information from that of any other client; and
- (iv) provide Customer with direct access to assets and information pertinent to Customer's investigations, compliance reviews, and audits.

8.1.5 Supplier shall ensure that the Policy and Procedures Manual shall contain, and Supplier shall establish and maintain, security procedures and safeguards against the unauthorised access, destruction, loss or alteration of Customer Information in the custody, possession or control of Supplier or any Supplier Subcontractor, that are and continue to be at least equal to the highest of:

- (i) the most rigorous practices of Customer and Supplier as of the Commencement Date; and
- (ii) the current commercial practices, procedures and safeguards worldwide in the industries in which Customer operates as those practices, procedures and safeguards evolve.

8.1.6 Customer shall have the right to establish backup security for Customer Information and to keep backup and files for such information and data in its possession if it chooses. Supplier shall ensure that each of Supplier's Personnel and Supplier Subcontractors will not attempt to access or allow access to Customer Information that is not required for the performance of the Services by such Personnel or Supplier

Subcontractor.

- 8.1.7** If required by Customer at any time, Supplier shall prepare for Customer, at no additional cost or expense, a Risk Assessment and Mitigation Plan in relation to any aspect of the safety and security procedures and safeguards then in effect, and upon Customer's approval of the same, implement the Risk Assessment and Mitigation Plan.
- 8.1.8** Supplier will promptly notify Customer of any breach or potential breach of security, and investigate and remedy the effects of such breach or potential breach. In addition, Supplier shall immediately:
- (i) notify Customer of such breach or potential breach;
 - (ii) identify the cause thereof;
 - (iii) do all within its power to remedy any breach and its consequences;
 - (iv) ensure that any potential breach does not become an actual breach;
 - (v) provide Customer with a report detailing the cause of, and procedure for correcting, the breach or potential breach;
 - (vi) provide Customer with reasonable evidence that the breach or potential breach will not occur again; and
 - (vii) certify that Supplier has taken all reasonable action to prevent any recurrence of such breach or potential breach.
- 8.1.9** Within fifteen days after each Anniversary Date or more frequently if Customer so requires, Supplier shall certify that Supplier is complying with Clauses 8.1.3 and 8.1.5.
- 8.1.10** Without in any way limiting Supplier's obligations under Clauses 8.1.3, 8.1.4 or 8.1.5, Supplier shall regularly advise Customer of other practices, procedures and safeguards in effect at locations of other customers of any Supplier Group Members or Supplier Subcontractors, where those practices, procedures and safeguards are of a higher standard than those contemplated in Clause 8.1.5.

8.2 Customer Data & Security Measures

As the Services involve the storage, processing or use of Customer Data on Supplier Systems or use of Customer Data at the Sites, Supplier:

- 8.2.1** warrants that the security features, measures and procedures ("**Security Measures**") that Supplier Systems and the Sites will be equipped with to ensure the security of the Customer Data shall include such features, measures and procedures that are and continue to be at least equal to the highest of:
- (i) the features, measures and procedures expected of a leading company in the industries in which Customer operates as those features, measures and procedures evolve; and
 - (ii) any other features, measures and procedures otherwise agreed between Customer and Supplier;
- 8.2.2** shall, if at any time during the term of this Agreement it is demonstrated to Supplier that the Security Measures can be breached or compromised ("**Security Breach**"), promptly and at its own expense diagnose the fault and rectify the Security Breach, repair and/or replace the Security Measures as appropriate as well as to perform all works necessary to restore the security of Supplier Systems and the Sites;

8.2.3 shall be responsible for ensuring the integrity and security of Supplier Systems and shall only allow access to the same to such of the Authorised Users:

- (i) as have been issued with Service Security Codes (in respect of any on-line, remote or electronic access to Supplier Systems) in accordance with the instructions or requests of Customer; or
- (ii) which have been specifically authorised by Customer to do so, in accordance with this Agreement (in respect of any other form of access);

8.2.4 Data recovery: undertakes to develop and maintain procedures which are acceptable to the Customer for the recovery of lost Customer Data and to maintain a log of all existing and future copies of the Customer Data, including location and media of storage;

8.2.5 shall not:

- (i) use or develop Customer Data; or
- (ii) make Customer Data available to its Personnel, Supplier Subcontractors or other Third Parties,

for any purpose other than the performance of the Services under this Agreement and only where use, development and access to Customer Data is necessary for the provision of the Services;

8.2.6 undertakes to operate, administer and manage Supplier Systems in accordance with all access and/or security standards, policies, procedures and guidelines, including access control procedures for allowing any party access (whether physical or otherwise), set out in the Service Levels and as may be notified by Customer to Supplier from time to time and shall provide and observe additional security measures and procedures as may be reasonably requested by Customer at no additional charge;

8.2.7 Segregation of data: shall ensure the segregation or compartmentalisation of Customer Data from any other data of Supplier (including data of Supplier's other customer and clients);

8.2.8 unless expressly authorised by Customer or unless expressly required for the provision of the Services and subject to Clause 8.2.5, shall not allow or permit any party (including any of Supplier's Personnel and Supplier Subcontractor) to use, access (whether physically or electronically), interfere or tamper with the Customer Data at the Sites for any purpose; and

8.2.9 shall ensure that all Supplier's Personnel and Supplier Subcontractors observe all security and safety procedures applicable to the Customer Data, including such security and safety procedures as may be notified to Supplier by Customer from time to time.

9. Service Delivery

9.1 General

9.1.1 Customer operates in a business environment characterised by constant change that will directly affect the delivery of Services. Supplier shall implement generally recognised, available or accepted technological advancements and improvements in delivering the Services as may be necessary to meet the Customer Group's business needs as may be changed from time to time. If services provided through the use of the technological advancements and improvements do not constitute a New Service,

Supplier will, with Customer's prior approval, use such advancements and improvements to provide the Services without additional charge to Customer.

9.1.2 Technologies

Supplier will be proactive in identifying opportunities to implement new technologies that will improve the provision of the Services and support by Supplier at an increased productivity and/or reduced technology cost, and use its Best Endeavours to pass through reductions in technology costs and increase in productivity to Customer.

9.2 Commitment to provide Resources

Except where this Agreement specifically provides otherwise, Supplier shall be responsible for providing any and all facilities, assets and Resources (including Personnel, Sites, Supplier Systems, Equipment, and Software) necessary for delivering or providing the Services and meeting its obligations under this Agreement.

10. Sites

10.1 Use of Supplier Sites

10.1.1 Access to Supplier Sites

Supplier shall permit Customer and its agents and representatives to enter Supplier Sites (or any part thereof) at any time upon reasonable notice and subject to Supplier security requirements. Customer shall not appoint any Direct Competitor as its agent or representative for the purpose of this Clause 10.1.1. Notwithstanding the foregoing, the Customer may at any time appoint any of the following entities and/or their subsidiaries or affiliates as its agent or representative pursuant to this this Clause 10.1.1 (even if such entity is or may be a Direct Competitor): (i) KPMG International Limited; (ii) Ernst and Young Global Limited; (iii) PricewaterhouseCoopers International Limited; and (iv) Deloitte Touche Tohmatsu Limited.

10.1.2 Supplier shall maintain and enforce at Supplier Sites, safety and physical security measures, safeguards and procedures (including those for the prevention of unauthorised access to Supplier Sites) that are at least equal to the highest of the following:

- (i) best industry standards and practices for locations similar to Supplier Sites;
- (ii) Customer's safety and physical security measures, safeguards and procedures which are applicable to the Customer Sites; and
- (iii) any higher standard otherwise agreed between Customer and Supplier.

10.1.3 Migration of provision of Services

Supplier will comply with the Transition and Transformation Plan in connection with the migration of the provision of any Services from any Customer Sites to Supplier Sites, or the relocation of Personnel currently providing services similar to the Services.

10.2 Customer Sites

10.2.1 This Clause 10.2 (Customer Sites) shall apply in respect of any access to Customer Sites whatsoever, including where Supplier requires access to any Customer Sites for the purposes of performing or providing any Services or is required to access any Customer Sites in connection with the provision of the Services.

10.2.2 Supplier will comply with the safety and security policies and procedures in effect at

Customer Sites.

- 10.2.3** Supplier will access and use the Customer Sites for the sole purpose of providing the Services and will use the Customer Sites in an efficient manner. Supplier shall at all times seek and obtain the Customer's consent in writing prior to accessing and using the Customer Sites and shall minimise the extent to which Supplier's Personnel are required to be at the Customer Sites to perform the Services. If requested by Customer after consultation with Supplier, Supplier and Supplier's Personnel shall vacate and cease use of any Customer Sites.
- 10.2.4** Supplier shall maintain and enforce, at the Customer Sites (to the extent it has control, possession or custody of such Customer Sites or any part thereof), safety and physical security measures, safeguards and procedures (including those for the prevention of unauthorised access to Customer Sites) that are at least equal to the highest of the following:
- (i) best industry standards for sites similar to the Customer Sites;
 - (ii) Customer's measures, safeguards and procedures applicable to its locations; and
 - (iii) any higher standard otherwise agreed between Customer and Supplier.
- 10.2.5** Supplier will be responsible for any and all damages to and fines imposed in relation to the Customer Sites caused by any act, omission, neglect or misconduct of Supplier, its agents, subcontractors, employees and/or invitees. Customer and its agents and representatives shall be entitled to enter into those portions of the Customer Sites occupied by Supplier's Personnel at any time. During any permitted access to or use of Customer Sites, Supplier shall maintain the Customer Sites in the same condition as when Supplier began use of such Customer Sites, subject to reasonable wear and tear.

10.3 Service Location

10.3.1 Locations to which the Services are to be provided

- (i) From the Commencement Date, Supplier shall provide the Services to the Customer Group and each Authorised User at the Customer Sites, as applicable, and at any other location requested by Customer during the Term.
- (ii) Subject to Clause 10.3.1(iii), Customer may change the sites, locations or facilities that comprise the Customer Sites, by addition or deletion, without incurring any additional charge, from time to time by written notice to Supplier in which case Schedule 7 (Customer Sites and Customer Group Members) shall be deemed to be amended immediately upon such written notice to reflect the change.
- (iii) Services provided at the Customer Sites (including for the avoidance of doubt, any changes, additions or deletions to the sites and locations comprising the Customer Sites from time to time) shall be charged according to the rates set forth in Schedule 5 (Pricing).
- (iv) If in the course of providing the Services Supplier or any Supplier Subcontractor requires access to a Customer location (other than a Customer Site) or a Third Party site, Supplier shall:
 - (a) obtain Customer's approval to access such Customer location or Third Party site;

- (b) comply with Customer's or the relevant Third Party's then current security and access procedures for such location or site; and
- (c) not do anything that would bring Customer, or any Customer Group Member into disrepute or that would otherwise reduce or diminish the goodwill, reputation, image or prestige of Customer, or any Customer Group Member or of any trade mark, service mark or trade name of Customer, or any Customer Group Member.
- (v) If Supplier does not obtain the approval of Customer, it shall not access the Customer Sites or any Customer location.
- (vi) Customer approval under Clause 10.3.1(iv) may be:
 - (a) withheld at the absolute discretion of Customer;
 - (b) given subject to such conditions or restrictions as determined in the absolute discretion of Customer;
 - (c) given in respect of individual sites or a class of sites; and
 - (d) if given, revoked by Customer forthwith by notice to Supplier without the need to stipulate any cause.

10.3.2 Locations from which Services are to be provided

- (i) Supplier shall provide such access and use of Supplier Sites as may be required for Customer's Personnel and Third Parties to carry out activities and functions which this Agreement contemplates shall, or may be, done at Supplier Sites by Customer's Personnel or Third Parties, at no additional charge to Customer.
- (ii) Supplier shall not supply the Services from any site, location or facility not specified in Schedule 15 (Supplier Sites) without giving prior notice to Customer and obtaining Customer's prior written approval, such approval not to be unreasonably withheld.
- (iii) Supplier may from time to time propose to supply one or more of the Services from a site or location other than that specified in Schedule 15 (Supplier Sites) by written notice to that effect to Customer, such notice to include a Risk Assessment and Mitigation Plan.
- (iv) Within a reasonable period (and in any event, no more than 60 days after receiving Supplier's notice under Clause 10.3.2(iii)), Customer may:
 - (a) notify Supplier that it does not approve the relocation; or
 - (b) require Supplier to identify and state in the Risk Assessment and Mitigation Plan, the business benefits and risks to Customer of the new site or relocation.
- (v) Within a reasonable period after receiving the information required to in Clause 10.3.2(iv)(b), Customer may notify Supplier whether or not it agrees to the proposed relocation. If Customer does not respond within 60 days, Supplier's proposal is deemed not to have been approved.

11. Operational Requirements

- 11.1** Supplier shall carry out the activities specified in this Clause 11 (Operational Requirements) in its provision of the Services.

11.2 Maintenance

11.2.1 As part of the Services and to the extent that Supplier has maintenance responsibility for relevant assets, including as identified in any applicable Statement of Work, Schedule, Exhibit or Attachment, Supplier will maintain, in accordance with the best industry standards, Supplier Systems, Equipment and Software used in connection with the provision of the Services, so that they operate in accordance with their specifications and in a manner that will allow Supplier to meet the Service Levels, including (i) maintaining Supplier Systems in good operating condition, subject to normal wear and tear; (ii) undertaking repairs and preventive maintenance on Supplier Systems in accordance with the applicable Equipment manufacturer's recommendations and requirements; and (iii) performing Software maintenance in accordance with the applicable Software vendor's documentation, requirements and recommendations.

11.2.2 Without prejudice to the generality of Clause 11.2.1, Supplier shall:

- (i) maintain and support; and
- (ii) upgrade, replace and add to,

Supplier Systems, Equipment and Software used by Supplier or any Supplier Subcontractor in providing the Services, as necessary to ensure that Supplier provides the Services in accordance with this Agreement. Supplier shall provide the services contemplated in this Clause 11.2 (Maintenance) so as to provide the Services in accordance with this Agreement, including Clause 7.15.5 (Refresh and Standardisation).

11.2.3 If any upgrade, replacement or addition referred to under this Clause 11.2 (Maintenance) may:

- (i) involve or have any impact on the Customer Systems or any Equipment or Software:
 - (a) operated by or on behalf of Customer, a Customer Associate, a Third Party who supplies goods or services to any Customer Group Member; or
 - (b) located on premises of Customer, a Customer Associate, a Third Party who supplies goods or services to any Customer Group Member; or
- (ii) increase the risk of Supplier not being able to provide the Services in accordance with this Agreement,

then Supplier shall:

- (i) prepare a Risk Assessment and Mitigation Plan;
- (ii) only implement the upgrade, replacement or addition with the prior written approval of Customer; and
- (iii) ensure that the implementation of the upgrade, replacement or addition is conducted in accordance with such approved Risk Assessment and Mitigation Plan.

11.3 Operational documentation

11.3.1 Supplier shall, in accordance with the Transition and Transformation Plan and the Policy and Procedures Manual, update and maintain the development, operation and user documentation for Supplier Systems, Equipment and Software used by Supplier

and Supplier Subcontractors in providing the Services, the content and form of which shall be:

- (i) complete, up-to-date, and consistent with its obligations under this Agreement; and
- (ii) suitable to enable Customer or a Third Party to use the then-current Supplier Systems, Equipment and Software to perform the Services without reference to anyone or any other documents.

11.3.2 Supplier shall within fifteen days after each Anniversary Date or more frequently if Customer so requires, certify that Supplier is complying with Clause 11.3.1.

11.4 Viruses & Disabling Code

11.4.1 Supplier will use commercially reasonable efforts to ensure that no Viruses are introduced into any Supplier Systems or any Equipment or Software used to provide the Services. Supplier shall at all times use the most up-to-date and comprehensive version of commercially available Virus shielding, detection, inoculation and repair software and its signature files.

11.4.2 If a Virus is found to have been introduced into any such systems, Supplier shall:

- (i) promptly notify Customer in writing of the same and at no additional charge to Customer and without prejudice to any right of action available to Customer under this Agreement or under any general law;
- (ii) remove the Virus and assist Customer in reducing the effects of the Virus; and
- (iii) if the Virus causes an interruption of the Services, a loss of operational efficiency or loss of data, assist Customer to the same extent to mitigate or restore such losses or to restore, recover or reconstruct lost data.

11.4.3 Supplier shall:

- (i) not insert or activate;
- (ii) ensure that each Supplier Subcontractor does not insert or activate; and
- (iii) not suffer or permit any Third Party to insert or activate,

any Disabling Code at any time, including upon expiry or termination of this Agreement (whether in whole or in part). For clarity, commercial off-the-shelf licenses that require a renewal of the licenses at end of each license term, which if not renewed by payment of license fees will inactivate the software functionality, do not constitute Disabling Code.

11.4.4 Supplier shall ensure that it installs and maintains in all Supplier Systems and Equipment used by Supplier to provide the Services, the most up-to-date and comprehensive version of Disabling Code shielding, detection, inoculation and repair software and its signature files.

11.4.5 Without limiting any other provision of this Agreement, if Supplier becomes aware that there is any Disabling Code in the Supplier Systems and Equipment, Supplier shall: (i) remove the Disabling Code; (ii) remedy any consequences of the Disabling Code arising out of or relating to the Services; and (iii) ensure that its protection against Disabling Codes is updated to address that and similar Disabling Codes.

11.5 Reports

Supplier shall comply with the requirements relating to reporting contained in Schedule 9 (Reports) and as otherwise specified in this Agreement, and reports to be submitted to Customer or a Customer Group Member shall, where applicable, be no less comprehensive than Customer's or the relevant Customer Group Member's internal reporting as of the Commencement Date.

11.6 Information correction

11.6.1 Supplier shall promptly correct any errors, inaccuracies or omissions in any:

- (i) reports or material provided by Supplier or any Supplier Subcontractor under this Agreement; and
- (ii) Customer Data processed by Supplier or any Supplier Subcontractor under this Agreement.

11.6.2 Supplier is responsible for the costs of correcting all inaccuracies or omissions except that caused by Authorised Users. If such correction involves use of a Resource Unit or other goods or services, Supplier shall not charge Customer for such Resource Units or goods or services.

PART 4 – SERVICE STANDARDS

12. Service Levels

12.1 Unless otherwise stated in this Agreement, Supplier shall at all times perform the Services so as to meet or exceed the Service Levels and shall comply at all times with the requirements of the Service Levels.

12.2 Service Levels are classified as either:

12.2.1 Critical Service Levels; or

12.2.2 Key Measurements.

12.3 Both the Critical Service Levels and Key Measurements are measured by reference to:

12.3.1 Expected Service Levels; and

12.3.2 Minimum Service Levels.

12.4 Without prejudice to the operation of Clause 40.1.2, Critical Service Levels apply to the performance of Services which are critical to Customer's or a Customer Group Member's business operations. Supplier acknowledges that the non-performance of those Services may cause dramatic and immediate impact on the Customer's or a Customer Group Member's business by way of one or more of the following:

12.4.1 loss of revenue;

12.4.2 increased expenses;

12.4.3 diminished service quality to █████ Customers;

12.4.4 interference with the Customer Group's business arrangements and contractual relationship with the █████ Vendors; and

12.4.5 harming the goodwill, reputation, image or prestige of the Customer Group or of any trade mark, service mark or trade name of the Customer Group.

12.5 Without limiting any other right Customer has under this Agreement, failure to achieve a Critical Service Level shall result in a Service Level Credit pursuant to Schedule 4 (Service Levels).

- 12.6** Supplier acknowledges that failure to perform any Key Measurement may have a significant impact on the Customer Group's business.

12.7 Required level of performance

Supplier shall perform the Services so as to meet or exceed the higher of the following:

- 12.7.1** service levels that equal or exceed the level at which such Services are performed by and for Customer prior to the Commencement Date;
- 12.7.2** the performance by Customer immediately prior to the Commencement Date, in terms of accuracy, quality, completeness, timeliness, responsiveness, productivity, efficiency and cost-effectiveness of performance and delivery;
- 12.7.3** best industry and professional standards and practices; and/or
- 12.7.4** the Service Levels (where applicable).

12.8 Continuous improvement in Service Levels

Without in any way limiting any other obligation set out in this Agreement, the Parties agree to the concept of continuous improvement to the Services. Accordingly, Critical Service Levels and Key Measurements shall be modified in accordance with Schedule 4 (Service Levels).

12.9 Failure to perform Services

- 12.9.1** If Supplier fails to provide a Service in accordance with this Agreement, including where a Service Level Default occurs, Supplier shall promptly notify Customer of the same.
- 12.9.2** Except to the extent Customer otherwise agrees in writing, as soon as practicable after such notification in relation to any failure to meet any Service Level, Supplier shall do the things contemplated by Clause 12.9.3.
- 12.9.3** If there is a failure contemplated by Clause 12.9.2, then, except to the extent that Customer otherwise agrees, Supplier shall do the following things as soon as practicable, taking into account the potential impact of the failure on the business and operations of Customer and each Customer Group Member:
 - (i) investigate and identify the cause(s) of such failure (particularly the root causes of such failure), and incident(s) which led to, the Service Level Default, including by performing a root cause analysis for any incident that would contribute to Supplier's missing or failing a Service Level and providing Customer with a written report promptly upon identification of the causes(s) of, and incidents(s) which led to, the Service Level Default;
 - (ii) remedy such failure and allocate such Resources as may be necessary to remedy the failure, and to address or mitigate any consequences of such failure;
 - (iii) advise Customer, as requested, of the status of remedial efforts being undertaken with respect to the Service Level Default;
 - (iv) mitigate the impact and any consequences of the Service Level Default;
 - (v) conduct such relevant tests as may be reasonably necessary to demonstrate that the services and action provided by Supplier under Clause 12.9.3(ii) above have been successful in rectifying the relevant defects or errors or implementing the relevant resolutions and explain and demonstrate to Customer the effect of such services and action;

- (vi) provide Customer with an oral report immediately upon identification of such failure;
- (vii) provide Customer (as part of the reports to be provided by Supplier under Clause 11.5 (Reports)) with a written report detailing the cause of, and procedure for correcting, such failure and update that report on at least a monthly basis, which tracks to completion the steps taken by Supplier in connection with the root cause analysis and the effectiveness of these steps;
- (viii) certify to Customer, within 30 days after the initial report referred to in Clause 12.9.3(vi) is provided, that all reasonable action has been taken to prevent any recurrence of such failure; and
- (ix) to the extent reasonably practicable, take appropriate preventive measures so that the incidents and problems do not recur.

12.9.4 Customer's rights in Clauses 12.9.1 to 12.9.3 are in addition to any other rights it may have under this Agreement in relation to the matters referred to in this Clause 12.9 (Failure to perform Services).

12.10 Credits

12.10.1 Unless otherwise stated in this Agreement, Customer is entitled to the payment of Service Level Credits in the circumstances contemplated by Schedule 4 (Service Levels).

12.10.2 If at any stage it is discovered that Supplier has under-credited the amount of Service Level Credits, then Supplier shall promptly remedy the discrepancy and if requested, provide Customer with written confirmation of the same.

12.10.3 In no event shall the amount of Service Level Credits credited to Customer with respect to all Service Level Defaults occurring in a single month exceed, in total, the At Risk Amount.

12.11 Monitoring of Service Levels

12.11.1 Supplier shall implement and operate all appropriate measurement, monitoring and management tools and procedures required to measure and report its performance, at a level of detail sufficient for Customer to verify Supplier's compliance, relative to the applicable Service Levels. All such aforementioned measurement, monitoring and reporting process will be subject to audit by Customer or its designee.

12.11.2 Without limiting the generality of Clause 12.12.1, Supplier shall implement and operate appropriate measurement, monitoring and management tools and procedures to enable it to:

- (i) detect and prevent any potential failure to provide Services or meet the Service Levels;
- (ii) detect, minimise and promptly rectify any failure to provide Services or meet the Service Levels; and
- (iii) notify and report to Customer in accordance with Clauses 12.9.1 to 12.9.3 and Clauses 12.12.1 to 12.12.2.

12.11.3 Supplier shall provide Customer with online information concerning, and access to, such measurement, monitoring and management tools for audit and inspection purposes as may be required in Customer's reasonable opinion.

12.12 Service Level reports

12.12.1 Within five days of the end of each month or more frequently if Customer so requires, Supplier shall review, report and certify the achievement of all Service Levels as part of the reports to be provided by Supplier under Clause 11.5 (Reports). Such Service Levels reports shall be a pro-active tool for monitoring and managing performance.

12.12.2 Supplier shall provide Customer with access to online databases containing up to date information regarding the status of service problems, service requests and user inquiries.

12.13 Additions, deletions and modifications to Service Levels

12.13.1 Where any modifications occur in conjunction with changes to the environment and the introduction of new Supplier Systems, Equipment and/or Software or means of Service delivery, Customer may, by sending written notice to Supplier (such notice to be sent at least 30 days prior or as mutually agreed to the required effective date of the change where reasonably practicable), modify Service Levels to achieve a fair, accurate, and consistent measurement of Supplier's performance of the Services, provided that where such Supplier Systems, Equipment and/or Software or such means of Service delivery is a replacement or upgrade of existing technology, there shall be a presumption of equivalent or improved performance).

12.13.2 Performance standards for additional Service Levels: The Parties shall agree on the performance standards required for additional Service Levels in the manner provided in Schedule 4 (Service Levels).

12.14 Excluded calendar months for the determination of Service Levels and Service Level Credits: If an Additional Resource Charge or Reduced Resource Credit is applicable to any Process during a calendar month (each an "**Affected Calendar Month**"), then, in relation to the relevant Service Level(s) against which such affected Process is measured under the relevant Statement of Work, the relevant Affected Calendar Month(s) shall be excluded for the purposes of determining or assessing such Service Level(s) and/or whether Service Level Credits are payable.

13. Step in rights

13.1 In the event of any of the following:

13.1.1 if Supplier is not performing any Service in accordance with the Critical Service Levels, or is in material breach of this Agreement, and as a consequence of any such breach, any Customer Group Member has suffered, or is likely to suffer, a material loss, whether direct or indirect, and such failure to perform or material breach is not remedied within 10 Business Days after receiving notice of the same;

13.1.2 an Insolvency Event occurs, or:

- (i) Customer has reasonable grounds to believe that an Insolvency Event is likely to occur; and
- (ii) there are reasonable grounds to believe that this Insolvency Event will have a material adverse impact on the Supplier's ability to deliver the Services;

13.1.3 if a Government Authority has ordered or advised Customer to exercise its rights under this clause; or

13.1.4 if required to do so by applicable Laws and Legal Requirements,

- 13.1.5** Customer may, at its sole discretion and without limiting any other rights any Customer Group Member may have, do one or more of the following:
- 13.1.6** step in and manage the performance of the Services to which the relevant event relates (such Services, “**Affected Services**”), or appoint a third party to do so;
 - 13.1.7** suspend the Supplier’s supply of some or all of the Affected Services; and/or
 - 13.1.8** take such other action as Customer reasonably deems necessary in order to restore the Affected Services.
- 13.2** In the event that Customer elects to exercise its rights under Clause 13.1, Supplier shall and shall procure that each Supplier Subcontractor shall:
- 13.2.1** provide access to, and any relevant rights to use, all Supplier Systems employed in the provision of the Services and access to all premises from which the Services are provided; and
 - 13.2.2** provide access to, and any relevant rights and/or authority to give instructions/directions to, any of Supplier’s Personnel and Supplier Subcontractor’s Personnel involved in the provision of the Services.
- 13.3** Supplier shall bear all related costs and expenses incurred by Customer in connection with Customer’s exercise of rights under this Clause 13 (including the costs and expenses of any appointed Third Party provider(s) and costs and expenses related to ensuring that the Services will be performed in accordance with this Agreement), up to an amount equivalent to 6 times of the monthly average of all Fees charged by the Supplier to the Customer 6 months prior to the occurrence of the event set out at Clause 13.1. Supplier shall provide any assistance necessary to Customer where Customer exercise its rights under this Clause 13 or that Customer otherwise sees fit for the purposes of re-establishing any affected Services (or part thereof) or to manage or provide the Services (or part thereof).
- 13.4** Where Supplier’s rights and obligations to provide all or any part of the Services are suspended as a result of the circumstances referred to in Clause 13, Customer shall be permitted to set-off against Fees payable to Supplier all and any proper costs it incurs in exercising its rights pursuant to this Clause 13.

14. Technical Standards

- 14.1** Supplier shall comply with and modify the Services as and to the extent necessary to conform to, the Customer Group’s information management and retention policies and practices, technical architecture and product standards as may be prescribed or required by Customer from time to time, including any policies and practices specified in Schedule 8 (Supplier Systems, Technical Architecture and Product Standards) (including modifications thereto from time to time), at no additional cost to Customer. The Customer shall give at least fifteen days’ notice to the Supplier of the aforesaid. For the avoidance of doubt, Customer shall be entitled, at its absolute discretion, to promulgate such information technology policies, practices, technical architecture, standards and plans and to modify or grant waivers from such policies, practices, architectures, standards or plans.
- 14.2** Supplier shall not make any change to the policies, practices, architecture and product standards referred to in Clause 14.1 without the approval of Customer.
- 14.3** Within fifteen days after each Anniversary Date or more frequently if Customer so requires, Supplier shall certify that Supplier is complying with Clauses 14.1 and 14.2.

PART 5 – FEES & RESOURCES

15. Fees

15.1 In consideration of Supplier providing the Services in accordance with the terms and conditions of this Agreement, Customer shall pay, or procure the payment to, Supplier, the fees for the Services set forth in Schedule 5 (Pricing) (all such fees to be referred to as the "**Fees**").

15.2 No charges or fees for the Services will be allowed, except those charges or fees that are expressly set forth in this Agreement. Supplier shall not charge Customer any amount in respect of Services not authorised in writing by the Customer Contract Executive or by a person expressly authorised or designated in writing by the Customer Contract Executive.

15.3 Neither Party shall make any adjustments to the Fees nor shall the Fees or any part thereof be revised, changed or altered under any circumstances, except as provided in Schedule 5 (Pricing), pursuant to Clause 18 (Resource Adjustments), or in the relevant Statement of Work.

15.4 Fees are inclusive

15.4.1 Except as expressly set out in this Agreement (including Clause 15.9.5 below), the Fees shall be deemed to include:

- (i) all costs and expenses of whatever nature relating to:
 - (a) the Services; and
 - (b) Supplier's performance of its obligations under this Agreement (including any costs or expenses in relation to any maintenance or mutually agreed technology evolution and advancement); and
- (ii) any and all Supplier Applicable Taxes, which shall all be borne solely by Supplier, including Supplier Applicable Taxes referred to under Clause 15.9.7 (Future applicable taxes).

15.4.2 For the avoidance of doubt, Customer is not required to pay:

- (i) any incidental costs and expenses that Supplier or any Supplier Subcontractor incurs in providing the Services including costs and expenses for or relating to travel and lodging, document reproduction, shipping, desktop and office equipment costs required by Supplier's Personnel, and telecommunications charges, unless otherwise approved by Customer in writing prior to the incurrence of such costs and expenses; or
- (ii) any amount for services provided or costs incurred by Supplier, any member of Supplier Group or Supplier Parent prior to entry into this Agreement.

15.5 Supplier warrants and represents that it has completed all due diligence necessary to assess the scope of work required to be performed under this Agreement and to confirm its charges and fees as set out in this Agreement.

15.6 Minimise Fees and costs

15.6.1 Passing through reductions in costs

15.6.2 Supplier will pass through to Customer reductions in the cost of delivery of the Services resulting from changes in technology (including any changes attributable to Extraordinary Events) or reductions in the costs of delivering Services, which could not have been foreseen as of the Commencement Date but which occur during the Term including those which would be generally available to other users around the world of similar technology and services.

15.6.3 Proration

15.6.4 Unless otherwise expressed in this Agreement, all periodic Fees under this Agreement shall be computed on a calendar month basis and shall be prorated on a per day basis for any partial month.

15.6.5 Rights of set-off

15.6.6 Customer shall be entitled to set-off against any payment due or payable to Supplier under this Agreement, any sums Supplier is obliged to pay or credit Customer under this Agreement and Customer may by notice to Supplier reduce any Fees or any other charges, sums or monies due or payable to Supplier under this Agreement by any amounts Supplier is obliged to pay or credit Customer under this Agreement, including any fee, credit rebate or other amount which:

- (i) should be reimbursed to Customer; or
- (ii) is otherwise payable or owed to Customer pursuant to this Agreement.

15.6.7 Unused credits

Any unused credits or rebates against future payments issued to Customer in connection with this Agreement shall be paid to Customer by Supplier within 30 days of the expiration or termination of this Agreement for whatever reason, if no further Fees are or will become due and owing.

15.7 Invoicing and Payment

15.7.1 Rendering invoices

- (i) Supplier shall: (1) render a single consolidated statement of invoices to Customer for the charges incurred in each month, and (2) issue separate invoices to the relevant Customer Group Member for each country for which there is an Implementation Agreement, by Resource Unit, each in accordance with Schedule 5 (Pricing) to this Agreement. Each invoice shall show such details as reasonably specified by Customer, including:
 - (a) the calculations utilised to establish the Fees;
 - (b) such Fees that are chargeable to the Customer or the Customer Group Member in accordance with the allocation of Fees set out in Schedule 5 (Pricing);
 - (c) identification of all Pass-Through Expenses for the month to which the invoice corresponds, and Supplier's invoice shall include any original Third Party invoice together with a statement that the charges for such invoice are proper and valid and should be paid by Customer;
 - (d) identification of the amounts of any Customer Applicable Taxes which are imposed on receipt of the Services which are to be collected by Supplier; and
 - (e) such other details and billing information as is necessary to satisfy Customer's internal accounting, charge back requirements and in-country local billing, including as necessary to allow Customer to accurately allocate charges by legal entity, Business Unit, department, Site, Tower, employee, project and Resource Unit. Such other details and billing information to be provided in an electronic file or format prescribed by Customer (such as Excel spreadsheet).
- (ii) Further provisions on the invoicing will be set forth in Schedule 5 (Pricing) to this

Agreement.

- (iii) Invoices shall be in a form approved by Customer in writing. Customer may, on reasonable notice, require Supplier to vary the recipients, content, form or supporting detail of invoices for all or part of the Services.
- (iv) Supplier shall also ensure that:
 - (a) the invoice is set out in a manner that enables Customer to ascertain the specific Services to which the invoice relates;
 - (b) the invoice includes all documents, information or Third Party invoices required for compliance with this Clause 15.7.1 (Rendering invoices);
 - (c) the invoice is accompanied (where necessary or where reasonably requested by Customer) by all supporting or verifying documentation;
 - (d) the invoice shall be accompanied by the reports contemplated by Clause 12.12 (Service Level reports); and
 - (e) the invoice is furnished to Customer or any other party prescribed by it, in electronic form through such mode of delivery as may be requested by Customer and in hardcopy form if requested by Customer.

15.7.2 Payment of invoices: Subject to the Supplier invoicing the Customer in accordance with Schedule 5 (Pricing) and save for One-Time Charges which shall be invoiced and paid in accordance with Schedule 5 (Pricing), Customer will pay undisputed charges to Supplier no later than the 45th day after the end of the calendar month in which the relevant Services were provided. In the event the Supplier's correctly rendered invoice is delayed and issued after the deadline stipulated Schedule 5 (Pricing), the Parties agree that the due date of the invoice shall be correspondingly extended. For the purposes of this Agreement, an invoice is "*correctly rendered*" if it complies with Clause 15.7.1 (Rendering invoices).

15.7.3 Supplier shall not invoice Customer, and Customer will not be obliged to pay, any charges that are not correctly invoiced within six months after the end of the month in which such charges were incurred or Completion Date (in the case of Transformation Services and Transition Services).

15.7.4 In the event a Customer Group Member is unable pay the invoice within the due date as specified in Schedule 5 (Pricing), provided that the invoice has been properly issued to the Customer Group Member, then the Customer shall pay the due amount as specified in the Supplier's invoice within the due date.

15.8 Billing Disputes

15.8.1 Payment of invoices for any Fees and any other expenses or charges payable under this Agreement shall be subject to the following:

- (i) If Customer disputes the amount in an invoice or any part thereof, Customer shall pay the portion of the amount stated in Supplier's invoice which is not in dispute and shall notify Supplier within 15 days of receipt of the invoice of the reasons for disputing the invoice or the remainder thereof, and the obligation of Customer to make payment within the time specified in the invoice shall be suspended in respect of the disputed amount pending the resolution of such dispute. Supplier shall conduct a complete and objective review of Customer's complaint and provide a response to the same to Customer, within 7 days of receiving the aforesaid notice from Customer.

- (ii) Both Parties shall first attempt in good faith to reach an amicable resolution of the dispute within 15 days from the date on which the dispute was first notified to Supplier pursuant to Clause 15.8.1.
- (iii) If the dispute referred to in Clause 15.8.1(ii) is resolved in Supplier's favour during such informal dispute resolution process:
 - (a) Customer shall pay the outstanding portion of the invoiced amount within such time as is stated in the respective invoice, or 7 days from the date of resolution of the dispute, whichever is later; and
 - (b) Customer shall not, apart from paying the outstanding amount under Clause 15.8.1(iii)(a) above, be required to compensate or reimburse Supplier for any arbitration, litigation or collection expenses incurred by Supplier in respect thereof or any interest on such outstanding amount.
- (iv) If the dispute is resolved in favour of Customer, but the amount disputed by Customer has already been paid to Supplier, Supplier shall return the disputed amount to Customer within 30 days from the date of the resolution of the dispute (which, if agreeable to the Customer, may be by way of adjustment of the amounts due in the next invoice). If the Parties are unable to resolve the dispute during the 30 day period stipulated in Clause 15.8.1(ii), then either Party may initiate proceedings pursuant to Clause 54 (Governing law and jurisdiction) below.

15.9 Taxes

15.9.1 The Fees shall include any and all Supplier Applicable Taxes which exist at the Commencement Date. Such Supplier Applicable Taxes will be the sole responsibility of Supplier, and Supplier will either:

- (i) pay such Supplier Applicable Taxes directly, if such Supplier Applicable Taxes are levied or assessed against Supplier; or
- (ii) pay to or reimburse Customer for such Supplier Applicable Taxes, if such Supplier Applicable Taxes are levied or assessed against Customer, any Customer Group Member or any Authorised User.

Customer Applicable Taxes will be the sole responsibility of Customer.

15.9.2 The Parties will cooperate to reduce Supplier Applicable Taxes and Customer Applicable Taxes levied on the Services. Without prejudice to the foregoing, the Supplier shall provide to Customer all documents and/or information necessary to carry out any lawful acts or take any steps to reduce and/or exempt withholding taxes on payments due from Customer to Supplier and other Customer Applicable Taxes, whether under the relevant avoidance of double taxation agreement or otherwise.

15.9.3 To the extent that any Supplier Applicable Taxes or Customer Applicable Taxes are required by Laws and Legal Requirements to be separately identified in Supplier's invoices to Customer, Supplier shall do so accordingly and assume any and all responsibility for non-compliance with such Laws and Legal Requirements, including any tax, interest, fines and penalty assessments.

15.9.4 Income tax

Supplier is responsible for all income tax payable or deductible, for work undertaken by Supplier, its Personnel or any Supplier Subcontractor.

15.9.5 Withholding taxes

- (i) In the event that withholding taxes are imposed by the laws of any country on payments due from Customer to Supplier under this Agreement, such withholding taxes shall be borne by Customer and Customer shall pay to Supplier such sums due to Supplier as will after such deduction or withholding has been made to leave Supplier with the same amount as Supplier would have been entitled to receive in the absence of any such requirement to make a deduction or withholding.
- (ii) **Material Change in Withholding Tax:** From time to time, following the Commencement Date, Customer may notify the Supplier in writing that a Material Change in Withholding Tax had occurred and provide reasonable documentation thereto. Thereafter, the Parties shall engage in good faith negotiations to attempt to reach an agreement on how to allocate the burden of the Material Change in Withholding Tax. If Parties are unable to reach an agreement on such allocation within 30 days from the date of Customer's notice, the Customer may (but shall not be obliged to) terminate this Agreement for cause, in whole or in part, by giving notice in writing to Supplier, in accordance with Clause 42.1.1.
- (iii) In this Clause 15.9.5, a "**Material Change in Withholding Tax**" means at any time during the Term, when Customer reasonably determines that the following has taken place:

$$A - B > \text{US\$1,000,000}$$

where A = the aggregate of:

- (a) the amount of withholding tax on Fees paid by Customer under this Agreement as at the WHT Assessment Date;
- (b) the total amount of withholding tax on fees paid by Customer Group Members under all Implementation Agreements (including any terminated or expired Implementation Agreements) as at the WHT Assessment Date;
- (c) the amount of withholding tax on Updated Expected [REDACTED] Fees payable by Customer; and
- (d) the total amount of withholding tax on Updated Expected IA Fees payable by Customer Group Members,

where the amount of withholding tax payable under (c) and (d) is determined by Laws and Requirements which are: (1) in effect as of the WHT Assessment Date, or (2) in Customer's reasonable view, will come into effect within 3 months from the WHT Assessment Date; and

where B = the aggregate of:

- (e) the amount of withholding tax on Expected [REDACTED] Total Fees; and
- (f) the total amount of withholding tax on Expected IA Fees payable by Customer Group Members under all Implementation Agreements (whether executed or not), which are entered into and/or contemplated to be entered into in accordance with the Transition and Transformation Plan,

where the withholding tax payable is determined by Laws and Requirements in effect as of the Commencement Date.

- (iv) In this Clause 15.9.5,
 - (a) **“WHT Assessment Date”** means the date on which Customer conducts the assessment as to whether a Material Change in Withholding Tax has occurred;
 - (b) **“Expected [REDACTED] Total Fees”** means the total Fees payable under this Agreement, determined as follows:
 - (I) **where WHT Assessment Date is a date before the date three months after the [REDACTED] In-Scope FTE Determination Date:** in accordance with (1) the model of calculation set out in Schedule 26 (Model for Withholding Tax Estimation), and (2) any reasonable assumptions made by Customer (which shall be notified to Supplier in writing), and such assumptions may include but not be limited to the type and quantum of Fees payable by each Customer and/or a Customer Group Member;
 - (II) **where WHT Assessment Date is a date on or after the date three months after the [REDACTED] In-Scope FTE Determination Date:** the aggregate of the following:
 - (A) the Recurring Charges and Operational Service Charges for the Term, calculated as follows:

$$(X / 3) \times Y, \text{ where}$$

$$X = \text{total Recurring Charges and Operational Service Charges paid or payable for the period 3 months prior to the WHT Assessment Date)}$$

$$Y = 84 \text{ (assuming that the Agreement is extended for the Extension Period), and}$$
 - (B) the total One-Time Charges and any other fees or charges paid or payable for the Term (assuming that the Agreement is extended for the Extension Period).
 - (c) **“Expected IA Fees”** means in relation to an Implementation Agreement:
 - (I) **where WHT Assessment Date is a date before the date three months after the [REDACTED] In-Scope FTE Determination Date:** in accordance with (1) the model of calculation set out in Schedule 26 (Model for Withholding Tax Estimation), and (2) any reasonable assumptions made by Customer (which shall be notified to Supplier in writing), and such assumptions may include but not be limited to the type and quantum of Fees payable by each Customer and/or a Customer Group Member;
 - (II) **where WHT Assessment Date is a date on or after the date three months after the [REDACTED] In-Scope FTE Determination Date:** the aggregate of the following:
 - (A) the Recurring Charges and Operational Service Charges for the term of the Implementation Agreement (where applicable), calculated as follows:

$(G / 3) \times H$, where

G = total Recurring Charges and Operational Service Charges paid or payable for the period 3 months prior to the WHT Assessment Date)

H = the term of the Implementation Agreement in months (assuming that the Implementation Agreement is extended for the Extension Period), and

- (B) the total One-Time Charges and any other fees or charges paid or payable for the term of the relevant Implementation Agreement (assuming that the Implementation Agreement is extended for the Extension Period);
- (d) **“Updated Expected [REDACTED] Fees”** means the total Fees payable by Customer under this Agreement for the remainder of the Term (assuming that the Agreement is extended for the Extension Period), determined as follows:
 - (I) **where WHT Assessment Date is a date before the date three months after [REDACTED] In-Scope FTE Determination Date:** in accordance with (1) the model of calculation set out in Schedule 26 (Model for Withholding Tax Estimation), and (2) any reasonable assumptions made by Customer (which shall be notified to Supplier in writing), and such assumptions may include but not be limited to the type and quantum of Fees payable by each Customer and/or a Customer Group Member;
 - (II) **where WHT Assessment Date is a date on or after the date three months after the [REDACTED] In-Scope FTE Determination Date:** the aggregate of the following
 - (A) the Recurring Charges and Operational Service Charges for the remainder of the Term, calculated as follows:

$(C / 3) \times D$, where

C = total Recurring Charges and Operational Service Charges paid or payable for the period 3 months prior to the WHT Assessment Date)

D = number of months between the WHT Assessment Date and the expiry of the Term (assuming that the Agreement is extended for the Extension Period), and
 - (B) the total One-Time Charges and any other fees or charges payable after the WHT Assessment Date;
- (e) **“Updated Expected IA Fees”** means the total fees payable under all Implementation Agreements (whether executed or not), which are entered into and/or contemplated to be entered into in accordance with the Transition and Transformation Plan, for the remainder of their respective terms, determined as follows:
 - (I) **where WHT Assessment Date is a date before the date three months after the [REDACTED] In-Scope FTE Determination Date:** in accordance with (1) the model of calculation set out in Schedule 26 (Model for Withholding Tax Estimation), and (2) any reasonable

assumptions made by Customer (which shall be notified to Supplier in writing), and such assumptions may include but not be limited to the type and quantum of Fees payable by each Customer and/or a Customer Group Member

(II) **where WHT Assessment Date is a date on or after the date three months after the [REDACTED] In-Scope FTE Determination Date:** the aggregate of the following

(A) the Recurring Charges and Operational Service Charges for all Implementation Agreements for the remainder of their respective terms, calculated as follows for each Implementation Agreement:

$(J / 3) \times K$, where

J = total Recurring Charges and Operational Service Charges paid or payable for the period 3 months prior to the WHT Assessment Date)

K = number of months between the WHT Assessment Date and the expiry of the term of the relevant Implementation Agreement (assuming that the Implementation Agreement is extended for the Extension Period), and

(B) the total One-Time Charges and any other fees or charges payable after the WHT Assessment Date;

(v) The Customer shall consult with the Supplier prior to providing its assessment as to whether a Material Change in Withholding Tax has occurred. However, save in the case of manifest error or fraud, the Customer's assessment as to whether a Material Change in Withholding Tax has occurred in accordance with Clause 15.9.5(iii) above shall be binding on both Parties, and Supplier agrees not to challenge the validity of, or raise or file any objection to, such determination by Customer.

15.9.6 Authorisation to deduct

Without prejudice to Clause 15.9.5 (Withholding taxes), Supplier expressly authorises Customer to deduct and withhold from all sums due to Supplier under this Agreement any sums which may be deductible in accordance with the relevant Laws and Legal Requirements from time to time, including withholding taxes or any other Supplier Applicable Taxes. For the avoidance of doubt, in the event that any amounts payable by Customer to Supplier hereunder, including without limitation the Fees, are subject to any Supplier Applicable Taxes that Customer is required to deduct from such payments, Supplier shall bear such withholding or other Supplier Applicable Taxes.

15.9.7 Future applicable taxes

All Supplier Applicable Taxes imposed on the delivery of the Services pursuant to new laws enacted after the Commencement Date will be borne solely by Supplier. All Customer Applicable Taxes imposed on the receipt of the Services pursuant to new laws enacted after the Commencement Date will be borne solely by Customer.

15.10 Strategic Customer

15.10.1 Customer is a strategic customer of Supplier and provides commitments to Customer as a strategic customer are described below:

- (i) **Leadership Commitment:** Supplier will ensure that Supplier's senior personnel shall devote sufficient time and effort to the relationship with the Customer. Specifically, the Supplier's personnel who occupies the position of "*Shipping & Logistics Business Unit Head*" shall devote adequate time and efforts with respect to the Customer account to ensure a successful relationship;
- (ii) **Right Talent:** Supplier will draw on the experience of its personnel from its shipping and logistics delivery teams and finance and accounting team to ensure that Supplier personnel providing Services to Customer have the necessary training and/or experience to deliver the Services to Customer as per the terms of the Agreement.
- (iii) **Scalability:** Supplier offers geographic, technological and operational scalability for provision of the Services to Customer.

16. Change

16.1 Customer will have the right to approve in advance:

- 16.1.1** any change, action or decision of or relating to Supplier with respect to the provision of Services to the Customer Group that may have a material or adverse effect on the Services, require any Customer Group Member to change the way it conducts its operations, or increase charges or costs to any Customer Group Member; or
- 16.1.2** any change to the Services, Supplier Systems, Software, Equipment or Sites that would alter the functionality, performance standards or technical environment of the Services, Supplier Systems, Software or Equipment, the manner in which the Services are provided or the composition or level of the Services or the cost to Customer of the Services.

Customer will have the right to set priorities in scheduling work.

16.2 Any changes, variations or amendments to this Agreement shall be made in accordance with Paragraph of Schedule 22 (Change Control). The Parties agree that the following shall not constitute, be construed as or otherwise be deemed or regarded as a change, variation or amendment to this Agreement, and that the Change Control Procedures do not apply to each of the following:

- 16.2.1** modifications to the Services to conform with any changes in Laws and Legal Requirements pursuant to Clause 7.6., unless Customer otherwise agrees (such agreement not to be unreasonably withheld) that a change in Laws and Legal Requirements is material and that (i) there would be a material cost differential to Supplier having regard to the time frame required by Laws and Legal Requirements for the implementation of such change and the steps and measures Supplier can take to mitigate the impact of such change; and (ii) the modifications to the Services to conform to such change could not reasonably be expected of a services provider to the shipping, logistics, and transportation industry and industries related to services, products and businesses that the Customer Group Members and Supplier are engaged in;
- 16.2.2** implementation of generally recognised, available or accepted technological advancements and improvements in delivering the Services as may be necessary to meet the Customer Group's business needs as may be changed from time to time pursuant to Clause 9.1.1;
- 16.2.3** implementation of new technologies that will improve the provision of the Services and support by Supplier at a reduced cost in accordance with Clause 9.1.2 (Technologies);

- 16.2.4** changes to the sites, locations, spaces, facilities, furnishings and fixtures that comprise the Customer Sites pursuant to Clause 10.3.1(ii);
 - 16.2.5** reductions in the cost of delivery of the Services which are passed on to Customer pursuant to Clause 15.6.1 (Passing through reductions in costs);
 - 16.2.6** any reduction in Supplier's cost or expense of performing the Services which are passed on to Customer pursuant to Clause 15.9.7 (Future applicable taxes);
 - 16.2.7** changes (including changes, updates or revisions to any Schedules of this Agreement) for which a process or method for the initiation and/or implementation of the same has been specifically provided under any other provision of this Agreement or the Schedules;
 - 16.2.8** changes to any Schedules of this Agreement which Customer has the right to make without the consent or approval of Supplier;
 - 16.2.9** any amendments to the Customer Service Handbook;
 - 16.2.10** any approved additions or deletions to Schedule 14 (Key Supplier Personnel) pursuant to Clause 28.4.1; and
 - 16.2.11** any of the changes referred to in Clause 16.3.
- 16.3** Without limiting the generality of Clause 16.1, any change to the technical or operational nature of the Services shall be made in accordance with the Change Management Processes under Paragraph of Schedule 22 (Change Control).

17. New Services

- 17.1** Customer may from time to time during the Term, request Supplier to perform or supply New Services in accordance with Schedule 23 (New Services). For the avoidance of doubt, to the extent that any services requested by Customer constitute additional volumes of billable Resource Units then such services will be treated as part of the Services, and the charges for such additional services will be in accordance with this Agreement.

18. Resource adjustments

18.1 Extraordinary Events

Customer shall notify Supplier of any event or set of events that it believes constitutes an Extraordinary Event and it may in connection thereto:

- 18.1.1** elect to request Supplier to propose, and Supplier shall propose after such request, equitable adjustments to the Fees, Resource Baselines, Volume Baselines and/or In-Scope FTEs based on such notified Extraordinary Event which equitable adjustments Supplier shall implement with Customer's prior written approval. Supplier shall make its proposal for such equitable adjustments within a reasonable period of time of Customer's notice, and in any event, within 45 days of such notice, and such proposal shall be based on Supplier's costs (including appropriate indirect and overhead costs) and related reasonable profit that either (i) can be eliminated by Supplier in the event of an extraordinary reduction or (ii) will be unavoidably incurred by Supplier in the event of an extraordinary increase. Supplier shall implement such proposal forthwith upon Customer's written approval, in any event within 30 days of such approval;
- 18.1.2** whether or not an election by Customer pursuant to Clause 18.1.1 has already been made, elect to have the Fees, Resource Baselines and/or Volume Baselines equitably

adjusted in accordance to the procedure set out in Clause 18.2 (Fees and Resource adjustment process). Such equitable adjustments shall be based on Supplier's costs (including appropriate indirect and overhead costs) and related reasonable profit that either (i) can be eliminated by Supplier in the event of an extraordinary reduction or (ii) will be unavoidably incurred by Supplier in the event of an extraordinary increase; or

18.1.3 elect to pay Fees as they stand in accordance with Schedule 5 (Pricing).

18.2 Fees and Resource adjustment process

18.2.1 Within 30 days of Customer notifying Supplier of its election under Clause 18.1.2:

- (i) Supplier shall advise Customer of the impact, if any, of the relevant event or events on the Services; and
- (ii) Supplier and Customer shall endeavour mutually to agree, on a reasonable basis, on any variation to the Services which may be required.

18.2.2 If Supplier and Customer are unable to reach agreement on those matters referred to in Clause 18.2.1 within the prescribed period, Customer may then determine on a reasonable basis such variations to the Services as it requires and notify Supplier of Customer's determination.

18.2.3 Within 30 days of Supplier and Customer reaching agreement under Clause 18.2.1 or the notification to Supplier of Customer's determination under Clause 18.2.2, as the case may be, Supplier and Customer shall endeavour mutually to agree, in good faith and on a reasonable basis:

- (i) the Resources to be reduced or added ("**Targeted Resources**");
- (ii) adjustments to the [REDACTED] In-Scope FTE; and
- (iii) the reduced costs (including appropriate indirect and overhead costs and profit margin) or the added costs (including appropriate direct, indirect, overhead and profit margin), as appropriate,

having regard to the Targeted Resources and taking into account any time periods specified by Customer as well as any other reasonable factors that affect the provision of the Services in relation to the Targeted Resources.

18.2.4 Immediately upon the agreement of the Parties (pursuant to Clause 18.2.3) on the matters referred to in Clause 18.2.1 or the determination of the matters referred to in Clause 18.2.3(i) to Clause 18.2.3(iii) pursuant to Clause 18.2.2, Clause 20 (in relation to [REDACTED] In-Scope FTEs) or Clause 54 (Governing law and jurisdiction), Supplier shall proceed to reduce or add the Targeted Resources in accordance with the agreement of the Parties or determination, as the case may be, as quickly as feasible, and in any event within three months of the date of the agreement or determination (as the case may be) or such other agreed period.

18.2.5 Upon reducing or adding the Targeted Resources in accordance with Clause 18.2.4, with effect from the date of such implementation, the Fees shall be adjusted by the full amount of the reduced or added costs under Clause 18.2.3(iii) applicable to the Targeted Resources.

18.3 Resource Baseline Adjustment Event: Without prejudice to 18.1 and 18.2, where a Resource Baseline Adjustment Event occurs, the Parties agree to discuss in good faith, reasonable modifications to the Resource Baseline(s) in the relevant Statements of Work and Implementation Agreements then in-force in accordance with the Change Control Procedures.

- 18.4 Ramp Down:** The Ramp Down Fee is payable by Customer to Supplier where the total number of FTEs deployed for the Operational Services is reduced by 30% or more within a Contract Year (excluding any such reduction resulting from any productivity improvements or efforts to meet the Productivity Guarantees), as determined during the Annual Review Process).

19. Business restructure

- 19.1** Supplier acknowledges that from time to time:

19.1.1 Customer or a Customer Group Member may acquire businesses, business units, undertakings, assets or other entities;

19.1.2 Customer or a Customer Group Member may divest itself of any business, Business Unit, assets or undertakings; or

19.1.3 Customer may divest any Customer Group Member.

- 19.2** Customer shall not be obliged to obtain Services from Supplier with respect to any Restructured Business. For the avoidance of doubt, Customer may in its absolute discretion direct Supplier to cease providing Services to any Incoming Business or Outgoing Business.

- 19.3** Customer agrees to notify Supplier as soon as reasonably possible of any such Restructuring, subject always to any confidentiality obligations any Customer Group Member is under.

- 19.4** For as long as Supplier provides Services to a Restructured Business, the volumes of those Services shall be included in any calculation of the volumes of Services provided to Customer under this Agreement and Fees payable in accordance with this Agreement, whether or not such Restructured Business pays Supplier directly for any Fees or has been rendered the invoices for the Fees.

- 19.5** Any variation in volume of Services as a result of a Restructuring shall be taken into account as part of the Annual Review Process, having regard to the volume of equivalent services provided by Supplier to Restructured Businesses both during and subsequent to the period referred to in Clause 19.7.1(ii).

19.6 Provision of Services to an Incoming Business

19.6.1 Supplier shall provide an Incoming Business with such Services as Customer directs and the benefit of the terms and conditions of this Agreement insofar as they relate to such Services shall apply equally to the Incoming Business.

19.6.2 Acquisition support: As part of the Services, when requested by Customer with respect to an Incoming Business, Supplier shall:

- (i) provide acquisition support (including assessments, transition planning and migration support) and subsequently provide the Services as they apply to such Incoming Business at the then-current terms and conditions of this Agreement, all the aforementioned to be at no additional charge to Customer save in respect of charges for migration support and any other expenses that have been expressly approved by Customer; and
- (ii) provide Personnel to staff vacancies and to provide management for technology functions which are In-scope needed to support an acquisition, including at the locations of such Incoming Business.

19.7 Provision of Services to an Outgoing Business

19.7.1 In respect of any Outgoing Business, Customer may, at its absolute discretion, by notice to Supplier, require Supplier to provide the Outgoing Business with such

Services as Customer directs and the benefit of the terms and conditions of this Agreement insofar as they relate to such Services shall apply equally to the Outgoing Business. Supplier agrees to:

- (i) provide such Services on the same terms as this Agreement, including as to fees, and where prescribed by Customer, to direct or render invoices to the Outgoing Business; and
- (ii) continue to provide the Services to an Outgoing Business for up to 12 months from the date the person, corporation or entity in question becomes or falls within the definition of “**Outgoing Business**” (as defined under this Agreement) at Customer’s request under the then-current terms and conditions of this Agreement.

19.7.2 In addition, Supplier will provide support services to Customer and the Acquiring Business similar to those described in Clauses 19.6.2 (Acquisition Support) and in Clause 43 (Termination/Expiration Assistance).

19.7.3 Once Supplier ceases to provide the Services to an Outgoing Business, any amounts received or saved by Supplier relating to or resulting from the Restructuring, including:

- (i) any amounts paid to Supplier or its nominee by a Restructured Business to acquire equipment, contracts or licences;
- (ii) Supplier’s reduced overheads; and
- (iii) Supplier’s reduced Personnel costs, if Personnel are transferred to the Restructured Business,

that:

- (a) compensates Supplier for or that offset (in either case, whether partially or in full), any portion or component of the Termination Fee; or
- (b) represent or correspond to cost savings or reductions in the cost of delivery of the Services after such Restructuring that would not be passed through to or enjoyed by Customer through the application of Reduced Resource Charges in the calculation of the applicable Fees,

shall be fully passed through to Customer by a reduction of the Termination Fee and Fees, as applicable, which Customer has an obligation to pay to Supplier under this Agreement.

19.8 Restructure assistance

19.8.1 Supplier shall co-operate with Customer during any Restructuring or re-organisation process, including sharing information and joining third party discussions.

19.8.2 Supplier shall at no additional cost to Customer provide to Customer all assistance and information as may be necessary, in the reasonable opinion of Customer, where Customer indicates that it is considering or intends a Restructuring. Such assistance is to include, without limitation:

- (i) responding promptly (and in any event within thirty days) to requests for information relating to the Services and charges for the Services;
- (ii) if requested by Customer, assisting in discussions with Third Parties relating to any equipment, licences or contracts relevant to the proposed Restructured Business;

- (iii) co-operating in good faith with Customer in relation to the Restructuring; and
- (iv) such other assistance as may be necessary or reasonable at the time.

20. Deemed Adjustment of [REDACTED] In-Scope FTEs

20.1 In the event of any adjustment to the Resource Units under this Agreement pursuant to Clause 16 (Change), Clause 17 (New Services), Clause 18 (Resource adjustments), Clause 19 (Business restructure) or Clause 42.8 (Termination in part), the Parties shall agree on the adjustments to [REDACTED] In-Scope FTEs for the affected Process(es) under the relevant Statement of Work and/or Implementation Agreements under relevant Supplier Sites. However, if the Parties did not reach an agreement for any reason within 30 days of the effective date of the adjustment of Resources pursuant to the above provisions, the [REDACTED] In-Scope FTEs for the relevant Process under the relevant Statement of Work and/or Implementation Agreements under the relevant Supplier Site shall be deemed adjusted as follows:

In the case of upward adjustment: $A = B + C / (100 - D) \times 100$

In the case of downward adjustment $A = B - C / (100 - D) \times 100$

where,

A = the number of [REDACTED] In-Scope FTEs for the relevant Process at the Supplier Site after the upward or downward adjustment of Resource Units (rounded to one decimal places)

B = the number of [REDACTED] In-Scope FTEs for the relevant Process at the Supplier Site prior to the upward or downward adjustment of Resource Units

C = the upward or downward adjustment of Resource Unit for the relevant Process at the Supplier Site, agreed or determined pursuant to the relevant clause.

D = the stated % in the Periodic Productivity Commitment Table for the relevant month

(+) in the case of upward adjustment and (-) in the case of downward adjustment

Illustration

In Month 51, the number of PIL In-Scope FTEs for Accounts Receivables in India (Supplier Site) is 42 (**B**). The actual number of Resource Unit deployed by the Supplier in India for Accounts Receivables is 16 (i.e. the Supplier had performed better than the Periodic Productivity Commitment, and the Customer had been charged for the actual number of Resource Units). The stated % in the Periodic Productivity Commitment Table is 51 for Accounts Receivables in India.

In Month 52, the Parties agreed on an adjustment to the Resource Unit in India due to growth in the Customer's business, by adding 15 Resource Unit (FTE) for Accounts Receivables (**C**). The stated % in the Periodic Productivity Commitment Table for Accounts Receivables in India remains 51 (**D**). Therefore, the number of [REDACTED] In-Scope FTE for Accounts Receivables in India (**A**) shall be: $42 + (15 / (100 - 51) \times 100) = 72.6$

PART 6 – CUSTOMER-SUPPLIER RELATIONSHIP

21. Implementation Agreements

21.1 In conjunction with Supplier and Customer entering into this Agreement, subject to the terms herein, Supplier shall enter into Implementation Agreements with Customer or Customer's designated Affiliate(s) in accordance with the Transition and Transformation Plan in respect of

the Implementation Agreement Countries, as may be identified by the Customer from time to time.

21.2 The Parties acknowledge and agree that regardless of whether an Implementation Agreement is executed by Customer or its Affiliates with the relevant parties specified in Schedule 21 (Territory & Implementation Agreement Countries), Supplier continues to have the obligation to provide Services in the countries listed in Schedule 21 (Territory & Implementation Agreement Countries). For the avoidance of doubt, the Parties declare that it is their intention that the Implementation Agreements (whether executed or not) should not in any way alter this Agreement as it applies between Customer and Supplier.

21.3 Each Implementation Agreement is a separate agreement, consisting of the same terms as this Agreement, subject to:

21.3.1 references to “*Customer*” shall be read as references to the applicable Customer Group Member entering into the Implementation Agreement; and

21.3.2 such modifications or additions as may be specified in such Implementation Agreement, provided that such modifications and additions are necessary in order to:

- (i) comply with the relevant mandatory Laws or Legal Requirements of the jurisdiction in which the Services will be provided under the applicable Implementation Agreement; or
- (ii) reflect the country-unique requirements of the Customer Group for provision of the Services to applicable Authorised Users in the relevant jurisdiction under the applicable Implementation Agreement.

21.4 The Parties acknowledge that the entry into Implementation Agreements between the Supplier and the Customer or Customer’s designated Affiliate(s) in accordance with the Transition and Transformation Plan in respect of the Implementation Agreement Countries may result in exposure to withholding taxes to one Party or both of the Parties. Subject to Clause 15.9.5, the Customer agrees that such withholding taxes shall be for the account of the Customer or the Customer’s designated Affiliate under an Implementation Agreement (as applicable) and that the risk of any withholding taxes remains on the account of the Customer or the Customer’s designated Affiliate under an Implementation Agreement (as applicable).

22. Cost savings and Productivity Guarantee

22.1 Supplier shall at least annually, or more frequently if Customer so requests and the Supplier consents (such consent not to be unreasonably withheld), identify, and notify Customer of, methods that Customer can employ to use the Services more efficiently and thus minimise Fees paid by Customer under this Agreement.

22.2 Supplier shall advise the Customer Contract Executive of each significant opportunity to reduce Customer’s costs that is discovered by, or made known to, Supplier after the Commencement Date and shall assist Customer in estimating the magnitude thereof. If Supplier proposes an innovative, value-adding, and cost-saving solution that Customer, in its absolute discretion, elects to implement, then (i) the Parties may implement such solution utilising the Joint Innovation Fund where applicable; or (ii) where the Joint Innovation Fund does not apply, Supplier shall receive or retain, as appropriate in addition to its usual charges, a one-time benefit as agreed between the Parties equivalent to a then agreed percentage tied to or based on achieved or actual net savings to Customer.

22.3 From time to time during the Term, Supplier shall actively and periodically recommend or propose to Customer, cost savings measures and initiatives that would benefit Customer, such

as initiatives for the reduction of the amount of Fees payable by Customer to Supplier, reduction of Customer's retained information technology costs, or the reduction of other operating costs of Customer. Upon Customer's written approval of such recommendations or proposals, Supplier shall implement such cost-savings measures and initiatives. Supplier shall also ensure that its recommendations or proposals will also include such information or content, such as reports of an independent third party assessor, market surveys or otherwise, as may be necessary to assure or substantiate to Customer that such cost saving measures or initiatives represent objectively the best or most cost savings that are possible or feasible in the circumstances.

22.4 Productivity Guarantee: Supplier warrants and guarantees that during the Term, it will implement cost savings measures and technology and efficiency initiatives to meet, at the minimum, the following productivity targets, without affecting its ability to perform its obligations under this Agreement or meet the Service Levels:

22.4.1 Total Committed Reduction: As at the date 16 months from the Commencement Date or a later date as may be agreed by the Parties if the Acceptance Certificate has not been issued for the last Transition Milestone) (such date, the **■ In-Scope FTE Determination Date**):

- (i) **Band 1:** if the Total **■** In-Scope FTEs is between 400 and 499 (inclusive) ("**Band 1**"), the FTEs billed by Supplier for the performance of the Operational Services under all the Statements of Work and Implementation Agreements then in-force:
 - (a) at the end of the Initial Term will be at least 35% fewer than the Total **■** In-Scope FTEs;
 - (b) at the end of the 6th Anniversary Date (if the Term is extended in accordance with Clause 3.2.2) will be at least 36% fewer than the Total **■** In-Scope FTEs; and
 - (c) at the end of the 7th Anniversary Date (if the Term is extended in accordance with Clause 3.2.2) will be at least 37% fewer than the Total **■** In-Scope FTEs;
- (ii) **Band 2:** if the total number of Total **■** In-Scope FTEs is between 500 and 733 (inclusive) ("**Band 2**"), the FTEs billed by Supplier for the performance of the Operational Services under all the Statements of Work and Implementation Agreements then in-force:
 - (a) at the end of the Initial Term will be at least 48% fewer than the Total **■** In-Scope FTEs;
 - (b) at the end of the 6th Anniversary Date (if the Term is extended in accordance with Clause 3.2.2) will be at least 49% fewer than the Total **■** In-Scope FTEs; and
 - (c) at the end of the 7th Anniversary Date (if the Term is extended in accordance with Clause 3.2.2) will be at least 50% fewer than the Total **■** In-Scope FTEs;
- (iii) **Band 3:** if the Total **■** In-Scope FTEs is more than 733 ("**Band 3**"), the FTEs billed by Supplier for the performance of the Operational Services under all the Statements of Work and Implementation Agreements then in-force:

- (a) at the end of the Initial Term will be at least 50% fewer than the [REDACTED] In-Scope FTEs;
- (b) at the end of the 6th Anniversary Date (if the Term is extended in accordance with Clause 3.2.2) will be at least 51% fewer than the Total [REDACTED] In-Scope FTEs; and
- (c) at the end of the 7th Anniversary Date (if the Term is extended in accordance with Clause 3.2.2) will be at least 52% fewer than the Total [REDACTED] In-Scope FTEs; and

22.4.2 Periodic Committed Reduction: from time to time, the total number of FTEs billed by Supplier to provide the relevant Operational Services under the relevant Towers or Processes in the relevant Supplier Sites shall be capped in accordance with the Periodic Productivity Commitment Table,

(each of the productivity commitments under this Clause 22.4, a “**Productivity Guarantee**”). In the event where there is any conflict or in consistency between any of the Productivity Guarantees set out in Clauses 22.4.1 and 22.4.2, the Productivity Guarantee with the greater reduction of the total number FTEs will prevail.

22.4.3 True-up and/or Periodic Productivity Commitment Table adjustment exercise:

- (i) Parties acknowledge and agree that the Periodic Productivity Commitment Table as at the Commencement Date is based on (a) the assumption and estimate that Band 2 applies; and (b) the assumption that the Transitions Services, Transformation Implementation Services and Transformation Recurring Services would be completed on schedule in accordance with the Transition and Transformation Plan.
- (ii) [REDACTED] L In-Scope FTE Determination Date True-Up: Supplier shall undertake a true-up and Productivity Commitment Table adjustment exercise within 30 days from the [REDACTED] In-Scope FTE Determination Date:
 - (a) to determine whether the Total [REDACTED] In-Scope FTEs falls within Band 1, Band 2 or Band 3; and
 - (b) where Total [REDACTED] In-Scope FTEs falls within Band 1 or Band 3:
 - (I) Parties will in good faith discuss and determine adjustments to the Periodic Productivity Commitment Table to reflect the actual Productivity Guarantee applicable to Band 1 or Band 3, as the case may be. If the Parties are unable to agree on the adjustments within 45 days of the PIL In-Scope FTE Determination Date, the percentages in the Periodic Productivity Commitment Table shall be deemed to be adjusted to reflect the increased or reduced productivity percentages (as the case may be) against the actual number of allocated [REDACTED] In-Scope FTEs across the Term such that the adjusted Productivity Guarantee percentages over the Term would change in the same proportion as the then-current Periodic Productivity Commitment Table based on Band 2, to meet the committed reductions of the relevant band as described in Clause 22.4.1.
 - (II) On and from the date the adjusted Periodic Productivity Commitment Table is agreed between the Parties in writing or deemed to be adjusted, the agreed or deemed adjusted Periodic

Productivity Commitment Table shall be deemed to replace the then-current Periodic Productivity Commitment Table in Schedule 25 (Periodic Productivity Commitment Table), effective on and from the Commencement Date; and

- (III) Supplier or Customer, as the case may be, shall pay to the other Party, an amount equal to the Corrected Amount within 60 days from the [REDACTED] In-Scope FTE Determination Date. In this Clause 22.4.3, "**Corrected Amount**" means the difference between the total Operational Service Charges actually paid or payable by Customer under all Statements of Work and Implementation Agreements and such Operational Service Charges under all Statements of Work and Implementation Agreements that would have been payable had the adjusted Periodic Productivity Commitment Table be applicable on and from the Commencement Date. For the avoidance of doubt, no interest shall be payable on the Corrected Amount and payment of the Corrected Amount in accordance with this Clause 22.4.3 shall not constitute a late payment.

- (iii) Ad Hoc Productivity Commitment Table Adjustment and True-Up: During the period after the true-up and Productivity Commitment Table adjustment exercise at Clause 22.4.3(ii), Supplier shall, from time to time, undertake a true-up and Productivity Commitment Table adjustment exercise within 30 days from the date on which the [REDACTED] In-Scope FTE changes from being within the then-existing Band 1, Band 2 or Band 3 (as the case may be) to a different band ("**Adjusted Band**") ("**Ad Hoc Adjustment Date**"), in which case, in each instance:

- (a) Parties will in good faith discuss and determine adjustments to the Periodic Productivity Commitment Table to reflect the actual Productivity Guarantee applicable to the Adjusted Band. If the Parties are unable to agree on the adjustments within 45 days of the Ad Hoc Adjustment Date, the percentages in the Periodic Productivity Commitment Table shall be deemed to be adjusted to reflect the increased or reduced productivity percentages (as the case may be) against the actual number of allocated [REDACTED] Scope FTEs across the remaining Term after the Ad Hoc Adjustment Date such that the adjusted Productivity Guarantee percentages over the Term would change in the same proportion as the then-current Periodic Productivity Commitment Table based on Band 2, to meet the committed reductions of the Adjusted Band as described in Clause 22.4.1. On and from the date the adjusted Periodic Productivity Commitment Table is agreed between the Parties in writing or deemed to be adjusted, the agreed or deemed adjusted Periodic Productivity Commitment Table shall be deemed to replace the then-current Periodic Productivity Commitment Table in Schedule 25 (Periodic Productivity Commitment Table), effective on and from the Ad Hoc Adjustment Date; and
- (b) Supplier or Customer, as the case may be, shall pay to the other Party, an amount equal to the Ad Hoc Corrected Amount within 60 days from the Ad Hoc Adjustment Date. In this Clause 22.4.3, "**Ad Hoc Corrected Amount**" means the difference between the total Operational Service Charges actually paid or payable by Customer under all Statements of

Work and Implementation Agreements and such Operational Service Charges under all Statements of Work and Implementation Agreements that would have been payable had the adjusted Periodic Productivity Commitment Table be applicable on and from the Ad Hoc Adjustment Date. For the avoidance of doubt, no interest shall be payable on the Ad Hoc Corrected Amount and payment of the Ad Hoc Corrected Amount in accordance with this Clause 22.4.3 shall not constitute a late payment.

- (c) Periodic Productivity Commitment Table Adjustment – Change in Transition and Transformation Plan: Without prejudice to any remedies or recourse available to the Parties, in the case of material changes to the schedule of the completion of the Transitions Services, Transformation Implementation Services and Transformation Recurring Services in accordance with the Transition and Transformation Plan which has been agreed by the Parties, Supplier shall, from time to time, undertake a Productivity Commitment Table adjustment exercise as soon as practicable and in any case, within 30 days from the date of such material change, in which case, in each instance, Parties will in good faith discuss and determine adjustments to the Periodic Productivity Commitment Table to reflect the actual Productivity Guarantee applicable to each month. If the Parties are unable to agree on the adjustments within 45 days from the date of such agreed material change to the schedule, the Periodic Productivity Commitment Table shall be deemed to be adjusted taking into account the agreed changes to the schedule and the impact of the affected Services on the then-existing Periodic Productivity Commitment Table. On and from the date the date the adjusted Periodic Productivity Commitment Table is agreed between the Parties in writing or deemed to be adjusted, the agreed or deemed adjusted Periodic Productivity Commitment Table shall be deemed to replace the then-current Periodic Productivity Commitment Table in Schedule 25 (Periodic Productivity Commitment Table), effective on and from the date of agreement or deemed adjustment.

- 22.5** For the avoidance of doubt, the Customer shall not in any circumstance be required to pay Operational Service Charges in excess of the amount calculated based on the FTE actually deployed by the Supplier.

23. Annual Review Process

- 23.1** At least 60 days before each Anniversary Date, or more frequently if Customer requests, Customer shall determine after consultation with Supplier its projected volume and adjusted Resource for the forthcoming Contract Year for each Tower, its projected work load schedules for each Resource Unit relative to a Tower and any change to the usage forecasts for future Contract Years (including the addition of any additional years' forecasts, if appropriate).

- 23.2** In addition, as part of the Annual Review Process, the Parties shall review the Services then being performed by Supplier, including:

23.2.1 the Fees paid by Customer for the Services, including any necessary retained costs incurred by Customer;

23.2.2 the Resources that will be required and utilised by the Customer Group for the Services;

23.2.3 the quality of performance and delivery of the Services, including Service Levels and

standard of management and interface services;

- 23.2.4** the standard of performance of the Services against best-in-class service standards, which includes the following:

Service Measurement	Best-In-Class Service Standards
Booking Confirmation (Confirmation issued after receiving a new request)	Turnaround time < 2 hours
Draft BL (1 st draft of BL after receiving a shipment information from shipper)	Turnaround time < 4 hours
BL Amendment (Corrections or adjustments post review of 1 st draft)	Turnaround time < 2 hours
Final BL (BL reviewed and approved "post shipped onboard)	Turnaround time < 8 hours
Export Invoice Accuracy (Freight provisioned for shipment vs actual billed)	Accuracy > 98%
Query Resolution (1 st response to an email or a chat query)	Turnaround time < 2 hours

- 23.2.5** the performance improvements for subsequent years;

- 23.2.6** the level of technology employed;

- 23.2.7** the technology strategy and direction;

- 23.2.8** whether any Ramp Down Fees are payable and if so, the amount payable, taking into consideration any Termination Fees already paid or to be paid by Customer for any reductions arising from Customer's exercise of its rights in the event of a partial termination for convenience under Clause 42.8.4(i) during the relevant Contract Year; and

- 23.2.9** such other things as Customer may require.

- 23.3** Supplier shall provide, at Customer's request and in accordance with the schedule established by Customer, the following information to Customer for the purpose of carrying out the Annual Review Process:

- 23.3.1** actual and forecasted resource utilisation based on Customer's provided volume forecast;

- 23.3.2** changes to the environment impacting Customer costs or utilisation;

- 23.3.3** opportunities to modify or improve the Services to reduce the charges, Pass-Through Expenses or retained expenses incurred by Customer; and

23.3.4 such other information as may be reasonably requested by Customer or which are reasonably required by Customer for the Annual Review Process provided that Supplier shall in no instance be required to provide Customer with Supplier's costs of providing the Services or profit margin for the provision of the Services.

23.4 Within 15 days from the completion of the Annual Review Process, or by such deadline as may be reasonably specified by Customer:

23.4.1 if required by Customer, the Parties shall carry out good faith negotiations with a view to agreeing on:

- (i) any adjustments to the Fees, Resources and/or Service Levels, as contemplated by Clause 23.2; and
- (ii) appropriate adjustments to the Fees, Resources and/or Service Levels for the remainder of the Term; and

23.4.2 Supplier shall develop and submit for Customer's review and approval, Supplier's annual and quarterly financial objectives and budgets and performance goals for the performance of the Services for the forthcoming Contract Year, and upon Customer's written approval, incorporate the same into Supplier's working plans. Supplier shall also comply with the financial requirements contained in Schedule 5 (Pricing). In respect of the first Contract Year, Supplier shall also carry out the foregoing obligations within ninety (90) days from the Commencement Date.

23.5 Annual explanation of Services

At least once each year or as requested by Customer, Supplier will at its own cost and expense:

23.5.1 meet with Customer to explain how the systems Supplier operates in connection with the provision of the Services work and are operated;

23.5.2 meet with Customer to explain how the Services are provided; and

23.5.3 provide such training at the Sites and documentation as Customer may require in order to understand and operate such systems, and understand and provide the Services themselves after the expiration or termination of this Agreement.

24. Co-operation, support, integration and access

24.1 Co-operation and support

24.1.1 Subject to, where applicable, the confidentiality obligations in Clause 36 (Safeguarding of Customer Information) and Clause 37 (Confidentiality), Supplier shall co-operate in good faith with, and provide such assistance as is reasonably necessary to:

- (i) the Customer Group Members and any actual or potential Third Parties to enable the Customer Group Members or such Third Parties to:
 - (a) provide or receive goods, services or information in the manner contemplated by this Agreement; and
 - (b) exercise Customer's rights and privileges under this Agreement or to fully use and enjoy Services; and
- (ii) Third Parties retained by Customer to perform services, in the manner requested by Customer.

24.1.2 Supplier shall:

- (i) consult as necessary with Customer in order to provide Customer with such information relevant to the Services as Customer reasonably requires concerning the current and anticipated future provision of the Services;
- (ii) co-operate with all procedures and processes relating to the review of Services reasonably implemented by Customer; and
- (iii) implement such recommendations as may reasonably be made by Customer in order to ensure the Services continue to comply with the requirements of this Agreement.

24.2 Extent of co-operation, integration and access

24.2.1 The co-operation and assistance referred to in Clause 24.1 (Co-operation & Support) includes:

- (i) providing access to the Sites, Resources, processes, technologies, and services being provided, managed, used or operated by Supplier in the provision of the Services, as may be necessary for Customer to perform its work. The Customer also may require Supplier to provide such aforementioned access to a Third Party, subject to the Supplier's consent, such consent not to be unreasonably withheld;
- (ii) providing such access to, and copies of, as may be necessary, Supplier Systems, Software, Materials and Customer Data in such format as Customer reasonably requires;
- (iii) providing access to Supplier Systems, Equipment and Software to the extent permitted under any underlying agreements with Third Parties;
- (iv) providing necessary information, documentation and instructions, including specifications, requirements, standards, protocols, policies, constraints and information regarding the operating environment, system constraints and other operating parameters for the systems or the Services (including for quality assurance and development and performance acceptance testing) to enable goods or services to interface, or be integrated, with the system or the Services, or be operated by Supplier, or which a person with reasonable commercial skills and expertise would find reasonably necessary for Customer or a Third Party to perform its work;
- (v) providing assistance and support services, including training, knowledge transfer, consulting and process alignment as required, to permit such Customer Group Member or Third Parties to acquire the knowledge necessary to efficiently provide, receive or operate goods or services under this Agreement;
- (vi) assisting Customer in liaising with Third Parties retained by Customer in respect of the Third Party Systems that interface with or to the Customer Systems or to perform information technology services or other services, for the relevant services;
- (vii) providing access to Supplier's Personnel, upon the giving of reasonable notice by Customer;
- (viii) ensuring integration of the results of the Services with the Customer Systems; and
- (ix) providing Customer or the relevant Third Party with:

- (a) access to licences where required to access Supplier Systems, at most favourable rates;
- (b) information regarding the operating environment, system constraints and other operating parameters applicable to Supplier Systems being used by Supplier to supply the Services from time to time; and
- (c) such information as necessary to ensure that the results of the Services are compatible with the Customer Systems.

24.3 Joint Innovation Fund

The Parties shall set up the Joint Innovation Fund as set out in Schedule 24 (Joint Innovation Fund).

25. Third Party suppliers

25.1 No exclusivity

25.1.1 Notwithstanding anything to the contrary, Supplier acknowledges that it is not the exclusive supplier of services similar to the Services to Customer and the Customer Group Members and that either Customer or the Customer Group Members shall have the right to perform itself, or to engage Third Parties to perform, the whole or any part of the Services or any New Services.

25.2 Negotiations not exclusive

Without limitation, Supplier acknowledges that during the Term, any Customer Group Member may negotiate with Supplier's competitors regarding any matters such Customer Group Member regards as appropriate and no Customer Group Member is under any obligation to make any disclosure to Supplier regarding the existence or nature of such negotiations.

25.3 Customer's other rights

The Customer Group Member's rights under this Clause 25 (Third Party suppliers) are without limitation to any other right it has under this Agreement in relation to engaging or procuring Third Parties to provide Services or New Services and requiring Supplier to cease to supply Services.

26. Customer Satisfaction Surveys

26.1 The Customer may, at any time during Term, at its own cost and expense, conduct, either by itself or through a Third Party selected by the Customer, customer satisfaction surveys.

26.2 The Supplier agrees that the findings of the customer satisfaction survey(s) may provide the basis for remedial action, such as preparing and implementing a plan and correcting deficiencies uncovered during surveys, and/or be used as a tool for continuous improvement of the Services. The Supplier shall cooperate with the Customer in carrying out such remedial action and/or continuous improvement of the Services.

27. Governance

27.1 General

27.1.1 The Parties shall comply with the provisions set out in Schedule 6 (Governance) which establishes the roles and interfaces between Supplier's and Customer's Personnel with responsibilities under this Agreement. Supplier shall organise its management team so that it interfaces and conforms with Customer's organisational structure and overall management team.

27.2 Committees

- 27.2.1 The committees (each, a “**Committee**”) shall be established in accordance with Schedule 6 (Governance).
- 27.2.2 The membership, roles and functions for each Committee shall be as set out in Schedule 6 (Governance).
- 27.2.3 The Parties agree to establish and participate in such other committees as Customer may require from time to time. The Customer Contract Executive and Service Delivery Head shall determine the membership, roles and functions of such other committees.

27.3 Service Delivery Head

- 27.3.1 Customer may in accordance with Clause 28.4.1 designate, or Supplier may in accordance with Clause 28.4.5 assign, an individual as the “*Service Delivery Head*”.
- 27.3.2 Except where the Policy and Procedures Manual provides otherwise, Customer shall address all communications relating to this Agreement to Service Delivery Head.
- 27.3.3 Supplier represents and warrants that, subject to replacement under Clauses 27.3.1 to 27.3.8, or resignation of Service Delivery Head from Supplier or any of its Affiliates, Service Delivery Head has the authority to act for, and on behalf of, and bind Supplier and Supplier Subcontractors in all his dealings with Customer and in respect of all aspects of or all matters relating to this Agreement.
- 27.3.4 For the avoidance of doubt, where anything to be done under this Agreement is to be done by Supplier, including the exercise of a power or discretion and the giving of consent or approval, Service Delivery Head has the power to do that thing and the action of any other person purporting to do that thing may be treated by Customer as null and void and of no effect.
- 27.3.5 Supplier shall ensure that Service Delivery Head:
 - (i) is engaged on the Customer account for a minimum of two years;
 - (ii) devotes adequate time and effort to the management of all aspects of this Agreement and provision of the Services to the Customer Group; and
 - (iii) has day-to-day authority for undertaking to ensure customer satisfaction.
- 27.3.6 Service Delivery Head may delegate his or her functions to the extent consented to by Customer in writing.
- 27.3.7 Supplier shall not remove Service Delivery Head without good cause and shall inform Customer of such removal 30 days prior to such removal.
- 27.3.8 Customer will have the right at any time, without stating reasons and at no cost to Customer, to require Supplier to replace Service Delivery Head within two weeks of Customer’s notice.
- 27.3.9 **Appointment of replacement of Service Delivery Head**
- 27.3.10 Before seeking to appoint a replacement Service Delivery Head, Supplier shall:
 - (i) notify Customer of at least three proposed appointments (Supplier may indicate its preferred nominee if it wishes to do so) and give reasons for making the replacement;
 - (ii) introduce the individuals to the Customer Contract Executive and allow Customer to interview the individuals;

- (iii) provide Customer with any other information about the individuals reasonably requested by Customer; and
- (iv) have due regard to the proposed appointee preferred by Customer and obtain Customer's written consent to the individual nominated by Supplier as the replacement (which consent should not be unreasonably withheld).

27.4 Customer Contract Executive

- 27.4.1** Customer shall designate an individual to be the Customer Contract Executive.
- 27.4.2** Supplier is to address all notices relating to this Agreement to the Customer Contract Executive.
- 27.4.3** The Customer Contract Executive shall be the conduit through whom all notices, communications, approvals, confirmations, certifications, consents and proposals shall be sent in respect of all aspects of this Agreement, except as may be expressly notified by Customer or the Customer Contract Executive from time to time.
- 27.4.4** Customer may appoint, remove or replace the Customer Contract Executive and shall inform Supplier of such appointment, removal or replacement, as the case may be.

28. Personnel

28.1 Supplier shall:

- 28.1.1** as of the Commencement Date and throughout the Term, provide, assign and maintain sufficient Personnel to (i) provide the Services, meet Service Levels and all deadlines under this Agreement, (ii) provide continuous improvements to the Service Levels and (iii) fulfil all other obligations under this Agreement;
- 28.1.2** ensure that all of its Personnel shall possess suitable and sufficient competence, expertise and qualifications and shall be properly educated, trained for, and experienced in providing the Services they are to perform or in the fulfilment of the other obligations under this Agreement they are to perform. In particular, the Supplier shall ensure that not less than 20% of its Personnel delivering or assigned to deliver the Services shall possess suitable and sufficient experience utilising and/or working with container shipping enterprise resource planning systems similar to LMS, one of the Customer Systems; and
- 28.1.3** ensure that all of its Personnel successfully complete all security and background checks required by Customer prior to being assigned to perform the Services under this Agreement.

28.2 Supplier, and not Customer nor any Customer Group Member, shall have the right, power, authority and duty to supervise and direct the activities of Supplier's Personnel and to compensate them for work performed on Customer's or any Customer Group Member's behalf pursuant to this Agreement. Nothing in this Agreement is to be construed to constitute or deem Personnel of Supplier as the employee or agent of Customer or any Customer Group Member.

28.3 Staffing

- 28.3.1** Supplier shall provide training opportunities to Personnel providing the Services so that such Personnel may:
 - (i) develop and enhance their technical skills, technology management skills, and professional skills; and
 - (ii) obtain relevant industry certifications to the extent available.

28.4 Key Supplier Personnel

28.4.1 Subject to Clause 28.4.3, Customer may designate (with the Supplier's agreement which shall not be unreasonably withheld) certain Supplier's Personnel delivering the Services or assigned to deliver the Services (at any point in time) as Key Supplier Personnel. Key Supplier Personnel shall be dedicated to providing the Services to Customer on a full-time basis subject to Clause 28.4.4. Customer may request and Supplier shall not unreasonably withhold consent for Customer to interview and provide its feedback regarding the proposed Personnel or individuals prior to their assignment to Customer's account and designation as Key Supplier Personnel. Key Supplier Personnel as at the Commencement Date are those people listed in Schedule 14 (Key Supplier Personnel) to this Agreement. Any approved additions or deletions to such list of Key Supplier Personnel shall be recorded as a variation to Schedule 14 (Key Supplier Personnel).

28.4.2 Supplier acknowledges that:

- (i) the Key Supplier Personnel will directly affect the quality of the Services provided to Customer by Supplier; and
- (ii) it shall use its reasonable endeavours to minimise critical dependencies on Key Supplier Personnel during the Term.

28.4.3 Key Supplier Personnel may be identified by either name or position. Customer may from time to time change or designate persons or positions as Key Supplier Personnel.

28.4.4 Supplier shall ensure that the Key Supplier Personnel:

- (i) devote their full time and effort to the performance of the Services for Customer, unless otherwise agreed with Customer (such agreement not to be unreasonably withheld); and
- (ii) are not distracted by Supplier's servicing of any other client or by Supplier's internal requirements.

28.4.5 Subject to Clause 27.3.9 (Appointment of replacement of Service Delivery Head), the Supplier may assign individuals to serve in a Key Supplier Personnel position, whether as an initial assignment or a subsequent assignment, subject to the following:

- (i) the Supplier shall notify Customer of the proposed assignment within a reasonable time frame prior to the planned assignment;
- (ii) on the Customer's request, the Supplier shall provide Customer with an executive profile of the proposed individual and any other information about such individual as may be reasonably requested by Customer; and
- (iii) on the Customer's request, provide reasonable opportunity for Customer to interview the individual subject to the approval of the Supplier, such approval not be unreasonably withheld.

28.4.6 Supplier shall endeavour to maintain consistency in the assignment of individuals in Key Supplier Personnel positions and endeavour not to transfer, reassign or remove any individual in a Key Supplier Personnel position (except where such a removal is as a result of the said individual's voluntary resignation or involuntary termination for cause under his contract of employment).

28.4.7 Supplier shall assign Key Supplier Personnel to the performance of the Services for a minimum of *two consecutive years*, unless Customer agrees otherwise.

28.4.8 Supplier shall maintain active succession plans for each of the personnel filling the Key Supplier Personnel positions, and shall make such plans available to Customer upon request.

28.4.9 Under no circumstances may Supplier transfer or remove more than 10% of the Key Supplier Personnel in any six month period, unless otherwise agreed by Customer in writing.

28.4.10 Customer may, at any time, at no cost to Customer, reasonably and in good faith request Supplier to remove and/or replace any of the Key Supplier Personnel from the Customer account and Supplier shall not unreasonably withhold consent to such removal or replacement.

28.5 Changes to Personnel

28.5.1 Any proposed changes to the number of Supplier's Personnel delivering the Services during the first 24 months following the Commencement Date are subject to Customer's approval, which shall be based on Customer's reasonable satisfaction that such changes shall not have an adverse impact on Supplier's ability to perform its obligations under this Agreement.

28.5.2 No joint employment

The Parties agree that nothing in this Agreement regarding Customer's right to review and give its approval to any replacement, reassignment, appointment or selection of any Personnel shall operate or be construed to:

- (i) constitute the joint employment, by Supplier and any Customer Group Member, of Supplier's Personnel delivering the Services. Such Personnel shall at all times be deemed to be employed or engaged by Supplier or any Supplier Subcontractor; or
- (ii) limit or exclude Supplier's responsibility or obligation for the acts or omission of Supplier's Personnel.

28.5.3 Material proposed or actual changes to the number of Supplier's Personnel delivering the Services during the first 24 months following the Commencement Date shall be reported to Customer each month.

28.5.4 Any material unforeseen reduction in the number of Supplier's Personnel delivering the Services that occurs during the first 24 months following the Commencement Date shall be Supplier's responsibility and Supplier shall not be relieved from its obligation to provide the Services and meet the Service Levels.

28.6 Removal or Reassignment of Supplier's Personnel

28.6.1 Customer will have the right at any time, acting in good faith and at no cost to Customer, to request Supplier to remove any of its Personnel (including any Key Supplier Personnel) from the Customer account and Supplier shall not unreasonably withhold consent to such a request. If Customer determines that the continued assignment of any of Supplier's Personnel (including Key Supplier Personnel) to Customer's account is not in the best interests of Customer, Customer may give Supplier written notice to that effect requesting that such Personnel be replaced on Customer's account and Supplier shall not unreasonably withhold consent to such request. In such an event, Supplier shall promptly replace the individual on Customer's account with an individual of suitable ability and qualifications, with Customer's approval, and shall immediately remove the replaced individual in question from all Customer Sites.

28.7 Other Personnel requirements

- 28.7.1** Supplier is responsible for all necessary recruiting and hiring costs associated with employing appropriate staff to perform the Services and fulfil its obligations under this Agreement.
- 28.7.2** Supplier is required to develop employee transition plans including necessary severance packages and stay bonuses as appropriate, for its Personnel.
- 28.7.3** For a period of 24 months following the Commencement Date, Supplier shall inform Customer in writing each month of the Transitioned Employees terminated for cause, or who otherwise leave Supplier's employment for voluntary reasons.
- 28.7.4** Supplier agrees that any employee or agent of Supplier or its subcontractors who provides (or is intended to provide) services to any Customer Group Member and works (or is scheduled to work) at Customer Sites may be required by Customer to be subject to and pass a background check, prior to providing services to Customer, or in the course of providing services to any Customer Group Member.
- 28.7.5** For a period of 12 months following the Commencement Date, without Customer's prior written consent, Supplier and its subcontractors shall not assign Transitioned Employees to another engagement or project where Supplier or its subcontractors are providing services or marketing to a competitor of Customer.
- 28.7.6** Supplier shall use commercially reasonable efforts to keep the turnover rate of Personnel performing the Services to a level comparable or better than the industry average for large, well-managed outsourcing services companies.
- 28.7.7** If Customer believes that Supplier's turnover rate of Supplier Personnel performing the Services is excessive, Supplier shall:
 - (i) provide data to Customer concerning the turnover rate;
 - (ii) discuss with Customer the reasons for the turnover rate;
 - (iii) submit its proposals for reducing the turnover rate; and
 - (iv) agree on a program to reduce the turnover rate at no cost to Customer.
- 28.7.8** Supplier's Personnel shall not be deemed to be employees of Customer or members of the Customer Group.

29. Supplier Subcontractors

- 29.1** Supplier shall not sub-contract, delegate or otherwise arrange for another party or person to perform any part of this Agreement (including the performance of any part of the Services) or to discharge any of its obligations under any part of this Agreement without the prior written consent of Customer.
- 29.2** Without limiting the generality of Clause 29.1, if Supplier proposes to sub-contract any part of the Services or any other of its obligations under this Agreement, Supplier shall provide Customer with prior written notice of such intention. If Customer so requests, Supplier shall provide Customer with the following additional information:
 - 29.2.1** the Services and components of the Services affected;
 - 29.2.2** the scope of the proposed sub-contract;
 - 29.2.3** the identity and qualifications of the proposed subcontractor; and

- 29.2.4** the material terms of the proposed sub-contract, provided that Supplier shall be under no obligation to disclose Supplier's actual cost of providing the Services or its profit margin for the provision of the Services, or information of Supplier's other customers, unless the Parties agree otherwise.

Any such notice and information shall be given to Customer sufficiently in advance to allow Customer to give the proposal adequate consideration prior to Supplier entering into any contract with a Supplier Subcontractor. If Customer notifies Supplier of any concerns it has in relation to any such proposal, Supplier agrees to discuss such concerns with Customer and work in good faith to resolve Customer's concerns.

29.3 In respect of each Supplier Subcontractor, Supplier:

- 29.3.1** is not discharged or relieved from any obligation or liability arising under this Agreement by entering into any sub-contract;
- 29.3.2** shall not permit or authorise a Supplier Subcontractor to sub-contract, delegate or otherwise arrange for another party or person to perform any part of the sub-contracted services or works;
- 29.3.3** remains responsible for the performance, or lack thereof, of each Supplier Subcontractor or Personnel of Supplier Subcontractor; and
- 29.3.4** is liable to Customer for the acts, omissions, defaults and negligence of each Supplier Subcontractor, or any Personnel of each Supplier Subcontractor, as fully as if they were the acts, defaults or negligence of Supplier or Supplier's Personnel.

29.4 Supplier shall be responsible for ensuring the suitability of all Supplier Subcontractors and Personnel of Supplier Subcontractors, for the works proposed to be carried out, and for ensuring that the work performed by each Supplier Subcontractor meets the requirements of this Agreement. Supplier shall ensure that each Supplier Subcontractor is made aware of and subject to all the terms of this Agreement relevant to such Supplier Subcontractor's part in the performance of this Agreement and that each contract between Supplier and a Supplier Subcontractor:

- 29.4.1** includes key provisions equivalent to those in this Agreement, including with respect to Sites; intellectual property rights; audit rights; safeguarding of Customer Information; confidentiality; warranties and provisions enabling the transfer or novation of the subcontract from Supplier to Customer (without the need for the consent of such Supplier Subcontractor) in the event of termination or expiration of this Agreement;
- 29.4.2** expressly provides that the provisions of the contract are intended to confer benefits on Customer and to create obligations on the part of such Supplier Subcontractor that are enforceable by Customer in its own right, whether by way of defence or otherwise pursuant to the provisions of the Contracts (Rights of Third Parties) Act 2001, unless Supplier is otherwise expressly prohibited from incorporating the aforementioned provision by binding agreement entered into prior to the Commencement Date with such Supplier Subcontractor;
- 29.4.3** requires such Supplier Subcontractor to adhere to Customer's and Supplier's then effective standards, policies and procedures in effect at the time; and
- 29.4.4** requires such Supplier Subcontractor to agree to Customer's rights under the provisions of Clause 29.5 (Removal of Subcontractor).

29.5 **Removal of Subcontractor**

- 29.5.1** Customer may, by notice to Supplier, require Supplier to cease using any Supplier

Subcontractor where Customer considers that:

- (i) such Supplier Subcontractor has or is likely to breach its security obligations;
- (ii) such Supplier Subcontractor has or is likely to breach its confidentiality obligations with respect to Customer Information;
- (iii) such Supplier Subcontractor has infringed Customer's Intellectual Property Rights;
- (iv) such Supplier Subcontractor's performance is materially deficient (and such deficiency is not remedied within 30 days of Customer notifying Supplier of the deficiency);
- (v) Customer is not satisfied on reasonable grounds with such Supplier Subcontractor's ability to render future performance; or
- (vi) there have been material misrepresentations by or concerning such Supplier Subcontractor.

29.5.2 Customer may notify Supplier of a period of time during which Supplier may attempt to remedy any of the matters referred to in Clauses 29.5.1(i) to 29.5.1(vi), prior to Customer exercising its rights pursuant to Clause 29.5 (Removal of Subcontractor).

29.5.3 Supplier shall notify Customer promptly after becoming aware of any of the matters referred to in Clauses 29.5.1(i) to 29.5.1(vi).

30. Disaster and Business Continuity

30.1 Disaster Recovery Plan

30.1.1 Supplier will comply with the business continuity and disaster recovery requirements and the procedural requirements contained in Schedule 10 (Business Continuity Plan) and Schedule 11 (IT Disaster Recovery Plan).

30.1.2 Supplier will execute the Business Continuity Plan and Disaster Recovery Plan as specified in this Agreement upon the occurrence of a Disaster. Without limiting Customer's remedies, if Supplier fails to provide any Services agreed in the Disaster Recovery Plan, or fails to reinstate any affected Services within the timeframe required under the Disaster Recovery Plan during a Disaster:

- (i) Customer may, at Customer's sole discretion, appoint, or direct Supplier to appoint, a Third Party to provide such Services at the cost of Supplier provided that, subject to Clause 30.1.3, Customer continues to pay the Fees to Supplier;
- (ii) Customer may terminate this Agreement for cause in accordance with Clause 42.1.1; and
- (iii) Supplier shall continue to provide, or endeavour to provide, Disaster Recovery Services or Business Continuity Services, or otherwise perform its obligations to reinstate Services, until such time as Customer directs otherwise. Where a Third Party appointed by Supplier under Clause 30.1.2(i) or appointed by Customer under Clause 30.1.2(i) is providing such Services, Supplier may resume the provision of such Services provided it has shown to Customer's satisfaction, that Supplier is fully able to recommence the provision of such Services and that the Customer Group's access to, use or enjoyment of the Services will not be adversely affected by such recommencement.

30.1.3 If Supplier continues to provide a Service (whether by itself or through a Third Party

appointed by Supplier under Clause 30.1.2(i)), or if Customer has appointed a Third Party under Clause 30.1.2(i) to provide Services, but at a reduced level from that which is required or contemplated under this Agreement, the Fees shall be reduced to reflect such reduced level of Services provided by Supplier or such Third Party, and Customer and Supplier shall enter into good faith discussions regarding an equitable adjustment to the Fees, but failing agreement either Customer or Supplier may refer the matter for resolution under Clause 54 (Governing law and jurisdiction).

30.1.4 Without prejudice to Clause 40 (Liability) and without in any way limiting Customer's remedies under this Agreement, if the Disaster results from a breach or non-performance of this Agreement by Supplier, or from a negligent act or omission of Supplier or a Supplier Subcontractor, Supplier shall either:

- (i) reimburse Customer for; or
- (ii) set off against any Fees payable,

30.1.5 any expenses Customer and any Customer Group Member incurs (including relocation costs) as a result of such Disaster.

30.1.6 As part of the Services, Supplier shall (at its sole cost and expense):

- (i) periodically test and review the Disaster Recovery Plan and demonstrate to Customer that the Disaster Recovery Plan is fully operational and capable of restoring operations following a Disaster such that all Services will be restored and provided in accordance with Service Levels within the time frames set forth in the Disaster Recovery Plan, in accordance with Schedule 11 (IT Disaster Recovery Plan); and
- (ii) during the Term, implement and comply with the Disaster Recovery Plan. Specifically, in the event of a Disaster Supplier shall:
 - (a) immediately notify Customer and provide it with all relevant information and particulars relating to the Disaster in question;
 - (b) provide Disaster Recovery Services in accordance with the Disaster Recovery Plan to restore operations and to reinstate the affected Services following a Disaster such that all affected Services will be restored and provided in accordance with Clause 12.7 (Required level of performance) within the time frames set forth in the Disaster Recovery Plan;
 - (c) not increase the Fees or charge Customer any additional usage fees for the Disaster Recovery Services, except as otherwise provided in Schedule 5 (Pricing); and
 - (d) continue to provide the Services which are not affected by the Disaster in accordance with this Agreement.

30.1.7 Supplier's obligations in Clause 30.1.6 apply regardless of what caused or contributed to the Disaster subject to Clause 59 (Force Majeure). The obligations of Supplier and rights and remedies of Customer set forth in this Clause 30.1 (Disaster Recovery Plan) are in addition to and not in lieu or limitation of any other obligations or liabilities of Supplier and rights and remedies of Customer set forth in this Agreement.

30.1.8 Supplier shall provide Customer with access to, or a copy of, any current Disaster Recovery Plan and Business Continuity Plan if so requested by Customer.

30.2 Whether a Disaster Recovery Plan exists or not, Supplier shall, at a minimum, restore the

Services within a timeframe that is comparable or better than the industry average for large, well-managed outsourcing services companies.

31. Auditing

31.1 Audit Rights

31.1.1 Supplier shall maintain comprehensive audit records of financial and non-financial transactions resulting from this Agreement.

31.1.2 Supplier shall provide to Customer, its internal or external auditors, authorised inspectors, and regulators access at reasonable times to Sites with prior written notice of 20 Business Days where either Supplier or any of its subcontractors is providing Services, to Personnel, and to data and records relating to the Services for the purpose of performing audits and inspections of either Supplier or Supplier Subcontractors for any reasonable business purpose, including (i) verifying the accuracy of the Fees and invoices rendered by Supplier in relation to the Services provided under this Agreement; (ii) allowing audits and examinations by Customer's regulatory authorities; (iii) assessing Supplier's performance of the terms of this Agreement; (iv) inspecting the conduct of Supplier's operations and procedures related to the Services; and (v) assessing and ascertaining the efficiency of Supplier in performing the Services.

31.1.3 Without limiting the generality of Clause 31.1.2, Customer has the right to audit and inspect (or in relation to Personnel, Supplier shall make available such Personnel to assist Customer), and appoint one or more Auditors (who shall not be a Direct Competitor of Supplier) who shall comply with the confidentiality obligations set out in Clause 37 (Confidentiality), to audit and inspect (or, in relation to Personnel, Supplier shall make available such Personnel to assist Customer) (and Customer shall give reasonable prior written notice of twenty (20) Business Days its audit or inspection where practicable):

- (i) the Resources used by Supplier and Supplier Subcontractors in connection with the supply of the whole or any part of the Services;
- (ii) any agreements, arrangements or undertakings between:
 - (a) any member of Supplier Group and Third Parties; and
 - (b) any member of Supplier Group and Supplier Subcontractors,
 relating to this Agreement, save that Supplier may black out or redact from documentation relating to the aforementioned agreements, arrangements or undertakings, financial information or commercially sensitive information, both of which are unrelated to the performance of the Services;
- (iii) any operational records of Supplier, Supplier Subcontractors and other persons relating to this Agreement;
- (iv) any practices or procedures of Supplier and Supplier Subcontractors relating to this Agreement;
- (v) any Customer Materials and Customer Data in Supplier's or any Supplier Subcontractor's possession, custody or control;
- (vi) any premises from which the whole or any part of the Services are being provided; and
- (vii) such other premises, documents, records, practices, data, information and

matters as Customer may from time to time wish to audit and inspect in connection with this Agreement, provided Supplier shall be under no obligation to disclose Supplier's actual cost of providing the Services or its profit margin for the provision of the Services, or information of Supplier's other customers, unless the Parties agree otherwise.

31.1.4 Adjustment to Fees and charges

31.1.5 With respect to any proposed adjustments in the Fees in connection with a change in the Services, an Extraordinary Event, a Resource Baseline Adjustment Event or any proposed adjustments in termination charges, Customer shall have the right to retain an Auditor to audit Supplier's or any Supplier Subcontractor's documents, records, practices, data, information and other matters associated with such adjustment and Supplier shall cooperate with Customer and such Third Party and shall carry out such acts and do such acts or procure compliance of Supplier Subcontractors as may be necessary for Customer or the Auditor to carry out such audit, provided that Supplier shall be under no obligation to disclose Supplier's actual cost of providing the Services or its profit margin for the provision of the Services, or information of Supplier's other customers, unless the Parties agree otherwise.

31.1.6 Without prejudice to Clause 36 (Safeguarding of Customer Information) and Clause 37 (Confidentiality), Supplier agrees that Customer or one or more of its Auditors may, with Supplier's consent (which consent shall not be unreasonably withheld), run its own Software on the whole or part of Supplier's Systems or any Supplier's Equipment and Software for the purpose of carrying out an audit and inspection.

31.1.7 Supplier agrees that Customer or one or more of its Auditors may make copies of any document, records or data, or any extracts of documents, records or data, described in Clause 31 (Auditing) without prejudice to confidentiality obligations.

31.2 Audit

31.2.1 Customer or any Auditor may from time to time require Supplier to:

- (i) answer any questions raised in relation to issues contemplated by Clause 31 (Auditing);
- (ii) confirm compliance with the matters contemplated by Clause 31.1 (Audit Rights) and such other matters as Customer may from time to time notify to Supplier; or
- (iii) confirm that any non-compliance has been remedied as contemplated by Clause 31.5 (Discrepancies).

31.2.2 If requested by Customer or any Auditor, Supplier shall confirm these matters in writing.

31.3 Assistance

31.3.1 Subject to Clause 31.3.2, Supplier shall provide, and ensure that Supplier Subcontractors provide all reasonable assistance required by Customer or the Auditor, including:

- (i) providing appropriate office facilities in the relevant premises to the Auditor;
- (ii) making appropriate Personnel of Supplier available to answer queries;
- (iii) providing access upon request to such records and any other information required to meet Customer's audit rights in accordance with this Clause 31 (Auditing); and

- (iv) assisting with, and if requested, participating in, joint audits.

31.3.2 Unless the Parties agree otherwise:

- (i) Supplier shall be under no obligation to disclose Supplier's actual cost of providing the Services or its profit margin for the provision of the Services, or information of Supplier's other customers; and
- (ii) for the following Supplier Subcontractors (other than Affiliates of Supplier), Supplier shall only be required to use commercially reasonable efforts to procure compliance of such Supplier Subcontractors with Clause 31.3.1:
 - (a) licensors of standard or off-the-shelf software products of a Third Party (other than an Affiliate of Supplier) that are generally commercially available; and
 - (b) providers of standard IT services, which are supplied on such party's standard terms of business.

31.4 Audit review and follow-up

- 31.4.1** Supplier and Customer shall meet to review each audit report promptly after it is issued and to mutually agree upon an appropriate and effective manner in which to respond to the deficiencies identified and changes suggested by the audit report. If the Parties are unable to agree, Supplier shall take such steps in relation to the audit report as Customer reasonably requires, at Supplier's cost.
- 31.4.2** Supplier shall promptly make available to Customer the results of any security reviews or security audits conducted by Supplier, Supplier Subcontractors, Supplier's Affiliates or their subcontractors, agents or representatives (including internal and external auditors), relating to Supplier's systems, operating practices, processes and procedures to the extent relevant to the Services or to the Customer account, including copies of any such audit reports, or parts of such reports, which relate to security which are conducted by, or on behalf of, Supplier or Supplier Subcontractors, provided that Supplier shall be under no obligation to disclose Supplier's actual cost of providing the Services or its profit margin for the provision of the Services, or information of Supplier's other customers.
- 31.4.3** Supplier shall promptly inform Customer whether any reviews or audits other than those referred to in Clause 31.4.2 conducted by Supplier, Supplier Subcontractors, Supplier's Affiliates or their subcontractors, agents or representatives (including internal and external auditors), relating to Supplier's systems, operating processes, practices and procedures to the extent relevant to the Services or to the Customer account indicate that Supplier is not providing the Services in accordance with this Agreement. Supplier will advise Customer of the findings of the audit in this regard, and shall provide Customer with an action plan addressing the issue. Notwithstanding these obligations, Supplier shall be under no obligation to disclose information relating to Supplier's actual cost of providing the Services or its profit margin for the provision of the Services, or to Supplier's other customers.
- 31.4.4** Supplier shall review or participate in developing Customer's annual audit plan as requested by Customer and provide access to appropriate resources.
- 31.4.5** Supplier shall co-operate fully with Customer or its designees in connection with audit functions and with regard to examinations by any regulators of Customer or the Customer Group.

31.5 Discrepancies

- 31.5.1** Without prejudice to Clause 31.4.1, if an audit or inspection reveals that Supplier or a Supplier Subcontractor is not complying with the terms and conditions of this Agreement or the matters contemplated by Clause 31.1 (Audit Rights) and Customer so notifies Supplier, then Supplier shall take, and shall ensure that any relevant Supplier Subcontractors take, such actions as are necessary to promptly remedy the non-compliance or to promptly rectify any and all problems highlighted by the audit or inspection, and to make the improvements reasonably recommended by Customer or the Auditor.
- 31.5.2** Subject to Clause 31.3.2, Supplier shall comply, and shall ensure that all relevant Supplier Subcontractors comply, with any reasonable directions or instructions from Customer or any Auditor as to the manner (including timing) in which such non-compliance shall be remedied, unless the Parties agree otherwise.
- 31.5.3** If an audit or inspection reveals that:
- (i) the Fees invoiced are not correct; or
 - (ii) Supplier overcharged Customer,
- then Supplier shall pay or credit to Customer (at Customer's election) the amount of the overcharge. Supplier's obligation to pay or to provide a credit is without limitation to other remedies available to Customer at law or under this Agreement.

31.6 Costs of the audit

- 31.6.1** Subject to Clause 31.6.2, each Party shall bear its own costs associated with audits and inspections.
- 31.6.2** Without limitation, if an audit or inspection reveals that Supplier has:
- (i) overcharged Customer 5% or more of the Fees which were the subject of the audit; or
 - (ii) breached or not performed this Agreement other than in a minor or inconsequential way,
 - (iii) then Customer shall receive a credit against the Fees for its reasonable third party audit and inspection costs incurred.

31.7 Records retention

Supplier shall ensure that all financial and operational records (including adequate archival records of Customer's transactions and other relevant data), within the possession, custody or control of Supplier or Supplier Subcontractors, that:

- 31.7.1** are reasonably required for purposes of an audit and inspection contemplated under this Clause 31 (Auditing); or
- 31.7.2** are required by any applicable Laws and Legal Requirements of which Supplier is or should be aware,

are in compliance with Customer's policies and statutory and regulatory obligations in relation to record retention and are maintained in an accessible and secure electronic form for a period of at least two years from the date of their creation, or longer if required by this Agreement or by any Laws and Legal Requirements. Customer shall endeavour to provide to Supplier, updates to its policies in relation to record retention.

32. Non-solicitation

32.1 Subject to Clause 43 (Termination/Expiration Assistance), both Supplier and Customer agree not to, and to ensure that their respective Affiliates, do not, do any of the following without first obtaining the prior written consent of the other Party: solicit, entice away or attempt to entice away, offer employment to or employ, or offer to conclude any contract of services with any Personnel of either Party, where such Personnel were directly involved in the provision or receipt of Services under this Agreement, during the Term and for a period of six months thereafter, directly or indirectly, whether as a director, partner or agent provided always that the placing of an advertisement of a post available to a member of the public generally and the recruitment of a person through an employment agency shall not constitute a breach of this Clause 32. The Parties consider the restrictions in this Clause 32 to be reasonable in all circumstances.

PART 7 – INTELLECTUAL PROPERTY & CONFIDENTIALITY

33. Materials

33.1 Customer Materials

33.1.1 Customer is and shall be the sole and exclusive owner of all Intellectual Property Rights anywhere in the world in the following Materials and all modifications, enhancements and derivative works of such Materials:

- (i) all Materials made, created, developed, owned or acquired (whether by assignment, license or otherwise) by Customer, its employees or its subcontractors as of the Commencement Date;
- (ii) all Materials acquired (by assignment, license or otherwise) by Customer from Third Parties after the Commencement Date;
- (iii) all Materials developed by or on behalf of Customer after the Commencement Date; and
- (iv) subject to Clause 33.2 (Rights in Developed Materials), all Developed Materials, (collectively, “**Customer Materials**”).

33.1.2 In the event that Supplier or any Supplier Subcontractor is required by Customer to use or develop any Customer Materials or where it is necessary for Supplier or any Supplier Subcontractor to use or develop any Customer Materials for the provision of the Services, Customer agrees to grant to Supplier or Supplier Subcontractor, a limited, non-exclusive, royalty-free, revocable, non-transferable license to use, access, copy, maintain, modify, enhance and create derivative works, of Customer Materials for the sole purpose of providing the Services during the Term and upon such terms and restrictions of use as may be prescribed by Customer.

33.1.3 Supplier may not use Customer Materials for any purpose other than that set out in Clause 33.1.3 above, and may not assign, convey, give as security or sublicense any rights with respect to Customer Materials without the prior written consent of Customer.

33.1.4 Supplier shall cease use of and/or destroy or return (as Customer may specify) at Customer's request, all Customer Materials which are in the possession, custody and/or control of Supplier (or its authorised Supplier Subcontractors) upon expiration or termination of this Agreement or upon the request of Customer.

33.2 Rights in Developed Materials

33.2.1 Supplier agrees that Developed Materials shall be deemed works made pursuant to terms of employment or “*works made for hire*” for Customer and that:

- (i) all rights, title and interest (whether presently existing or created in the future, anywhere in the world, whether registered or not, and including Intellectual Property Rights) to such Developed Materials, and all modifications, enhancements and derivative works of such Developed Materials, shall vest solely in Customer; and
- (ii) all materials, documents or computer media containing, comprising or which are necessary for the use of the Developed Materials furnished to Customer pursuant to Clause 33.2.4 are the property of Customer.

Without in any way limiting the foregoing, Supplier hereby grants Customer and all Customer Group Members an irrevocable, perpetual, fully paid-up and nonexclusive license to use all Intellectual Property Rights in the Developed Materials that continue to vest in Supplier, including the right to use, copy, maintain, modify, enhance and create derivative works of all Developed Materials, and the right to sublicense Third Parties to do any of the foregoing as Customer may deem necessary for Customer and/or any Customer Group Member to use, access or receive the Services or for the business purposes of Customer and all Customer Group Members. For the avoidance of doubt, Supplier agrees that the Customer Group shall be fully entitled to, and Supplier shall not contest or restrict the right of the Customer Group to, the use of the Developed Materials notwithstanding the expiry or termination (for whatever reason) of this Agreement.

33.2.2 Supplier shall do all things necessary to ensure that all Intellectual Property Rights (whether presently existing or created in the future, anywhere in the world, whether registered or not) in the Developed Materials are fully vested in Customer in accordance with Clause 33.1.1 above. Supplier further warrants that it shall have the authority to transfer or assign such Intellectual Property Rights to or otherwise vest such Intellectual Property Rights in Customer when called upon by Customer to do so.

33.2.3 To the extent that any Intellectual Property Rights in the Developed Materials may remain or become vested in Supplier notwithstanding the provisions of Clause 33.2.1, Supplier shall, and hereby agrees to, irrevocably assign, transfer and convey absolutely and unconditionally to Customer any and all such Intellectual Property Rights, and to execute all necessary documents to effect, perfect and record such assignment forthwith on demand and at the sole expense of Customer.

33.2.4 As and when Developed Materials are created or developed, Supplier shall:

- (i) promptly disclose in writing to Customer each instance of such Developed Materials; and
- (ii) furnish to Customer, all relevant materials, documents and/or computer media containing, comprising or which are necessary for the use of such Developed Materials and in the case of Developed Materials which are Software, the source code, executables and object code of such Developed Materials.

33.2.5 With respect to each disclosure, Supplier shall indicate the features, concepts and/or materials that it believes to be new, different or copyrightable in the Developed Materials, and in the case where the Developed Materials are Software, Supplier shall promptly provide Customer, without additional charge, copies of machine-readable and human-readable source code and technical documentation for such Developed Materials.

33.3 Supplier Materials

- 33.3.1** Supplier will retain all Intellectual Property Rights in Materials which are independently developed by Supplier and/or its subcontractors for Supplier outside the scope of this Agreement or otherwise than for the purposes of this Agreement and used by Supplier in connection with the provision of Services (all such Materials to be referred to as “**Supplier Materials**”). Supplier’s use of Supplier Materials to provide the Services or in connection with the provision of the Services, is subject to Customer’s prior approval.
- 33.3.2** Supplier hereby grants Customer and all Customer Group Members an irrevocable, perpetual, fully paid-up and nonexclusive license to use, copy, maintain, modify, enhance and create derivative works of all Commercially Available Supplier Materials (provided however, that with regard to Specific Commercially Available Supplier Materials, Supplier hereby grants Customer and all Customer Group Members an irrevocable, fully paid-up and nonexclusive license for the Term on the same terms as those set out herein for all other Commercially Available Supplier Materials and an irrevocable and nonexclusive license on the same terms as those set out herein for all other Commercially Available Supplier Materials after the Term subject to, if Customer decides to use such materials in the exercise of its discretion, payment of monthly license fees (which shall be as set out in Schedule 19 (Specific Commercially Available Supplier Materials) or if not set out herein, Supplier shall ensure such fees charged to Customer are market competitive and no more than the prevailing fees imposed by Supplier to its other customers) after the expiry or termination of the Term), and the right to sublicense Third Parties to do any of the foregoing as Customer may deem necessary for Customer and/or any Customer Group Member to use, access or receive the Services or for the business purposes of Customer and all Customer Group Members. Supplier hereby grants Customer and all Customer Group Members for the Specified Period, an irrevocable, fully paid-up and nonexclusive license to use, copy, maintain, modify, enhance and create derivative works of all Non-Commercially Available Supplier Materials, and the right to sublicense Third Parties to do any of the foregoing as Customer may deem necessary for Customer and/or any Customer Group Member to use, access or receive the Services or for the business purposes of Customer and all Customer Group Members. For the purposes of this Clause 33.3.2, “**Specified Period**” shall mean the period commencing from the Commencement Date and ending on the expiry of 18 months from the end of the Termination/Expiration Assistance Period.
- 33.3.3** In connection with the grant set out in Clause 33.3.2, Supplier shall furnish to Customer, all relevant materials, documents or computer media containing, comprising or which are necessary for the use of Supplier Materials and in the case of Supplier Materials which are Software, the executables and object code of such Supplier Materials. Upon the expiration or upon any whole or partial termination of this Agreement, Supplier will provide Customer, without additional charge, copies of the complete and up to date versions of all object codes and executables and technical documentation for Supplier Materials that are Software. Customer shall cease use of and/or destroy or return (as Supplier may specify) at Supplier’s request, all Non-Commercially Available Supplier Materials which are in the possession, custody or control of Customer (or the Customer Group Member) upon expiration of the Specified Period.
- 33.3.4** The Parties will mutually agree on any applicable terms for Supplier’s support of Supplier Materials after the expiry of the Termination/Expiration Assistance Period. It is the intention of Supplier that such terms be not more restrictive than offered by Supplier to similar entities in similar circumstances.

33.4 Third Party Materials

33.4.1 Supplier's use of Third Party Materials to provide the Services is subject to Customer's prior approval.

33.4.2 Unless otherwise agreed between the Parties, prior to using any Third Party Materials to provide the Services, Supplier shall:

- (i) unless otherwise agreed by the Parties, obtain the written approval of Customer to the use of such Third Party Materials to provide the Services;
- (ii) obtain for Customer and its designees, without additional charge, an irrevocable, perpetual, fully paid-up, non-exclusive license to use, copy, maintain, modify, enhance and create derivative works of such Third Party Materials and to sublicense Third Parties to do any of the foregoing, in connection with the use or access of the Services by Customer, Customer Group Members and Authorised Users;
- (iii) obtain any and all consents, authorisations, rights or licenses required to provide the Services hereunder using any Third Party Materials and for Customer and the Authorised Users to access, use and have the full benefit of the Services; and
- (iv) verify that Customer and its designees, have the right to purchase ongoing maintenance and support for such Third Party Materials on commercially reasonable terms.

33.4.3 To the extent that Supplier is unable to obtain the licences in Clause 33.4.2(ii) and Clause 33.4.2(iii), Supplier shall not use such Third Party Materials in providing the Services without Customer's prior written approval.

33.4.4 Supplier will provide Customer all information and data relating to Customer's, any Customer Group Member's or any Authorised User's use of Third Party Materials which is required by Customer to ensure that it complies with the terms of the relevant licenses to use such Third Party Materials.

33.4.5 Supplier shall keep Customer informed of the ownership and extent of Supplier's rights to Third Party Materials introduced by Supplier to provide the Services during the Term, including complying with any additional requirements relating thereto as set out in the Policy and Procedures Manual.

33.5 Perpetual Licence: The grant of the perpetual rights and licenses under this Clause 33 shall survive the termination of this Agreement (whether in whole or in part and howsoever occasioned). Supplier warrants and undertakes that the grant of the perpetual rights and licences under this Clause 33 is absolute, conclusive and binding upon Supplier and Supplier shall not be entitled, under any circumstances or for any reason whatsoever, to revoke, withdraw or cancel the perpetual rights and licences granted under this Clause 33.

34. Customer Data

34.1 Subject to Clause 8.2.5, nothing in this Agreement is intended to give Supplier any Intellectual Property Rights in, or other rights in respect of, any Customer Data.

34.2 Supplier shall promptly return Customer Data to Customer (or delete, purge or destroy it so that it is unretrievable, if requested by Customer) in the electronic format, magnetic media, paper or other form in which it is maintained either:

34.2.1 upon Customer's request; or

34.2.2 in accordance with Customer's data retention and destruction requirements as notified to Supplier from time to time.

34.3 Customer may establish back up security for Customer Data (wherever stored or located) and keep back ups of Customer Data and data files in its possession, if it so chooses.

34.4 Nothing in this Clause 34 (Customer Data) is intended to limit Supplier's obligations contemplated by this Agreement, including in relation to security, Customer Information, and Confidential Information.

35. Residual knowledge

35.1 Nothing contained in this Agreement shall restrict either Party from the use of any general ideas, concepts, know-how or techniques which either Party, individually or jointly, develops or discloses under this Agreement; provided that such use does not infringe the Intellectual Property Rights of the other Party or any Third Party or result in a breach of the confidentiality or other obligations under this Agreement.

36. Safeguarding of Customer Information

36.1 As between the Parties, Customer Information shall be and remain the sole and exclusive property of Customer. Supplier warrants and undertakes that it:

36.1.1 shall not (a) subject the Customer Information or any part thereof to, and Supplier will not agree to grant in respect of the same, any pledges, liens, charges or other encumbrances whatsoever, (b) give any security over the Customer Information for the purpose of raising financing for any reason whatsoever, or (c) assert any other right against the Customer Information;

36.1.2 shall not license, publish, exploit or Deal with the Customer Information in any form (including in aggregated form); or

36.1.3 shall not carry out any data mining, data compilation or data extraction for the purposes of statistical, trade analysis or training of artificial intelligence models (and the development of derivative materials and works) on any aspect of the Customer Group's business processes or practices, based on or in connection with any Customer Information or data or information obtained through use of, or via access to, the Customer Systems and Third Party Systems.

36.2 No obligation to disclose

For the avoidance of doubt, Customer shall have full discretion in determining the scope, extent and type of the information, data, drawing, manual and/or any other material which it wishes to disclose to Supplier for or in connection with this Agreement and which is to comprise the Customer Information.

36.3 In addition to and without in any way limiting Supplier's obligations under Clause 8 (Security), Supplier shall take all reasonable precautions in dealing with the Customer Information and establish, implement and maintain security measures and procedures to protect such Customer Information from unauthorised access.

36.4 Customer shall have an unrestricted right to access, use, or to have Third Parties access or use on its behalf, all Operational Data in accordance with the security procedures (for Operational Data) as set out in the Policy and Procedures Manual.

36.5 Upon the expiry or termination of this Agreement (howsoever occasioned) or the request of Customer, Supplier shall within 30 days return to Customer or destroy (as Customer may direct)

at Supplier's own cost and expense, all materials containing Customer Information and copies thereof in Supplier's custody, possession and control in a form acceptable to Customer and shall certify to Customer that no copies thereof have been retained.

36.6 Supplier shall:

- 36.6.1** comply with all Customer security policies, standards, requirements and specifications, as updated by Customer in writing from time to time, with respect to safeguarding Customer Information;
- 36.6.2** provide appropriate Equipment and Software to implement security solutions in accordance with Customer standards and requirements referred to in Clause 36.6.1;
- 36.6.3** segregate all Customer Information from that of any other client of Supplier or its Affiliates;
- 36.6.4** provide Customer with, in accordance with the relevant security procedures set out in the Policy and Procedures Manual, unrestricted and full access to Customer Information in the possession, custody or control of Supplier, including assets and information pertinent to Customer's investigations, compliance reviews, and audits;
- 36.6.5** provide to Customer all passwords, codes, comments, keys, documentation and the locations of any records, files, information or other materials which contain, describe or relate to the Customer Information promptly upon the request of Customer, including Equipment and Software keys and such information as to format, encryption (if any) and any other specification or information necessary for Customer to retrieve, read, revise and/or maintain such records, files, information or materials; and
- 36.6.6** procure that its employees, agents, and subcontractors comply with the confidentiality restrictions under this Agreement.

36.7 Without limiting Supplier's obligations under Clause 8 (Security), Supplier shall:

- 36.7.1** establish and maintain safeguards against the:
 - (i) unauthorised access, use or processing;
 - (ii) destruction, corruption, interference, loss, modification, disclosure, alteration; or
 - (iii) other misuse,
 of Customer Information in the custody, possession or control of Supplier that are no less rigorous than the most rigorous practices of Customer and Supplier, for similar types of information, as of the Commencement Date; and
- 36.7.2** ensure that Customer Information provided to it in connection with this Agreement is stored or recorded accurately.

36.8 Supplier undertakes and warrants that its Personnel and each Supplier Subcontractor will not attempt to access or allow access to Customer Information that is not required for the performance of the Services by such Personnel or Supplier Subcontractor.

36.9 Supplier shall, as soon as it becomes aware of any breach or potential breach of security relating to Customer Information or any unauthorised disclosure, use or loss of Customer Information:

- 36.9.1** promptly notify Customer of the same;
- 36.9.2** promptly provide Customer with full details of, and investigate and assist Customer in investigating the same;

36.9.3 co-operate with Customer in any investigation or litigation against Third Parties deemed necessary by Customer to protect Customer's rights in the Customer Information; and

36.9.4 use its Best Endeavours to prevent a recurrence of the same.

36.10 Customer Personal Data: Supplier represents, warrants and undertakes that it shall (unless otherwise agreed in a relevant Statement of Work):

36.10.1 collect, disclose, use and process any Personal Data only for the purpose of providing the Services in accordance with this Agreement and Customer's instructions;

36.10.2 only store, process and/or use Personal Data in the Supplier Sites. Supplier shall not, and shall ensure that Supplier's Personnel and Supplier Subcontractors shall not, transfer any Personal Data out of any of the foregoing countries or across the relevant country or territory border unless Supplier reasonably considers such transfer appropriate or useful for Supplier's performance of the Services and only where transfer of Personal Data is to a Supplier Site. Supplier shall obtain Customer's written approval prior to the transfer of Personal Data to any other country or territory, and/or the storage, processing and/or use of Personal Data in any other country or territory, and Supplier shall comply with all conditions, requirements, restrictions and instructions of Customer relating thereto;

36.10.3 comply at a minimum with Customer's instructions and all applicable Data Protection Legislation;

36.10.4 ensure that:

- (i) only Supplier's Personnel who "*need to know*" will be given access to the Personal Data, and only to the extent necessary to perform Supplier's obligations under this Agreement;
- (ii) Supplier's Personnel and Supplier's Subcontractors are informed of the confidential nature of the Personal Data and hold and use all Personal Data in confidence; and
- (iii) all Supplier's Personnel will comply with, and are adequately and appropriately trained to comply with, Supplier's obligations under this Agreement;

36.10.5 not modify, amend, alter, delete, publish or disclose any Personal Data to any Third Party, nor allow any Third Party to process such Personal Data on Supplier's behalf unless Customer has given its prior written consent;

36.10.6 implement appropriate technical and organisational measures to protect all Personal Data stored, accessed, collected, used or processed by it against unauthorised, accidental or unlawful access, processing, erasure, loss, modification, copying, use, disclosure or damage, and the loss of any storage medium or device on which the Personal Data is stored, and shall upon Customer's request provide to Customer a written description of such technical and organisational methods employed by it;

36.10.7 not retain the Personal Data longer than is necessary for the provision of the Services;

36.10.8 not except as required by mandatory law publish, disclose or divulge any Personal Data to any Third Party unless directed to do so in writing by Customer;

36.10.9 in the event of a potential or actual breach by Supplier, its Subcontractor or any of the Supplier's Personnel, of Data Protection Legislation, or in the event that any action of Supplier, its Subcontractor or any of the Supplier's Personnel causes or could reasonably be regarded as causing a breach by Customer of Data Protection

Legislation, which in either event shall include any unauthorised access, collection, use, disclosure, copying, modification or disposal of the Personal Data or the loss of any storage medium or device on which Personal Data is stored in circumstances where the unauthorised access, collection, use, disclosure, copying, modification or disposal of the Personal Data is likely to occur (each such event a “**Data Protection Breach**”):

- (i) notify Customer without undue delay;
- (ii) promptly and at its own expense: (a) take immediate steps to endeavour to stop the Data Protection Breach, if the Data Protection Breach is ongoing, and investigate the Data Protection Breach; (b) take reasonable steps to mitigate the effects of the Data Protection Breach; and (c) perform any post-incident assessments as reasonably requested by Customer or, if none are requested, as reasonably determined by Supplier; and (d) co-operate with Customer to provide or assist to provide notice relating to the Data Protection Breach to individuals, regulators and/or Third Parties (including competent data protection authorities, if applicable); and
- (iii) comply with Customer’s then-current data protection reporting processes in accordance with Customer’s instructions at the relevant time;

36.10.10 immediately rectify, erase or complete any Personal Data on receiving instructions to this effect from Customer. Supplier undertakes in particular to rectify, erase or complete any Personal Data if it appears that such measures are required by the requirements of any applicable Laws and Legal Requirements, after being notified of the same by Customer;

36.10.11 ensure that all individuals whose information is contained in the Personal Data (“**Subject Individuals**”) have rights of access to, correction and portability of their Personal Data held and processed by Supplier in the same way as they would have had under applicable Data Protection Legislation. To the extent that Supplier receives a request, complaint or other Third Party communication from a Subject Individual, it will notify Customer of such request, complaint or other communication promptly and provide Customer with its full co-operation and assistance, including by:

- (i) providing Customer with full details of the request, complaint or other communication;
- (ii) complying with the Subject Individual’s access request within the relevant timescales set out in the applicable Data Protection Legislation and in accordance with Customer’s instructions;
- (iii) providing Customer with all Personal Data it holds in relation to the relevant Subject Individual within the timescales required by Customer; and
- (iv) providing Customer with any other information reasonably requested by Customer in connection thereto; and

36.10.12 on Customer’s reasonable request, execute and deliver such documents necessary for a Customer Group Member to comply with any applicable Data Protection Legislation in connection with its use and access of the Services and any Supplier Materials in accordance with this Agreement.

36.11 Information of customers/clients of Customer Group Members: Supplier shall use, collect or disclose information of customers/clients of Customer Group Members only in accordance with the Policies and Procedures Manual for the purpose of the rendering of Services under

this Agreement, including identifying and isolating such information of each Customer Group Member from such information of other Customer Group Members, and ensuring that such information of each Customer Group Member is not disclosed to other Customer Group Members, except in accordance with the Policies and Procedures Manual.

37. Confidentiality

- 37.1** Each Party's confidential information shall remain its property ("**Confidential Information**"). For the purposes of this Agreement, "*Confidential Information*" shall mean:
- 37.1.1** in the case of Customer, the Customer Information and the Customer Data;
 - 37.1.2** information that is marked with a restrictive legend of the disclosing party ("**Discloser**") or is identified by Discloser to the receiving Party ("**Recipient**") as confidential at the time of disclosure; or
 - 37.1.3** information that contains the Discloser's customer lists, customer information, account information, information regarding business planning and business operations, and administrative, financial, or marketing activities, provided:
 - (i) the Discloser treats such information as confidential; and
 - (ii) such information is reasonably considered confidential based upon the nature of the information.
- 37.2** Each Party undertakes to treat as confidential and not to divulge or communicate to any person, firm or company any Confidential Information of the other Party or use any Confidential Information of the other Party for any purpose other than, in the case of Supplier, to render the Services under this Agreement during the Term and in the case of Customer, to access, use and enjoy the Services.
- 37.3** Customer shall use and disclose the Confidential information of Supplier, and Supplier shall disclose the Confidential Information of Customer, only on a "*need-to-know*" and confidential basis:
- 37.3.1** to its directors, agents, regulators, professional advisers, employees, contractors and subcontractors;
 - 37.3.2** to its Affiliates and their directors, agents, regulators, professional advisers, employees, contractors, and subcontractors;
 - 37.3.3** to Third Parties whom Customer engages, or is considering engaging, as contemplated by this Agreement, including under Paragraph 4.3.3 of Schedule 22 (Change Control) and 25.1 (No exclusivity); or
 - 37.3.4** to any other person not listed in Clauses 37.3.1 to 37.3.3 above with the prior written consent of the other Party,
 - 37.3.5** for the exercise of rights, receipt of the Services (in the case of Customer) or the performance of obligations under this Agreement, provided that in the case of Supplier, it shall ensure that each of its Personnel and Supplier Subcontractors having access to the Customer Information are made aware of and subject to the obligations relating to confidentiality set out in this Clause 37 (Confidentiality) by the incorporation of corresponding provisions of confidentiality in their employment or other applicable contract(s) or by entering into and maintaining confidentiality agreements with each relevant Personnel or Supplier Subcontractor, which imposes on each relevant Personnel or Supplier Subcontractor, among other things, the obligations to treat the Customer Information as confidential. Supplier expressly agrees that it shall be liable for any of its Personnel's or Supplier Subcontractor's breach or non-performance of this Clause 36

(Confidentiality) (including any unauthorised use and unauthorised disclosure of the Customer Information) even after any of such Parties or entities ceases to be a Personnel of Supplier or Supplier-Subcontractor.

- 37.4** The Parties acknowledge that money damages may not be a sufficient remedy for any breach or non-performance of the terms of this Clause 36 (Confidentiality) and that in addition to any other remedy available at law or in equity, either Party shall be entitled to seek injunctive and other legal or equitable relief against the other for its breach or non-performance or threatened breach or non-performance of the provisions of this Clause 36 (Confidentiality).
- 37.5** If Supplier is uncertain as to whether any information is Customer Information, it shall treat the information as Customer Information and as not in the public domain unless and until the Customer agrees in writing that the information is in the public domain.
- 37.6** The obligations under this Clause 36 (Confidentiality) shall survive for a period of seven years after the expiration or termination of this Agreement, save that for the following Customer Information, such obligations shall survive the expiration or termination of this Agreement:
- 37.6.1** all information relating to Customer's or any Customer Group Member's clients and customers, including without any limitation, all client and customer lists and data, all financial and account information and data of and/or belonging to such clients and customers; and
 - 37.6.2** all information relating to any Personnel of Customer or any Customer Group Member, including without any limitation, all Personal Data of such Personnel and all information and data of and/or belonging to such Personnel.
- 37.7** The obligations of confidentiality in this Clause 36 (Confidentiality) will not apply to information that:
- 37.7.1** the Recipient can prove (by documentary evidence) was developed independently by the Recipient prior to the Commencement Date;
 - 37.7.2** was known to the Recipient prior to receipt from the Discloser provided such prior knowledge can be proved by documentary evidence and provided the Recipient has no obligation not to disclose such information;
 - 37.7.3** is or becomes publicly available, otherwise than as a result of the Recipient's breach of this Agreement or other legal obligations, or the wilfulness or misconduct of the Recipient; or
 - 37.7.4** is released for disclosure with the prior written consent of the owner of such information.
- 37.8** Without in any way limiting Customer's rights and remedies at law, equity or under this Agreement, without prejudice to Clause 40 (Liability) and in addition to all other obligations stated in this Agreement, Supplier agrees that if Supplier fails to perform its obligations under this Agreement to create, maintain, and restore back-up copies of Customer Data, Supplier must (at its own cost and expense):
- 37.8.1** restore any such data to all applicable or required back-up levels where source materials for such data exists; and
 - 37.8.2** perform reconstruction of any damaged or lost data, or reloading of data from alternative sources.

Customer will (at Supplier's cost and expense) provide reasonable assistance to Supplier and provide Supplier with any available source materials in connection with such restoration.

PART 8 – UNDERTAKINGS & LIABILITY

38. Warranties

38.1 Supplier warrants that:

- 38.1.1 Incorporation:** it is a company duly organised and validly existing under the laws of its formation and has all corporate power and all material governmental licences, authorisations, permits, consents and approvals required to carry on its business as now conducted;
- 38.1.2 Goodwill:** in providing the Services, it shall not do anything that would bring Customer or any Customer Group Member into disrepute or that would otherwise reduce or diminish the goodwill, reputation, image or prestige of Customer or any Customer Group Member or of any trade mark, service mark or trade name of Customer or any Customer Group Member;
- 38.1.3 Work standards:** it shall provide the Services with promptness, diligence and in a workmanlike manner at a level of performance which will meet or exceed the Service Levels and at all times be consistent with best industry and professional standards and practices used in well-managed operations involving the performance of services similar to the Services and shall use adequate numbers of qualified individuals with suitable training, education, experience and skill to perform the Services;
- 38.1.4 Maintenance:** it shall maintain the relevant Supplier Systems, Equipment and Software used in connection with the provision of the Services in accordance with Clause 11.2 (Maintenance) or the applicable Statement(s) of Work, as the case may be;
- 38.1.5 Non-infringement:** it shall perform its responsibilities under this Agreement in a manner that does not infringe and will not cause Customer or any Customer Group Member to infringe any patent, copyright, trademark, trade secret or other proprietary rights of any Third Party;
- 38.1.6 Materials:** it is the owner of, or is authorised to use or employ, all Supplier Materials, Third Party Materials and Resources used and to be used in connection with the Services;
- 38.1.7 Compliance:** it shall comply with all Laws and Legal Requirements applicable to or necessary for the performance of its obligations under this Agreement, including any Data Protection Legislation, anti-corruption (such as the Prevention of Corruption Act 1960 of Singapore or other similar legislation in any jurisdiction), and/or applicable outsourcing laws, regulations or guidelines issued by any government, regulatory body or competent authority in all applicable jurisdictions;
- 38.1.8 Absence of litigation:** no claim, litigation, proceeding, arbitration, investigation or material controversy is ongoing, pending, has been threatened or is contemplated which would have a material adverse effect on Supplier's ability to enter into this Agreement or provide the Services;
- 38.1.9 Authorisation**
 - (i) it has all requisite corporate power and authority to enter into this Agreement, deliver the Services and Deliverables specified by this Agreement and fulfil all of its other obligations required under this Agreement;
 - (ii) its execution, delivery and performance of this Agreement does not violate any judgment, order, law or decree and would not constitute a material breach or

non-performance or default under any of its existing contracts or any provision of its constitution;

- (iii) the execution, delivery and performance of this Agreement has been properly and duly authorised by Supplier and is enforceable against Supplier in accordance with its terms, and requires no action by or in respect of, or filing with, any governmental body, agency or official; and
- (iv) it has authority to grant the rights and licences granted under this Agreement, and there are no existing restrictions or constraints on its right and authority to procure, supply, Customise, install and/or assemble, as the case may be, the Services and Deliverables which Supplier is to deliver under this Agreement;

38.1.10 Inducements: it has not violated any applicable Laws and Legal Requirements, or any Customer policies of which Supplier has been given notice, regarding the offering of unlawful inducements in connection with this Agreement;

38.1.11 Conflict of interests: no conflict of interests exists or is likely to arise in the performance of its obligations under this Agreement, and it shall not, during the course of this Agreement, engage in any activity likely to compromise its ability to perform its obligations under this Agreement fairly and independently. Supplier shall immediately disclose to Customer any activity which constitutes or may constitute a conflict of interests;

38.1.12 Date compliance: the Services and Supplier Systems used to provide the Services and Deliverables are and will be free from date compliance problems and the performance or the functionality of the Services or obligations to be performed under this Agreement shall not be affected, impeded or interrupted by the entry or processing of any date value or date-dependant function, whether such date is past, current or future; and

38.1.13 Professionalism: it shall carry out its obligations to Customer and perform all Services under this Agreement in a proper and professional manner, and to do all things which are reasonably necessary to achieve the goals set out by this Agreement or reasonably inferred from the terms of this Agreement which are required for proper provision of the Services in accordance with this Agreement.

38.1.14 Tax:

- (i) it is not overdue in the filing of any Tax returns and it is not overdue in the payment of any amount in respect of Tax;
- (ii) no claims or investigations are being, or are reasonably likely to be, made or conducted against it with respect to Taxes other than in respect of any Taxes being disputed in good faith and which do not exceed US\$500,000;
- (iii) it is resident for Tax purposes only in the United Kingdom; and
- (iv) it has complied with all Tax laws and regulations applicable to it and its business.

38.2 Customer warrants that:

38.2.1 it has all requisite corporate power and authority to enter into this Agreement; and

38.2.2 the execution, delivery and performance of this Agreement has been properly and duly authorised by Customer and is enforceable against Customer in accordance with its terms.

38.3 No exclusion of implied warranties: Subject to applicable mandatory laws, the Parties agree

not to exclude any implied warranties, terms and conditions but to the extent that any implied warranties, terms and conditions conflict with the express terms of this Agreement, the express terms of this Agreement shall prevail.

- 38.4 No other obligations:** Supplier hereby acknowledges and agrees that Customer's only obligations to do any matter or thing are those stated expressly in this Agreement.

39. Indemnities

39.1 Indemnities by Supplier

Without prejudice to Clause 40 (Liability) and any other right of Customer and/or Customer Group Members under any other provision of this Agreement, Supplier shall indemnify, defend and hold harmless Customer, Customer Group Members and Authorised Users, and their officers, directors, employees, agents, successors, and assigns (each a "**Customer Indemnitee**"; collectively, "**Customer Indemnitees**") against any and all Losses incurred or to be incurred by Customer Indemnitees (including legal fees and expenses on a solicitor-client basis), and shall pay any and all amounts adjudged or awarded to Third Parties for any and all claims (or settling any claims at Supplier's expense), arising out of or relating to or in connection with any one or more of the following:

- 39.1.1** Supplier's breach of any of the warranties set forth in Clauses 38.1.1, 38.1.5, 38.1.6, 38.1.7, 38.1.9, and 38.1.14;
- 39.1.2** Supplier's interview, hiring and/or Personnel transfer processes;
- 39.1.3** any occurrence Supplier is required to insure against under this Agreement, where such occurrence are not covered or is otherwise inadequately covered in connection with any failure on the part of Supplier to comply with the provisions of Clause 41.1 (Insurance);
- 39.1.4** any action, claim or demand brought or threatened against any Customer Indemnitee that alleges or is based on a claim that any Resources, Supplier Materials and/or the provision of Services by or on behalf of Supplier or the use, access or receipt of Services by Customer Indemnitees infringes any Intellectual Property Rights and/or any other rights of whatever nature of any Third Party (except where the infringement resulted substantially from the misuse or modification of such systems or Resources by any of the Customer Indemnitees without the consent or approval of Supplier);
- 39.1.5** any claim against Customer for taxes, assessments or penalties which are the responsibility of Supplier;
- 39.1.6** Supplier's failure to obtain, maintain or comply with applicable Laws and Legal Requirements;
- 39.1.7** any claim between Supplier and any of its partners or subcontractors;
- 39.1.8** any claim arising out of death or injury to Supplier's Personnel arising out of, in connection with or resulting from the Services or the performance of the obligations under this Agreement; and
- 39.1.9** any Third Party claim that does not arise out of a relationship with Customer but arises from the acts or omissions of Supplier.

39.2 Infringement

- 39.2.1** If any item used by Supplier to provide the Services or provided by Supplier for the use of Customer or any Customer Group Member becomes, or where Supplier is aware

that such use has become or is likely to become (in Supplier's reasonable opinion), the subject of an Intellectual Property Rights infringement or misappropriation claim or proceeding, then Supplier shall promptly notify Customer (if it does not already know) of such claim or proceeding and where it is mutually agreed by both Parties that such Third Party is likely to prevail in its claim, Supplier shall at its own cost and expense, take the following actions as Customer reasonably requires (after consultation with Supplier) in the following order of priority (without prejudice to any other remedy available to Customer at law or under this Agreement):

- (i) secure the right for Supplier and/or the Customer Group Member (as the case may be) to continue using the item in the way contemplated by this Agreement;
- (ii) replace or modify the item to make it non-infringing, provided that any such replacement or modification shall not degrade the performance or quality of the Services in any material way; or
- (iii) if neither Clause 39.2.1(i) nor 39.2.1(ii) is available to Supplier, remove the item from the Services and equitably adjust Supplier's charges to adequately reflect such removal.

39.3 Notwithstanding any other provision of this Agreement, except with the prior written consent of Customer, Supplier shall not: (i) settle or compromise any cause of action, suit or other proceeding if the settlement or compromise obliges any Customer Indemnitee to make any payment or bear any liability or be subject to any injunction or other interim measures by reason of such settlement or compromise; (ii) assume any obligation or grant any rights or licences on behalf of any Customer Indemnitee; or (iii) make any statement at any time admitting liability for or on behalf of any Customer Indemnitee.

40. Liability

40.1 General

40.1.1 Subject to the liability limitations set out in Clause 40.2 (Liability Limitations), each Party ("**Breaching Party**") shall be liable to the other Party ("**Non-Breaching Party**") for any direct damages incurred or suffered by the Non-Breaching Party as a result of the Breaching Party's failure to perform its obligations under this Agreement or arising out of the tortious acts and/or omissions (including negligence), breach or non-performance of statutory duty, or wilful default of the Breaching Party and/or its agents, employees or subcontractors or of any other person for whose acts or omissions the Breaching Party is vicariously liable.

40.1.2 Direct damages include:

- (i) costs of reconstructing or reloading data;
- (ii) costs of implementing and performing work-arounds regarding a service failure;
- (iii) costs of replacing lost or stolen goods or materials or replacing or repairing damaged goods or materials;
- (iv) costs to procure replacement services from an alternate source as a result of a failure to perform, to the extent in excess of the applicable service charges;
- (v) overtime, straight time and related expenses and allocated overhead (including travel, lodging, wages) and other similar costs as a result of a failure to perform; and
- (vi) payments or penalties or fines imposed by a governmental or regulatory body

as a result of a failure to comply.

40.2 Liability limitations

40.2.1 Neither Party shall be liable to the other for any indirect, incidental, consequential or exemplary damages, including loss of profits.

40.2.2 For the avoidance of doubt, the Supplier shall not be liable to the Customer to the extent that it had followed the Supplier's stipulated processes and/or procedures.

40.2.3 Limit

(i) Subject to Clause 40.3 (Unlimited Liability), the aggregate liability of Supplier to Customer, and the aggregate liability of Customer to Supplier, under this Agreement for direct, actual losses or damages (whether based on an action or event or series of connected actions or events arising from the same factual act or omission, in contract, tort (including negligence) or otherwise) under, arising out of or relating to any one or more of the following:

- (a) losses or damages attributable to claims that are the subject of indemnification under Clauses 39.1.1 , 39.1.2 , 39.1.3 , 39.1.5 , 39.1.6 39.1.7 and 39.1.8 (Indemnities by Supplier);
- (b) damages to such Party occasioned by violation of any Laws and Legal Requirements by the other Party (and in the case of Supplier, violations of Laws and Legal Requirements that are applicable to Supplier as a services provider to the Customer Group Members or that are necessary for the performance of its obligations under this Agreement); and
- (c) losses or damages occasioned by the breach or non-performance of such Party's confidentiality obligations under this Agreement

shall not exceed, in each Contract Year, in aggregate, the Enlarged Limit; and

- (d) in the case of all other breach or non-performance of such Party's obligations under this Agreement, shall not exceed, in each Contract Year, in aggregate, the Limit.

(ii) "**Enlarged Limit**", as used in this Clause 40.2 (Liability Limitations), means the amount equivalent to USD 26,000,000; and "**Limit**", means the amount equivalent to USD 13,000,000.

40.3 Unlimited liability

40.3.1 The limitation on liability set out in Clause 40.2.3 (Limit) and the exclusions of liability set out in Clause 40.2.1 above shall not apply with respect to the following:

- (i) losses or damages occasioned by fraud or wilful misconduct of a Party to the extent the right to such losses or damages does not arise solely out of such Party's rights under this Agreement. For the purposes of this Clause 40.3.1(i), "*wilful misconduct*" means to act or omit to act (a) with an appreciation that to do so would be to act wrongfully or to wrongfully omit to act, and yet persisting in so acting or omitting to act regardless of the consequences, or (b) with reckless indifference as to what the results may be;
- (ii) losses or damages attributable to claims that are the subject of indemnification under Clauses 39.1.4, 39.1.7 and 39.1.9 (Indemnities by Supplier); and
- (iii) losses or damages attributable to death, personal injury or property damages.

41. Insurance and risk of loss

41.1 Insurance

41.1.1 Supplier shall effect and maintain the following insurances:

- (i) Commercial General Liability Insurance for a limit of not less than USD 15,000,000 per occurrence and not less than USD 15,000,000 in aggregate annually for:
 - (a) personal injury or the death of any person; and
 - (b) loss of, or damage to, or loss of use of, any property (including property of any Customer Group Member),
 arising out of or in connection with the performance of the Services or this Agreement;
- (ii) Employer's Liability Insurance with a minimum limit of USD 10,000,000 per occurrence and in the annual aggregate for death or injury to Supplier's Personnel arising out of, in connection with or resulting from the Services or the performance of the obligations under this Agreement;
- (iii) Professional Indemnity/Errors or Omissions Insurance for an amount of not less than USD 15,000,000 with respect of any one claim and not less than USD 15,000,000 in aggregate annually, for sums Supplier becomes legally liable to pay as damages as a result of its performance or failure to perform professional services;
- (iv) All Risks Property Insurance covering all risks of loss or damage to Supplier's own assets (real and tangible) (if any) and those assets owned or leased by any Customer Group Member under Supplier's care, custody or control on a repair or replacement cost basis. Such insurance shall include cover for transit risks. In respect of those assets owned or leased by any Customer Group Member under Supplier's care, custody or control, Customer shall be included as a "Loss Payee", subject to agreement by the relevant insurance company and the Supplier shall use Best Endeavours to procure such agreement.
- (v) Crime Insurance, covering employee dishonesty and computer fraud for loss arising out of or in connection with any fraudulent or dishonest acts committed by the Personnel of Supplier, acting alone or in collusion with others for a limit of not less than USD 10,000,000 per occurrence and not less than USD 10,000,000 in aggregate annually.

41.2 Insurance conditions

- 41.2.1** All the insurances set out under Clause 41.1 (Insurance) shall be primary without any contribution from the insurance policies maintained by Customer. Further, the insurances required under Clause 41.1.1(i) shall include a waiver of subrogation clause in favour of Customer. In the case of the insurances required under Clause 41.1.1(i) and Clause 41.1.1(ii), Customer shall be included as additional insured together with a cross liability clause.
- 41.2.2** Supplier shall effect all the insurances required under Clause 41.1 (Insurance) prior to the Commencement Date and shall maintain these insurances for the entire duration of this Agreement. In the case of Clause 41.1.1(iii), Supplier shall maintain the insurance for the entire duration of the Term and for not less than six years after the Term.

- 41.3** Supplier shall provide (1) certificates of the above insurance policies required to be effected under Clause 41.1 (Insurance) to Customer together with basic details of insurance such as types of insurance, insurance period, insurance limits, list of insured details, certificate holder's name, endorsement of additional insured and waiver of subrogation; and (2) confirmation from the Supplier's insurers or broker that all premiums for the above insurance policies have been paid, prior to commencing the services (or within such time as may be agreed by the Parties) and subsequently within thirty working days upon request by Customer. Further, Supplier shall give not less than 30 calendar days written notice to Customer prior to any material modification, cancellation or non-renewal of the insurance policies.
- 41.3.1** If Supplier shall fail to effect and keep in force the insurances required under Clause 41.1 (Insurance), by giving 30 business days' notice to Supplier, Customer may effect and keep in force any such insurance and pay such premiums as may be necessary for that purpose and from time to time deduct the amount so paid (plus interest) by Customer as aforesaid from any monies due or which may become due from Customer to Supplier or recover the same as debt due from Supplier.
- 41.3.2** The Service Delivery Head shall notify Customer in writing of any claim or any event which is likely to give rise to a claim in excess of USD 150,000 arising under or as a result of this Agreement against the insurances effected by Supplier promptly after the Service Delivery Head becomes aware of such claim or event and shall provide such further information to Customer in relation to the claim as Customer may reasonably require.
- 41.4** Without prejudice to Clauses 41.1 to 41.3 above, the Supplier warrants that all insurance policies procured or maintained by it pursuant to Clause 41.1 (Insurance) shall have coverage, limits, and terms as would be customary and adequate for a first-class service provider in the Supplier's industry. The Supplier further warrants that there are no unusual or onerous exclusions in the said insurance policies that would limit the coverage ordinarily provided to a first-class service provider in the Supplier's industry and that the insurance policies are subject only to standard and commercially reasonable exclusions.
- 41.5** **Right to require information:** In the event of a breach by the Supplier of its obligations under this Agreement, and subject to redaction where appropriate to protect Supplier's business interests unrelated to Supplier's obligations under the Agreement, the Customer shall have the right to request and obtain from the Supplier all insurance policies required to be effected under Clauses 41.1 and 41.4, together with certificates of insurance, and full details of coverage. Upon receipt of a written notice from the Customer requesting such insurance policies, certificates of insurance, and full details of coverage, the Supplier shall provide the requested information and/or documentation within 30 days of the Customer's notice (or within such period as may be agreed by the Parties), such information and/or documentation to include (but not limited to):
- 41.5.1** Copies of all insurance policies procured or maintained pursuant to Clause 41.1 (Insurance) or otherwise related to the subject matter of this Agreement, including any endorsements or riders to the said policies; and
- 41.5.2** Certificates of insurance evidencing the amounts of cover and term of the policies.
- 41.6** **Additional or top-up insurance**
- Supplier shall if requested by Customer, complete and provide relevant information for the completion of any proposal for any policy of insurance which may be effected by Customer.
- 41.7** **Variation of insurance policy**

Subject to the agreement of the insurers to any variation to the insurance policy, Customer shall be entitled to request, and Supplier shall use its Best Endeavours to procure, a variation in the insured amount at any time and from time to time during the Term upon the occurrence of any of the following events:

41.7.1 any material increase in the incidence of any of the occurrences or events described in Clause 41.1.1(i) to Clause 41.1.1(v); or

41.7.2 any New Services that are mutually agreed to be incorporated into this Agreement, provided that where Supplier is unable to procure such variation aforesaid, Supplier shall procure new insurers to provide the insurance in such varied amount and in accordance with this Clause 41 (Insurance and risk of loss).

41.8 Risk of loss

Unless otherwise provided in this Agreement, each Party shall be responsible for the risk of loss of, and damage to, any Equipment, Software, Sites and/or other Materials in its possession or under its control.

PART 9 – TERMINATION

42. Termination

42.1 Termination for cause by Customer

42.1.1 Customer may immediately terminate this Agreement, in whole or in part, by giving written notice to Supplier, with an explanation of the breach if any of the following events occurs in relation to Supplier:

- (i) Supplier commits a material breach of any of its duties or obligations under this Agreement and fails to cure such breach or non-performance within 30 days after receiving notice of the same, where such breach or non-performance is capable of being so remedied;
- (ii) Supplier commits a material breach of any duty or obligation under this Agreement which is not capable of being cured within 30 days;
- (iii) Supplier commits numerous or persistent breaches of, or persists in not performing its duties or obligations under this Agreement which in the aggregate are material;
- (iv) Supplier incurs Service Level Credits in excess of the At Risk Amount twice in any rolling 12 month period;
- (v) an Insolvency Event;
- (vi) a failure of Supplier contemplated under Clause 5.3;
- (vii) a failure to finalise and agree on the relevant Statement of Works contemplated under Clause 6.3;
- (viii) a failure to agree on how to address the impact of any new withholding tax laws on the payments due under this Agreement and either Party has not agreed to bear the new or increased withholding tax (as the case may be) as contemplated under Clause 15.9.5(ii);
- (ix) a failure of Supplier to recommence the provision of the Services as contemplated under Clause 7.6.9(i); or

(x) a failure of Supplier contemplated under Clause 30.1.2;

(each of the above events to be referred to as an “**Event of Default**”).

42.1.2 For the purposes of Clauses 42.1.1(i) and 42.1.1(ii), “*material breach*” shall be deemed to include:

- (i) a breach or non-performance of a Party’s obligations under this Agreement which has a material adverse effect on the profit, revenue, services or business operations of any Customer Group Member; or
- (ii) a series of breaches or non-performances of a Party’s obligations under this Agreement, which taken together have a material adverse effect on the profit, revenue, services or operations of any Customer Group Member; or
- (iii) a breach or non-performance of a Party’s obligations in respect of Clauses 5.3, 8(Security), 34 (Customer Data), 36 (Safeguarding of Customer Information) or 37 (Confidentiality), provided that with respect to a breach or non-performance of a Party’s obligations in Clauses 8.1.5, 8.1.10, 8.2.4 (Data Recovery), 34.2, 36.6, 37.5 or 37.8, such breach or non-performance would be deemed a “*material breach*” where such breach or non-performance by a Party is not minor or inconsequential.

42.1.3 If an Insolvency Event occurs in respect of any party or entity having an interest (whether directly or indirectly) of at least 20% of the issued share capital of Supplier or at least 20% control of the board of directors of Supplier, an Insolvency Event shall be deemed to have occurred in respect of Supplier.

42.1.4 In the event of termination of this Agreement in whole or in part under Clause 42.1.1, Supplier acknowledges and agrees that Customer has no liability whatsoever to Supplier, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for Fees for Services properly delivered up to the effective date of Termination (if any), the unpaid Earned One-Time Charges and the Termination Assistance Fee (if applicable).

42.1.5 Supplier’s failure to perform any of its obligations under this Agreement shall be excused if and only to the extent such failure results directly from Customer’s failure to perform its responsibilities under this Agreement and: (i) Supplier provides Customer with reasonable notice of such non-performance; and (ii) Supplier uses commercially reasonable efforts to perform notwithstanding Customer’s failure to perform, but only for as long as such failure by Customer continues and Supplier continues using commercially reasonable efforts to recommence performance. Customer will reimburse Supplier for any additional Out-of-Pocket Expenses which Supplier reasonably incurs in making commercially reasonable efforts to perform this Agreement despite Customer’s failure to perform its responsibilities under this Agreement.

42.2 Termination for cause by Supplier

42.2.1 Supplier may terminate this Agreement by giving Customer 30 days’ prior written notice if and only if Customer breaches in a material respect its duty under this Agreement to pay undisputed charges, and fails to cure such breach within 30 days after receiving written notice of the same from Supplier to do so.

42.2.2 Subject to Clause 43.2.1, Supplier does not have, and expressly waives any rights it may otherwise have to terminate this Agreement and Supplier expressly acknowledges that no failure by Customer to perform any of its responsibilities set forth in this Agreement shall entitle Supplier to terminate this Agreement or be deemed to be

grounds for termination by Supplier.

42.2.3 In the event of termination of this Agreement under Clause 42.2.1, Supplier acknowledges and agrees that Customer has no liability whatsoever to Supplier, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for:

- (i) the Termination Fee;
- (ii) the Termination Assistance Fee (if applicable), which shall be paid in advance;
- (iii) the unpaid Earned One-Time Charges (which shall become due and payable on the effective date of such termination); and
- (iv) the Unearned Costs as at the effective date of termination.

42.3 Termination for convenience

42.3.1 Customer may at any time terminate this Agreement for convenience, in whole or in part, by giving Supplier not less than six (6) months' written notice.

42.3.2 In the event of termination of this Agreement in part under Clause 42.3.1, Clause 42.8 (Termination in part) shall apply. In the event of termination of this Agreement in whole under Clause 42.3.1, Supplier acknowledges and agrees that Customer has no liability whatsoever to Supplier, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for:

- (i) the Termination Fee;
- (ii) the Termination Assistance Fee (if applicable);
- (iii) the unpaid Earned One-Time Charges (which shall become due and payable on the effective date of such termination); and
- (iv) the Unearned Costs as at the effective date of termination.

42.4 Termination for Change of Control of Supplier or Acquisition of Competitor by Customer

42.4.1 In the event of a Change of Control of Supplier or the Supplier Parent, Customer may terminate, forthwith by giving written notice to Supplier, the whole or any part of this Agreement in its sole discretion if Customer deems the new ownership (of either Supplier or Supplier Parent) as competition or where Customer reasonably believes that any association with the new ownership is likely to be materially damaging to the goodwill of Customer or is in any way materially disparaging of, or will be likely to have a materially adverse or undesirable effect on, the reputation of any Customer Group Member.

42.4.2 Supplier shall promptly notify Customer of any Change of Control of the nature contemplated by Clause 42.4.1.

42.4.3 In the event of termination of this Agreement in whole or in part under Clause 42.4.1, Supplier acknowledges and agrees that Customer has no liability whatsoever to Supplier, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for the unpaid Earned One-Time Charges and the Termination Assistance Fee (if applicable).

42.4.4 In the event the Customer acquires a competitor of the Supplier and continued provision of the Services will have a material adverse effect to the Supplier, the Supplier may terminate, by giving 90 days' written notice to Customer, the whole of this Agreement in its sole discretion.

42.4.5 Supplier shall promptly notify Customer of any event in the nature contemplated by Clause 42.4.4.

42.4.6 In the event of termination of this Agreement under Clause 42.4.4, Supplier acknowledges and agrees that Customer has no liability whatsoever to Supplier, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for:

- (i) the Termination Assistance Fee (if applicable);
- (ii) the unpaid Earned One-Time Charges (which shall become due and payable on the effective date of such termination); and
- (iii) the Unearned Costs as at the effective date of termination.

42.5 Extension of Termination Effective Date

Customer may by written notice to Supplier extend the effective date of termination one or more times as it elects, at its sole discretion, provided that the total of all such extensions shall not exceed 180 days following the original effective date of termination. The provisions of this Clause 42.5 (Extension of Termination Effective Date) applies regardless of the reason for the termination or the Party that terminated this Agreement.

42.6 Repudiation

42.6.1 If:

- (i) Customer purports to terminate the whole or any part of this Agreement; and
 - (ii) a court determines that such purported termination was wrongful,
- then the total liability of Customer shall be limited to:
- (a) the Termination Fee;
 - (b) the Termination Assistance Fee (if applicable);
 - (c) the unpaid Earned One-Time Charges (which shall become due and payable on the effective date of such termination); and
 - (d) the Unearned Costs as at the effective date of termination.

42.7 Termination of Collateral Agreements

42.7.1 The following agreement(s) shall automatically terminate upon termination of this Agreement:

- (i) all Implementation Agreements; and
- (ii) Collaboration Agreement

42.8 Termination in part

42.8.1 Only Customer may terminate this Agreement in part.

42.8.2 For the purposes of this Agreement, termination in part means termination of this Agreement by the removal from its scope any Statements of Work, Towers, Services, or any part or parts thereof, or the removal from the application of this Agreement any of the Station(s) or country(s) within the Territory or the termination of any Implementation Agreement.

42.8.3 If Customer exercises a right to terminate in part, Customer has the sole discretion as to which Services, or part or parts of the Services, Station(s) or country(s) within the

Territory or Statements of Work or Implementation Agreement, shall be removed from the scope or application of this Agreement.

42.8.4 Partial termination for convenience:

- (i) Where Customer's election to terminate in part under Clause 42.3 would result in the total number of FTEs deployed for the Operational Services under the Statements of Work and Implementation Agreements being reduced by 30% or more within a Contract Year (excluding any such reduction resulting from any productivity improvements or efforts to meet the Productivity Guarantees):
 - (a) Customer shall give Supplier not less than five (5) months' written notice of such termination; and
 - (b) Supplier acknowledges and agrees that, upon such partial termination, Customer has no liability whatsoever to Supplier in respect of the terminated Services, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for:
 - (I) the Termination Fee;
 - (II) the Termination Assistance Fee (if applicable);
 - (III) the unpaid Earned One-Time Charges (which shall become due and payable on the effective date of such termination); and
 - (IV) the Unearned Costs as at the effective date of termination,
 in respect of, and pro-rated to the extent of, the terminated Services.
- (ii) Where Customer's election to terminate in part under Clause 42.3 would result in the total number of FTEs deployed for the Services being reduced by less than 30% within a Contract Year (excluding any such reduction resulting any productivity improvements or efforts to meet the Productivity Guarantees):
 - (a) Customer shall give Supplier not less than two (2) months' written notice of such termination; and
 - (b) Supplier acknowledges and agrees that, upon such partial termination, Customer has no liability whatsoever to Supplier in respect of the terminated Services, and shall not be required to pay any charges, fees, consideration or other payment for any Services under this Agreement, save for:
 - (I) the Termination Assistance Fee (if applicable); and
 - (II) the unpaid Earned One-Time Charges,
 in respect of, and pro-rated to the extent of, the terminated Services.

42.8.5 If Customer elects to terminate in part, for whatever reason, Customer (acting reasonably) shall propose:

- (i) any appropriate variations to this Agreement, including to the Services, Service Levels, Fees, Resources; and
- (ii) how the obligations in Clause 43 (Termination/Expiration Assistance) shall be implemented in respect of such termination in part.

42.8.6 If Supplier (acting reasonably) does not agree to the variations proposed by Customer

under Clause 42.8.4, the Parties agree to refer such failure to agree to Clause 53 (Informal Dispute Resolution).

42.8.7 Without limitation to any other rights Customer may have, if at any time Customer considers that any aspect of the partial termination is not proceeding to its satisfaction, it may by notice to Supplier, convert the partial termination to a full termination, and if such full termination is for convenience (but not otherwise) then Clause 42.3 (Termination for Convenience) shall apply.

42.9 No limitation: The rights of termination in this Clause 42 (Termination) do not limit Customer's right to terminate under any other clause of this Agreement.

43. Termination/Expiration Assistance

43.1.1 Supplier acknowledges that:

- (i) in certain circumstances described in this Agreement, Customer may cease acquiring certain Services from Supplier;
- (ii) in these circumstances it is critical to the Customer Group's business that there be an orderly and staged transition of the relevant Services, without interruption or lessening of quality, from Supplier to either, both or all of Customer, and one or more Third Parties nominated by Customer; and
- (iii) in order to achieve this orderly transition, Customer, and/or its nominee(s), (collectively, "**Successor**") shall require:
 - (a) some or all of the Resources then used by Supplier in, or which are otherwise necessary for, the performance of the relevant Services, whether or not owned by Supplier; and
 - (b) such other assistance as may be necessary or reasonable at the time.

43.1.2 During the Termination/Expiration Assistance Period, Supplier shall provide to the Successor, Termination/Expiration Assistance in accordance with the principles set out under this Clause 43 (Termination/Expiration Assistance).

43.1.3 Continuance of the provision of Services: As part of the provision of Termination/Expiration Assistance, Supplier shall, for a period of 12 months following the effective date of the termination or expiration of this Agreement, or a ceasing of Services under this Agreement, or such shorter period as notified by Customer, provide, at Customer's request, any or all of the Services being performed by Supplier prior to such effective date regardless of the reason for termination, expiration or cessation of Service. Such Services will be provided subject to all the terms and conditions of this Agreement (which terms and conditions shall survive the termination or expiry of this Agreement for the duration of the Termination/Expiration Assistance Period) as such terms and conditions would have been applicable to the Services prior to the effective date of termination, expiration or cessation of Service, and for this purpose all references to the Term under this Agreement shall be deemed to include the Termination/Expiration Assistance Period.

43.1.4 To the extent that Supplier has incorporated Customer's network into a Supplier proprietary network, Supplier will provide up to two years of continued network services after the expiry or termination of this Agreement at no higher cost to the Successor than it paid for such services prior to the effective date of termination or expiration, in order to permit the Successor to establish its own network in an orderly manner.

- 43.1.5** Supplier shall provide the Termination/Expiration Assistance regardless of the reason for termination, expiration or cessation of Service and at no additional charge, fee or payment if the Termination/Expiration Assistance services can be provided with the existing resources and Customer continues to pay for such resources. However, if any additional resources / FTEs are required to provide such Services, then Customer agrees to pay to Supplier the Termination Assistance Fee in accordance with Schedule 5 (Pricing).
- 43.1.6** Notwithstanding Clause 43.1.5, in the event that Customer requests that Supplier implement the Termination/Expiration Assistance Plan in a timeframe shorter than is shown in the Termination/Expiration Assistance Plan prepared by Supplier in accordance with Clause 43.2 (Termination/Expiration Assistance Plan), Supplier shall carry out the Termination/Expiration Assistance Plan as requested save that Supplier and Customer will mutually agree on the extent to which Supplier may reasonably charge Customer additional fees to compensate Supplier for the additional costs Supplier will incur, if any, that arise as a direct consequence of such request.
- 43.1.7** Supplier shall not reduce the quality of the Services (including Termination/Expiration Assistance) or Supplier's performance otherwise, during the Termination/Expiration Assistance Period.
- 43.1.8** The Customer and the Supplier acknowledge that the transition of the Services to the Successor may be phased over a period of time so that certain identified Services are transferred to the Successor before others.
- 43.1.9** As part of Termination/Expiration Assistance, Supplier shall perform such services and render to the Successor such assistance as is necessary to allow the Services to continue without interruption or adverse effect and shall facilitate the orderly transfer of the Services to the Successor including:
- (i) stopping all non-critical Software changes (by agreement with the Customer);
 - (ii) providing to the Customer an up to date Documentation and Customer Service Handbook;
 - (iii) providing such information as Customer may reasonably request relating to the number and function of each of Supplier's Personnel and subcontractors who are employed or contracted by Supplier to perform the Services under this Agreement, and Supplier will make such information available to potential successors as designated by Customer;
 - (iv) providing details of work volumes and staffing requirements over the preceding 12 months;
 - (v) transferring all training material and providing appropriate training to those Customer and/or Successor staff responsible for internal training in connection with the provision of the Services;
 - (vi) providing for transfer to the Customer and/or the Successor of all knowledge reasonably required for the provision of the Services which may, as appropriate, include information, records and documents;
 - (vii) answering all reasonable questions from the Customer and/or the Successor regarding the Services;
 - (viii) ensuring there is no:
 - (a) change to the manner in which the Services are provided or the

composition or level of the Services;

- (b) material change to the number of Supplier's Personnel or Supplier Subcontractors assigned to perform functions for the Customer Group under this Agreement; or
- (c) unless otherwise agreed by Customer, reassignment of Supplier's Personnel or Supplier Subcontractors away from performance of functions under this Agreement;
- (ix) assist in the migration and transfer of Customer Data and all relevant software and equipment;
- (x) providing assistance and expertise as necessary to examine all operational and business processes (including all supporting documentation) in place and re-writing and implementing processes and procedures such that they are appropriate for use by the Customer or replacement Supplier after the end of the Termination/Expiration Assistance Period;
- (xi) at Customer's request, promptly provide Customer with available detailed specifications and documentation for hardware, software or other equipment that Customer may require to properly perform, or have performed, the Services following the Termination/Expiration Assistance Period;
- (xii) providing any or all of the Services being performed by Supplier prior to the effective date of termination or expiry of this Agreement without any degradation in the quality or level of performance; and
- (xiii) preparing a Termination/Expiration Assistance Plan in accordance with Clause 43.2 (Termination/Expiration Assistance Plan).

43.1.10 Supplier acknowledges and agrees that if Supplier fails or delays to provide or threatens not to provide Customer with Termination/Expiration Assistance, Customer will be irreparably harmed and may proceed directly to court to obtain injunctive and other legal or equitable relief against Supplier for Supplier's breach or non-performance or threatened breach or non-performance of the provisions of this Agreement. Supplier further acknowledges and agrees that monetary damages would not be a sufficient remedy for such breach or non-performance.

43.1.11 Post-Termination Transfer Procedures: In addition to and separate from the foregoing, the Supplier agrees to comply with the obligations set out in Schedule 16 (Post-Termination Transfer Procedures). Upon the Customer's exercise of the Transfer Option, the Supplier shall take the steps and perform the services specified in Schedule 16 (Post-Termination Transfer Procedures), which shall form part of the Termination/Expiration Assistance.

43.2 Termination/Expiration Assistance Plan

43.2.1 Within 24 months after the Commencement Date, Supplier shall prepare a "*Termination/Expiration Assistance Plan*", which shall describe in detail the manner, and staged timing, for the performance of Termination/Expiration Assistance and handover of risk and responsibility.

43.2.2 Supplier shall consult with Customer regarding the contents of the "*Termination/Expiration Assistance Plan*" referred to in Clause 43.2.1 and shall comply with Customer's reasonable requirements regarding its contents.

43.2.3 Within two months of the Termination/Expiration Assistance Commencement Date,

Supplier shall prepare, and the Parties shall agree upon, the final “*Termination/Expiration Assistance Plan*” which, without limitation, shall take into account any decision then made by Customer in relation to the transfer of Resources.

43.2.4 If after agreement of the final “*Termination/Expiration Assistance Plan*” Customer makes further decisions in relation to transfer of Resources, the Termination/Expiration Assistance Plan shall be amended by Supplier in consultation with Customer as appropriate.

43.2.5 Supplier shall update, in accordance with the requirements set out in Schedule 4 (Service Levels), the Termination/Expiration Assistance Plan not less than annually and as often as necessary to incorporate all changes, within the time frames set out in Schedule 4 (Service Levels) after such changes are made to the Termination/Expiration Assistance Plan. Prior to implementation of the Termination/Expiration Assistance Plan by Supplier, Supplier shall provide Customer with each such updated version of the Termination/Expiration Assistance Plan for Customer’s written approval.

43.3 Non-derogation

43.3.1 Throughout the Term, Supplier shall carry on its business with due regard to Customer’s rights, and in the expectation that Customer shall exercise its rights, under this Clause 43 (Termination/Expiration Assistance).

43.3.2 Supplier agrees to manage its premises, Supplier Systems, Equipment, Software and Resources in a manner consistent with Customer’s rights under these Clauses 43 (Termination/Expiration Assistance) and 42.6 (Repudiation), and their effective exercise.

43.3.3 Unless otherwise agreed by Customer, Supplier shall throughout the Term ensure that all agreements between Supplier and any Third Party (excluding premises leases) relevant to the performance of the Services that it enters into after the Commencement Date are capable of assignment of the benefit of, or novation of, or the licence of, Supplier’s interest in that agreement to Customer or its nominee:

- (i) without the Third Party’s consent; and
- (ii) without payment of any transfer or termination fees.

43.3.4 Supplier agrees not to enter into, and to use its Best Endeavours to ensure that any Supplier Group Member does not enter into, agreements, arrangements or understandings after the Commencement Date which contain obligations the purpose, or one of the purposes, of which is to avoid Supplier’s obligations under Clause 43.3.3.

44. Effects of termination

44.1 Any expiry of this Agreement or any termination of any part or whole of this Agreement (howsoever occasioned) shall not affect any accrued rights or liabilities of any Party nor shall it affect the coming into force or the continuance in force of any provision hereof which is expressly or by implication intended to come into or continue in force on or after such termination.

44.2 Both Parties agree that: (i) Customer shall not be required to make payment of any fees, sums or charges in the event of expiry or termination of any part or whole of this Agreement other than as may expressly be provided in this Agreement, and (ii) Supplier shall not under any circumstances be entitled to any charges, fees, consideration or other payment for any Services provided under this Agreement, or for items and goods delivered under this Agreement, on a

quantum meruit basis. Both Parties agree that, save as expressly provided, the exercise by either Party of its right to terminate this Agreement as provided under the terms and conditions of this Agreement shall not entitle the other Party to any damages, claims for expenses or lost profits, or any other recourse in law or in equity in respect of such termination.

PART 10 – GENERAL PROVISIONS

45. Supplier Parent Guarantee

45.1 Contemporaneously with the signing of this Agreement, Supplier will procure Supplier Parent to enter into the guarantee attached to this Agreement at Schedule 17 (Supplier Parent Guarantee), to cause and procure the due performance by Supplier of all its obligations under or in connection with this Agreement and to indemnify Customer against losses or expenses which it may incur as a result of the failure or default on the part of Supplier.

46. Privity of Contract

46.1 Customer Group to take benefit

46.1.1 Supplier acknowledges that the provisions of this Agreement are intended to confer benefits on each and every Customer Group Member, and on their officers, employees or contractors.

46.2 Additional/Departing Customer Group Members

46.2.1 Customer shall, as soon as practicable, notify Supplier of any person who ceased to be, and the date that the person ceased to be, an Affiliate of Customer (the “**Departing Member**”).

46.2.2 Customer shall, as soon as practicable, notify Supplier of any person who became, and the date that the person became, an Affiliate of Customer (the “**Additional Member**”).

46.2.3 Where Services have been provided by the Supplier to such Departing Member or Additional Member, save where an Implementation Agreement is in place between the Supplier and such Departing Member or Additional Member, Customer shall be liable for any payment of Fees for the Services rendered for such Departing Member and Additional Member.

46.3 Default by Customer Group Member

Where any Customer Group Member fails to perform its obligations, if any, under this Agreement (the “**Defaulting Member**”):

- (i) neither the Defaulting Member nor any other Customer Group Member other than Customer shall be liable to Supplier in respect of that failure;
- (ii) Supplier may only sue Customer and recover from Customer such damages that Supplier would have been entitled to recover against the Defaulting Member but for this Clause 46.3 (Default by Customer Group Member); and
- (iii) Supplier hereby undertakes not to sue or take any legal action against any Customer Group Member except Customer in respect of such failure and Supplier hereby waives any rights Supplier may have, if any, to commence any action against such Customer Group Member or any of its officers, employees or agents.

46.4 Customer to enforce benefits

- (i) A Customer Group Member can only enforce a right against Supplier and recover any amount

owing to it through Customer and Customer may sue Supplier and recover from Supplier any amount that the Customer Group Member would have been entitled to recover had such Customer Group Member enforced its rights directly against Supplier. Customer shall be entitled to recover and claim the full extent of losses or damages suffered by any Customer Group Member (whether on Customer's own behalf or otherwise). Customer shall ensure that a Customer Group Member that is under its Control shall not take any action against Supplier to enforce a benefit conferred on such Customer Group Member under this Agreement.

47. Assignment

47.1 Neither Party may assign this Agreement without the prior written consent of the other, save that Customer may assign or novate its rights and obligations under this Agreement without the approval of Supplier to:

47.1.1 an entity which acquires all or substantially all of the assets of Customer; or

47.1.2 any subsidiary or Affiliate of Customer or successor in a merger or acquisition involving Customer.

Customer shall not be relieved of its obligations under this Agreement as a result of any such assignment or novation. Supplier shall, if requested by Customer, execute such assignment or novation agreement and do all things necessary to facilitate such assignment or novation, and provide to Customer or such assignee all necessary assistance to allow the Services to continue without interruption or adverse effect and to facilitate (i) the continued access of the Services by all Customer Group Members and Authorised Users throughout such assignment or novation and (ii) the orderly transfer of the receipt of Services from Customer to such assignee.

48. Consents & Approvals

48.1 Supplier will be responsible for obtaining, and paying all costs associated with obtaining, any and all necessary consents and governmental approvals, permits and licences required for the provision of the Services.

48.2 Consents and approvals to be given by either Party under this Agreement shall not be unreasonably withheld or delayed. Such consents and approvals will not be construed as relieving a Party of its obligations or as a waiver of its rights under this Agreement.

49. Publicity

49.1 No public disclosures by either Party relating to this Agreement, except for internal announcements or disclosures required to meet legal or regulatory requirements beyond the reasonable control of the disclosing Party to lawfully avoid, shall be made without the prior written approval of authorised representatives of the other Party.

49.2 The obligation in Clause 49.1 does not apply to any disclosure which a Party is required to make by law, provided that the Party so required consults with the other Party as to the information to be disclosed prior to disclosure.

50. Partnership

50.1 Nothing in this Agreement is to be construed to constitute the Parties as partners nor constitute any of the Parties the agent of any of the other Parties.

50.2 Neither Party may attempt to bind or impose any obligation on a Party or incur any joint liability without the written mutual consent of the other Party except as set out in this Agreement.

- 50.3** The right of any individual, firm or corporation claiming by, through or under a Party against any right, title or interest of that Party in this Agreement is limited solely to the entitlements of that Party as set out in this Agreement.

51. Costs and expenses

- 51.1** Each Party shall pay its own costs and expenses in relation to the negotiation, preparation, execution and variation of this Agreement and any related document including any administration costs of the Parties in connection with the matters referred to in this Clause 51.1, and any legal costs and expenses and any professional consultant's fees for any of the above.

52. Waivers

- 52.1** Waiver of any right arising from a breach or non-performance of this Agreement or arising upon default under this Agreement or upon the occurrence of an Event of Default shall be in writing and signed by the Party granting the waiver.
- 52.2** A failure or delay in exercise, or partial exercise, of a right arising from a breach or non-performance of this Agreement or the occurrence of an Event of Default does not result in a waiver of that right.
- 52.3** A Party is not entitled to rely on a delay in the exercise or non-exercise of a right arising from a breach or non-performance of this Agreement or on a default under this Agreement or on the occurrence of an Event of Default as constituting a waiver of that right.
- 52.4** A Party may not rely on any conduct of another Party as a defence to the exercise of a right by that other Party.
- 52.5** This Clause 52 (Waivers) may not itself be waived except by writing.

53. Informal Dispute Resolution

- 53.1** The Parties agree to adopt the process of informal dispute resolution involving escalation within each Party's management organisations, as required in Schedule 6 (Governance) for disagreements, disputes, controversies or differences that may arise between the Parties during the Term. Notwithstanding the commencement, referral to or use of such informal dispute resolution process by any Party, Customer may elect to commence, subject to Clause 54 (Governing law and jurisdiction), an action in a court of competent jurisdiction at any time.

54. Governing law and jurisdiction

- 54.1** This Agreement and its performance shall be subject to, governed by and construed in accordance with the laws of Singapore.
- 54.2** Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre in accordance with the Arbitration Rules of the Singapore International Arbitration Centre for the time being in force, which rules are deemed to be incorporated by reference in this clause. The seat of the arbitration shall be Singapore and the language of the arbitration shall be English.
- 54.3** The Parties agree that nothing in Clause 53 (Informal Dispute Resolution), the Policy and Procedures Manual or any Schedule, Exhibit or Attachment herein shall in any way limit the right of either Party to initiate proceedings (subject to Clause 54.2) in any court of competent jurisdiction.

55. Services to continue during dispute resolution

55.1 Even if any problem or other dispute arises between the Parties and regardless of whether or not either Party initiates at any time the use of the dispute resolution procedures described in Schedule 6 (Governance), or if either Party has initiated proceedings in any court of competent jurisdiction, Supplier agrees to continue performing its obligations under this Agreement while any dispute is being resolved and in no event nor for any reason shall Supplier:

55.1.1 interrupt the provision of Services to Customer, any Customer Group Member or any Authorised User;

55.1.2 refuse or fail to perform any obligations related to termination of this Agreement;

55.1.3 disable any Supplier Systems, Equipment or Software used by Supplier to provide Services or which may be required by any Customer Group Member or Authorised User to access, use and have the full benefit of the Services; or

55.1.4 perform any other action that prevents, impedes, or reduces in any way the provision of Services or the Customer Group's ability to conduct its business activities,

unless: (i) authority to do so is granted by Customer or conferred by a court of competent jurisdiction; or (ii) this Agreement has been terminated or has expired and all obligations related to the expiry or termination (including Termination/Expiration Assistance) have been completed to Customer's satisfaction. However, both Parties agree that Customer shall be obliged and liable to make undisputed payment for the Services rendered in accordance with this Agreement during dispute resolution.

56. Entire agreement

56.1 This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior agreements between the Parties, whether written or oral, with respect to such subject matter.

57. Survival

57.1 The rights, obligations and indemnities in Clauses 33.5, 36, and 39 shall survive the termination or expiry of this Agreement.

58. Counterparts

58.1 This Agreement may be executed in any number of counterparts. All counterparts, taken together, constitute one instrument. A Party may execute this Agreement by signing any counterpart.

59. Force Majeure

59.1 No Party shall be liable for any default or delay in the performance of its obligations under this Agreement:

59.1.1 if and to the extent the default or delay is caused, directly or indirectly, a Force Majeure Event; and

59.1.2 provided the Party affected by the Force Majeure Event is without fault and the default or delay could not have been prevented by reasonable precautions.

59.1.3 In such event, the Party affected by the Force Majeure Event is excused from further performance subject to Clause 59.6 and for as long as such circumstances prevail.

- 59.2** Any Party so delayed by a Force Majeure Event shall promptly notify the other Party of the same and describe the circumstances causing the delay.
- 59.3** Supplier shall not have the right to any Fees or additional payments from Customer to the extent that the Services are prevented or delayed by a Force Majeure Event. If a Force Majeure Event substantially prevents or delays performance of the Services (or part thereof) for more than forty-eight hours, which failure or delay has a significant impact on such Customer Group Member's ability to conduct a material portion of its business, Customer, at its sole discretion, may procure the Services (or part thereof) from an alternate source. Whether Services are procured by Customer from an alternate source or not, if Supplier is unable to perform the Services (or any part thereof) within thirty calendar days of the occurrence of the event, Customer, at its sole discretion, may:
- 59.3.1** terminate any portion of this Agreement affected by the non-performance and the charges shall be equitably adjusted; or
- 59.3.2** terminate this Agreement without liability to Customer as of a date specified by Customer in a written notice to Supplier except for payment of Fees agreed under the Agreement for the Services rendered till the effective date of termination.
- 59.4** The failures of independent Third Party providers of services used by Supplier in performing the Services will not be considered Force Majeure Events to the extent that Supplier has committed that its delivery of the Services is designed to accommodate, address or prevent such failures.
- 59.5** Force Majeure Events shall not relieve Supplier of its obligation to execute the Disaster Recovery Plan for Customer, except to the extent that execution of the Disaster Recovery Plan is itself prevented by the Force Majeure Event.
- 59.6** A Party affected by Force Majeure Event will be obliged to use its best efforts to continue to perform or to mitigate the impact of its non-performance notwithstanding the Force Majeure Event.

60. Rights of Third Parties

- 60.1** Subject to Clause 46 (Privity of Contract), a person or entity who is not a party to this Agreement shall have no right under the Contracts (Rights of Third Parties) Act 2001 to enforce any term of this Agreement, regardless of whether such person or entity has been identified by name, as a member of a class or as answering a particular description. For the avoidance of doubt, nothing in this Clause 60 (Rights of Third Parties) shall affect the rights of any permitted assignee or transferee of this Agreement.

61. Variation

- 61.1** No variation, amendment or rescission of this Agreement shall bind either Party unless made in writing in the English language and signed by both Parties. Without prejudice to the generality of Clause 60 (Rights of Third Parties), the Parties' rights to vary, amend or rescind this Agreement in the manner aforesaid may be exercised without the consent of any person or entity who is not a party to this Agreement.

62. Injunctive Relief

- 62.1.1** A Party may seek immediate injunctive relief if it makes a good faith determination that a breach or non-performance is such that a temporary restraining order or other immediate injunctive relief is the only appropriate or adequate remedy.

62.1.2 A Party filing a pleading seeking immediate injunctive relief, which is not awarded in substantial part, shall pay all reasonable legal costs and expenses of the other Party.

63. Cumulative rights and remedies

Unless otherwise expressly agreed by the Parties, or provided under this Agreement, the provisions of this Agreement, and the rights and remedies of the Parties under this Agreement are cumulative and are without prejudice and in addition to any rights or remedies a Party may have in law or in equity, and no exercise by a Party of any one right or remedy under this Agreement, or at law or in equity, shall (save to the extent, if any, provided expressly in this Agreement or at law or in equity) operate so as to hinder or prevent the exercise by it of any other such right or remedy of a Party under this Agreement as at law or in equity.

64. Schedules

Supplier shall comply with all its obligations in the Schedules even where such obligations are not specifically set out or referred to in Clauses 1 (Definitions & Interpretation) to 67 (Use of Name) of this Agreement.

65. Notices

65.1 Except as expressly otherwise stated herein, all notices, requests, consents, approvals, or other communications provided for or in connection with this Agreement shall be in writing in English (a "**Notice**") and shall be sufficiently given or served if delivered personally or sent:

65.1.1 in the case of Customer to:

[REDACTED]

[REDACTED]

Singapore 189773 Email: [REDACTED]

Attention: Legal Department

65.1.2 in the case of Supplier to:

Address: [REDACTED]

[REDACTED]

Email: john.hayward@wns.com

Attention: [REDACTED]

65.1.3 or (in either case) to such other address in Singapore as the relevant Party may have notified to the other in writing in accordance with this Clause 65 (Notice).

65.2 Any Notice may be delivered by email or by hand or prepaid registered post. Without prejudice to the foregoing, any Notice shall conclusively be deemed to have been received two Business Days from the time of posting, if sent by post, or seven Business Days from the time of posting, if sent by airmail, or at the time of delivery, if delivered by hand.

66. Severability

If at any time any provision of this Agreement shall be or shall become illegal, invalid or unenforceable in any respect, the legality, validity and enforceability of the remaining provisions of this Agreement shall not be affected or impaired thereby, and shall continue in force as if such illegal, invalid or unenforceable provision was severed from this Agreement.

67. Use of name

Except as may be necessary for either Party to carry out its obligations under this Agreement, neither Party shall under any circumstances whatsoever use the other Party's name, trade names, trade marks, service marks, logos, or other symbols or other source identifying devices, or combinations or variations thereof, or the name of any employee of either Party, in any public announcement, news release, advertising, or promotional literature, without first obtaining the written consent and approval of the other Party.

Schedule 1 (Definitions & Interpretation)

1. Definitions

- 1.1** “**Acceptance Certificate**” is defined in Clause 7.2.5(i) in the form set out in Schedule 3 (Form of Statements of Work and Acceptance Certificate).
- 1.2** “**Access-Based Services**” means any Services which require the use of Service Security Codes.
- 1.3** “**Acquiring Business**” means any person or entity that acquires or to whom it is transferred, any assets, business, undertaking or opportunity of a Customer Group Member.
- 1.4** “**Additional Member**” is defined in Clause 46.2.2.
- 1.5** “**Additional Resource Charge**” or “**ARC**” means a charge added for the applicable calendar month in relation to a Process under an SOW, calculated in accordance with Schedule 5 (Pricing).
- 1.6** “**Affected Calendar Month**” is defined in Clause 12.14.
- 1.7** “**Affected Services**” is defined in Clause 13.1.6.
- 1.8** “**Affiliate**” means with respect to an entity, another entity Controlling, Controlled by or under common Control with that entity.
- 1.9** “**Agreement**” means this Agreement and any and all Exhibits, Attachments, Schedules and Appendices hereto as may be amended, modified or supplemented from time to time in accordance with the terms hereto.
- 1.10** “**Agreement Change Request**” is defined in Paragraph 4.1 of Schedule 22 (Change Control).
- 1.11** “**Anniversary Date**” means the date immediately following each consecutive twelve (12) month period, beginning on the Commencement Date. By way of illustration, if the Commencement Date is 1 January 2024, the 1st Anniversary Date shall be 1 January 2025 and the 2nd Anniversary Date shall be 1 January 2026.
- 1.12** “**Annual Review Process**” means the process of forecasting volumes for the forthcoming Contract Year and determining other relevant matters in accordance with Clause 23.1.
- 1.13** “**Artifact**” is defined in paragraph 2.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.14** “**At Risk Amount**” means, for any month during the Term, an amount equal to 10% of the Monthly Fees.
- 1.15** “**Auditor**” means any auditor, inspector or other person nominated by Customer.
- 1.16** “**Authorised User**” means each user of the Services designated by Customer or any Customer Group Member, whether within and outside of Customer, including each employee, Business Unit, Third Party Vendor, contractor, joint venture entity and customer whose relationship with Customer or any Customer Group Member involves use of, or access to, the Services, including:
- (i) unless expressly provided otherwise in this Agreement, any and all users, business units, Third Party Vendors, contractors, joint venture entities and customers of Restructured Businesses or Restructuring Businesses; and
 - (ii) such other party, entity or user which may be notified by Customer to Supplier from time to time.

- 1.17 “**Band 1**” is defined in Clause 22.4.1(i).
- 1.18 “**Band 2**” is defined in Clause 22.4.1(ii).
- 1.19 “**Band 3**” is defined in Clause 22.4.1(iii).
- 1.20 “**Best Endeavours**” means to take all practicable steps calculated to achieve the contemplated tasks, which include incurring additional costs and deploying additional resources to achieve the desired result.
- 1.21 “**Breaching Party**” is defined in Clause 40.1.1.
- 1.22 “**Business Continuity Plan**” means the plan to execute Business Continuity Services.
- 1.23 “**Business Continuity Services**” means the overall, group-wide plans and activities of the Customer Group that are intended to enable continued business operation in the event of any unforeseen interruption. (For example, plans and activities to move a department or business unit to a new location in the event of a business disruption).
- 1.24 “**Business Day**” or “**business day**” means a day which is not a Saturday or Sunday or a public holiday in Singapore or country in which the relevant Services are to be provided.
- 1.25 “**Business Unit**” means one of the business units of a Customer Group Member from time to time.
- 1.26 “**Change Control Procedures**” means the process and procedures prepared by Supplier and approved in writing by Customer pursuant to Paragraph 4 of Schedule 22 (Change Control).
- 1.27 “**Change Management Processes**” means the processes prepared by Supplier and approved in writing by Customer pursuant to Paragraph 5 of Schedule 22 (Change Control).
- 1.28 “**Change of Control**” means any change in the Control of a Party after the Commencement Date.
- 1.29 “**Collaboration Agreement**” is defined in paragraph 1 of Schedule 24 (Joint Innovation Fund).
- 1.30 “**Commencement Date**” means the date of execution of this Agreement.
- 1.31 “**Commercially Available Supplier Material**” shall mean all Supplier Materials (whether made or acquired prior to or after the Commencement Date) but excluding the Non-Commercially Available Supplier Materials.
- 1.32 “**Committee**” is defined in Clause 27.2.1.
- 1.33 “**Completion Date**” means the date by which an applicable Service or Deliverable is to be provided to Customer Ready for Use as set forth in this Agreement.
- 1.34 “**Compliance Notice**” is defined in Clause 7.15.1(i)(a)(I).
- 1.35 “**Confidential Information**” is defined in Clause 37.1.
- 1.36 “**Contract Year**” means each period of 12 consecutive months commencing on the Commencement Date and thereafter on each Anniversary of the Commencement Date.
- 1.37 “**Control**” or its derivatives or variants (i.e. “*Controlling, Controlled by or under the common Control*”) means with regard to an entity the legal, beneficial or equitable ownership, directly or indirectly, of 50% or more of the issued capital or voting rights (or other ownership interest, if not a corporation) of such entity, or the equivalent right under contract or otherwise, to control or cause the direction of management and policy decisions of such entity with regard to relevant subjects.
- 1.38 “**Corrected Amount**” is defined in Clause 22.4.3(ii)(b)(III).
- 1.39 “**Critical Service Level**” means those Service Levels established under Schedule 4

(Service Levels) for which a Service Level Credit may be payable. Each Critical Service Level has an Expected Service Level and a Minimum Service Level associated with it unless otherwise specified. It is the intent of the Parties that all Critical Service Levels shall be quantifiable, measurable and objective.

- 1.40** “**Customer Applicable Taxes**” means all indirect taxes comprising or relating to sales, value-added taxes, goods and services taxes, and similar transaction taxes (whether of Singapore or elsewhere) in all applicable jurisdictions in respect of or in connection with the Services received by Customer Group from Supplier and where such taxes are typically borne by the recipients of such Services in these jurisdictions.
- 1.41** “**Customer Associates**” is defined in Clause 7.7 (Customer Associates).
- 1.42** “**Customer Contract Executive**” means the person nominated by Customer from time to time to perform the functions required of that role as set out in Clause 27.4 (Customer Contract Executive).
- 1.43** “**Customer Data**” means:
- (i) any data, databases or information generated, processed, compiled, stored, arranged or developed on or through any one or more of the following:
 - (a) the Customer Systems;
 - (b) the Third Party Systems; or
 - (c) any Supplier Systems used by Supplier in connection with the performance of its obligations under this Agreement; and
 - (ii) all present and future adaptations, customisations, enhancements, derivatives and versions of the subject matter referred to in (i) above.
- 1.44** “**Customer Group**” means:
- (i) Customer; and
 - (ii) at the Commencement Date, the entities listed in Schedule 7 (Customer Sites and Customer Group Members) hereto.
- 1.45** “**Customer Group Member**” means any one of the corporations or entities that comprise the Customer Group.
- 1.46** “**Customer Indemnitee(s)**” is defined in Clause 39.1 (Indemnities by Supplier).
- 1.47** “**Customer Information**” means all information, in any form, disclosed, furnished or made available directly or indirectly to Supplier and/or its employees, advisors or consultants by or on behalf of Customer or otherwise received or obtained by Supplier and/or its employees, advisors or consultants from Customer prior to, pursuant to, by virtue of, or in the course of negotiating or performing this Agreement, including:
- (i) Operational Data, Customer Materials and Customer Data;
 - (ii) all financial, marketing, sales, technical, operational, commercial, and human resource information, and all trade secrets, business plans, financial and/or contractual arrangements, forecasts, accounting and tax records, strategies, models, product information, processes, formulas, designs, specifications, drawings, data, manuals and instructions of Customer or any Customer Group Member;
 - (iii) all information relating to █████ Customers, including all client and customer financial and account information, contact particulars, information relating to the nature of the relationships between any Customer Group Member and the █████ Customers, client and

customer lists and data, and data of and/or belonging to the [REDACTED] Customers;

- (iv) all source codes, diagrams, workflow information, specifications and configurations of Customer or any Customer Group Member;
- (v) all other information, data, experience and expertise, materials and storage media of Customer or any Customer Group Member stamped or marked as “*confidential*” of whatever kind; and
- (vi) all communications between the Parties relating to the aforesaid,

whether written, electronic or in oral form, and whether or not such information belongs to Customer, or to a Third Party.

1.48 “**Customer Materials**” is defined in Clause 33.1.1 (Customer Materials).

1.49 “**Customer Service Handbook**” means collectively the operations manuals, information sheets, notices or other documents prepared by Customer for use by its service providers generally and/or for Supplier in particular, setting forth policies, procedures, instructions or advice respecting the proper provision and administration of the Services which are to be adopted by Supplier in supplying the Services, and circulated to Supplier from time to time, as the same may be amended by Customer from time to time.

1.50 “**Customer Sites**” means any location of any Customer Group Member where the Services shall be or are performed, delivered to or received at and including (where applicable) the facilities, offices or fixtures within a location which Customer has agreed may be used by Supplier (or which Customer has designated) to accommodate Supplier’s Personnel and Equipment for the purposes of Supplier’s provision of the Services. “**Customer Sites**” shall be deemed to include all locations set out in Schedule 7 (Customer Sites and Customer Group Members).

1.51 “**Customer Systems**” means the applications, systems, facilities, networks, Equipment and/or Software that are owned, leased, licensed to or under the control of Customer or any Customer Group Member or Authorised User (whether or not housed, stored or located at the Sites) from time to time. In particular, the following systems are deemed to be specifically covered by the term “*Customer Systems*”:

- (i) Liner Management System (LMS);
- (ii) Global Financial System (GFS – PaaS and SaaS);
- (iii) AMS systems (all local instances);
- (iv) Azure Data Lake;
- (v) Celonis; and
- (vi) Intelligent Automation (RPA).

1.52 “**Customise/Customisation**” means to configure, enhance and/or make changes, modifications, adaptations alterations and additions to a material, including to produce derivative works of such material, and/or to make alterations or modifications to the parameter settings, where applicable, of such material;

1.53 “**Data Protection Breach**” is defined in Clause 36.10.9.

1.54 “**Data Protection Legislation**” means the (i) PDPA (including any requirements set out in any advisory or other guidelines issued from time to time by the Personal Data Protection Commission (as defined in the PDPA)); (ii) United Kingdom Data Protection Act 2018; and (iii) and all relevant laws or regulations in any relevant jurisdiction to or from which any Personal

Data is transferred, disclosed or processed, which relates to the collection, disclosure, use or processing of the Personal Data.

- 1.55** “**Deal**” means sell, transfer, exploit, assign, dispose of, commercialise, lease, rent, convert, grant an option over, allot, declare a trust over, or otherwise deal with.
- 1.56** “**Defaulting Member**” is defined in Clause 46.3 (Default by Customer Group Member).
- 1.57** “**Deliverables**” means:
- (i) the deliverables supplied or to be supplied by Supplier to Customer, any Customer Group member and/or any Authorised User under this Agreement and/or any Statement of Work; and
 - (ii) the Documentation.
- 1.58** “**Departing Member**” is defined in Clause 46.2.1.
- 1.59** “**Detailed Requirements Study**” is defined in Clause 6.1.1.
- 1.60** “**Developed Materials**” all Materials developed specifically for Customer and/or the Services (as opposed to generally in the usual course of Supplier’s business) by Supplier and/or its subcontractors (including Materials jointly developed with Customer) under, pursuant to or for the purposes of this Agreement, including foreign Intellectual Property Rights in such Materials and all modifications, enhancements and derivative works of such Materials. “**Developed Materials**” shall be deemed to include Materials developed in connection with or for any modifications referred to in Clause 7.13 (Documenting modifications to Customer’s business processes).
- 1.61** “**Direct Competitor**” means a Third Party engaged in the business of providing business outsourcing services in direct competition with the Supplier, targeted at clients the same or similar to the Customer, and in similar markets with the Supplier.
- 1.62** “**Disabling Code**” means any code, agent, macro or any other program or any device, method, or token that would have the effect of disabling or otherwise shutting down all or any portion of the Services.
- 1.63** “**Disaster**” means the occurrence of one or more events which:
- (i) affects or impacts the delivery, provision or receipt of the whole or any part of the Services; or
 - (ii) causes an unforeseen interruption to the delivery, provision or receipt of the Services, in whole or in part, or to the business of the Customer Group.
- 1.64** “**Disaster Recovery Plan**” means the plan to execute Disaster Recovery Services.
- 1.65** “**Disaster Recovery Services**” means the specific activities related to continue provisioning of the Services in the event of a Disaster. The Disaster Recovery activities include support and coordination with the Business Continuity activities.
- 1.66** “**Discloser**” is defined in Clause 37.1.2.
- 1.67** “**Documentation**” is defined in Clause 7.14.4 (Documentation).
- 1.68** “**Earned**” is defined in Paragraph 2.2 of Schedule 5 (Pricing).
- 1.69** “**Earned One-Time Charges**” is defined in Paragraph 2.2 of Schedule 5 (Pricing).
- 1.70** “**Equipment**” means any hardware, equipment, wiring, cabling and peripherals.
- 1.71** “**Evaluation Period**” is defined in Paragraph 4.1.1 of Schedule 22 (Change Control).
- 1.72** “**Event of Default**” shall be as defined in Clause 42.1.1.

- 1.73 “Expected Service Level Default”** means Supplier’s level of performance for a particular Critical Service Level fails to meet the applicable Expected Service Level (but does not fail to meet the applicable Minimum Service Level) as specified in Schedule 4 (Service Levels) and its Attachments, and has failed to meet such Expected Service Level for four or more months in any rolling 12 month period.
- 1.74 “Expected Service Level(s)”** means the expected level of performance for a Critical Service Level or Key Measurement, as set forth in Schedule 4 (Service Levels).
- 1.75 “Extension Period”** is defined in Clause 3.2.2.
- 1.76 “Extraordinary Event”** means any circumstance or event (whether discrete, related or otherwise) which Customer may determine, in its absolute discretion, to be an event which results or could result in a material impact on Customer’s utilisation of any billable Resource Unit or the business of the Customer Group, and shall be deemed to include:
- (i) changes to sites where the Customer Group operates;
 - (ii) general business downturn;
 - (iii) changes in the services offered, or in the markets served by, the Customer Group; and
 - (iv) any Restructuring,
- but shall not include a Resource Baseline Adjustment Event.
- 1.77 “Fees”** is defined in Clause 15.1.
- 1.78 “Force Majeure Event”** means any act of God, war, hostilities, invasion, act of foreign, enemies, rebellion, revolution, strike, riot or civil commotion, insurrection, civil war, strike or lock-out, epidemic, pandemic, quarantine measure, acts of terrorism or cyber-terrorism, sabotage, atomic nuclear reaction, haze, flood, storm, a Third Party’s interference with a Party’s computer systems, hacking, cyber-attack, computer viruses and the stability or availability of the Internet or a portion thereof or a network or device failure external to its data centres, and, without limitation to the foregoing, any event or circumstance not within the reasonable control of a Party which prevents or delays such Party’s performance or observance of its obligations under this Agreement but shall exclude:
- (i) the coronavirus disease known as “COVID-19”; and
 - (ii) any quarantine, health, safety or stay-home measure, lock-down, travel or other movement restriction in connection with COVID-19,
- in the case of Customer, the reference to “Party” shall be deemed to include any Customer Group Member.
- 1.79 “FTE”** means a Resource Unit denominated as an “FTE”.
- 1.80 “FTE Rate”** is defined in paragraph 4.1 of Schedule 5 (Pricing).
- 1.81 “General Acceptance Tests”** is defined in Clause 7.2.1.
- 1.82 “Government Authority”** means any government or any governmental, semi-governmental, administrative, regulatory, fiscal or judicial body, department, commission, authority, tribunal, agency or entity in any part of the world.
- 1.83 “Implementation Agreement”** means an agreement substantially in the form set out in Schedule 20 (Form of Implementation Agreement) which is entered into by Customer Group Member and Supplier (as the case may be).
- 1.84 “Implementation Agreement Countries”** means each of the countries set out in Part (B) of Schedule 21 (Territory & Implementation Agreement Countries).

1.85 “**Incident**” means any event which is not part of the standard operation of a service which causes, or may cause, an interruption to, or a reduction in, the quality of that service.

1.86 “**Incoming Business**” means:

- (i) any Additional Member;
- (ii) any business, corporation or other entity that results from the following:
 - (a) the merger of any Customer Group Member with the whole or any part of its business with any other business;
 - (b) the acquisition by (or transfer to) a Customer Group Member of the whole or any part of any other business, asset, undertaking or opportunity;
 - (c) the formation of a joint venture between any Customer Group Member with any other business, entity or person; and
 - (d) any Customer Group Member which may have entered into any arrangements similar to those listed in sub-clauses (a) to (c) above.

1.87 “**Incurred Transformation and Technology Recurring Charges**” means, in relation to Services or components under the Transformation Recurring Services Charges and Technology Recurring Services Charges payable between the period starting on the effective date of termination and ending on the expiry date of the then-current Term, the following categories of costs actually incurred by Supplier (as demonstrated to the Customer’s reasonable satisfaction) in performing such Services or procuring such components:

- (i) licenses and hosting cost;
- (ii) remuneration of support and program management staff; and
- (iii) internet bandwidth costs.

“**Incurred Transformation and Technology Recurring Charges**” shall exclude the following:

- (a) operational or other costs not relating to performance of this Agreement and which relate to the day to day operation of Supplier or its Affiliates’ office and other general, routine or common expenses (such as utilities, office supplies and equipment, manpower costs and benefits, rent and other ancillary tenancy charges, travel or transportation);
- (b) costs and expenses incurred or which would have been incurred in the provision of Services which have not been terminated (in the case of termination in part);
- (c) such costs which the Supplier would not have been entitled to if it had discharged its duty to take all reasonable action to mitigate any cost, loss and/or damages suffered by it;
- (d) such costs for goods and/or services which could have been avoided upon being aware of the termination;
- (e) savings that the Supplier could have obtained if it had cancelled or terminated the commitment to such costs and expenses; and
- (f) such costs and expenses which Supplier cannot demonstrate Customer’s reasonable satisfaction as being incurred by Supplier to perform the relevant services or procure the relevant components.

1.88 “**Initial Term**” is defined in Clause 3.1.1.

1.89 “**Insolvency Event**” in the context of Supplier means any of the following events:

- (i) **insolvency, etc.:** any corporate action, legal proceedings or other procedure or step (other than for the purpose of a *bona fide* scheme of solvent amalgamation or reconstruction) is taken in relation to:
 - 1. any suspension of payments, moratorium of any indebtedness, administration, judicial management, scheme of arrangement, provisional or final supervision, composition, compromise, assignment, reorganisation, readjustment or arrangement of Supplier's business, debts, affairs or any part thereof under any applicable laws relating to bankruptcy or insolvency;
 - 2. the appointment of a liquidator, receiver or manager, administrator, judicial manager, scheme manager, administrative receiver, compulsory manager, provisional supervisor or other similar officer in respect of all or any part of the Supplier's assets or undertakings; or
 - 3. the institution of any proceeding for the liquidation, winding up, striking off or dissolution of Supplier's business;
 - (ii) **ceasing business:** Supplier ceases to carry on or threatens to cease to carry on any part of its business, or Supplier sells, transfers, leases or otherwise disposes of the whole or substantially the whole of its assets, rights and undertakings;
 - (iii) **licences and approval:** if the approval of any government or regulatory body is revoked or denied or any licence or consent is revoked or denied which may prevent Supplier from performing its obligations under this Agreement;
 - (iv) **distress:** if any party takes possession of all or any part of the business or assets of Supplier or distress, any execution or other legal process is enforced against the business or all or any part of the property of Supplier and such is not discharged within 14 days; or
 - (v) if any event, process or circumstance analogous or having a substantially similar effect to any of the above, in any applicable jurisdiction, commences or exists.
- 1.90** **"In-scope"** means, with reference to services, technology, Stations, countries, costs, Personnel, initiatives or other subject matter, within the scope of the Services, as amended from time to time in accordance with this Agreement.
- 1.91** **"Integrate/Integration"** means the creation, modification and/or use of software, applications or computer code and/or the use of hardware in order to create functionality between two or more component parts or items of hardware and/or software.
- 1.92** **"Intellectual Property Rights"** means all copyright, patents, trade marks, service marks, domain names, layout design rights, registered designs, design rights, database rights, trade or business names, rights protecting trade secrets and confidential information, rights protecting goodwill and reputation, and all other similar or corresponding proprietary rights and all applications for the same, whether presently existing or created in the future, anywhere in the world, whether registered or not, and all benefits, privileges, rights to sue, recover damages and obtain relief for any past, current or future infringement, misappropriation or violation of any of the foregoing rights.
- 1.93** **"Invoice Month"** is defined in paragraph 9.2 of Schedule 5 (Pricing).
- 1.94** **"Joint Innovation Fund"** means the Joint Innovation Fund defined in Schedule 24 (Joint Innovation Fund).
- 1.95** **"Key Measurements"** means those Service Levels for which no Service Level Credit is payable, but which are meaningful to the Customer Group's business, and are described in

Schedule 4 (Service Levels).

- 1.96** “**Key Supplier Personnel**” means a limited number of Personnel or positions in Supplier organisation that Customer designates as being critical in the provision of the Services.
- 1.97** “**Laws and Legal Requirements**” means any of the following:
- (i) any laws, legislations, statutes, principles of equity and regulatory requirements, whether national, federal, state, local or otherwise, in any applicable jurisdictions from time to time;
 - (ii) all conditions, regulations, judgements, injunctions, acts, directives, orders, policies, restrictions, guidelines, quality of service standards, codes of practices, by-laws, prohibitions or measures of any kind on the part of any court, governmental, parliamentary, regulatory or other competent authority in any applicable jurisdictions from time to time;
 - (iii) any permits and licences, applicable or necessary for the performance of an activity or undertaking in any applicable jurisdictions from time to time; and
 - (iv) industry standards or any codes of conduct or rules of any industry body, which are applicable to any Customer Group Member or Supplier, which a Customer Group Member is a member of, or has obligations to, from time to time of which Supplier has notice or is, or ought reasonably to be aware.
- 1.98** “**Limit**” is defined in Clause 40.2.3.
- 1.99** “**Locally Performed Services**” shall be as defined in the relevant Implementation Agreement.
- 1.100** “**Losses**” means all losses, liabilities, damages, settlement sums, costs (including, without limitation, legal costs and costs of other professionals), penalties, fines, charges, expenses, actions, proceedings, claims and demands.
- 1.101** “**Materials**” means any and all works of authorship, documents, reports, data, databases, software, programs, scripts, macros and any code of any type or language, processes, platforms, interfaces, methods, know-how, expertise, inventions, ideas, concepts, methodologies and technical and commercial information, user manuals, photographs, designs, illustrations, artwork, drawings, diagrams, screen shots, reports, output forms, business processes, graphics, music, lyrics, audio, sound recordings and any other subject matter or materials, in whatever form or medium (including digital equivalents of all the aforementioned subject matter).
- 1.102** “**Measurement Window**” means the time during, or frequency by, which a Service Level shall be measured excluding any Customer approved scheduled maintenance.
- 1.103** “**Minimum Service Level Default**” means Supplier’s level of performance for a particular Critical Service Level fails to meet the applicable Minimum Service Level at any time.
- 1.104** “**Minimum Service Level(s)**” means the minimum level of performance set forth in Schedule 4 (Service Levels) with respect to each Critical Service Level and Key Measurement.
- 1.105** “**Monthly Fees**” means the aggregate amount of all Supplier invoices issued monthly for the delivery of the Services (including invoices for Locally Performed Services issued by the Supplier) in the preceding month.
- 1.106** “**New Services**” means additional services that are materially different from the Services and not included within this Agreement, and are designated as such in accordance with Change Control Procedures. “**New Services**” include services for which Fees are not otherwise specified in this Agreement.

- 1.107 “Non-Breaching Party”** is defined in Clause 40.1.1.
- 1.108 “Non-Commercially Available Supplier Materials”** shall mean the software and materials set out in Schedule 18 (Non-Commercially Available Supplier Materials).
- 1.109 “Objectives”** means the objectives and key principles set out in Clause 2 (Objectives).
- 1.110 “One-Time Charges”** mean the amount(s) specified under Schedule 5 (Pricing) as “*One-Time Charges*”.
- 1.111 “Operational Data”** means all data, databases or information relating to the operations, procedures or controls of Supplier and Supplier Subcontractors as such operations, procedures or controls are deployed or engaged for the provision of Services, but excludes Developed Materials and information regarding Supplier’s Personnel and Supplier’s costs.
- 1.112 “Operational Service Charges”** means the amount(s) specified under Schedule 5 (Pricing) as “*Operational Service Charges*”.
- 1.113 “Operational Services”** means the services specified in paragraph 5.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) as “*Operational Services*”, and any variation to those services made in accordance with this Agreement.
- 1.114 “Outgoing Business”** means:
- (i) any Departing Member;
 - (ii) any Customer Group Member which may have sold or otherwise disposed of the whole or any part of its assets, business, undertaking or opportunity; or
 - (iii) any Customer Group Member which may have entered into any arrangements similar to those listed in Sub-Clause (ii) above.
- 1.115 “Out-of-Pocket Expenses”** means reasonable and actual out-of-pocket expenses incurred by Supplier for Equipment, materials, supplies or other Services provided to any Customer Group Member, but not including Supplier’s overhead costs, administrative expenses or other mark-ups.
- 1.116 “Party”** means either Customer or Supplier, and “**Parties**” means Customer and Supplier.
- 1.117 “Pass-Through Expenses”** means the fees charged by Third Party Vendors to Supplier which Parties have identified as payable by Customer on a pass-through and no mark-up basis, which may be agreed between the Parties from time to time.
- 1.118 “PDPA”** means the Personal Data Protection Act 2012 of Singapore.
- 1.119 “Periodic Productivity Commitment Table”** shall be set out in Schedule 25 (Periodic Productivity Commitment Table), as amended from time to time in accordance with this Agreement.
- 1.120 “Personal Data”** means “*personal data*” as defined under the PDPA, and all data which is defined to be an equivalent under any applicable Data Protection Legislation.
- 1.121 “Personnel”** means employees, personnel, secondees, agents, principals and contractors, who are individuals, and in relation to Supplier, includes:
- (i) employees, personnel, secondees, agents, principals and contractors, who are individuals, of Supplier Subcontractors; and
 - (ii) the Transitioned Employees and secondees from any Customer Group Member.
- 1.122 “ Customers”** means a person to whom one or more Customer Group Members provides goods or services from time to time, including any and all present or prospective customers or

clients of any Customer Group Member.

- 1.123** “**████ In-Scope FTEs**” means the full-time employees deployed by a Customer Group Member to perform the services equivalent to the Operational Services prior to the effective date of the relevant Statement of Work or Implementation Agreement, as set out in the relevant Statement of Work or Implementation Agreement, as may be amended from time to time by such adjustments effected by Parties either by mutual agreement in writing or the deeming provision in Clause 20.
- 1.124** “**████ In-Scope FTE Determination Date**” is defined in Clause 22.4.1.
- 1.125** “**████ Vendors**” means a Third Party that provides products or services to any Customer Group Member from time to time, including any and all present or prospective vendors, suppliers and/or other subcontractors of any Customer Group Member.
- 1.126** “**Policy and Procedures Manual**” means the manual which has been accepted and approved by Customer in accordance with Schedule 4 (Service Levels) and which has been developed by Supplier in accordance with Clause 7.19, as may be updated from time to time.
- 1.127** “**Process**” means a process under a Tower as described in Schedule 4 (Service Levels) and Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.128** “**Productivity Guarantee**” is defined in Clause 22.4.
- 1.129** “**Proposal**” is defined in Recital (C).
- 1.130** “**Ramp Down Fee**” means an amount described under Schedule 5 (Pricing) as “*Ramp Down Fee*”.
- 1.131** “**Ready for Use**” means fully tested, available for use and accepted by Customer in accordance with Clauses 7.2.1 (General evaluation and acceptance testing) or 7.2.2 (Specific acceptance testing) (including full compliance with the conditions in Clause 7.2.5 (Issuance of Acceptance Certificate)), as the case may be.
- 1.132** “**Recipient**” is defined in Clause 37.1.2.
- 1.133** “**Recurring Charges**” mean the amount(s) specified under Schedule 5 (Pricing) as “*Recurring Charges*”
- 1.134** “**Reduced Resource Credit**” or “**RRC**” means a credit (subtraction) given to the Customer for the applicable calendar month in relation to a Process under an SOW, calculated in accordance with Schedule 5 (Pricing).
- 1.135** “**Repayment Amount**” is defined in Clause 3.3.2.
- 1.136** “**Repayment Date**” is defined in Clause 3.3.2.
- 1.137** “**Repayment Instalment**” is defined in Clause 3.3.2.
- 1.138** “**Resource Baseline Adjustment Event**” occurs in the event of any of the following:
- (i) the total FTEs utilised and authorised by Customer in relation to Operational Services under a Process in a █████ during a calendar month is 15% or more above the relevant SSC Aggregated Resource Baseline for three consecutive calendar months during the Term; or
 - (ii) the total FTEs utilised and authorised by Customer in relation to Operational Services under a Process in a █████ during a calendar month is 15% or more below the relevant SSC Aggregated Resource Baseline for three consecutive calendar months during the Term.

- 1.139 “Resource Baseline(s)”** means the estimated volume of Resource Units that will be required and utilised by the Customer Group for a particular Process against the Volume Baseline of such Process during a calendar month, as set out in the relevant Statement(s) of Work and/or Implementation Agreement(s), as amended from time to time in accordance with this Agreement, including (where applicable) the application of productivity improvements or efforts to meet the Productivity Guarantees.
- 1.140 “Resource Unit(s)”** means a measurable device, unit of consumption, staffing level, or other resource that is associated with the Services for a particular Tower or Process and is utilised as a volume measure and for pricing purposes.
- 1.141 “Resources”** means Personnel, Sites, Supplier Systems, Equipment, Software, procedures, processes and other resources.
- 1.142 “Restructured Business”** means any Incoming Business or Outgoing Business and **“Restructuring”** means any circumstance, activity, operation, undertaking, transaction or other condition that creates, leads to or results in a Restructured Business.
- 1.143 “RFP”** means the Request for Proposal issued by Customer on 15 October 2023 and includes all documents comprising the request, including the RFP Compliance Table.
- 1.144 “Risk Assessment and Mitigation Plan”** means a plan to identify (and where possible quantify) the likelihood and potential impact of any risk or set of related risks as well as the schedule of recommended activities and deliverables necessary to reduce the impact or likelihood that such risk event will occur.
- 1.145 “Schedule”** means a Schedule to this Agreement.
- 1.146 “Security Breach”** is defined in Clause 8.2.2.
- 1.147 “Security Measures”** is defined in Clause 8.2.1.
- 1.148 “Service Delivery Head”** means the person nominated by Supplier pursuant to Clause 27.3.1.
- 1.149 “Service Level”** means any and all service levels described in Schedule 4 (Service Levels) and elsewhere in this Agreement including Key Measurements and Critical Service Levels.
- 1.150 “Service Level Credit”** means the monetary amount(s) that Supplier shall be obliged to pay to Customer (or apply against Monthly Fees) in the event of a Service Level Default.
- 1.151 “Service Level Default”** means a Minimum Service Level Default or an Expected Service Level Default.
- 1.152 “Service Security Codes”** means all smart cards, digital certificates, digital signatures, electronic keys, logon identifiers, passwords, personal identification numbers (PINS), electronic devices and other codes and access procedures issued by or on behalf of Supplier.
- 1.153 “Services”** is defined in Clause 4.1 (Scope of Services).
- 1.154 “Sites”** means any and all locations of any Customer Group Member and of Supplier or any Supplier Subcontractor where the Services shall be performed or delivered to or received at, from time to time, including each location specified in the Schedule 7 (Customer Sites and Customer Group Members)), and as may change during the Term (and which shall include such other locations designated by Customer from time to time), including (where applicable) the facilities, offices or fixtures within a location.
- 1.155 “Software”** means any software, applications, programmes, scripts, macros, and any code (of any type and in any language, and whether compiled or not).
- 1.156 “Specific Acceptance Tests”** is defined in Clause 7.2.2.
- 1.157 “Specific Commercially Available Supplier Materials”** shall mean only those Commercially

Available Supplier Materials set out in Schedule 19 (Specific Commercially Available Supplier Materials).

- 1.158** “**Specific Test Procedures**” is defined in Clause 7.2.2.
- 1.159** “**Specified Period**” is defined in Clause 33.3.2.
- 1.160** “**SSC Aggregated Resource Baseline**” means in relation to a Supplier Site, the sum of all Resource Baselines for a Process, under all Statements of Work and Implementation Agreements in-force during a calendar month (subject to any pro-rating for Statements of Work and Implementation Agreements which are in force for a period less than the full calendar month), designated to be provided from such Supplier Site.
- 1.161** “**Statement(s) of Work**” or “**SOW**” means the statements of work (each a “**Statement of Work**”) in the form set out in Schedule 2 (Statements of Work).
- 1.162** “**Station**” means each of the Customer Group’s branch offices, representative offices or any other form of business presence or commercial operations in the Territory (whether or not in existence or contemplated as at the Commencement Date).
- 1.163** “**Subject Individuals**” is defined in Clause 36.10.11.
- 1.164** “**Successor**” is defined in Clause 43.1.1(iii).
- 1.165** “**Success Criteria**” is defined in paragraph 2.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.166** “**Supplier Applicable Taxes**” means all taxes, charges, fees, levies, duties and governmental fees or other like assessments or charges of any kind whatsoever (including without limitation those relating to income (net or gross), gains, profits, licence, excise, registration, franchise, employment, payroll, withholding, transfer, or stamp) whether of Singapore or elsewhere, in respect or in connection with the Services provided by Supplier to the Customer Group or any right, licences and privileges granted by Supplier to the Customer Group or the Authorised Users, other than ordinary corporate income tax imposed on Supplier in all applicable jurisdictions.
- 1.167** “**Supplier Group**” means Supplier and its Affiliates from time to time.
- 1.168** “**Supplier Group Member**” means any entity in Supplier Group.
- 1.169** “**Supplier Materials**” is defined in Clause 33.3.1.
- 1.170** “**Supplier Parent**” means [REDACTED]
- 1.171** “**Supplier Sites**” means any location of Supplier (or its Affiliates) or any Supplier Subcontractor, where the Services shall be or are performed, delivered to or received at, including (where applicable) the facilities, offices or fixtures within a location at and from which Supplier provides the Services. “**Supplier Sites**” shall be deemed to include all locations set out in Schedule 15 (Supplier Sites).
- 1.172** “**Supplier Subcontractor**” means a subcontractor of Supplier.
- 1.173** “**Supplier Systems**” means the applications, systems, facilities, networks, Equipment and/or Software that are owned, leased, licensed to or under the control of Supplier or any Supplier Subcontractor from time to time and used in connection with the Services. In particular, the following are deemed to be specifically covered by the term “*Supplier Systems*”:
- (i) such applications, systems, facilities, networks, Equipment and/or Software defined to be part of Supplier Systems in Schedule 8 (Supplier Systems, Technical Architecture and Product Standards); and

- (ii) such applications, systems, facilities, networks, Equipment and/or Software that are owned, leased, licensed to or under the control of Supplier or any Supplier Subcontractor from time to time that offers or purports to offer similar functionalities or features as any of the above.

1.174 “**Targeted Resources**” is defined in Clause 18.2.3(i).

1.175 “**Tax**” means any tax, levy, impost, duty or other charge or withholding of a similar nature (including any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same).

1.176 “**Technology Evolution**” means:

- (i) any improvement, upgrade, supplement, modification, replacement, enhancement or other change to Supplier Systems, hardware, software, telecommunications transport systems and interfaces, personnel skills, processes and methods used to provide the Services including higher capacity, faster hardware, new versions of software, new processes, new types of hardware and communications equipment that will enable Supplier to perform Services more efficiently; and
- (ii) any change to Supplier Systems used to provide the Services that is necessary to bring those Systems into line with current industry standard as determined by Customer.

1.177 “**Technology Implementation Services**” means the services specified in paragraph 4.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) as “*Technology Implementation Services*”, and any variation to those services made in accordance with this Agreement.

1.178 “**Technology Implementation Services Charges**” means the amount(s) specified under Schedule 5 (Pricing) as “*Technology Implementation Services Charges*”.

1.179 “**Technology Solutions**” is defined in paragraph 3.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).

1.180 “**Technology Recurring Services**” means the services specified in paragraph 4.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) as “*Technology Recurring Services*”, and any variation to those services made in accordance with this Agreement.

1.181 “**Technology Recurring Services Charges**” means the amount(s) specified under Schedule 5 (Pricing) as “*Technology Recurring Services Charges*”.

1.182 “**Term**” is defined in Clause 3.1 (Term).

1.183 “**Termination/Expiration Assistance**” means the services, functions, responsibilities and obligations that are required or necessary to allow the Services to continue without interruption and to facilitate the orderly transfer of the Services to Customer or the Successor, and includes all the services, responsibilities and obligations set out in Clause 43 (Termination/Expiration Assistance).

1.184 “**Termination/Expiration Assistance Commencement Date**” means the earlier of:

- (i) six months prior to the expiration of this Agreement;
- (ii) upon the date specified in any notice of termination or non-renewal of this Agreement, or if no date is specified the effective date of the notice; or
- (iii) six months prior to any other ceasing of Service under this Agreement,

as applicable, or such other date as may be agreed between the Parties.

- 1.185 “Termination/Expiration Assistance Period”** means the period commencing from the Termination/Expiration Assistance Commencement Date and ending upon the expiry of twelve (12) months from the date of the termination or expiration of this Agreement or a ceasing of Services under this Agreement, or such shorter period as may be notified by Customer to Supplier in writing.
- 1.186 “Termination/Expiration Assistance Plan”** means the plan to be developed by Supplier pursuant to Clause 43.2 (Termination/Expiration Assistance Plan) and which is approved by Customer pursuant to Clause 43.2.3 and Clause 43.2.5.
- 1.187 “Termination Assistance Fee”** means an amount specified under Schedule 5 (Pricing) which is payable by Customer being Supplier’s total charges (in addition to the Fees for any ongoing Services) to Customer for the effort and activities required to provide Customer with Termination/Expiration Assistance where this Agreement is terminated.
- 1.188 “Termination Fee”** means an amount specified under Schedule 5 (Pricing) as “*Termination Fee*”.
- 1.189 “Territory”** means each of the countries in Part (A) of Schedule 21 (Territory & Implementation Agreement Countries).
- 1.190 “Third Party”** means a legal entity, company or person(s) that is not a party to this Agreement.
- 1.191 “Third Party Materials”** means Software and other Materials owned by a Third Party.
- 1.192 “Third Party Systems”** means the applications, systems, facilities, networks, Equipment and/or Software that are owned, leased, licensed to or under the control of a Third Party (including [REDACTED] Vendors where applicable) from time to time.
- 1.193 “Third Party Vendor(s)”** means a Third Party that provides to any Party products or services that are related to, or are in support of, the Services. Third Party Vendors do not include subcontractors of Supplier.
- 1.194 “Tollgate”** is defined in paragraph 2.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.195 “Total [REDACTED] Scope FTEs”** means the total number of [REDACTED] In-Scope FTEs identified in all the Statements of Work and Implementation Agreements then in-force.
- 1.196 “Tower”** means a general grouping of related Processes and Operational Services that are described within the Statements of Work and/or Implementation Agreements, namely, those set out in in Schedule 4 (Service Levels) and Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.197 “Transfer Option”** has the meaning given to it at Paragraph 1 of Schedule 16 (Post-Termination Transfer Procedures).
- 1.198 “Transformation Milestone”** means a deadline in the plan entitled “*Transformation Plan*” in Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) for completion of a Wave.
- 1.199 “Transformation Plan”** is defined in paragraph 3.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.200 “Transformation Implementation Services”** means the services specified in paragraph 3.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) as “*Transition Implementation Services*”, and any variation to those services made in accordance with this Agreement.
- 1.201 “Transformation Implementation Services Charges”** means the amount(s) specified under Schedule 5 (Pricing) as “*Transformation Implementation Services Charges*”.

- 1.202** “**Transformation Plan**” means the plan entitled “*Transformation Plan*” as set out in Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.203** “**Transformation Recurring Services**” means the services specified in Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) as “*Transformation Recurring Services*”, and any variation to those services made in accordance with this Agreement.
- 1.204** “**Transformation Recurring Services Charges**” means the amount(s) specified under Schedule 5 (Pricing) as “*Transformation Recurring Services Charges*”.
- 1.205** “**Transformation Services**” means the Transformation Recurring Services and the Transformation Implementation Services.
- 1.206** “**Transition and Transformation Plan**” means the following:
- (i) the Transition Plan; and
 - (ii) the Transformation Plan.
- 1.207** “**Transition Milestone**” means a deadline in the plan entitled “*Transition Plan*” in Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) for completion of a Wave.
- 1.208** “**Transition Plan**” means the plan entitled “*Transition Plan*” as set out in Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services).
- 1.209** “**Transition Services**” means the services specified in paragraph 2.1 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services) as “*Transition Services*”, and any variation to those services made in accordance with this Agreement.
- 1.210** “**Transition Services Charges**” means the amount(s) specified under Schedule 5 (Pricing) as “*Transition Services Charges*”.
- 1.211** “**Transitioned Employees**” means Customer in-scope employees who accept an employment offer from Supplier.
- 1.212** “**Unearned Costs**” means, in relation to Services corresponding to One-Time Charges which have not yet been Earned, the following categories of costs actually incurred by Supplier (as demonstrated to the Customer’s reasonable satisfaction) in performing such Services:
- (i) license fees;
 - (ii) remuneration and training cost for Supplier’s employees;
 - (iii) hosting, cloud service consumption and infrastructure procurement charges;
- “**Unearned Costs**” shall exclude the following:
- (a) operational or other costs not relating to performance of this Agreement and which relate to the day to day operation of Supplier or its Affiliates’ office and other general, routine or common expenses (such as utilities, office supplies and equipment, manpower costs and benefits, rent and other ancillary tenancy charges, travel or transportation);
 - (b) costs and expenses incurred or which would have been incurred in the provision of Services which have not been terminated (in the case of termination in part);
 - (c) such costs which the Supplier would not have been entitled to if it had discharged its duty to take all reasonable action to mitigate any cost, loss and/or damages suffered by it;

- (d) such costs for goods and/or services which could have been avoided upon being aware of the termination;
- (e) savings that the Supplier could have obtained if it had cancelled or terminated the commitment to such costs and expenses; and
- (f) such costs and expenses which Supplier cannot demonstrate Customer's reasonable satisfaction as being incurred by Supplier to perform the relevant services.

1.213 "Virus(es)" means (a) any and all forms of malicious, surreptitious, destructive or corrupting code, agent, macro or any other program, including viruses, Trojan Horses, worms and logic bombs or any other software routine or hardware components, which are designed to permit unauthorised access, to disable, erase, corrupt or otherwise harm or damage software, hardware or data, or to perform any such actions; or (b) any device, method, or token whose apparent or intended purpose is to allow circumvention of the normal security of the Software or the system containing the code.

1.214 "Volume Baseline" means the estimated amount, quantity, volume or frequency of Operational Services consumed under a Process during a calendar month, which shall be the average of the amount, quantity, volume or frequency of Operational Services for the relevant Process over the 12 months prior to the date of the relevant Detailed Requirements Study, and as set out in the relevant Statement(s) of Work and/or Implementation Agreement(s).

1.215 "Wave" means a stage specified in the Transition Plan or Transformation Plan, as the case may be.

1.216 [REDACTED] means a Supplier service center designated to provide Operational Services to Customer. As of the Commencement Date, the [REDACTED] [REDACTED]s are as follows:

- (i) China;
- (ii) India;
- (iii) Sri Lanka; and
- (iv) Malaysia.

1.217 "Work Order" shall be as defined in Schedule 23 (New Services).

2. Interpretation

2.1 In this Agreement: (i) references to a Clause, Schedule, Appendix, or any other agreement or document, in this Agreement shall be deemed to refer to the clause of, or schedule or appendix to, this Agreement, or to such other agreement or document, as may be amended, modified or supplemented from time to time, and will include a reference to any document which amends, modifies or supplements it, or is entered into, made or given pursuant to or in accordance with its terms, unless otherwise expressly provided; (ii) references to Paragraphs, Parts and Sections shall be deemed to refer to the paragraphs, parts and sections of the relevant Schedule; (iii) clause headings are inserted for convenience of reference only and shall not be deemed to be part of this Agreement or be taken in consideration in the interpretation or construction of this Agreement; (iv) words importing the singular only shall also include the plural and vice versa where the context requires; (v) whenever the words "*include*", "*includes*" or "*including*" are used in this Agreement, they will be deemed to be followed by the words "*without limitation*"; (vi) unless expressly indicated otherwise, all references to a number of days mean calendar days (including Saturdays, Sundays and public holidays in Singapore), and the words "*month*" or "*monthly*" as well as all references to a number of months means calendar months; (vii) references to any "*person*" include any natural person, corporation, judicial entity,

association, statutory body, partnership, limited liability company, joint venture, trust, estate, unincorporated organisation or government, state or any political subdivision, instrumentality, agency or authority; (viii) any reference to any Party will be construed as a reference to such Party's successors and permitted assigns; (ix) "*may*" means having the right, but not the obligation, to do something and "*may not*" means not having the right to do something; (x) "*will*" and "*shall*" are expressions of command, not merely expressions of future intent or expectation; (xi) "*written*" or "*in writing*" is used for emphasis in certain circumstances, but that will not derogate from the general application of the notice requirements set forth in Clause 65 (Notices) in those and other circumstances; (xii) for the avoidance of doubt, terms in Schedule 1 (Definitions & Interpretation) which are defined with respect to an Implementation Agreement shall all refer to the same Implementation Agreement, unless otherwise indicated; and (xiii) for the avoidance of doubt, any recitals are for background information only and shall not be deemed to be part of this Agreement or be taken into consideration in the interpretation or construction of this Agreement.

- 2.2** Except as otherwise set forth in the body of this Agreement (i.e., Clauses 1 (Definitions & Interpretation) through 67 (Use of Name) or in any Exhibits, Attachments, Schedules or Appendices, in the event of a conflict or inconsistency in or between any provisions of this Agreement set out below, the provisions will be applied in the following order of precedence with the provisions higher in the order of precedence prevailing over the provisions in the lower order of precedence:
- 2.2.1** the provisions in the body of this Agreement;
 - 2.2.2** the provisions in the Exhibits, Attachments, Schedules or Appendices; and
 - 2.2.3** the provisions in any other document referred to in this Agreement.
- 2.3** No provision of this Agreement shall be construed adversely to a Party solely on the ground that the Party was responsible for the preparation of this Agreement or that provision.

Schedule 2
(Statements of Work)

This Schedule 2 shall contain executed Statements of Work as contemplated by Clause 6.2.

Schedule 3
(Form of Statements of Work and Acceptance Certificate)

Schedule 2-[X] [Territory]

This Statement of Work is entered into on this day of by and between:

- (1) [REDACTED]
- (2) [REDACTED]

1. Definitions and interpretation

1.1. In this Statement of Work, the following terms are defined as follows:

“**Agreement**” means the Business Outsourcing Agreement entered between the Parties dated [REDACTED]. Where this Statement of Work is entered into pursuant to an Implementation Agreement, “**Agreement**” shall mean the relevant Implementation Agreement.

“**Customer**” shall mean [REDACTED], save where this Statement of Work is entered into pursuant to an Implementation Agreement, in which case “**Customer**” shall mean the relevant Customer Group Member.

“**Deemed Commencement Date**” means the date on which Operational Services were delivered by the Supplier’s [REDACTED] in Malaysia, if applicable.

“**Local Commencement Date**” means the date on which provision of Operational Services to the Customer Site stated at paragraph 2 below is expected to commence, which may include more than one date if the commencement of Operational Services are in phases.

“**Party**” means either the Customer or the Customer Group Member, as the case may be, or the Supplier, and “**Parties**” means the Customer or the Customer Group Member, as the case may be, and the Supplier.

1.2. This Statement of Work is a “**Statement of Work**” as defined in the Agreement, and is issued pursuant to the Agreement and forms part of the Agreement. Capitalised terms used in this Statement of Work that are not defined in this Statement of Work shall have the meanings given to them in the Agreement.

2. Particulars

3. Part	Item	Particulars
1.	Contracting Party	[insert Customer or Customer Group Member]
2.	Customer Site	
3.	Local Commencement Date	[insert relevant date(s)]
4.	Territory	[insert relevant country]
5.	Operational Services	As set out in Annex A

If certain Operational Services for the Customer Site are performed out of the Supplier Site in Malaysia, please complete Part 6 and 7 below:		
6.	Deemed Commencement Date for FTEs in Malaysia	[insert relevant date if applicable.]
7.	Supplier's FTEs in Malaysia (which shall be part of the [redacted] In-Scope FTE)	FTEs for Business Operation: [insert number] FTEs for Accounts Payable: [insert number] FTEs for Accounts Receivables: [insert number]

3. Term

- 3.1. This Statement of Work is coterminous with the Agreement unless it is terminated earlier in accordance with the terms of the Agreement. For the avoidance of doubt, in the event the Agreement is terminated for any reason whatsoever, this Statement of Work shall also be deemed terminated as of the date of the termination of the Agreement.

4. Services

- 4.1. The Supplier shall provide the Customer with the Operational Services set out in the Agreement.
- 4.2. For the avoidance of doubt, Operational Services provided by the Supplier's FTEs from the Supplier Site in Malaysia shall be charged from the Deemed Commencement Date at the applicable FTE Rate, with the number of such FTEs as set out in the corresponding box in Clause 2.
- 4.3. Notwithstanding the foregoing, the Parties have agreed that in the event any Operational Services shall not be provided by the Supplier for the Territory, whether as agreed by the Parties and/or in accordance with mandatorily applicable Laws and Legal Requirements set forth in Clause 7.1 below, such Operational Services shall be set out in the table below in Annex A.

5. Agreed Operational Matters

- 5.1. The agreed details as to the Processes and sub-Processes applicable to the Customer Site and the corresponding [redacted] In-Scope FTEs, FTEs, Supplier Sites, Resource Baseline, and Volume Baseline applicable to the Customer Site / Territory, applying the methodology set out in Schedule 13 (Transition and Transformation Plan) are set out in **Annex A**, and is further summarised at **Annex B**. The Resource Baseline for the Processes and sub-Processes applicable to the Customer Site / Territory shall be inclusive of all agent(s), team lead(s), and process manager(s).
- 5.2. **Annex C** and **Annex D** are forms used for the Parties' operational purposes and do not have a legal or contractual effect.

6. High level Transition timelines

- 6.1. The Parties have agreed that the Transition Plan specific for the Territory shall be in accordance with the following high level chart showing the estimated Completion Dates and/or the relevant Deliverables.

<<Gantt Chart showing>>

- 6.2. [any deviations to the estimated times of completion as set out in the MSA or Schedule 14 (Transition and Transformation Plan) that are specific to the Territory to be set out here as well.
+ waves of task transfer]

7. Territory-specific terms and conditions

- 7.1. Without prejudice to the provisions of the Agreement, to the extent that there are other terms and conditions of the Agreement that are required to be amended by the Parties and/or by mandatorily applicable Laws and Legal Requirements, for the purposes of provision of the Services in the Territory, such terms and conditions are as set out below:

- 7.1.1. [local laws or regulations prohibiting any part of outsourced Processes]
- 7.1.2. [employment]
- 7.1.3. [data privacy, protection, and localisation]
- 7.1.4. [other country-specific terms and conditions]

8. Acceptance Certificate

- 8.1. Upon the completion of the Transition Plan i.e. the full cut over of the Operational Services to the Supplier, insofar as it relates to the Territory, the Customer shall sign an Acceptance Certificate, as defined in Clause 7.2.5(i) the Agreement, in the form set out in Annex E (Form of Acceptance Certificate) of this Schedule.

SIGNED for and on behalf of **Customer**

Signature:

Signature:

Full Name:

Full Name:

Position: [relevant BPSS head]

Position: [relevant Finance head]

Date:

Date:

Signature:

Signature:

Full Name:

Full Name:

Position: [relevant Logistics head]

Position: [relevant Territory head]

Date:

Date:

SIGNED for and on behalf of **Supplier**

Signature:

Full Name:

Position:

Date:

Annex A – Agreed Operational Services, Baselines, and FTEs

Tower	Process	Sub-Process	Included in this Statement of Work (Y/N)	In-Scope FTE	Supplier Site (which will be performing the relevant Operational Services)	Volume Baseline	Resource Baseline

Annex B – Summary of details for the Territory

Details	Details	Remarks (if any)
Territory		
Customer or Customer Group Member		
Impacted Division Name (s)		
Total ■ In-Scope FTEs		<i>Total FTEs of all services for the Territory and Customer Site</i>
FTEs		<i>This is for the agreed ■ s at the time of commencement of services</i>
Supplier Sites involved		
Billing status	Cost + / Cost + (tentative) / non cost +	<i>Please select one</i>

FTE distribution for the Territory across Supplier Sites:

Supplier Site	Total FTEs (at the time of commencement date)	Remarks (if any)
China		
Colombo		
Hyderabad		
Malaysia		
Total		

Annex C

 In-Scope FTE Calculation Form for each Process

Country Name: _____
 Process Name: _____
 Process Sr. No _____
 Operating
 hours/days of the
 week: _____

Month / Year (MM/YY) _____
 Data Source Vol: _____
 Data Source HC: _____
 Unit of Measure for
 transactional Vol: _____

S. No.	Month (MM/YY)	Transaction Vol (A)	Headcount (B)	No. Of working days (C)	Productivity / FTE / Day (A / B / C)
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					
11					
12					
	Monthly Avg				

*this Calculation Form is to be completed to determine the Volume Baseline

Notes

- For each service tower number fill separate Annexure
- Past 12 months transaction volume for the mentioned country
- Mention data source
- Mention report criteria for arriving at transaction volume
- Avg HC for the month doing the process for the mentioned country
- No. of working days as per the calendar month, exclude local holidays

Annex D

Local Holiday Calendar

<<Insert Local Holiday Calendar>>

The customer will share this calendar before 31st December every year.

Annex E – Form of Acceptance Certificate**Acceptance Certificate**

Statement of Work reference	Schedule 2-[X]
Territory	[relevant territory]
Customer Site	
Date of issuance	[date of issuance]
Date of Completion of Transition Services (and commencement of Operational Services)	[date(s) of cut over of Operational Services for the Territory]

1. This Acceptance Certificate is issued in accordance with the terms set forth in the Statement of Work mentioned herein. By issuing this Acceptance Certificate, the Customer formally acknowledges the completion of the Transition Plan for the Territory and the commencement of Operational Services for the Territory.
2. For the avoidance of doubt, the issuance of this Acceptance Certificate shall not constitute any evidence or representation by the Customer that all warranties, obligations and undertakings of Supplier which are or have become due to be discharged and observed have been discharged or observed and shall not constitute a waiver the Customer of any claims it may have against Supplier as of that date with respect to those warranties, obligations and undertakings.

Authorised signatures:

Customer

Signature:

Full Name:

Position: [relevant BPSS head]

Date:

Signature:

Full Name:

Position: [relevant Finance head]

Date:

Signature:

Full Name:

Position: [relevant Logistics head]

Date:

Signature:

Full Name:

Position: [relevant Territory head]

Date:

Supplier

Signature:

Full Name:

Position:

Date:

Schedule 4 (Service Levels)

This Schedule sets out the Service Levels applicable to the Operational Services and the Transformation Recurring Services provided by the Supplier pursuant to this Agreement.

1. Service Levels applicable to Operational Services

1.1. The Service Levels for the Operational Services, categorised on a Process basis are set out as follows:

- 1.1.1. Rate and Contract Management: as detailed in Appendix 4-1
- 1.1.2. Booking: as detailed in Appendix 4-2
- 1.1.3. Import Documentation: as detailed in Appendix 4-3
- 1.1.4. Export Documentation: as detailed in Appendix 4-4
- 1.1.5. Operations: as detailed in Appendix 4-5
- 1.1.6. Equipment Control: as detailed in Appendix 4-6
- 1.1.7. Accounts Payable: as detailed in Appendix 4-7
- 1.1.8. Accounts Receivables: as detailed in Appendix 4-8
- 1.1.9. Record to Report: as detailed in Appendix 4-9
- 1.1.10. Agency Statement of Account (ASA): as detailed in Appendix 4-10

1.2. Each Appendix setting out the Service Levels contains (i) the classification as to whether a Service Level is a Key Measurement or Critical Service Level; (ii) the Minimum Service Level and Expected Service Level for each Service Level; and (iii) how the Supplier's actual level of performance of a Service Level shall be determined.

2. Service Levels applicable to Transformation Recurring Services

2.1. The Service Levels for Transformation Recurring Services are as follows:

- 2.1.1. DSOP Support Services and DSOP Hosting Services: as detailed in Appendix 4-11
- 2.1.2. IA Support Services: as detailed in Appendix 4-12
- 2.1.3. Malkom.ai Support Services: as detailed in Appendix 4-13

2.2. The Service Levels required for Transformation Recurring Services are Key Performance Indicators and a default will not trigger the payment of any Service Level Credits.

- 2.3. Save for the foregoing, there are no other agreed Service Levels with regard to Transformation Recurring Services.

3. Service Level Credits

- 3.1. **Service Level Credits for Operational Services:** Service Level Credits are payable in the event of a Minimum Service Level Default.

- 3.2. The Service Level Credits for a Critical Service Level in a calendar month shall be calculated in line with the following methodology:

- 3.2.1. Where the Supplier does not meet the Minimum Service Level of a Critical Service Level, the Service Level Credits for that Minimum Service Level Default for that calendar month shall be calculated as follows:

$$\text{Service Level Credits for each Critical Service Level} = (A/100) \times B$$

A = the Allocated Percentage, expressed in %, for that Critical Service Level set out in the table below

B = the At Risk Amount

Scope Master Number	Process	Metric Name	Allocated Percentage
BO.RCM.001 BO.RCM.002 BO.RCM.003	RCM	RFA Input - Timeliness	10%
BO.RCM.001 BO.RCM.002 BO.RCM.003	RCM	RFA - Accuracy	5%
BO.BKG.001 BO.BKG.002	Booking	Booking timeliness (2Hrs)	20%
BO.IMP.004	Import Documentation	A/N Sending Timeliness	15%
FA.ACR.001	Account Receivable	Billing Accuracy	20%
BO.EXP.001 BO.EXP.002	Export Documentation	B/ L Accuracy Rate	20%
BO.EXP.001 BO.EXP.002	Export Documentation	Draft B/L Turn Around Time (Within 24 Hours)	20%
BO.EXP.001 BO.EXP.002	Export Documentation	Draft B/L Turn Around Time for shipments subject to advance manifest submission rule (before data transmission time)	20%

BO.EXP.001 BO.EXP.002	Export Documentation	B/L Release Turn Around Time	15%
BO.EXP.001 BO.EXP.002	Export Documentation	Invoicing Turn Around Time	10%
FA.ACR.003	Account Receivable	Cash application Timelines	10%
FA.ACR.003	Account Receivable	Cash application Accuracy	10%
Total base percentage			175%

3.2.2. The total Service Level Credits in a calendar month shall be the sum of all Service Level Credits for all Minimum Service Level Defaults across the Critical Service Levels.

3.2.3. Notwithstanding the foregoing, the total amount of Service Level Credits credited to the Customer in a calendar month shall not exceed the At Risk Amount in accordance with Clause 12.10.3 of the Agreement.

Illustration

One of the Service Levels required in the Process “Booking” is booking timeliness. This is a Critical Service Level, with a Minimum Service Level of 90%. Booking timeliness, on a percentage basis, is calculated as the number of booking requests completed within a turn around time of 2 hours divided by the total number of booking requests processed. The Allocated Percentage for this Critical Service Level is 20%.

Another Critical Service Level in the Process “Import Documentation” is A/N sending timeliness. This has a Minimum Service Level of 95%. A/N sending timeliness, on a percentage basis, is calculated as the number of arrival notices processed before VVD arrival divided by the total number of arrival notices that were received. The Allocated Percentage for this Critical Service Level is 15%.

In Month 18 (Contract Year 2), the number of booking requests received is 1000, which is not more or less than 15% from the Volume Baseline. The Supplier only processes 880 booking requests within the stipulated deadline or 88%, less than the Minimum Service Level of 900 booking requests to be processed within the deadline or 90%.

In the same month, the number of arrival notices received is 100, which is not more or less than 15% from the Volume Baseline. The Supplier only processes 92 within the stipulated deadline, or 92%, less than the Minimum Service Level of 95 arrival notices to be processed within the stipulated deadline, or 95%.

There are no other Minimum Service Level Defaults in Month 18. Assume that the aggregate Operational Services Charges for Month 18 was USD 500,000, which means that the At Risk Amount would be USD 50,000 (10% of the aggregate Operational Services Charges)

The Service Level Credits applicable for the Critical Service Level “booking timeliness” would be $(20/100) \times 500,00 = \text{USD } 10,000$

The Service Level Credits applicable for the Critical Service Level “A/N sending timeliness” would be $(15/100) \times 50,000 = \text{USD } 7,500$

The total amount of Service Level Credits for Month 18 would be $\text{USD } 7,500 + 20,000 = \text{USD } 27,500$. As the At Risk Amount is 10% of the aggregate Monthly Fees i.e. USD 50,000 ($10\% \times \text{USD } 500,000$), the amount of Service Level Credits credited to the Customer would be USD 27,500 and remains within the At Risk Amount. In the event that the total amount of Service Level Credits for any calendar month within the Term exceeds the At Risk Amount, the amount of Service Level Credits credited would be capped at the At Risk Amount.

Appendix 4-1

Rate and Contract Management

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

BO.RCM.001 BO.RCM.002 BO.RCM.003	RFA Input - Timeliness	To measure the timeliness of RFA entries	Yes	This service level is designed to measure the turnaround time of the and RFA (Rate Filing Activity) requests against pre- agreed completion deadlines. When Queries / Clarifications are sent to the onshore team for missing information, including approvals from RHQ, the clock will stop.	SLA	Measures the percentage of Rate Agreement registrations completed by the Agreed Deadline. Complex SCs TAT will be worked with / agreed with onshore The timelines for Normal RFA's as follow (a) within the same Onshore business day if RFA request arrives prior to 15:00 HRS onshore business	Local Workflow / Database	Manual	Total number of RFA's processed within the timeline agreed / Total Number of RA processed within the business day	No of Request	95%	98%	NA	NA
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[illegible]

[illegible]

already indicated on the request	

BO.RCM.001 BO.RCM.002 BO.RCM.003	RFA - Accuracy	To measure the accuracy of RFA entries	Yes	This service level is designed to measure the accuracy of the processing of RFA (Rate Filing Activity)	SLA	Defined as the percentage of accurate Rate Filing Activity requests filed based on the requests from Sales in line with the standard instructions in the Desk Procedure Manuals and Customer Standard Operating Procedures. The service level is calculated as the number of RFA's which have been accurately processed	Sales / Marketing / Trade Feedback	Manual	Total number of RFA's Accurately processed / Total Number of RFA Requests processed	No of request	NA	NA	97%	99%
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[illegible]

Appendix 4-2

Booking

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time			Accuracy		Expected Service Levels
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels	Expected Service Levels	

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[illegible]

BO.BKG.003	Booking Amendment Timeline	To measure the timeliness of booking amendments	Yes	This service level is designed to calculate the turnaround time for the processing of Booking Amendments against a 2 hour	KPI	Turnaround Time is the number of booking amendments requests received during Origin business hours that are turned around in 2	LMS & email	Manual	Total number of Booking Amendments processed within the timeline agreed / Total of Booking Amendment	No of Booking amendment request	90%	95%	NA	NA
				as applicable.		calculated as the number of booking requests (including new requests, updates and pending bookings) which have been accurately registered divided by total number of booking requests processed. (including new requests, updates and pending bookings)								

threshold. The process begins when the booking amendment request is received at the delivery center and the clock ends when the process is complete.	business hours. Any booking amendment requests received outside of Onshore business hours will be treated as received at the start of the next working day.	requests processed
This could either be a confirmation to customer or a handover to onshore based on the Regional process design.	This service level is calculated as the number of booking amendment requests completed within 2 hours turnaround time divided by total number of booking amendment requests processed.	
	Clock stops in case the	

booking amendment request needs to further verified with onshore or the customer
--

Appendix 4-3

Import documentation

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

BO.IMP.004	A/N Sending Timeliness (ARRIVAL NOTICE)	To measure the timeliness of A/N Sent before Vessel Arrival	Yes	This service level measures the percentage of B/L that were completed within TAT (As per each location)	SLA	This service level measures the percentage of B/L that were completed within TAT (As per each location)		Manual	This service level is calculated as (the number of Arrival Notice processed before VVD arrival) divided by (the total number of Arrival Notice that were received in the measurement period)	No. of BLs	95%	99%	95%	99%
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FA.ACR.001	Billing accuracy	To measure the accuracy of Invoice generated from Import side.	This service level measures the percentage of Invoice that were completed accurately.	SLA	This service level measures the percentage of Invoice that were completed accurately.		Manual	This service level is calculated as (the number of Invoice processed accurately) divided by (the total number of Invoice that were processed in the measurement period).	No. of BLs	95%	99%	95%	100%
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Appendix 4-4

Export Documentation

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

BO.EXP.001 BO.EXP.002	Accuracy Rate	To measure the Accuracy of Draft BLs processed	Yes	This service level measures the percentage of Draft B/L that were Accurately completed	SLA	This service level measures the percentage of Draft B/L that were Accurately completed		Manual	This service level is calculated as (the total number of Draft B/L that were processed) - (the number of errors) divided by (the total number of Draft B/L that were processed in the measurement period).	No of Draft BL	NA	NA	98%	99%
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BO.EXP.001 BO.EXP.002	Draft B/L Turn Around Time (Within 24 Hours)	To measure the timeliness of Draft B/Ls processed within 24 hrs. from SI being received	Yes	This service level measures the percentage of draft B/L that were completed within 24 hours of receipt of SI	SLA	This service level measures the percentage of Draft B/L that were completed within 24 hours of receipt of SI	LMS & Email	Manual	This service level is calculated as (the number of Draft B/L completed within 24 hours excluding weekends) divided by the total number of Draft B/L that were received in the measurement period).	No of Draft BL	90%	95%	NA	NA
BO.EXP.001 BO.EXP.002	Draft B/L Turn Around Time for shipments subject to advance manifest submission rule (before data transmission time)	To measure the timeliness of B/Ls processed before data transmission time	Yes	This service level measures the percentage of B/L subject to the advance manifest submission rule that were Properly completed before the Manifest	SLA	This service level measures the percentage of B/L subject to the advance manifest submission rule that were Properly completed before the Manifest		Manual	This service level is calculated as (the number of Draft B/L subject to the advance manifest submission rule that were Properly completed before the Manifest Data Transmission	No of Draft BL	100%	100%	NA	NA

[illegible]

BO.EXP.001	B/L Release	To measure	No	This service	SLA	This service	Manual	# of request released within time / Total B/L request received	No. of B/L release request	95%	98%	NA	NA
BO.EXP.002	Turn Around Time	the timeliness of BLs released		level measures the percentage of B/Ls released within 6 hours of receiving the request till 1700 hrs local time. Post 1700 hours it will be completed by 1100 hours local time next day. Weekend & Holiday requests will be actioned by 1400 hrs on Monday		level measures the percentage of B/Ls released within 6 hours of receiving the request till 1700 hrs local time. Post 1700 hours it will be completed by 1100 hours local time next day. Weekend & Holiday requests will be actioned by 1400 hrs on Monday							

BO.EXP.001 BO.EXP.002	Invoicing Turn Around Time	Invoicing Turn Around Time	No	48 hrs from Vessel ATD	SLA				Manual	# of invoices sent within 48hrs of ATD/ # of invoices to be sent within 48 hrs of ATD	# of Invoices	85%	90%	NA	NA
BO.EXP.001 BO.EXP.002	Invoicing Turn Around Time	Invoice Accuracy	Measured as part of Draft BL process												

Appendix 4-5

Operations

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time			Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels	

FA.ACP.006 FA.ACP.007 FA.ACP.008	Invoice verification - Terminal/Transport/Port/MNR : TAT	To measure the terminal invoice verified within TAT.		This service level measures the percentage of terminal invoice verified within the agreed deadline. The process begins when the invoice is received at the delivery center and the clock ends when sent for payment or Biz Common (Common based on Regional process agreements)	KPI	Auditing and validating invoices to ensure timely payment to terminals.	System / Excel / Invoice Received / Email	Manual	No. of invoices verified within TAT / Total no. of invoices received	No of Invoice	95%	98%	NA	NA
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FA.ACP.006	Invoice verification -	To measure the accuracy of terminal invoices verified.	This service level measures the percentage of terminal invoices verified accurately in conjunction with the instructions from on-shore.	KPI	Is responsible for auditing and validating invoices to ensure rates and volumes match with the data for proper payment.	System / Invoice Received	Manual	Total number of Terminal invoices verified (-) the total number of Error Received from Client / Total Number of Terminal invoices received.	No of Invoice	NA	NA	95%	98%
FA.ACP.007	Terminal/Transport/Port/MNR:												
FA.ACP.008	Accuracy												

Appendix 4-6

Equipment Control

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

BO.EQC.001	CTM Data Control - Accuracy	To Measure the Accuracy of the Data Amended / Corrections processed	Yes	This metric is intended to ensure the accurate amendments / corrections of request received / failures in the System	KPI	Defined as accurate rectification of error based on the system guides, customer requirements and system / email information available at the time of rectification and data amendments received. The service level is calculated as the number of Errors Accurately Cleared/Addressed which have been pulled from the system and amendment received divided by the total errors / rejections in the Failure list taken for the Day (24 Hrs. Data File) and amendment received.	System / Email	Manual	Total number of events cleared and amendment processed - Total No of Data control Error (Reported by Onshore) / Total Failure list received from the System and amendment received	No of Container Moves	NA	NA	95%	98%
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BO.EQC.001	CTM Data Control - TAT	To Measure the Timeliness of the Data Amended / Corrections processed	Yes	This metric is intended to measure the timely rectification of the failures / rejections in the system and data amendments received	KPI	Defined as timely clearance of the failures / rejection logs and amendment within 24 hours of receipt. The service level is calculated as the number of successful errors cleared/addressed which have been pulled from the system and amendments processed within the agreed timeline divided by the total failures / rejections for the Day that have been pulled from the system (24 Hrs Data File) and amendment processed.	System / Email	Manual	Total no of successful errors cleared/addressed and amendments processed within the TAT /Total Failure list received from the System and amendment processed	No of Container Moves	95%	98%	NA	NA
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Appendix 4-7

Accounts Payable

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

FA.ACP.002	Invoice processing timeliness	To measure the invoice processed within TAT.	Yes	This service level measures the percentage of invoice processed within the agreed deadline. The process begins when the invoice is received at the delivery center and the clock ends when CSR is created or Biz Common (based on Regional process agreements)	KPI		Define as the percentage of invoices that were processed within 5 days upon receipt for Normal request and within 24 hours of the date of receipt for Urgent request for all locations up to CSR Creation OR Biz Common Approval (based on regional process).	System / Excel / Invoice Received / Email	Manual	No. of invoices processed within TAT / Total no. of invoices processed	No of Invoice	97%	99%	na	na
							This service level is calculated as the number of invoices processed within the agreed timeline divided by the total number of invoices processed by the team.								

FA.ACP.002	Invoice Processing accuracy	To measure the accuracy of invoice processed.	Yes	This service level measures the percentage of invoice processed accurately in conjunction with the instructions from on-shore.	KPI	Define as the percentage of invoices that were accurately processed based on the instructions from on-shore. The service level is calculated as the number of invoices which have been accurately processed divided by total number of invoices processed by the team.	System / Invoice Received	Manual	Total number of AP invoice processed (-) the total number of Error Received from Client / Total Number of AP invoices processed for Payment.	No. of Invoice	na	na	95%	98%
FA.ACP.004	Payment Processing timelines	To measure the payment release within TAT.	Yes	This service level measures the percentage of payment runs within the agreed frequency.	KPI	Define as the percentage of payment runs processed within timelines as requested by onshore and as per agreed payment frequency/schedule This service level is calculated as (the number of payment by country which was accurately processed exactly based on instructed weekly payment schedule divided by (the total number of	System	Automated/ Manual	Total number of payment runs processed within schedule/ Total number of payment runs for the month	No. of payment runs	97%	99%	na	na

FA.ACP.004	Payment Processing accuracy	To measure the accuracy of payments to vendors & funding requirement	Yes	This service level measures the percentage of payment runs processed accurately	KPI	Define as the percentage of payment runs processed accurately as requested by onshore and as per agreed payment schedule. This service level is calculated as (the number of payment by country which was accurately processed exactly based on instructed weekly payment schedule divided by (the total number of payment by country in scope).	System	Automated/ Manual	Total number of payment runs processed accurately / Total number of payment runs for the month	No. of payment runs	na	na	95%	98%
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Appendix 4-8

Accounts Receivable

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

FA.ACR.003	Cash application	To measure the reconciliation of cash received from customer to the invoice	Yes	To measure the timeliness of payments received correctly and applied.	SLA	This service Level is defined as timely posted entries processed exactly as required (SOPs) over the total no of Cash Application request to be registered.	GFS	Manual	No. of payments applied accurately / Total no. of payments advice received	No of advices received	96.00%	98.00%	96.00%	98.00%
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FA.ACR.003	Unapplied Cash	To measure recognition of remittance received from customers without invoice details	Yes	To measure the timeliness of payments received and correctly posted as remittance/bank deposits	KPI	This will ensure proper reporting in the correct period for the payments received from the customer	GFS	Manual	No of remittance posted on time/ total remittance received	No of advices received	95.00%	97.00%	96.00%	98.00%
FA.ACR.006	Statement of Account	To measure the Statement of account prepared for identified customers as per pre-defined frequency	Yes	To measure the accuracy and timeliness of preparing / sending of SOA to customers	KPI	This will ensure SOAs are provided to customers as per agreed timelines to facilitate timely collection of AR	GFS	Manual	No of SOA prepared/ Total of SOA required to be submitted as per timelines (weekly, bi-weekly, monthly)	No of SOA prepared	95.00%	97.00%	95.00%	97.00%
FA.ACR.004	Credit Management	To measure the acceptable credit limit/terms to given to customers	Yes	To measure the accuracy and timeliness of preparing credit limit endorsement to onshore as per the guideline. Should be completed within 3 business days.	KPI	This will ensure that the credit limit proposed will be as per GHQ guideline and the maximum allowable limit	GFS	Manual	No of credit review prepared accurately / Total credit requests received for the month	No of credit requests received	95.00%	97.00%	95.00%	97.00%

FA.ACR.001	Miscellaneous Billing	To measure the accuracy of charges on miscellaneous invoices created	Yes	To measure the accuracy and timeliness in creating miscellaneous invoice which should be completed within 2 business days	KPI	This will ensure that miscellaneous billing are covering the correct charges and rates as per invoicing guideline	GFS	Automated / Manual	No of invoices created accurately/ Total invoices processed for the month	No. of invoices	95.00%	97.00%	96.00%	98.00%
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Appendix 4-9

Record to Report

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

FA.R2R.00 1 FA.R2R.00 2 FA.R2R.00 3	Journal Entries	To measure the accuracy of new, recurring and adjusting journal entries	Yes	The accuracy of journal entries made within the specified accounting period	KPI	This will measure the percentage of journal entries requested by onshore that were processed accurately within the correct accounting period		Manual	Number of correct journal entries posted/ number of journal entries requested by onshore	Number of posted transactions	NA	NA	95%	97%
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FA.R2R.00 1 FA.R2R.00 2 FA.R2R.00 3	Reconciliation	Reconciliation of invoices/journal entries/bank accounts to subledger with no reconciling items.	Yes	The accuracy and percentage of documentation completion within a specific time frame	KPI	This will measure the accurate presentation/reporting of reconciliation statement as per monthly/quarterly schedule.	Manual	No. of items reconciled/ Total no. of items reported	Number of posted transactions	95%	98%	95%	97%
FA.R2R.00 4	Budgeting	To measure the accuracy of budget schedules prepared	Yes	The accuracy of budget provision per account	KPI	This will measure the accurate presentation/reporting of adherence/variances on the budget allowance as per monthly/quarterly/yearly schedule.	Manual	No of accounts reviewed accurately/ Total number of accounts for analysis monthly	No of GL accounts	NA	NA	95%	97%

Appendix 4-10

Agency Statement of Accounts

Scope Master Number	Metric Name	Metric Purpose	Currently measured by the Customer (Y/N)	Metric Description	Critical Service Level (SLA) / Key Measurements (KPI)	Operational Definition	Source of data	Automated or manual capture of data	Formula for calculation	Unit of Measure	Turnaround Time		Accuracy	
											Minimum Service Levels	Expected Service Levels	Minimum Service Levels	Expected Service Levels

FA.ASA.001 FA.ASA.002 FA.ASA.003	Clearing of transactions	This is to measure the accuracy of clearing matched transactions		Timely clearing of matched items for interfaced AR and AP transactions that were both reflected in the statement and GFS	KPI	This service level will measure the timely and accurate clearing of transactions that should be recognized as matched and closed between Agent Statement VS transactions in GFS	GFS/ ASA	Manual	Number cleared Total items	of items/ posted	No. of document posted	NA	NA	95%	97%
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FA.ASA.001 FA.ASA.002 FA.ASA.003	Reconciliation	This is to measure the correct representation of receivables and payables from the agents	Yes	This is for proper recognition of agents' balance whether payable or receivable on the client's side	KPI	This service level will measure the timely reporting of agents balance for both disbursements, commissions, collections and settlements.	GFS/ ASA	Manual	Number of ASA prepared/ Number of ASA for the month	ASA	95.00%	97.00%	95%	97%
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Appendix 4-11

Transformation Recurring Service: DSOP Support and Hosting Services

Incident and level of severity	Description and work arounds	Expected Response Time	Expected Resolution Time
Severity 1	DSOP Chrome extension is not accessible to > 80 percent of the users Workaround : Users will use existing offline SOPs to complete the transactions (if needed).	1 hour	24 hours
Severity 2	DSOP Authoring Portal is not accessible for creating or updating SOPs for one process in scope Workaround: [REDACTED] [REDACTED] can make backend updates for urgent SOP updates	2 hours	36 hours
Severity 3	Some users across Processes are unable to access DSOP. Workaround: Refer to external SOP documents	4 hours	48 hours
Severity 4	New Feature addition; Optimizing code to meet performance criteria; Rewriting code of an existing feature/process due to wrong output/performance issues; additional exceptions handling	To be agreed separately	To be agreed separately

Appendix 4-12

Transformation Recurring Service: Malkom.ai Support Services

Incident and level of severity	Description and work arounds	Expected Response Time	Expected Resolution Time
Severity 1	Malkom.AI is not accessible to > 80 percent of the users Workaround : Users will login to LMS or GFS to complete the transactions	1 hour	24 hours
Severity 2	Malkom.AI is not accessible for an entire Process e.g. Bookings. Workaround : Users will login to LMS or GFS to complete the transactions	2 hours	36 hours
Severity 3	Some users across Processes are unable to access Malkom.ai. Workaround: Users will login to LMS or GFS to complete the transactions, or supervisor will allocate work to other agents	4 hours	48 hours
Severity 4	New Feature addition; Optimizing code to meet performance criteria; Rewriting code of an existing feature/process due to wrong output/performance issues; additional exceptions handling	To be agreed separately	To be agreed separately

Appendix 4-13

Transformation Recurring Service: Intelligent Automation Support Services

Incident and level of severity	Description and work arounds	Expected Response Time	Expected Resolution Time
Severity 1	Impact > 90%. Business Critical – Multiple bots across processes aren't running & no alternate approach available. E.g. Orchestrator/CR/ Server is down or Script Terminating on a critical business function.	1 hour	24 hours
Severity 2	Impact between 70% and 90%. Multiple bots across a single process are not processing for specific scenarios which they are designed to handle. Infra/Apps issues impacting some of the processed items.	2 hours	36 hours
Severity 3	Impact between 50% and 70%. Robots are not processing for some scenarios. Specific or very limited users or scenarios are impacted OR a few bots out of multiple bots are not functioning as expected.	4 hours	48 hours
Severity 4	Impact < 50%. New Feature addition; Optimizing code to meet performance criteria; Rewriting code of an existing feature/process due to wrong output/performance issues; additional exceptions handling	To be agreed separately	To be agreed separately

Schedule 5 (Pricing)

1. Purpose

- 1.1. This Schedule sets out the Fees payable by the Customer to the Supplier pursuant to this Agreement for the Services to be provided by the Supplier, and provides for the invoicing procedure and principles applicable to the Customer and the Customer Group Members, as the case may be.
- 1.2. The Fees comprise the following:
 - 1.2.1. **Transition Services Charges:** as detailed in Appendix 5-1;
 - 1.2.2. **Transformation Implementation Services Charges:** as detailed in Appendix 5-2;
 - 1.2.3. **Technology Implementation Services Charges:** as detailed in Appendix 5-3;
 - 1.2.4. **Transformation Recurring Services Charges:** as detailed in Appendix 5-4;
 - 1.2.5. **Technology Recurring Services Charges:** as detailed in Appendix 5-5;
 - 1.2.6. **Operational Service Charges:** as detailed in paragraph 4 in this Schedule; and
 - 1.2.7. such other fees payable by Customer under this Agreement.

2. One-Time Charges

- 2.1. The **One-Time Charges** comprise:
 - 2.1.1. Transition Services Charges;
 - 2.1.2. Transformation Implementation Services Charges; and
 - 2.1.3. Technology Implementation Services Charges.
- 2.2. **Earning of One-Time Charge(s):** On the Customer's acceptance and/or confirmation of the completion of the corresponding Transition and/or Transformation Milestone, on and from the date of such acceptance and/or confirmation, the relevant One-Time Charge shall be deemed to be "**Earned**" and such One-Time Charges shall be the "**Earned One-Time Charges**".

3. Recurring Charges

- 3.1. The **Recurring Charges** comprise:
 - 3.1.1. the Transformation Recurring Services Charges; and
 - 3.1.2. the Technology Recurring Services Charges.

3.2. Technology Recurring Services Charges and Transformation Recurring Services Charges shall only be payable on the issuance of an invoice by the Supplier to the Customer or the relevant Customer Group Member as the case may be. Invoices for Technology Recurring Services Charges and Transformation Recurring Services Charges shall be issued in accordance with this Schedule.

3.3. In this Schedule, “**Price**” shall refer to the annual price, in United States dollars, payable for the provision of the corresponding Transformation Recurring Services and the Technology Recurring Services.

4. Operational Service Charges

4.1. The Parties have agreed on an annual rate chargeable for each FTE (which shall be pro-rated daily) (the “**FTE Rate**”) deployed by the Supplier for the performance of the Operational Services delivered from for each of the Supplier Sites (being Colombo (Sri Lanka), Hyderabad (India), Guangzhou (China), and Malaysia).

4.2. The FTE Rate (annual) for the applicable Contract Year is as follows, and the monthly rate shall be derived by dividing the FTE Rate (annual) by 12 months:

Supplier Site	Process	FTE Rate – Contract Year 1 (US\$)	FTE Rate – Contract Year 2 (US\$)	FTE Rate – Contract Year 3 (US\$)	FTE Rate – Contract Year 4 (US\$)	FTE Rate – Contract Year 5 (US\$)
Sri Lanka - Colombo	Business Operations	18,265	18,996	19,755	19,755	19,755
Sri Lanka - Colombo	Accounts Payable	18,265	18,996	19,755	19,755	19,755
Sri Lanka - Colombo	Accounts Receivable	18,265	18,996	19,755	19,755	19,755
Sri Lanka - Colombo	General Ledger	18,265	18,996	19,755	19,755	19,755
Sri Lanka - Colombo	SOA	18,265	18,996	19,755	19,755	19,755
Total - Sri Lanka						
India - Hyderabad	Business Operations	22,525	23,426	24,363	24,363	24,363
India - Hyderabad	Accounts Payable	22,525	23,426	24,363	24,363	24,363
India - Hyderabad	Accounts Receivable	22,525	23,426	24,363	24,363	24,363
Total - India						
China -Guangzhou	Business Operations	34,945	36,343	37,797	37,797	37,797
China -Guangzhou	Accounts Payable	34,945	36,343	37,797	37,797	37,797
China -Guangzhou	Accounts Receivable	34,945	36,343	37,797	37,797	37,797
Total - China						
Malaysia	Business Operations	29,000	30,160	31,366	31,366	31,366
Malaysia	Accounts Payable	29,000	30,160	31,366	31,366	31,366
Malaysia	Accounts Receivable	29,000	30,160	31,366	31,366	31,366
Total - Malaysia						
Overall	Global Transformation Lead	98,500	102,440	106,538	106,538	106,538
Overall	Global Delivery Lead	98,500	102,440	106,538	106,538	106,538

The FTE Rate shall be adjusted by applying a 4% increase for each Contract Year which extends beyond the Initial Term.

4.3. Operational Service Charges are invoiced on a monthly basis, based on the number of FTEs deployed by the Supplier to provide the Operational Services for that month. Where the service provided by an FTE is less than 1 month, the relevant Operational Service Charges should be pro-rated accordingly for that period only.

4.4. At all times, the Operational Service Charges are subject to and capped by the applicable Productivity Guarantee. For the avoidance of doubt, the cap will apply even if the Operational Service Charge is adjusted by the ARC or RRC.

4.5. **Additional and reduced resource charges and credits (ARC and RRC)**

4.5.1. Supplier shall track the amount, quantity, volume or frequency of Operational Services actually consumed or utilised under the relevant Process and sub-Process under the relevant Statement of Work and/or Implementation Agreements actually utilised by Customer during each calendar month of the Term, including the measures set out at paragraph 5.2 of Schedule 13 (Plan for Transition, Transformation, Technology and Operational Services). The Supplier shall provide such information for each calendar month to Customer with the reconciliation for such month against the applicable Volume Baseline and/or Resource Baseline.

4.5.2. **Additional Resource Charges:** Additional Resource Charge for shall be applied for the relevant calendar month if the amount, quantity, volume or frequency of Operational Services actually consumed or utilised under the relevant Process (or individual or group of sub-Process, as may be agreed in writing by the Parties) under the relevant Statement of Work and/or Implementation Agreements is more than 15% above the applicable Volume Baseline. The Additional Resource Charge shall be calculated as follows

where $A > 1.15 \times B$, $ARC = [(A - B) / B] \times C \times D$

where $A < 1.15 \times B$, $ARC = 0$

A = the amount, quantity, volume or frequency of Operational Services actually consumed or utilised under the relevant Process (or individual or group of Sub-Process, as may be agreed in writing by the Parties) in the calendar month under the relevant Statement of Work and/or Implementation Agreements as the case may be

B = the applicable Volume Baseline for such Process or Sub-Process

C = the applicable Resource Baseline for such Process or Sub-Process

D = applicable monthly FTE Rate

4.5.3. **Reduced Resource Credits:** Reduced Resource Credit shall be applied for the relevant calendar month if the amount, quantity, volume or frequency of Operational Services actually consumed or utilised under the relevant Process (or individual or group of Sub-

Process, as may be agreed in writing by the Parties) under the relevant Statement of Work and/or Implementation Agreements is more than 15% below the applicable Volume Baseline. The Reduced Resource Credit shall be calculated as follows

where $A < 0.85 \times B$, $RRC = [(B - A) / B] \times C \times D$

where $A > 0.85 \times B$, $RRC = 0$

A = the amount, quantity, volume or frequency of Operational Services actually consumed or utilised under the relevant Process (or individual or group of Sub-Process, as may be agreed in writing by the Parties) in the calendar month under the relevant Statement of Work and/or Implementation Agreements as the case may be

B = the applicable Volume Baseline for such Process or Sub-Process

C = the applicable Resource Baseline for such Process or Sub-Process

D = applicable monthly FTE Rate

Illustration

The measure for Volume Baseline for the Sub-Process “Bookings – Manual” is the number of bookings processed.

Assuming that, for the Customer Site in Mozambique, at the end of the Detailed Requirements Study, the Parties have:

(a) determined that the Volume Baseline for that Sub-Process in Mozambique is 100 bookings per calendar month (**B**);

(b) agreed that 12 FTEs shall be deployed by the Supplier to handle the Sub-Process in Sri Lanka (Supplier Site) against a Volume Baseline of 100 bookings monthly, therefore arriving the Resource Baseline of 12 (**C**) for the Sub-Process “Bookings-Manual”.

The above are stated in the Statement of Work in respect of Mozambique.

For Contract Year 2, each of the FTE has an annual FTE Rate of USD18,996, or USD1583 per month (**D**).

In Month 16 (Contract Year 2), the number of bookings processed in respect of Mozambique for that month is 120 (**A**), which is more than 15% above the Volume Baseline of 100 bookings processed per month. The Supplier is therefore entitled to charge Additional Resource Charges. The Additional Resource Charges for the Sub-Process in respect of Mozambique shall be calculated at $[(120-100)/100] \times 12 \times 1583$ and would therefore be USD 3,799.20.

In Month 17, the number of bookings processed for that month is 110. Although this is more than the Volume Baseline, no Additional Resource Charges are payable as the difference is less than 15% from the Volume Baseline.

In Month 18, the number of bookings processed for that month decreased to 75 (**A**). As the number of bookings, at 75, is now more than 15% below the Volume Baseline of 100 bookings processed per month, the Customer is entitled to Reduced Resource Credits. The Reduced Resource Credits shall be calculated at $[(100-75)/100] \times 12 \times 1583$, and would therefore be USD 4,749.

In Month 19, the number of bookings processed for that month is 95. Although this is below the Volume Baseline, the Customer is not entitled to any Reduced Resource Credits as the difference is less than 15% from the Volume Baseline.

- 4.6. The Supplier shall issue invoices for the Operational Service Charges in accordance with this Schedule.

5. Adjustment of Fees

- 5.1. The One-Time Charges are fixed and shall not be varied unless agreed by the Parties.
- 5.2. The Price for the Transformation Recurring Services and Technology Recurring Services shall be inclusive of any licences and/or support required for the provision of the Services in accordance with the Agreement, including Schedule 13 (Transformation and Transition Plan). For the avoidance of doubt, there shall be no variation of the Price unless agreed by the Parties in accordance with this Schedule.
- 5.3. The Recurring Charges are based on the assumption that the total number of [REDACTED] In-Scope FTEs will not exceed 1000 [REDACTED] In-Scope FTEs through the Term. Where the number of [REDACTED] In-Scope FTEs exceeds 1000, the Price shall be discussed and any changes to the Price shall be agreed via the Change Control Procedure subject to the following principles set out in this paragraphs 5.4 to 5.7.
- 5.4. **Adjustment of Transformation Recurring Services Charges:** Where the number of [REDACTED] In-Scope FTEs exceeds 1000, the increase in the relevant Price for each Transformation Recurring Service shall be calculated as follows:

$$A = B \times C$$

where

A = the increase in the relevant monthly Price for that Transformation Recurring Service

B = the increase in [REDACTED] In-Scope FTEs in excess of 733

C = the Applicable Price for that Transformation Recurring Service as set out in Appendix 5-4 of Schedule 5 (Pricing)

*For the purposes calculating this increase, one [REDACTED] Scope FTE shall be assumed to be one user, to which the Applicable Price applies. This assumption only applies for this calculation.

- 5.5. **Adjustment of Technology Recurring Services Charges:** Where the number of [REDACTED] In-Scope FTEs exceeds 1000, the increase in the relevant Price for the Technology Recurring Services shall be calculated as follows:

$$A = B \times \text{USD } 31$$

where

A = the increase in the relevant monthly Price for the Technology Recurring Services

B = the increase in [REDACTED] In-Scope FTEs in excess of 733

*the rate of USD 31 is a monthly estimated rate derived from the total Technology Recurring Services Charges over an assumed number of 378 FTEs required by the Supplier to provide the Services over the Term. These assumptions only apply for the purposes of this calculation.

- 5.6. The aggregate increase in the Recurring Charges, being the sum of the adjustments set out in paragraph 5.4 and 5.5 of Schedule 5 (Pricing) aggregated over the Term, shall not in any event exceed 65% of the aggregate Recurring Charges for the 12 months prior to the total number of [REDACTED] In-Scope FTEs exceeding 1000.
- 5.7. Where the Price of the Recurring Charges has been increased pursuant to paragraphs 5.4 and 5.5 of Schedule 5 (Pricing), in the event the number of [REDACTED] In-Scope FTEs falls to or below 1000, the Recurring Charges shall revert to the original pricing set out in Appendices 5-4 and 5-5 of this Schedule 5 (Pricing).
- 5.8. Any changes to the Transformation Recurring Services or the Technology Recurring Services and their respective Service Levels shall be agreed via the Change Control Procedure.

6. Fees payable on or after termination, expiry or ramp down

- 6.1. **Termination Fee:** Where a Termination Fee is payable to the Supplier pursuant to the terms of the Agreement, the Termination Fee shall be calculated as follows:

If the termination date is specified in any notice of termination is, or if no date is specified the effective date of the notice is:	Termination Fee shall be: (i) the following multiple of the average monthly Operational Service Charges 3 months prior to the termination date specified in any notice of termination or if no date is specified, the effective date of the notice; and (ii) Incurred Transformation and Technology Recurring Charges.
Before 1 st Anniversary Date	6
Between the 1 st Anniversary (inclusive) and 3 rd Anniversary Date (exclusive)	5
Between 3 rd Anniversary Date (inclusive) and 5 th Anniversary Date (inclusive)	4

- 6.2. **Ramp Down Fee:** Where the Ramp Down Fee is payable by the Customer to the Supplier pursuant to the Agreement, the Ramp Down Fee shall be calculated as follows:

If the date as of which the total number of FTEs deployed for the Operational Services has been reduced by 30% or more, as agreed by the Parties, (the " Ramp Down Date ") is:	Ramp Down Fee shall be: (i) the following multiple of the average monthly Operational Service Charges 3 months prior to the Ramp Down Date; and (ii) Incurred Transformation and Technology Recurring Charges.
Before 1 st Anniversary Date	6

Between the 1 st Anniversary (inclusive) and 3 rd Anniversary Date (exclusive)	5
Between 3 rd Anniversary Date (inclusive) and 5 th Anniversary Date (inclusive)	4

6.3. Termination Assistance Fee:

- 6.3.1. The need for and amount of additional resources or FTEs for the calculation of the Termination Assistance Fee shall be mutually agreed by the Parties based on the Termination/Expiry Assistance Plan.
- 6.3.2. In relation to services which are not part of the Operational Services, the Parties will agree on the FTE Rate or Fees applicable to such additional FTEs or resources.
- 6.3.3. The Termination Assistance Fee shall be calculated based on:
 - 6.3.3.1. the agreed additional number of FTEs deployed by the Service Provider for the provision of Termination/Expiration Assistance, multiplied by the applicable pro-rated FTE Rate, over the actual duration of the Termination/Expiration Assistance Period; and
 - 6.3.3.2. the Fees payable for any agreed additional resources.
- 6.3.4. **Payment in advance:** Notwithstanding the foregoing, where the Termination Assistance Fee is payable in advance pursuant to Clause 42.2.3 of this Agreement, the Termination Assistance Fee shall be calculated based on the estimated duration of the Termination/Expiration Assistance Period, instead of the actual duration of the Termination/Expiration Assistance Period.
- 6.3.5. Where the Termination Assistance Fee has been paid by the Customer in advance but the actual duration of the Termination/Expiration Assistance Period is longer or shorter than the estimated duration stated in Clause 6.3.4 herein, the Customer shall pay, or the Supplier shall pay back, as the case may be, the difference between the Termination Assistance Fee as paid in advance, and the Termination Assistance Fee calculated on the basis of the actual duration of the Termination/Expiration Assistance Period.

7. New Services

- 7.1. The Supplier shall charge for Personnel engaged in New Services based upon the range of rates detailed in Appendix 5-6.
- 7.2. The rates are subject to the following considerations:
 - 7.2.1. The rates may be adjusted within the ranges provided in Appendix 5-6, depending on the seniority of the Personnel to be engaged.
 - 7.2.2. The rates are subject to an annual increase, to be agreed by the Parties, from Contract Year 2 onwards.

7.2.3. The rates are not inclusive of any taxes, One-Time Charges or Recurring Charges necessary for such Personnel to provide Services to the Customer, with any additional One-Time Charges or Recurring Charges to be agreed between the Parties in accordance with Schedule 23 (New Services).

7.2.4. The rates are applicable where such Personnel deliver the New Services to the Customer from the Supplier Sites.

8. Allocation of Fees between Customer and Customer Group Members

8.1. Fees shall be allocated and invoiced to the Customer and the relevant Customer Group Members, as the case may be, as follows:

8.1.1. One-Time Charges and Recurring Charges shall be consolidated and invoiced to the Customer. Unless specifically instructed by the Customer or provided for in the relevant Implementation Agreement, there shall be no direct invoicing of One-Time Charges or Recurring Charges to a Customer Group Member under an Implementation Agreement.

8.1.2. Operational Service Charges shall be invoiced directly to the Customer, save for such Customer Group Members identified by the Customer pursuant to an Implementation Agreement. Such Customer Group Members shall be invoiced directly for the Operational Services delivered in the relevant Territory, with the applicable Operational Service Charges calculated in accordance with this Schedule.

9. Invoicing

9.1. Unless otherwise agreed between the Parties and/or specifically set out in a Statement of Work or Implementation Agreement, invoices issued by the Supplier to the Customer or the Customer Group Members shall follow the principles set out herein. For the purposes of this Schedule, an invoice shall be considered “correctly rendered” if it complies with the provisions of Clause 15.7.1 of the Agreement and the relevant provisions in this Schedule.

9.2. One-Time Charges

9.2.1. On and subject to the completion of a Deliverable (or Transition Milestone or Transformation Milestone as applicable), the Supplier shall invoice the Customer for the corresponding Amount to be Paid on or before the 14th day of the corresponding invoice month (the “**Invoice Month**”).

9.2.2. In the event a Deliverable (or Transition Milestone or Transformation Milestone as applicable) is not completed in time for the invoice to be issued within the deadline stipulated in paragraph 9.2.1 of this Schedule, the relevant Invoice Month shall be deemed to be the calendar month following that Invoice Month and the invoice shall be issued on or before the 14th day of that calendar month.

9.2.3. In addition to the details of the invoice specified by the Customer in Clause 17.7.2(i) of the Agreement, invoices for One-Time Charges shall also show (i) Earned One-Time Charges as of the date of the invoice; and (ii) such Amounts to be Paid pursuant to the invoice.

- 9.2.4. Subject to the Supplier invoicing the Customer in accordance with this paragraph 9.2, Customer will pay undisputed charges no later than the 45th day after end of the Invoice Month. In the event the Supplier's correctly rendered invoice is delayed and issued after the deadline stipulated in paragraph 9.2.1, the Parties agree that the due date of the invoice shall be correspondingly extended.

Illustration

Assume that:

- (a) it is now Month 7 (Contract Year 1)
- (b) the Supplier has completed the Transformation Milestones of (i) Malkom.ai – integration design and architecture deployed; and (ii) DSOP – completion of BRD for Phase 1 bookings and export DOCS.
- (c) As of Month 7, in addition to the Transformation Milestones named above, the Supplier has also completed all prior Transformation Milestones set out in Appendix 5-2 and has earned the corresponding Earned One-Time Charges. The Supplier has accordingly issued the corresponding invoices and the Customer has paid such Amounts to be Paid.
- (d) The Supplier has also completed Tollgate 2 of Wave 3 as part of its provision of Transition Implementation Services.
- (e) As of Month 7, the Supplier has also completed all prior Transition Milestones set out in Appendix 5-3 and has earned the corresponding Earned One-Time Charges. The Supplier has accordingly issued the corresponding invoices and the Customer has paid such Amounts to be Paid.
- (f) As of Month 7, the Supplier has also completed all Deliverables for the Technology Implementation Services. The Supplier has accordingly issued the corresponding invoices and the Customer has paid such Amounts to be Paid.

With the completion of the Transformation Milestones ((i) Malkom.ai – integration design and architecture deployed; and (ii) DSOP – completion of BRD for Phase 1 bookings and export DOCS), the Supplier is now entitled to issue an invoice in the Invoice Month M7 for these Transformation Implementation Services. Similarly, with the completion of Tollgate 2 of Wave 3, the Supplier is entitled to issue an invoice in the Invoice Month M7 for these Transition Implementation Services.

The Earned One-Time Charges for such Transformation Implementation Services accruing to the Supplier would be USD 468,000. The Supplier will only invoice for and require payment of the corresponding Amount to be Paid, which is USD 130,000.

The total Earned One-Time Charges for Transformation Implementation Services would amount to USD 720,000, being USD 468,000 and USD 382,000, less the amount of USD 130,000 paid by the Customer pursuant to the invoice for Transformation Implementation Services issued in Invoice Month M4.

The Earned One-Time Charges for such Transition Implementation Services accruing to the Supplier would be USD 769,192. The Supplier will only invoice for and require payment of the corresponding Amount to be Paid, which is USD 150,000.

The total Earned One-Time Charges for Transition Implementation Services would amount to USD 875,589, being USD 256,397 and USD 769,192, less the amount of USD 150,000 paid by the Customer pursuant to the invoice for Transition Implementation Services issued in Invoice Month M1.

The total Earned One-Time Charges for Technology Implementation Services would amount to USD 108,430, being USD 120,545 and USD 14,992, less the amount of USD 27,107 paid by the Customer pursuant to the invoices for Technology Implementation Services issued in Invoice Months M1 and M4.

Therefore, pursuant to the Agreement, the Supplier issues a consolidated invoice for the One-Time Charges, which will state, as of the date of the invoice:

- (a) Earned One-Time Charges for Transformation Implementation Services: USD 720,000
- (b) Earned One-Time Charges for Transition Implementation Services: USD 875,589
- (c) Amount to be Paid for Transformation Implementation Services: USD 130,000
- (d) Amount to be Paid for Transition Implementation Services: USD 150,000
- (e) Earned One-Time Charges for Technology Implementation Services: USD 108,430
- (f) Total Earned One-Time Charges: USD 1,704,019
- (g) Total Amount to be Paid: USD 280,000

The consolidated invoice will be issued no later than the 14th day of the Invoice Month M7, with the total Amount to be Paid to be paid no later than the 45th day after the last day of the Invoice Month M7.

9.3. Recurring Charges

9.3.1. Transformation Recurring Services Charges and Technology Recurring Service Charges shall be invoiced in the Invoice Month. For the purposes of this paragraph 9.3.1, the Invoice Month refers to the calendar month of the Contract Year in which the relevant Transformation Recurring Services or Technology Recurring Services were provided or are to be provided.

9.3.2. The Supplier shall invoice the Customer for each Transformation Recurring Service Charge and the Technology Recurring Service Charges on or before the 14th day of the month following the Invoice Month.

9.3.3. Subject to the Supplier invoicing the Customer in accordance with this paragraph 9.3, Customer will pay undisputed charges no later than the 45th day after the end of the Invoice Month. In the event the Supplier's correctly rendered invoice is delayed and issued after the deadline stipulated in paragraph 9.3.2, the Parties agree that the due date of the invoice shall be correspondingly extended.

9.4. Operational Service Charges:

9.4.1. Supplier will invoice Customer on or before the 14th day of each month for Operational Services delivered during the previous month. Customer and/or Customer Group Member shall pay Supplier in USD as currency irrespective of the locations or Sites specified under this Agreement.

- 9.4.2. Subject to the Supplier invoicing the Customer in accordance with paragraph 9.4.1, Customer will pay undisputed charges no later than the 45th day after the end of the calendar month in which the relevant Services were provided. In the event the Supplier's correctly rendered invoice is delayed and issued after the deadline stipulated in paragraph 9.4.1, the Parties agree that the due date of the invoice shall be correspondingly extended.
- 9.5. Unless otherwise agreed by the Parties, invoices for other Fees, including but not limited to the Termination Assistance Fee, and the Post-Termination/Expiry Costs shall be issued after the satisfactory completion and delivery of the relevant Services, or at such time as may be agreed by the Parties. The Customer shall pay undisputed charges no later than the 45th day after the date of issuance of the invoice.
- 9.6. In the event the Customer or Customer Group Member, as the case may be, fails to make payment of all undisputed charges in an invoice within the due date of invoice the Supplier shall be entitled to charge the Customer or Customer Group Member, as the case may be, interest on such unpaid undisputed charges at the rate of two percent (2%) over the base rate of the Bank of England from the due date of the invoice to the date of payment.

Appendix 5-1

Transition Service Charges

Transition Milestone	Invoice Month (Subject to Acceptance of Milestones and Deliverables)	Earned One-Time Charges (US\$)	Amount to be Paid (% of total Transition Service Charges)	Amount to be Paid (US\$)
Wave 1 - (as set out in paragraphs 2.9 and 2.10 of Schedule 13) Tollgate 1 - Completion of Due Diligence (HR, IT, Facility, Risk, etc.) Business Transfer Agreement Employee Communication & Townhall	M1	\$256,397	10%	\$150,000
Wave 1 - (as set out in paragraphs 2.9 and 2.10 of Schedule 13) Tollgate 2 & 3 Customer employee 1:1 consultation, Focus group discussions Supplier New Hire Orientation & System Walk Through Wave 2 – (as set out in paragraphs 2.11 to 2.22 of Schedule 13) Tollgate 1 Tollgate 2 Wave 3 – (as set out in paragraphs 2.11 to 2.23 of Schedule 13) Tollgate 1	M7	\$769,192	10%	\$150,000
Wave 2 Tollgate 3 Wave 3 – (as set out in paragraphs 2.11 to 2.23 of Schedule 13) Tollgate 2 Tollgate 3 Wave 4 – (as set out in paragraphs 2.11 to 2.24 of Schedule 13) Tollgate 1 Tollgate 2	M13	\$512,795	22%	\$340,000
Wave 4 - (as set out in paragraphs 2.11 to 2.24 of Schedule 13) Tollgate 3	M16		10%	\$150,000
Year 3	M25		10%	\$150,000
Year 4	M37		20%	\$300,000
Year 5	M49		19%	\$298,384
Total One-time Charges		\$1,538,384	100%	\$1,538,384

Appendix 5-2

Transformation Implementation Services Charges

Transformation Milestone	Invoice Month (Subject to Acceptance of Milestones and Deliverables)	Earned One-Time Charges (US\$)	Apportionment of One-Time Charges (US\$)	Amount to be Paid (% of total Transformation Implementation Service Charges)	Amount to be Paid (US\$)
Project Kick-off – (as set out in paragraphs 2, 3.23, and 5 of Schedule 13) 1) Transformation Team Set-up for tools as per transformation plan 2) RACI completed 3) Celonis Setup completed	M1	\$ 260,000	Program Setup - \$172564 Celonis - \$87436	10%	\$ 260,000
1) DSiTE (as set out in paragraph 3.26 of Schedule 13) Local installs on CUSTOMER SME systems or laptops complete Tool training for █████ SMEs completed 2) BOLT (as set out in paragraph 3.28 of Schedule 13) Tool onboarding complete Training for █████s complete 3) Celonis (as set out in paragraph 3.23 of Schedule 13) Read-Out completed 4) Malkom.ai (as set out in paragraph 3.9 of Schedule 13) Integration design complete	M4	\$ 382,000	Malkom.ai - \$211231 Celonis - \$87436 DSiTE - \$61666 BOLT - \$21667	5%	\$ 130,000
1) Malkom.ai (as set out in paragraph 3.9 of Schedule 13) Integration design & architecture deployed 2) DSOP (as set out in paragraph 3.14 of Schedule 13) BRD completed for Phase 1 Bookings and Export DOCS	M7	\$ 468,000	Malkom.ai - \$326876 DSOP - \$141124	5%	\$ 130,000
Malkom.ai (as set out in paragraph 3.9 of Schedule 13) Bookings/EQM/Rate Contract Management Module Live DSOP (as set out in paragraph 3.14 of Schedule 13) BRD submitted for Phase 2 Import DOCS Intelligent Automation (as set out in paragraph 3.19 of Schedule 13)	M13	\$ 1,052,000	Malkom.ai - \$684356 DSOP - \$172989 IA - \$194655	10%	\$ 260,000

Booking UAT scenarios complete					
DSOP (as set out in paragraph 3.14 of Schedule 13) Tool made available for Operations' use - Import DOCS Intelligent Automation (as set out in paragraph 3.19 of Schedule 13) Export docs UAT scenarios completed	M16	\$ 209,000	DSOP - \$14344 IA - \$194656	5%	\$ 130,000
Malkom.ai (as set out in paragraph 3.9 of Schedule 13) AP/AR/SOA - Finance Module Live Intelligent Automation (as set out in paragraph 3.19 of Schedule 13) Agent SOA UAT Completed	M21	\$ 229,922	Malkom.ai - \$35266 IA - \$194656	5%	\$ 130,000
All tools have been delivered	M25			20%	\$ 520,000
	M37			20%	\$ 520,000
	M49			20%	\$ 520,922
Total Transformation Implementation Services Charges		\$ 2,600,922		100%	\$ 2,600,922

Appendix 5-3

Technology Implementation Services Charges

Deliverable	Invoice Month (Subject to Acceptance of Milestones and Deliverables)	Earned One-Time Charges (US\$)	Amount to be Paid (% of total Technology Implementation Service Charges)	Amount to be Paid (US\$)
Year 1 – (as set out in paragraphs 4.1 to 4.3 of Schedule 13) Procurement completed - Headsets, MS Office licenses, additional monitors and setting up costs for Supplier Sites	M1	\$120,545	20%	\$27,107
Procurement of additional - Headsets & Monitors - (as set out in paragraphs 4.1 to 4.3 of Schedule 13)	M4	\$14,992		
-	M13		20%	\$27,107
-	M25		20%	\$27,107
-	M37		20%	\$27,107
-	M49		20%	\$27,107
Total One-time Charges		\$135,537	100%	\$135,537

Appendix 5-4

The Parties' agreement as to the Transformation Recurring Services Charges is as further detailed in this Appendix. Transformation Recurring Services Charges are to be charged for the Transformation Recurring Services as set out in Section 3 of Schedule 13.

1. DSOP (Digital Standard Operating Procedures) – Transformation Recurring Services

1.1. The Transformation Recurring Services for DSOP shall be split into two categories:

1.1.1. DSOP Support Services, being the support services described in Schedule 13, paragraph 3.15 which shall be available 16 hours per working day, at 5 working days each calendar week.

1.1.2. DSOP Hosting Services, being the services described in Schedule 13, paragraph 3.15

1.2. The Fees for the Transformation Recurring Services in relation to DSOP shall be as follows.

Transformation Recurring Service	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
DSOP Support Services	56,438	101,528	106,468	111,566	116,814
DSOP Hosting Services	60,800	60,800	60,800	60,800	60,800

1.3. The Price for each Contract Year shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).

1.4. The Price for DSOP Support Services and DSOP Hosting Services shall be inclusive of the access provided for 50 authors and 15 approvers for the Customer's use, in addition to the DSOP Chrome extension necessary for the Supplier's FTEs to provide the Services.

1.5. In the event a change in Price via the Change Control Procedure is agreed, subject always to the principles set out in Clause 5.4 of Schedule 5, any such increase in Price shall be based on the following:

Transformation Service	Price	Payment term
Hosting and support charges	USD 38 per FTE per month	Monthly

1.6. The Price is not inclusive of any fees in relation to licences, support, or other Services to be provided to the Customer on or after the termination or expiry of the Agreement. Any fees agreed between the Parties for the continued licensing or provision of Services in relation to DSOP on or after the termination or expiry of the Agreement shall be as set out in Schedule 19 (Specific Commercially Available Supplier Materials).

2. IA (Intelligent Automation) – Transformation Recurring Services

2.1. The Transformation Recurring Services for IA shall be as follows:

- 2.1.1. IA Support Services, being the support services described in Schedule 13, paragraph 3.20 which should be available 16 hours per working day, at 5 working days each calendar week.
- 2.1.2. IA Licence Charges described in Schedule 13, paragraph 3.20 where requested by the Customer to be provisioned by the Supplier.

2.2. The Fees for the Transformation Recurring Services in relation to IA shall be as follows.

Transformation Recurring Service	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
IA Support Services	0	104,545	226,455	235,153	151,615

2.3. The Price for each Contract Year shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).

2.4. In the event a change in Price via the Change Control Procedure is agreed, subject always to the principles set out in paragraph 5.4 of Schedule 5, any such increase in Price shall be based on the following:

Transformation Service	Applicable Price	Payment term
Support Charges (if only support services are required, where the Customer procures IA licences on its own)	52 USD per FTE per month	Monthly
Support and Licences (if both support services and licences are required)	114 USD per FTE per month	Monthly

2.5. The Parties have agreed that the Customer shall procure its own IA Licences for the provision of the Services, but may at the Customer's option, request for the Supplier to procure such IA Licences on its behalf. In the event the Customer requests for such IA Licences, such IA Licences shall be charged to the Customer as follows:

Transformation Service	Price	Payment term
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IA licence	Annual price of USD 282,187/-, subject to a minimum of: a. Two (2) IA (RPA) – Control Room licences; b. Seventy-five (75) IA (RPA) – Production BOTs licences; c. Ten (10) IA (RPA) – Developer licences; and d. Five (5) IA (RPA) Production support licences	At the beginning of each Contract Year
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3. Malkom.ai – Transformation Recurring Services

3.1. The Transformation Recurring Services for Malkom.ai shall be split into two categories:

3.1.1. Malkom.ai Support Services, being the support services described in Schedule 13, paragraph 3.10 which should be available 16 hours per working day, at 5 working days each calendar week.

3.1.2. Malkom.ai Licences, being the services described in Schedule 13, paragraph 3.10.

3.2. The Fees for the Transformation Recurring Services in relation to Malkom.ai shall be as follows.

Transformation Recurring Service	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
Malkom.ai Support Services	85,116	158,419	170,237	166,369	158,886
Malkom.ai Licences	702,118	635,783	604,596	598,385	592,774

3.3. The Price for each Contract Year for Malkom.ai Support Services shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).

3.4. The price includes the provision for licenses estimated as follows

██████ = Year 1=586, Year 2 = 460, Year 3=406, Year 4=398, Year 5=391

3.5. The Price for each Contract Year for Malkom.ai Licences shall be invoiced at the beginning of each Contract Year by the Supplier to the Customer in accordance with Schedule 5 (Pricing).

3.6. The Price for each Contract Year for Malkom.ai Licences shall be inclusive of the provision of 100 Malkom.ai Licences for the Customer's use in addition to the Malkom.ai Licences necessary for the Supplier's FTEs to provide the Services.

- 3.7. In the event a change in Price via the Change Control Procedure is agreed, subject always to the principles set out in paragraph 5.4 of Schedule 5, any such increase in Price shall be based on the following:

Transformation Service	Applicable Price	Payment term
Malkom.ai licence	USD 122 per FTE per month	Monthly

- 3.8. The Price is not inclusive of any fees in relation to licences, support, or other Services to be provided to the Customer on or after the termination or expiry of the Agreement. Any fees agreed between the Parties for the continued licensing or provision of Services in relation to Malkom.ai on or after the termination or expiry of the Agreement shall be as set out in Schedule 19 (Specific Commercially Available Supplier Materials).

4. DSiTE (Digital Site) – Transformation Recurring Services

- 4.1. The Transformation Recurring Services for DSiTE shall be as follows:

4.1.1. DSiTE Licences, being the services described in Schedule 13, paragraphs 3.24– 3.25.

- 4.2. The Fees for the Transformation Recurring Services in relation to DSiTE shall be as follows.

Transformation Recurring Service	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
██████████	159,690	107,227	77,825	77,075	77,075

- 4.3. The Price for each Contract Year for ██████████ shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).
- 4.4. Six licenses of DSITE have been considered to develop training content.
- 4.5. BOLT will be available to all ██████████ for purposes of training for the deemed in-scope FTE. Training content developed for ██████████ be shared to relevant ██████████ teams at no charge.
- 4.6. In the event a change in Price via the Change Control Procedure is agreed, subject always to the principles set out in Clause 5.4 of Schedule 5, any such increase in Price shall be based on the following:

Transformation Service	Applicable Price	Payment term
██████████	USD 18 per FTE per month	Annual upfront.

5. Bridge – Transformation Recurring Services

- 5.1. The Transformation Recurring Services for Bridge shall comprise:

5.1.1. Bridge (Analytics) Support Services, being the services described in Schedule 13, paragraphs 3.32– 3.33.

- 5.2. The Fees for the Transformation Recurring Services in relation to Bridge shall be as follows.

Transformation Recurring Service	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
Bridge (Analytics) Support Services	68,500	47,722	49,870	52,114	54,459

- 5.3. The Price for each Contract Year shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).
- 5.4. In the event a change in Price via the Change Control Procedure is agreed, subject always to the principles set out in paragraph 5.3 of Schedule 5, any such increase in Price shall be based on the following:

Transformation Service	Applicable Price	Payment term
Bridge licence	USD 12 per FTE per month	Monthly

6. Program Management

- 6.1. The Fees for the Program Management services, described in Schedule 13, paragraph 3.34 shall be as follows:

Transformation Recurring Service	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
Program Management Support Services	336,000	220,500	0	0	0

- 6.2. The Price for each Contract Year shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).
- 6.3. In addition to the assumptions set out in paragraph 5.3 of Schedule 5, the Price is based on the following assumptions:
- 6.3.1. The scope of the technology solutions is as per schedule 13
- 6.3.2. No delays to the deployment of the technology solutions due to dependencies not being fulfilled by the Customer.

In the event of a change in or deviation from the assumptions, the Parties agree that the Price, the Transformation Recurring Services, and/or the Service Levels shall be discussed and any changes shall be agreed via the Change Control Procedure.

- 6.4. In the event a change in Price via the Change Control Procedure is agreed, subject always to the principles set out in paragraph 5.4 of Schedule 5, any such increase in Price shall be based on the following:

Transformation Service	Applicable Price	Payment term
Extended or increased Program Management support	USD 14,667 per FTE per month	Monthly

7. Celonis – [Optional]

- 7.1. Celonis is a Technology Solution in Schedule 13 (Transition and Transformation Plan), for which the Customer has agreed to pay Transformation Implementation Service Charges for Transformation Implementation Services with regard to Celonis, including procurement of the necessary licences and setting up.
- 7.2. The Parties have however agreed that additional Celonis licences may be required by the Customer throughout the Term.
- 7.3. Where the procurement of further Celonis licences is required by the Customer, the Supplier agrees that the applicable Transformation Recurring Service Charges will be as follows:

Transformation Service	Price	Payment term
Additional process to perform Celonis Mining	USD 58,000, comprising: (a) an initial setting up cost of USD 33,000 per Process brought in scope; and (b) USD 25,000 for a licence period of 3 months for each licence procured	Payment shall be made upon the Supplier's purchase of the licences. The Customer may purchase further periods of 3 months as and when it requires, with each period at USD 25,000.

Appendix 5-5Technology Recurring Services Charges

Technology Recurring Services	Price for Contract Year 1	Price for Contract Year 2	Price for Contract Year 3	Price for Contract Year 4	Price for Contract Year 5
Annual Recurring charges (Internet Bandwidth) for Colombo, Hyderabad and Guangzhou locations for ISB and FNA tower.	200856	189912	145776	139716	139716

1. The Price for each Contract Year shall be invoiced in equal monthly instalments by the Supplier to the Customer in accordance with Schedule 5 (Pricing).

Appendix 5-6Rate card for additional Personnel requested on ad hoc basis

		India		Colombo		China	
Functional Roles -	Exp	From	To	From	To	From	To
Functional Consultant – LMS	Sr	\$ 90,000	\$ 95,000	-	-	-	-
Functional Consultant – GFS	Mid	\$ 108,900	\$ 119,900	-	-	-	-
Business Analyst	Jr	\$ 42,500	\$ 45,500	-	-	-	-
Business Analyst	Mid	\$ 53,000	\$ 56,700	-	-	-	-
Business Analyst	Sr	\$ 66,200	\$ 70,800	-	-	-	-
Customer Support Engineer	Jr	\$ 55,500	\$ 59,400	-	-	-	-
Customer Support Engineer	Mid	\$ 57,600	\$ 61,600	-	-	-	-
Customer Support Engineer	Sr	\$ 63,100	\$ 67,500	-	-	-	-
Full Time Trainer (Shipping Ops)		\$ 55,500	\$ 59,400	\$ 38,300	\$ 41,000	\$ 46,000	\$ 49,200
Full Time Trainer (Finance)		\$ 55,500	\$ 59,400	\$ 38,300	\$ 41,000	\$ 54,000	\$ 57,800
IT Roles -	Exp	From	To	From	To	From	To
Technical Consultant – LMS		Not available	Not available	-	-	-	-
Technical Consultant – GFS	Jr	\$ 96,700	\$ 103,500	-	-	-	-
Technical Consultant – GFS	Mid	\$ 104,900	\$ 112,200	-	-	-	-
Technical Consultant – GFS	Sr	\$ 153,200	\$ 163,900	-	-	-	-
Full Stack Developer . NET/Java	Jr	\$ 49,100	\$ 52,500	-	-	-	-
Full Stack Developer . NET/Java	Mid	\$ 55,800	\$ 59,700	-	-	-	-

Full Stack Developer . NET/Java	Sr	\$ 65,800	\$ 70,400	-	-	-	-
Automation Tester	Jr	\$ 68,500	\$ 73,300	-	-	-	-
Automation Tester	Mid	\$ 71,800	\$ 76,800	-	-	-	-
Automation Tester	Sr	\$ 83,700	\$ 89,600	-	-	-	-
RPA Developer	Jr	\$ 37,800	\$ 40,400	-	-	-	-
RPA Developer	Mid	\$ 52,600	\$ 56,300	-	-	-	-
RPA Developer	Sr	\$ 67,000	\$ 71,700	-	-	-	-
Data Engineer	Jr	\$ 57,741	\$ 61,800	-	-	-	-
Data Engineer	Mid	\$ 69,160	\$ 74,000	-	-	-	-
Data Engineer	Sr	\$ 81,370	\$ 87,100	-	-	-	-
Data Modeler	Jr	\$ 69,160	\$ 74,000	-	-	-	-
Data Modeler	Mid	\$ 81,370	\$ 87,100	-	-	-	-
Data Modeler	Sr	\$ 95,430	\$ 102,100	-	-	-	-
Data Scientist	Mid	\$ 61,318	\$ 65,600	-	-	-	-
Data Scientist	Sr	\$ 76,419	\$ 81,800	-	-	-	-
Data Analyst	Jr	\$ 54,059	\$ 57,800	-	-	-	-
Data Analyst	Mid	\$ 73,195	\$ 78,300	-	-	-	-
Data Analyst	Sr	\$ 81,952	\$ 87,700	-	-	-	-
Data Architect	Jr	Not available	Not available	-	-	-	-
Data Architect	Mid	\$ 81,370	\$ 87,100	-	-	-	-

Data Architect	Sr	\$ 95,430	\$ 102,100	-	-	-	-
AI Developer	Jr	\$ 61,318	\$ 65,600	-	-	-	-
AI Developer	Mid	\$ 62,234	\$ 66,600	-	-	-	-
AI Developer	Sr	\$ 76,419	\$ 81,800	-	-	-	-
AI Analyst	Jr	\$ 61,318	\$ 65,600	-	-	-	-
AI Analyst	Mid	\$ 62,234	\$ 66,600	-	-	-	-
AI Analyst	Sr	\$ 76,419	\$ 81,800	-	-	-	-
AI Researcher / Scientist	Jr	\$ 61,318	\$ 65,600	-	-	-	-
AI Researcher / Scientist	Mid	\$ 62,234	\$ 66,600	-	-	-	-
AI Researcher / Scientist	Sr	\$ 76,419	\$ 81,800	-	-	-	-
DevOps Consultant	Jr	\$ 49,100	\$ 52,500	-	-	-	-
DevOps Consultant	Mid	\$ 55,800	\$ 59,700	-	-	-	-
DevOps Consultant	Sr	\$ 65,800	\$ 70,400	-	-	-	-
UI Developer	Jr	\$ 49,100	\$ 52,500	-	-	-	-
UI Developer	Mid	\$ 55,800	\$ 59,700	-	-	-	-
UI Developer	Sr	\$ 60,000	\$ 64,200	-	-	-	-
UX Consultant	Jr	\$ 55,800	\$ 59,700	-	-	-	-
UX Consultant	Mid	\$ 60,000	\$ 64,200	-	-	-	-
UX Consultant	Sr	\$ 77,100	\$ 82,500	-	-	-	-
Google Cloud Consultant	Jr	\$ 81,370	\$ 87,100	-	-	-	-

Google Cloud Consultant	Mid	\$ 95,430	\$ 102,100	-	-	-	-
Google Cloud Consultant	Sr	\$ 132,200	\$ 141,500	-	-	-	-
Google Cloud Architect	Jr	\$ 81,370	\$ 87,100	-	-	-	-
Google Cloud Architect	Mid	\$ 95,430	\$ 102,100	-	-	-	-
Google Cloud Architect	Sr	\$ 132,200	\$ 141,500	-	-	-	-
AWS/Azure Cloud Consultant	Jr	\$ 81,370	\$ 87,100	-	-	-	-
AWS/Azure Cloud Consultant	Mid	\$ 95,430	\$ 102,100	-	-	-	-
AWS/Azure Cloud Consultant	Sr	\$ 132,200	\$ 141,500	-	-	-	-
AWS/Azure Cloud Architect	Jr	\$ 81,370	\$ 87,100	-	-	-	-
AWS/Azure Cloud Architect	Mid	\$ 95,430	\$ 102,100	-	-	-	-
AWS/Azure Cloud Architect	Sr	\$ 132,200	\$ 141,500	-	-	-	-
Enterprise Architect	Jr	\$ 71,000	\$ 76,000	-	-	-	-
Enterprise Architect	Mid	\$ 83,300	\$ 89,100	-	-	-	-
Enterprise Architect	Sr	\$ 132,200	\$ 141,500	-	-	-	-
Solution Architect	Jr	\$ 71,000	\$ 76,000	-	-	-	-
Solution Architect	Mid	\$ 83,300	\$ 89,100	-	-	-	-
Solution Architect	Sr	\$ 132,200	\$ 141,500	-	-	-	-
Mobile Developer	Jr	\$ 49,100	\$ 52,500	-	-	-	-
Mobile Developer	Mid	\$ 55,800	\$ 59,700	-	-	-	-
Mobile Developer	Sr	\$ 65,800	\$ 70,400	-	-	-	-

Integration (EDI/API) manager	Jr	\$ 49,900	\$ 53,400	-	-	-	-
Integration (EDI/API) manager	Mid	\$ 55,800	\$ 59,700	-	-	-	-
Integration (EDI/API) manager	Sr	\$ 71,800	\$ 76,800	-	-	-	-
Integration (EDI/API) architect	Jr	\$ 49,900	\$ 53,400	-	-	-	-
Integration (EDI/API) architect	Mid	\$ 55,800	\$ 59,700	-	-	-	-
Integration (EDI/API) architect	Sr	\$ 71,800	\$ 76,800	-	-	-	-
Integration (EDI/API) developer	Jr	\$ 49,900	\$ 53,400	-	-	-	-
Integration (EDI/API) developer	Mid	\$ 55,800	\$ 59,700	-	-	-	-
Integration (EDI/API) developer	Sr	\$ 71,800	\$ 76,800	-	-	-	-
Integration (EDI/API) support	Jr	\$ 49,900	\$ 53,400	-	-	-	-
Integration (EDI/API) support	Mid	\$ 55,800	\$ 59,700	-	-	-	-
Integration (EDI/API) support	Sr	\$ 71,800	\$ 76,800	-	-	-	-
Management Roles -	Exp	From	To	From	To	From	To
Project Manager	Sr	\$ 84,500	\$ 90,400	\$ 63,000	\$ 67,400	\$ 79,000	\$ 84,500
Program Manager	Mid	\$ 77,100	\$ 82,500	-	-	-	-
Program Manager	Sr	\$ 132,200	\$ 141,500	-	-	-	-
Scrum Master	Mid	\$ 63,100	\$ 67,500	-	-	-	-
Scrum Master	Sr	\$ 74,900	\$ 80,100	-	-	-	-

Legend:-**Jr** – 1-3 years of experience**Mid** – 3 to 7 Years of experience

Sr – 7+ years of experience

** Note: Years of experience considered for certain specialized roles in technology consulting and architecture is at higher side (ranging from 3 to 15 years).*

Schedule 6 (Governance)

1. The following committees shall be established and shall meet with the frequency set out below:

	Joint Steering Committee	Management Committee	Operations Committee	Transformation Committee
Members (Customer)	- Chief Executive Officer - Chief Commercial Officer - Executive Sponsors CFO, CHRO	Chief Commercial Officer General Manager, Business Process and Share Service Centres Transition Project Management Head	Transition Project Management Head Business Operations Project Manager Finance & Account Project Manager IT Lead HQ HR, Agency HR and respective Division Heads and Subject Matter Experts	Chief Commercial Officer General Manager, Business Process and Share Service General Manager, Information Systems Various Division Heads and Subject Matter Experts
Members (Supplier)	- BU Head, Shipping and Logistics¹ - Global Head, F&A² - SVP, Sales³	Global Operation Head Client Partner – Singapore Service Delivery Head Project Manager Location Ops Leads	Location Ops Lead/Managers Project Manager Transition Lead (during the duration of performance of Transition Services)	Transformation Head Project Manager Tech Delivery Lead Transformation Lead IA Delivery Lead
Meeting Frequency	Quarterly	Monthly	Daily/ Weekly / Monthly	Bi-annually
Notice of Meeting	At least 14 days in advance	At least 7 days in advance	Ad hoc, with reasonable notice	At least 14 days in advance
Mode	In-person (in Singapore or one of the service delivery locations)	In-person or virtual	In-person or virtual	In-person or virtual
Objective	Provide strategic oversight, ensure alignment with business goals, and make decisions on high-impact issues.	Manage the operational aspects of the Services, ensuring Service delivery aligns with agreed standards and practices.	Oversee the day-to-day operational execution of the Agreement, ensuring efficient and effective Service delivery.	Drive innovation and transformation in line with the strategic direction set in the Agreement and by the Joint Steering Committee.

¹As at date of this Agreement, the position is occupied by Jaison Augustine

²As at date of this Agreement, the position is occupied by Krishnan R

³As at date of this Agreement, the position is occupied by Philippe Salles

Roles and Responsibilities	Monitor and ensure the strategic alignment of the Services with the Customer's business objectives. Conduct performance reviews against strategic goals. Oversee major change management initiatives. Evaluate, determine and drive new transformation initiatives. Mediate and resolve escalated issues that cannot be resolved by the Management or Operations Committees. Set and track strategic program direction & identify new opportunities and initiatives Drive new transformation program initiatives Discuss and resolve escalated challenges	Regularly review Service performance against contractual commitments and industry best standards. Oversee risk management activities, ensuring compliance with legal, regulatory, and contractual obligations. Approve monthly work plan. Approve and monitor the implementation of continuous improvement plans the Services. Manage and resolve operational issues and disputes before they escalate to the Joint Steering Committee. Ensure that appropriate resources are allocated for the successful delivery of services. Discussion on identified operational risks and measures proposed to address these risks, and agreement on any additional commercial implications arising out of such remedial measures Review performance across processes Agree monthly work plan Discuss process improvements and innovation	Monitor daily operational performance and manage Service Levels. Identify areas for operational improvement and implement action plans. Coordinate with the Management Committee on process improvements and resource allocation. Manage the response to operational incidents and ensure quick resolution. Facilitate regular communication between Customer and Supplier operational teams. Monitor current operational performance Discuss workflow, team, training and other business Report / review KPIs and address challenges	Identify and prioritize transformation initiatives that align with long-term strategic goals. Oversee the implementation of transformation projects and ensure they deliver expected benefits. Foster a culture of innovation within the relationship. Collaborate with the Joint Steering Committee to align transformation projects with broader business objectives. Manage the change impact on stakeholders and maintain communication regarding transformation progress. Monitor Transformation delivery center and BU Identify market opportunity and innovation Deal with program escalations.
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		Resolve escalation from Operations Committee		
Reports	Value creation Strategic direction Progress on transformation initiatives-Special Project identification	Capacity utilisation reports Process improvement initiatives	Performance metrics reports (accuracy, Turnaround Time) Volumetric reports	Data-as-a-service Digital accelerators and solutions Innovation Labs

	Joint Steering Committee	Management Committee	Operations Committee	Transformation Committee
Governance Framework	Executive Management • Jason Augustine - BU Head, Shipping & Logistics • Krishnan R - Global Head, F&A • Philippe Salles – SVP Sales	Senior Management • Shantree Senadurai - Global Operation Head • Ritesh Jain - Client Partner - Singapore • Gurvinder Singh Lamba – PIL Service Delivery Head • Rhia Laurea – Project Manager • Location Ops Leads	Key Stakeholders • Location Ops Lead / Managers • Project Manager • Transition Lead (during transition only) • Quality Lead • WFM Lead • Training Lead	Key Stakeholders • Change Head • Transformation Head • Project Manager • Tech Delivery Lead • Transformation Lead • IA Delivery Lead • Analytics Delivery Lead • Co-Creation & Innovation Lead
Communication	Quarterly • Set and track strategic program direction & Identify new opportunities and initiatives • Drive new transformation program initiatives • Discuss & resolve escalated challenges	Monthly • Review performance across processes • Agree monthly work plan • Discuss process improvements and innovation • Resolve escalations from Operations committee	Daily / Weekly / Monthly • Monitor current operational performance • Discuss workflow, team, training, and any other business • Report / review KPIs and address challenges	Bi-annually • Monitor Transformation delivery center and BU. • Identify market opportunity and innovation. • Deal with program escalations.
Reports	• Value creation • Strategic direction • Progress on transformation initiatives-Special Projects Identification	• Capacity utilization reports • Process improvement initiatives	• Performance metrics reports (Accuracy, Turnaround Time) • Volumetric reports	• Data-as-a-Service • Digital accelerators and solutions. • Innovation Labs

2. Committee Engagement and Attendance: The Parties commit to active engagement and regular attendance at all committee meetings. Membership attendance will be monitored, with expectations for members to delegate authority appropriately when necessary to maintain decision-making capabilities at every meeting.
3. Scheduling and Notice of Meetings: Dates, times, and methods of meetings will be collaboratively agreed upon and scheduled in advance to ensure maximum attendance. A yearly meeting calendar will be established, with the provision for extraordinary meetings as required. A minimum notice period is set out above for certain meetings to ensure adequate preparation time for all members.
4. Meeting Minutes and Documentation: The Supplier is responsible for the timely distribution of detailed meeting minutes, which should include a summary of discussions, decisions made, and a record of action items assigned. Minutes will be circulated within 7 days following each meeting.
5. Action Item Management: All action items will be clearly documented, assigned, and tracked through a centralized action item register, accessible to all relevant Parties. The status of these

action items will be reviewed at the beginning of each meeting, with updates provided on progress and any barriers to completion.

6. Reporting and Decision-Making: A standardized reporting template will be developed and agreed upon to ensure consistency, clarity, and the inclusion of relevant data points necessary for informed decision-making. Reporting will be designed to facilitate a clear understanding of performance, risks, and strategic outcomes. Reports will be distributed in advance of meetings to allow members sufficient time for review.

59						
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*Customer Sites marked as TBC will be confirmed by the Customer to the Supplier at the later date

Schedule 8
(Supplier Systems, Technical Architecture and Product Standards)

A) HOSTING MODEL FOR EACH OF THE SOLUTIONS

Please refer to the below table for details relating to the hosting for each of the solutions.

All the software licenses will be managed and provided by the Supplier.

Solution		Hostin g	Hostin g Model	Cloud Platfor m	Geo- Locati on	Datastore - DB	Datastore- File storage	Data Store description
Malkom.ai	Gen AI Email Classifica tion Service	Suppli er	Cloud with single- tenant VPCs	MS Azure	US Region East	Micros oft SQL Server	Encrypt ed Azure BLOB Storage & Azure Cache for Redis The	The database stores email configuration and email processing snapshots. The Azure BLOB is used to store logs, and email objects. The Redis Cache is used for effective processing of emails
	Malkom Extractio n Engine			AWS	US Region East	Aurora Postgr es	Encrypt ed S3 bucket	The Database stores master data, business rules, transactional data and logs The S3 Storage Buckets are used to receive incoming files for extraction of content (e.g. Booking forms, SI Documents, Invoices) and

								also stores the extracted content in the form of JSON files
	Appian Orchestration & Workflow			AWS	US Region East	Maria DB	Encrypted S3 bucket	The database stores Appian data and metadata required to run Appian; transactional data which includes email content, classification, workflow assignment & details, authorization details, extracted data from Malkom Extraction engine, transaction data, audit history of each request. The S3 Buckets store the attachments received via the emails to be attached to case in Appian.
RPA		Customer	Customer environment with Cloud for Orchestrator/	Customer Environment	Customer Environment	Microsoft SQL Server	Customer provided File Storage	The RPA Platform i.e. UiPath or Automation Anywhere or Azure Cloud RPA will be finalised by

		Control Room					month 6 of the contract. The database stores the schedules of the BOTs, the license files, the logs and audit files. The File Storage is used to store reports of the BOT runs that are shared with Operations team to take further actions.
DSOP	Supplier	Cloud with single-tenant VPCs	Google Cloud	US Region East	Cloud SQL Postgres	Encrypted GCP Storage Buckets	Database stores the digital SOPs, the authorization details, and the META data. The Storage Buckets are used to store Docker image backups & DB Backup files
DSITE	Supplier	Local installable which is available to download from Supplier	N/A	N/A	N/A	N/A	For Supplier Personnel, the content is distributed via Supplier L&D systems. If Customer extends the solution to their retained organisation, IL will need to distribute

		Intranet					content created by DSITE using their own learning and development systems. Video and SCORM data are stored locally
BOLT	Supplier managed Cloud	Cloud hosting	AWS	Western India	PostgreSQL	Encrypted S3 bucket	Video and SCORM data are stored on S3
CELONIS	Customer managed Cloud hosting	Cloud hosting	AWS	US Region East	Redshift	Encrypted S3 bucket	Data extract from LMS will be uploaded on Redshift. The Apache Parquet files will be stored on S3.
BRIDGE	Supplier	Cloud hosting	MS Azure	US Region East	Power BI Caching	SharePoint	Customer process data will be collated in excel/ CSV and will be hosted on sharepoint. Power BI reports will connect to sharepoint hosted data. PowerBI will process it with its internal caching.

The S3 and Azure BLOB are encrypted by default by kms managed keys of AWS and Microsoft.

Tools	Technical pre-requisites in BPaaS where all solutions are hosted in Supplier or Customer environment
Celonis	1) Procure Celonis licenses from Supplier in Reseller mode and set up Customer's subscription of Celonis. 2) Celonis is a cloud-based SaaS. Customer data will be uploaded on Celonis cloud for process mining. Approval from Customer's Information security and IT teams to access transaction log of LMS platform and other Customer applications, and upload the same to Celonis cloud 3) Provide application logs and extracted data fields from Customer's systems (as requested by Supplier and validated by Customer SME's) with 5 ~6 months of transaction logs and extracted data of each process in scope to the Supplier Celonis team 10 weeks prior to commencement of process discovery 4) It is assumed that the data extract contains digital footprint (Unique id to identify a transaction, field to identify the activity name and timestamp when the activity was carried out). 5) Single data file per process to be provided to Supplier. 6) All extracted data should be in English.
DSITE	Customer IT team needs to install DSITE application on local desktop/laptop of respective team members who would be conducting the sessions by process Content Capture: Provide access and approval to Customer/Supplier staff to capture process details
BOLT	BOLT is a web-based application and hence whitelisting of the link on Customer IT side is required.
BRIDGE	Customer infrastructure changes would be needed (including whitelisting, site to site VPN etc.) to enable Customer users to access BRIDGE dashboards Data from Customer applications (LMS, Oracle) to be ingested by the tool (hosted within Supplier cloud infrastructure).

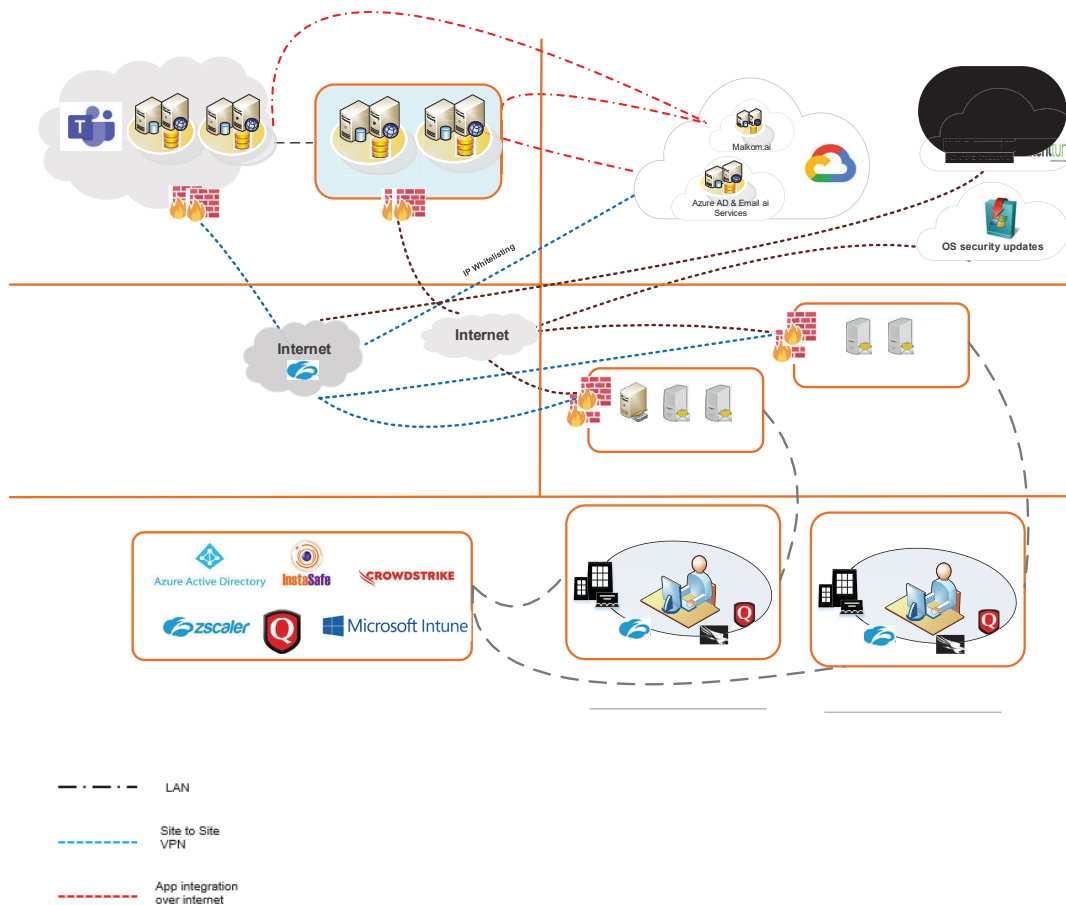
DSOP	1. During the implementation phase, Customer IT team needs to provide native browser access to LMS Dev, Staging and production environment from Supplier network for Supplier developers to analyze the process specific screens and field structures. Access should be provided as early as possible preferably month one (M1) for Supplier to complete the analysis 2. Customer to provide IT SPOC from the LMS vendor for co-ordinating development and installation of DSOP plug in. 3. Customer to provide Customer, Country, Regulatory and Policy SOP (Standard Operating Procedure) in Supplier provided format(s). 4. The scope includes DSOP application to be used by Supplier agents. However, if the application is extended to Customer users, Customer IT team will need to install the DSOP chrome extension on the respective Customer team members laptop/desktop 5. For Customer SOP authors who would be accessing the DSOP portal, Customer will provide the information relating to the users and their role for access to be setup. 6. Customer to share the list of IP ranges from where users will access the application.
RPA (IA)	Applications Access: 1. Customer will permit RPA scripting directly against the applications, and not via Citrix / remote-connections. c. All approvals and provisioning of accesses related to accessing Customer applications or data by RPA developers or BOTs. such as the creation of user IDs, screen capture access for scraping, storage of system logs, registry settings, browser extension permissions, shared drive accesses will be provided by Customer IT teams. d. Customer IT team will provide access to underlying applications and test data used in the processes to RPA Developers and BOTs. e. Installation of any desktop-based applications needed as part of the business process on Supplier RPA Virtual machines will be co-ordinated between by Customer & Supplier IT teams. Infrastructure: 1. RPA Licenses will be procured and provisioned

	2. RPA Infrastructure will be procured, hosted, provisioned, and maintained in by Customer in the Customer environment. The connectivity between Customer hosted RPA infrastructure, the RPA Cloud (either UiPath or Automation Anywhere or Azure Cloud) Orchestrator, Customer applications hosted in Customer Data Centres and Malkom.AI will be established by Customer IT teams. 3. Customer will provide access to the RPA infrastructure (Virtual Machines, storage, databases etc) to the Supplier Development & Support team. 4. Supplier RPA team will install the RPA software and licenses on the provisioned infrastructure. 5. Infrastructure should be HA (High Availability) and have DR (Disaster Recovery) capability. Details to be discussed and agreed with Supplier. Test Systems: 1. Customer Application test systems will be made available and provisioned for development and testing. Test systems should be functional replica of the production systems in scope. 2. Test systems should have adequate test data to replicate all business scenarios & use cases.
Malkom.ai	Workflow engine a. For Customer users needing access to Malkom.AI application, Customer will provide the information relating to the users and their role for provisioning the necessary access. b. SSO integration for Customer users with Malkom.AI will need to be discussed and implemented during design stage. c. Customer will provide access to their test and production environments for integration with Malkom.ai. These integrations involve - d. Email integration for receiving & sending emails to/from Malkom.AI e. LMS and Oracle Fusion integration with Malkom.AI, and for which Customer will provide the necessary integration technology (SFTP, API, Messaging etc) and the relevant interface file formats. Email Classification a. Malkom.AI email service component will need access to Customer SMTP server and will need access to Customer Outlook API b. Customer to share anti-malware policies and auto forwarding policies to

	Supplier c. Customer to share Infosec Policies for PI Information and SPI Information treatment when data elements are used by Gen AI models. d. Sample emails and attachments will need to be provided for training of the AI models. Integration f. For certain processes, like Bookings, Export Documentation, Invoice Processing etc, the data is expected to be sent to Customer systems via API, Messaging Framework or EDI. Customer will share necessary API/EDI specifications with Supplier teams. g. Customer EDI/API teams will work with Supplier team to define the data exchange protocols and formats. h. Customer EDI/API teams will participate in development and testing of the integration components i. Shipment data extract from Transient database as an interim approach till Data Lake is available. j. Customer Data Lake integration (To be available from September 2024) k. Customer IT teams will provision the required connectivity for integration
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B) HIGH LEVEL CONNECTIVITY DIAGRAM

This section covers the connectivity between Supplier hosted applications and Customerhosted applications and high level data linkages



The above diagram shows a high-level connectivity diagram to access Customer and Supplier hosted applications.

- Supplier Personnel working from Supplier Sites (Hyderabad, Colombo, Guangzhou, and Customer- Malaysia) will be authenticated using Supplier's Azure Active Directory in each of the centre. Supplier Sites are interconnected over LAN.
- Supplier will establish connectivity between Supplier Data and Customer data centre over internet via site-to-site VPN.
- Supplier agents/developers will access Customer applications hosted on Oracle cloud, or hosted in Customer environment such as RPA, or on Customer subscriptions such as Celonis via IP whitelisting over internet.
- Supplier agents/developers will access cloud-based solutions namely Google (DSOP), and AWS (Malkom.ai) on Supplier subscription via IP whitelisting over internet. Customer provided applications including O365 and MS Teams will be accessible through internet via VPN and access will be enabled using MFA, OTP will be received on Supplier email for authentication.

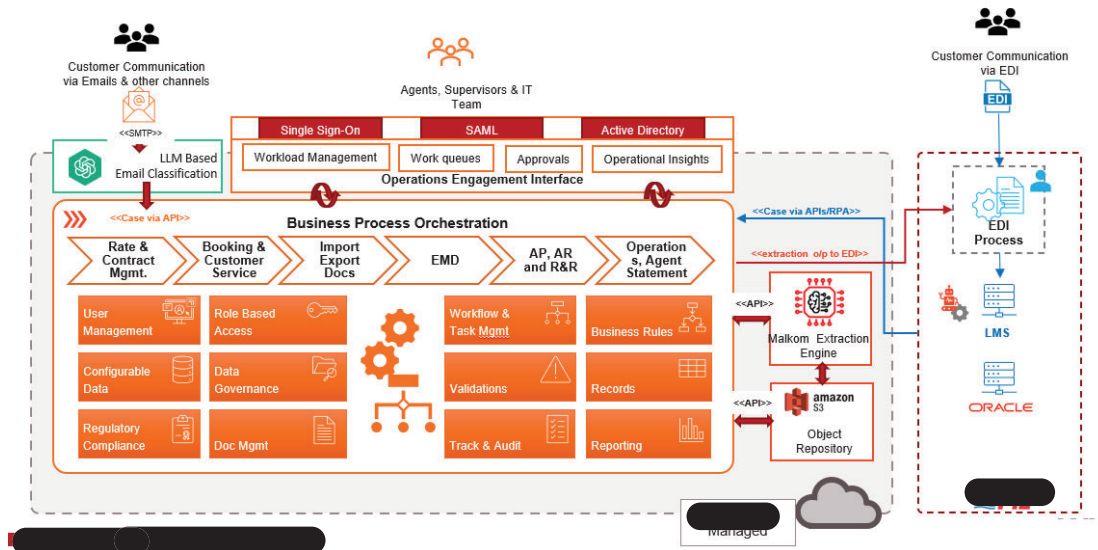
- Application integration between Supplier hosted applications and Customer applications will be over the internet using TCP/IP protocol.
- The network performance for the Internet connectivity and related parameters such as round-trip Latency, voice quality, Jitter, Packet Loss on Internet services can be provided on “Best Effort Basis”.
- The performance will be monitored over time, and should there be a need to revisit the solution for MPLS based connectivity (which is presently not in scope), the solution and associated cost of the same shall be discussed and mutually agreed between Customer and Supplier.
- Voice Telephony is not in scope. Should there be any need for a voice service in future, solution needs to be revisited and associated commercials to be mutually agreed between Customer and Supplier.
- Supplier End User Devices (Hyderabad, Colombo, Guangzhou)
 - Desktop – i3 CPU, 8 GB RAM, 512 GB HDD, Windows 10 OS, Primary Monitor 24" + Secondary Monitor 24".
 - Laptop - i7, 16GB RAM, 512GB SSD, Windows 10, HD LCD 14" (Laptop considered for selected users as per business requirement)
- Customer - Malaysia
 - Existing endpoints of Customer will be redeployed subject to transferability and usability of the assets (the condition and aging of the assets). If the assets are not in scope of transfer then Supplier will have to provision the required hardware (Firewall, Network switches, desktops, laptops, monitors etc.) as per business requirement for the Malaysia scope, at no cost to Customer.
- To ensure business continuity for Malaysia operations, it is recommended to continue using Customer (PSSB) licenses with the existing infrastructure setup, including the current Customer laptop image and system access, for a period of 90 days following the transfer of the Customer Malaysia users in scope to Supplier and the operations go-live date. During this period, Supplier will implement a parallel IT setup and gradually migrate users to the Supplier domain and laptop image. Additionally, Supplier will collaborate with the Customer IT to ensure Customer application access and testing from the Supplier network at the Malaysia centre, ensuring a smooth cutover and uninterrupted operations throughout the transition.

C) TECHNICAL ARCHITECTURE

Please refer the below sections for the technical architecture for Malkom.ai, DSOP and RPA.

DSITE, BOLT, BRIDGE and CELONIS use third party SaaS platforms/licenses as is, hence no technical architecture is available as part of this document.

C.1) Malkom.AI: High level Technical Architecture

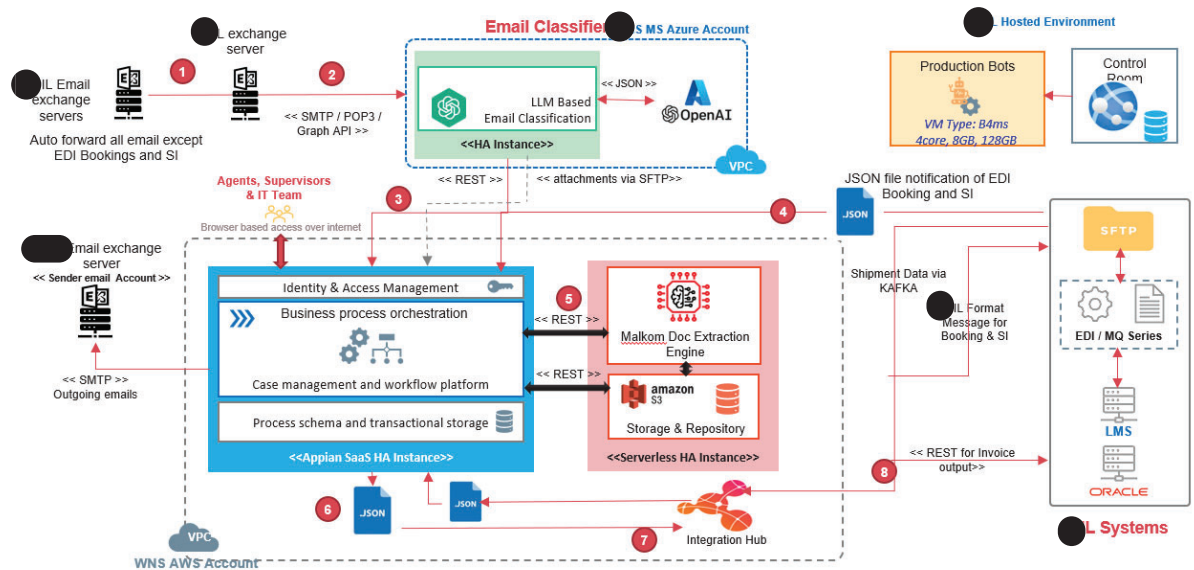


Malkom.AI has 3 main components as follows:

- **Email classification service** is a cloud-based solution deployed in Supplier Azure subscription. It leverages Supplier proprietary AI models and Azure OpenAI along with various other MS Azure services to read and classify email content. Key Features are:
 - Automatic email queue management
 - AI based Email Classification
- **Low code Case Management & Orchestration using Appian** hosted on AWS cloud (Appian partner cloud). It is used for complete process and case management by designing the process specific workflows for each case type with required skill-based case routing, milestone tracking, business logic and rules and outbound communication. The platform will also provide operational KPI reporting, logging and tracking. This is the engagement platform for agents and supervisors, which will provide role and individual specific access with work queues, work items and dashboards. Key Features are
 - Task allocation and case management
 - Milestone tracking across the workflow

- Document management, validation of extracted content through Malkom Extraction engine, & handling exceptions
- Dashboards and reports
- **Document Extraction Engine** is a Supplier proprietary solution leveraging deep learning, glossary and co-ordinate-based techniques to extract data from scanned images and documents, with built-in data validation using business rules. The AI models are developed from data sets that Supplier has trained based on inputs from shipping industry specific data (not client data). The knowledge and the training that has gone into defining, fine tuning and applying the AI model is being offered to Customer. This will be used to extract the content from the shipping documents.

Key Features: AI powered document data extraction engine with business rules.



The above diagram is a high-level interaction diagram.

- 1) Emails for all Processes will be forwarded from their respective business email servers to a Customer hosted Exchange Server and which will integrate with the Malkom.AI email

classification Service. The emails related to EDI Bookings and SI will not be forwarded to this exchange server to avoid duplicate case creation in LMS.

- 2) The Email classification service is hosted on MS Azure cloud under Supplier subscription. This component integrates with Customer's email exchange server with receiver accounts where all customer communication will be received. SMTP or PO3 protocols will be used for connectivity along with Graph APIs to poll the email and extract the content and classify the emails. The email classification uses Supplier' pretrained AI model and MS Azures' Open AI Services for email classification. Customer emails will be used for reinforcement learning on Customer instance of Malkom.AI hosted on MS Azure.

- 1) Supplier' own pre-trained model for classification: Training data and test data that consist of emails from each of the process areas is used for re-inforcement learning to enable classification of the email based on the content of the email (e.g. classified as Booking New, Booking Cancellation etc.) The pre-trained models are hosted in MS Azure Cloud, US-East Region (encrypted within Azure Subscription) and validated via Supplier Infosec policies & Azure Security.

- 2) MS Azure's Open AI Services: These are invoked when Supplier' own pre-trained models cannot return a classification of the email. In such situations, the email (subject & body only – no attachment contents) will be sent to MS Azure's Open AI Services to help classify the emails. Malkom.AI leverages Azure's Open AI service boundary & security constructs, and the fine-tuned Model stays within Supplier' Azure subscription for Customer and never moves into the foundation AI models.

Data is encrypted via Managed security Keys, Private Virtual networks and Role based access control.

- 3) Once the Email classification engine has classified the email (e.g. new SI, amended SI etc), it will invoke the Appian case management API (REST) to create ticket/case in the Appian platform. The email attachments (documents) will be transferred to the case in Appian via SFTP and link to location will be part of REST API payload.
- 4) For new EDI Bookings and SI, when an entry is made into the LMS Interim dat store, a JSON file containing key fields will be sent to Malkom.AI from LMS to enable the creation of the case in Malkom and subsequent allocation to the user.
- 5) Low code Case Management & Orchestration & Extraction Engine. The Appian Case management platform, and the Extraction engine components will be hosted on AWS cloud under Supplier subscription with high availability configuration. For few case types (such as New Bookings, New SI, Invoices, Cash Apps), the documents will be placed on S3 buckets in

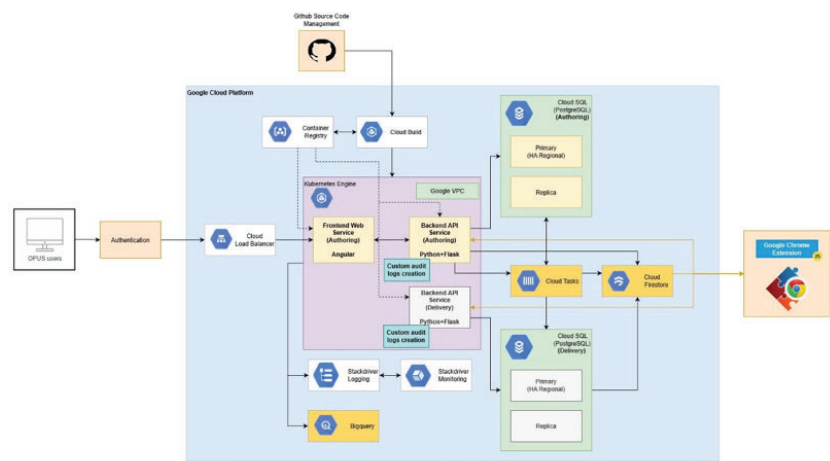
AWS and the Extraction engine will extract the content of the documents. The extracted content from the extraction engine is sent to the Appian case management solution via REST APIs.

- 6) The Appian case management will act as the validation station where the user will validate the extracted content and make any required changes. Once validation is complete, required end output of case content extracted from documents and emails will be pushed to Customers systems as follows

7) Integration with Customer Systems

- Inbound integration to Customer's email exchange server with receiver accounts where all customer communication will be received. These emails will be forwarded to a Supplier email exchange server. SMTP or PO3 protocols will be used for connectivity along with Graph APIs.
- Inbound integration from LMS to create cases for EDI transactions and for data validation via JSON files placed in SFTP folders/ AWS SQS queue.
- Inbound integration of Shipment data (Bookings, SI, Import and other master files) from the reporting data store of LMS (interim approach till the datalake is available) for data that has changed since last report run.
- Outbound integration to Customer's email exchange server with sender account to send all customer communication via SMTP
- Outbound integration to Customers LMS for Manual Bookings and Shipping Instructions via an agreed Internal format that will be placed on a SFTP folder for integration via MQ Series
- Outbound integration to Customers Oracle finance systems to push invoice & remittance data for certain process

C.2) DSOP Technical Architecture diagram



DSOP is hosted on GCP Cloud and uses Google Kubernetes Engine/CloudRun for deploying Frontend and Backend API services, and is completely containerised.

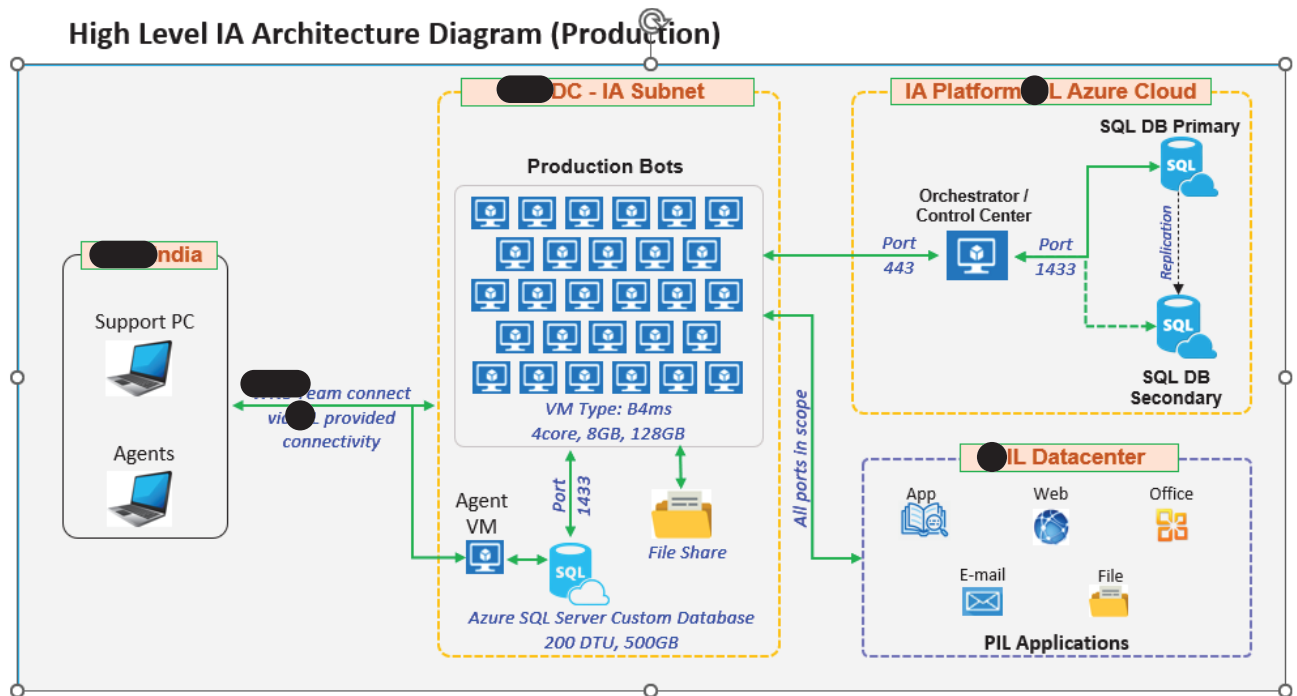
CloudSQL PostgreSQL v12 managed services is used for the DSOP database.

Cloud Logging, Cloud Monitoring are used for debugging and monitoring

Google SSO integration for authentication and authorisation.

Cloud Tasks and Firestore are optional components used only if specific requirements require deployment of these components.

C.3) RPA Technical Infrastructure diagram (to be provisioned by Customer)



- 1) The Orchestrator is a Web Application that is used to define and manage BOT schedules, controls BOT execution and exceptions, manages BOT licenses, code deployment, and manages developer and Robot accesses. It also manages the logs gathered and stored in the Orchestrator database. The Orchestrator and its associated database are provisioned in UiPath Cloud or Automation Anywhere or Azure Cloud.
- 2) The RPA BOTs and Developer studios will be set up in Customer environment and are connected to the UiPath Cloud or Automation Anywhere or Azure Cloud and Customer Applications over the internet.
- 3) The Supplier developers will connect to their Developer VMs over the internet through PIM

Schedule 9 (Reports)

Pursuant to Section 13.5 of the Agreement, the reporting is structured in 2 different parts throughout the term of the Agreement.

A. Transition Reporting

The Supplier shall provide updates, while rendering Transition Services, for both the parties to measure the progress in terms of achieving Transition Milestones.

The details of the reports are as below:

Report	Details of the Report
Overall Project Update	Details of all Transition Services including Deliverables and Transition Milestones, the completion status, days overdue, planned completion date, actual completion date and comments (if any) and a detailed report identifying the status of all Transition Milestones
Hiring Tracker	Hiring updates by Wave (as defined under Schedule 13: Transition and Transformation Plan), by process, and by Supplier's delivery location: • List of resources required. • Resources joined; and • Open positions
Risk Log	Status of program / project risks, responsible party as well as the steps being taken to mitigate such risks
Issue Log	Details of all issues related to the execution of the Transition Plan, including those for which Customer has primary responsibility, along with due dates, priority, responsible party, and an assessment of the potential and actual business impact and impact to the Transition Plan
Training update	Status of Supplier's staff training progress against the agreed Training plan
User Acceptance Test (UAT) tracker	UAT status by Wave and by process for each application that Supplier's staff need access to perform their deliverables

The Supplier will commence reporting using the dashboard within 3 weeks from contract signing. This dashboard will get refreshed weekly (at an agreed day / time).

B. Operations reporting

The Supplier shall provide Customer with a visibility on the process performance following the guidelines below.

1. Reports on the Service Level Agreements using the agreed sources of data.
2. The frequency of the reports will be daily, weekly, or monthly depending on the process and type of report. Description of each report shall be provided in the "Read Me" format file for each report.
3. The Supplier will commence reporting using the dashboard within 60 days of the first Go Live as defined in Schedule 13 (Transition and Transformation Plan).

4. The reporting structure for operational services will include the following:
 - a. Governance Structure
 - b. Service Level Agreement performance for each process at country level. There will be graphical representation and/or visuals with monthly / quarterly / yearly trends
 - c. Human resource metrics
5. Any other reporting that may be required by the customer from time to time and within the agreed timelines.

Reporting of the Service levels during transition and ongoing operations will be based using data visualization tools available in the market.

Schedule 10 (Business Continuity Plan)

Pursuant to Section 30, Supplier has maintained and comply with following business continuity principle and the procedural requirements. In addition to the business continuity plan/management program set out below, the Supplier agrees that:

- (a) The business continuity plans of any targeted systems connecting to the Customer shall be conducted at least annually through drills and simulations. Any gaps shall be documented and subjected to risk assessment, , for clarity Supplier-hosted technology solutions will not be in scope of the business continuity plan drills and simulations, unless agreed between the parties through a Change Control Process to upgrade the solution to a multi-site configuration; and
- (b) An escalation workflow shall be established for any targeted systems connecting to the Customer. In the event of any incident/outages. The workflow shall include Incident Response personnel from the Customer so that the incident can be tracked and managed.

1. Objective of the BCM (Business Continuity Management) Program

Supplier's objective of the BCM program is to minimize the occurrence of disruptive events by making appropriate investments in infrastructure, developing measures for recovering critical infrastructure and resuming clients' critical operations, should such a disruptive event occur.

2. Approach

Supplier has implemented an organization-wide Business Continuity Management ('BCM') framework which includes continual self-assessment, strategy formation, execution, and review cycle. The company's Business Continuity Strategy ('BCS') leverages on its multi-location set up for operational and technological recovery needs in the event of a disaster. Supplier's approach to Business Continuity Planning ('BCP') involves risk avoidance and mitigation measures for disruptive events categorized under High Frequency Low Severity and Low Frequency High Severity.

Supplier's business continuity plans cover both technological and non-technological facets of business recovery, which are devised basis the probability and impact of occurrence. Additionally, Supplier also has the capability to design and implement a business resumption framework for its clients covering both IT and non-IT aspects of operational recovery in the event of a disaster. Supplier have categorized the potential events as:

- **High Frequency Low Severity:**

These events are expected to occur frequently, however their nature is such that the impact can be controlled through conscious planning & investment. We have devised redundancy measures and emergency response plans to counter any adverse impact of such events. Such measures include: Emergency response plans (both Global & Local), Crisis management, Redundancies – standard, network and communication; Pandemic response plans. Supplier shall extend coverage of such measures to our clients and business partners at no additional cost.

- **Low Frequency High Severity:**

These events rarely occur but have serious consequences when they do, like total loss of the primary operating facility. We offer customized BCP solutions against such events post understanding the business models, extent or recovery, recovery time basis process criticality; jointly and in consultation with our clients. Such solutions are provided at an additional cost.

- Supplier also focuses on awareness programs to ensure smooth execution of the continuity plan in the event of an emergency, through judicious use of posters and targeted training programs.

3. Risk Avoidance & Mitigations Measures

For critical utilities / equipment which support SUPPLIER' business operations, [REDACTED] has provisioned for the following redundancy measures:

3.1. Independent Delivery Sites

Supplier MPLS network is designed from ground up to provide reliable and robust connectivity from client locations across the world to its delivery centers. Each [REDACTED] delivery center, is well connected with all the locations through the [REDACTED] via multiple paths from two different service providers to provide complete resiliency and redundancy (refer section on Network). The delivery center set up is carried in a way to ensure that it acts as an independent isolated delivery site. This ensures that any impact or outage at any of the sites does not have a cascading impact at a different location. This is achieved through –

- Global MPLS from two different Global carriers (Tata Communications and British Telecom).
- National Long Distance (NLD) links from diverse service provider between multiple delivery locations within the same geography
- Distributed core routers across multiple delivery locations which act as natural redundancy enabler
- Redundancy built on Internet routers and perimeter firewalls.
- Internet with alternate path and dynamic routing protocol (BGP) with provider

3.2. Uninterrupted Power Supply

For critical utilities / equipment, Supplier has provided for the following redundancy measures:

- Backup power generation capabilities – As a backup to the main raw power source diesel or gas based generator sets are provisioned at all delivery centers. This ensures that Supplier is not reliant solely on any electricity provider and can generate power to run its business operations for an extended period of time.
- Uninterruptible Power Supply ('UPS') units – All computing equipment and other critical equipment (such as fire alarm systems and access control systems) are connected to UPS systems to ensure that no interruption occurs while switching over from raw power source to the backup power source. These UPS systems are able to provide power to the aforementioned equipment for periods extending up to 30 minutes without being fed power from the diesel / gas-based generator sets.
- Component-level redundancies – The backup components specified above have redundant configuration themselves to prevent failure of a single component / unit from affecting the power

supply at the delivery center. For example, standby UPS systems are available which are configured in a master-slave configuration and standby generator sets with automatic failover capabilities are available as backup to the primary generator sets.

- Periodic testing and analyses – The backup power equipment is tested on a regular basis to ensure that it can function to meet stated requirements in case of a power outage. Single points of failure analyses are conducted at a component level to ensure that failure of a single component does not lead to any downtime of operations.

3.3. Network Connectivity (at [REDACTED] Enterprise Level and if applicable to [REDACTED])

3.3.1. Connectivity over Supplier MPLS to [REDACTED] (if applicable to [REDACTED])

Supplier MPLS is designed, to provide reliable and robust connectivity from client locations across the world to Supplier Delivery centers in India, Europe, US, South Africa, Philippines, Sri Lanka and China. Supplier MPLS is designed on MPLS L3 VPN enabling –

- **Network Consolidation** between all the [REDACTED]
- End to End VRF for **Customer isolation**.
- **Fast Convergence** for all Data and Voice Traffic.

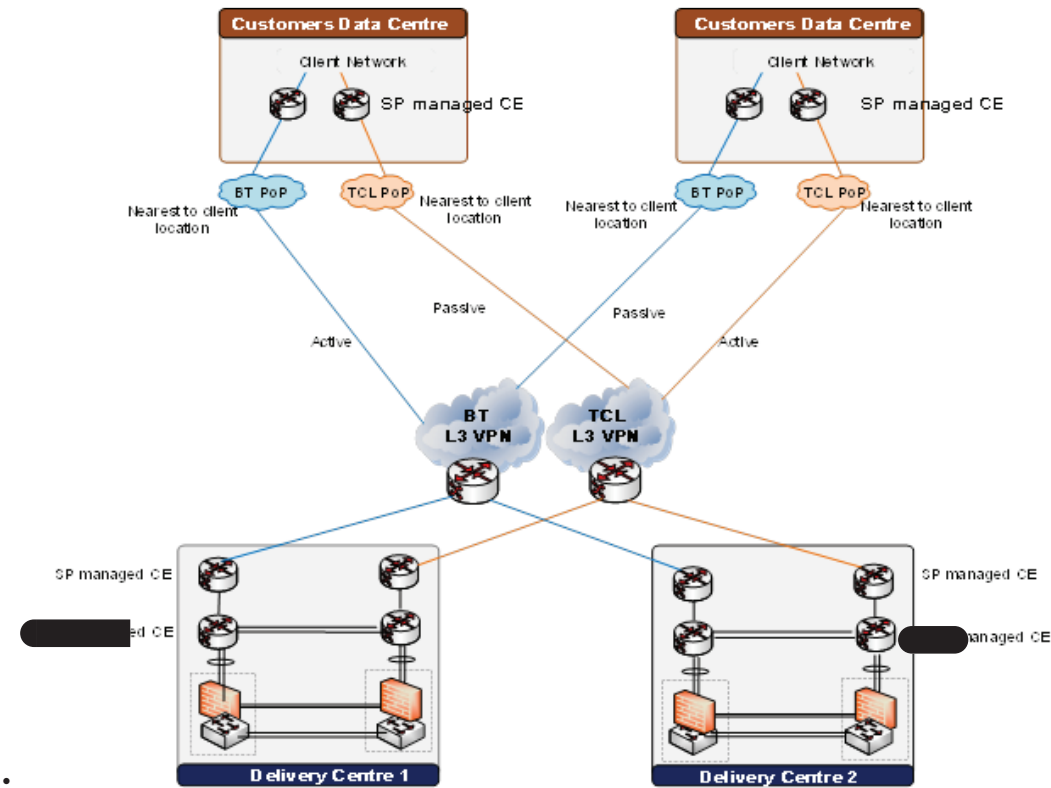


Figure: Client Connectivity

- Multiple Points of Presence are available across the world to enable connectivity from client locations to delivery centre:
Other key features of the MPLS are:
- For **higher redundancy and resiliency**, MPLS L3VPN services are being provided by two service providers
- Supplier have provisioned dedicated redundant self-managed routers (delivery centre specific) to connect to the providers managed CE router. This router will have multiple VRFs, one per customer.
- **Customer Isolation** is achieved by creating dedicated VRF per customer in service provider cloud.
- For any given customer, the Service provider will be used in Active – Passive mode.
- Routing multiple customers over both links will lead to **effective use of both SPs**.

Figure: Multiple VRFs per customer

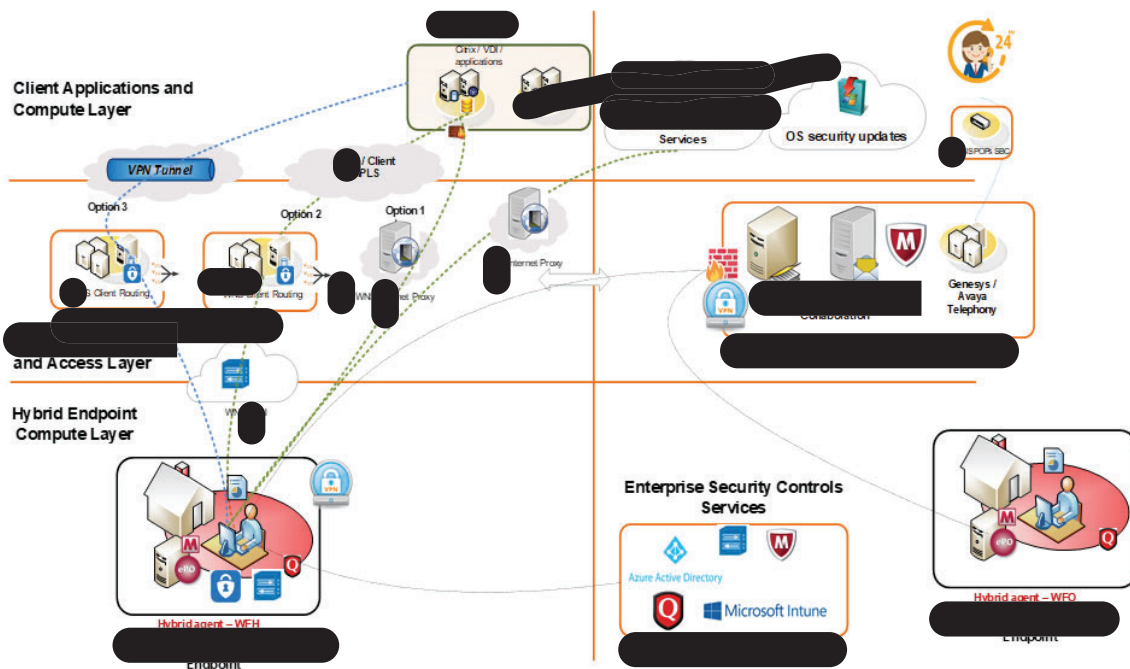
3.3.2.Connectivity over the Internet/VPN to rs

Supplier has provisioned dual internet services from diverse carriers/loops to establish redundancy at delivery centers to meet business requirements. Production related applications are accessed over Internet as per their availability or through Site-to-site VPN built with the client data center or end destination.

Internet segment consists of the dual links, routers, firewalls, layer 2/3 switches setup in high availability mode to achieve the required redundancy with required access opened outside/inside to cater various business requirements to allow production applications to work.

Please note, Internet connections are usually cost-effective as compared to the MPLS services; however, it does not have any guarantee of high availability and low latency. These parameters are always provided on a best effort basis from the Internet providers.

3.3.3.Hybrid Solution Architecture (Office and Work from Home)



Key features

- The remote-working user use a [REDACTED] Endpoint (WPE) (Thin client/laptop/desktop) and connect using home internet to remote Citrix / VDI platform through [REDACTED] VPN and then access production applications via agreed mode like, VPN/MPLS connectivity established between [REDACTED] center and client data center
- WFH endpoint joined to active directory and Host based VPN client and are hardened with no administrative privileges and no local storage
- Device Management is done by including security policies using Group policies and McAfee Host Data Leakage Prevention is implemented for detecting / preventing file transfers (laptops/desktops) on WFH end points.
- Cloud proxy is implemented for regulating internet access usage across WFH end points.

3.4. Core Networking Equipment

[REDACTED] switching equipment on [REDACTED] is fully redundant at all [REDACTED]s. [REDACTED] agreements with principals/OEMs with whom it has agreed SLA's on troubleshooting and restoration of the networking equipment's in the event of a failure.

- [REDACTED] has a layered architecture. It consists of the Core Switches Layer, [REDACTED], SP Managed CE Layer.
- The core switches provides combination of L2/L3 transport.
- This [REDACTED] has separate VRFs per customer and they run VSS & HSRP for default gateway.

- Each SP will provide and manage a dedicated CE router to connect the [REDACTED] location to the respective SP MPLS cloud.

3.5. Risk Assessment

- **At the time of Site Selection –** [REDACTED] sponsors and takes cognizance of Risk assessment exercises which are conducted by the infrastructure and business continuity management teams as part of the selection process for new premises to be leased for conducting business operations. These risk assessment exercises cover identification of environmental, political and location-specific risks that could potentially affect continuity of operations.

In one such example, [REDACTED] dropped its expansion plan at a lucrative business location in northern India citing proximity to an oil depot of a leading public owned oil company. Several years later, a fire erupted in the depot causing business interruption for 7 consecutive days and significant impact to the assets of the service companies in close vicinity.

- **Ongoing Risk Assessment-** For existing premises, similar exercise is conducted on a periodic basis by the aforementioned teams. Risks are prioritized and ranked on the basis of the probability of their occurrence and the potential impact in the event the risks materialize. Wherever applicable, appropriate measures are recommended and implemented for mitigation of the identified risks.

3.6. Fire Safety & Earthquake Mitigation Measures

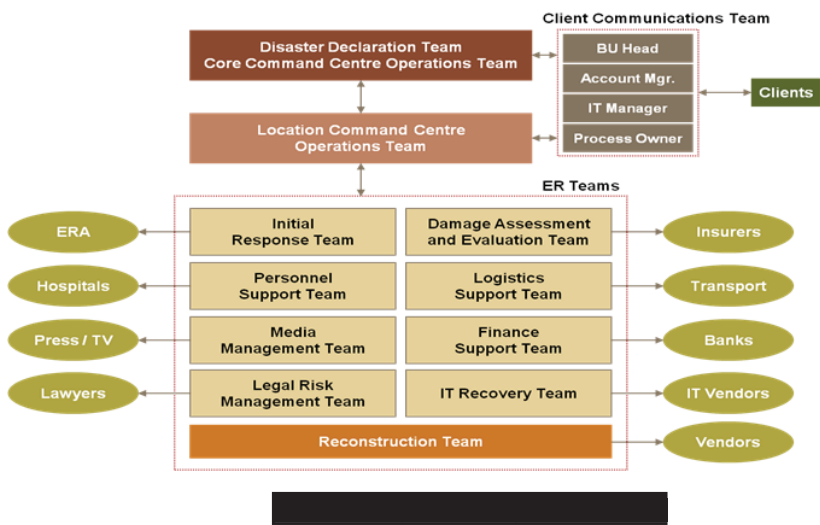
[REDACTED] has implemented and maintains best-in class safety standards across its delivery centers. It has implemented the following measures –

- Gas based fire suppression system installed in all server rooms.
- A, B & C Type fire extinguishers deployed across the operating floors.
- Trained Fire Wardens across its operating locations; to ensure safe and orderly evacuation of personnel in the event of an emergency.
- Focused Emergency Response Awareness Program (eRAP) for employees to deal with emergency situations like fire, bomb threat and earthquake.
- Periodic evacuation drills conducted to evaluate the preparedness of response measures.
- Fire alarm systems have been integrated with access control systems and are tested monthly.
- PA systems, installed at all operating locations.
- For mitigating risk arising from earthquakes, all [REDACTED] premises are certified for their structural stability in their respective seismic zones.

3.7. Emergency Response Plans

A mature BCM Framework focuses both on the continuity of operations as well as on the management of a crisis following a business disruptive event.

██████ has implemented robust Emergency Response Plans for its operating locations, to be activated in the event of a disaster. These plans define communication channels and procedures to be followed at the primary and recovery locations in the event of a disaster, including safe evacuation of personnel, assessment of damage, logistics management and other recovery procedures.



3.8. Testing

██████ conducts regular exercises and tests covered as part of the Standard BCM plans in line with the annual testing calendar prepared and are conducted at a site level to test the in-built standard redundancies. ██████ maintains a schedule to test the standard inbuilt redundancies for all core enabling infrastructure and processes.

While formulating the testing calendar it is ensured that the activities are spread evenly throughout the year. The testing frequency ranges between monthly, quarterly, bi-annually or annually depending on the redundancy measures being tested. An indicative list of tests conducted to test the in-built standard redundancies is detailed below:

- Generator Set Load / No Load Test
- Fire Alarm Test
- Emergency Light Test
- UPS Test
- Evacuation Drill
- Risk Assessment
- Paper walk through / Desktop testing exercise

Note - The costs for developing, implementing, and maintaining the above measures is borne by ██████ and not separately charged to clients.

Schedule 11 (IT Disaster Recovery Plan)

The below table provides an overview of the proposed solutions hosted and managed by [REDACTED] in the [REDACTED] the measures in place for data backup and retention.

The RPA solution will be hosted in the Customer environment, and the RPA licenses (including for UiPath managed cloud orchestrator) will be provided by [REDACTED]. The disaster recovery for the RPA infrastructure will be the responsibility of Customer.

The Celonis solution will be hosted in a Customer subscription of Celonis cloud with the licenses procured via [REDACTED]. The disaster recovery for Celonis will be the responsibility of Customer

Area	Malkom.AI	DSOP
Details of the solution and SLA	Malkom.ai is multicloud hosted and orchestrated service completely managed by [REDACTED] under [REDACTED] cloud subscription. Cloud Hyperscalers used for this Software as a Service (SaaS) are MS Azure and AWS public cloud with [REDACTED] VPCs and high availability The uptime SLA is 99.5 %.	The DSOP solution is a managed solution by [REDACTED]. DSOP is hosted on [REDACTED] subscription of the GCP Cloud and uses GKE/CloudRun and CloudSQL managed services from GCP for hosting its compute and DB components. Other services from GCP like Cloud Logging, BigQuery, Cloud Monitoring, VPC, etc are used. The SLA for the DSOP availability is 99.5% uptime
Data back up and retention	Backup of Appian, Malkom Extraction engine and other components are configurable and managed through Appian, Azure and AWS Cloud services. For Malkom.ai components, default transaction data retention is for 4 weeks (for completed transactions) since the data also	No data is deleted. However, Database backups are automated in GCP and retained for 7 days. Database backups can be moved to Cloud Storage using Cloud Functions if required for a longer retention period. Cloud build images are retained in Container Registry for restoring previous images for up to 3 months

	exists in core systems such as LMS, Oracle, email servers etc. The Logs data is maintained for 2 weeks. A notification to Customer IT teams will be provided when the data and logs are purged, This will be finalised during the design stage	This will be finalised during the design stage
Multi Site configuration	The Malkom.AI is provisioned as a high availability solution since the data also exists in core systems such as LMS, Oracle, email servers etc. A BCP multi region configuration can be provided at an increased cost. In the case of Malkom.ai unavailability due to site unavailability, the fall-back approach is for [REDACTED] agents to login directly into LMS and Oracle applications to complete the transactions.	Since it is not a mission critical tool, a multi-site BCP configuration has not been provided. A BCP multi region configuration can be provided at an increased cost.

Area	DSITE/BOLT	BRIDGE
Details of the solution and SLA	The DSITE is a local installable. The executable will be made available to Customer to store in its repositories. The Uptime SLA for DSITE is not applicable. BOLT is a Cloud hosted training platform and is hosted by a third party based on [REDACTED] subscription on AWS Cloud Uptime SLA for BOLT is 99.5%	Bridge is a Power BI reporting solution that is hosted on MS Azure. The uptime SLA is 99.5%
Data back up and retention	The outputs i.e. training material, quizzes, Video and SCORM data are stored on S3 buckets in AWS. The files will be retained for 3 months. Customer can transfer the data to its own content repositories for longer archival. A notification to Customer IT will be provided when any data is purged.	Customer & process data will be collated in excel/ CSV and will be hosted on SharePoint. Power BI reports will connect to SharePoint hosted data. The files will be retained for 3 months. Customer can transfer the data to its own content repositories for longer archival. A notification to Customer IT will be provided when any data is purged.
Multi-Site Configuration	Since it is not a mission critical tool, a multi site BCP configuration has not been provided. It can be provided at an increased cost.	Since it is not a mission critical tool, a multi site BCP configuration has not been provided. It can be provided at an increased cost.

All proposed solutions are hosted in [REDACTED] subscription of Cloud, except for RPA and Celonis, which will be hosted by Customer. All the solutions will be managed by [REDACTED] as per the scope of the contract.

Schedule 12
(Customer Safety Security Policy and Procedures)

Pursuant to Clause 8.1.1 of the Agreement, the Customer's security policy is as set out below.

INTRODUCTION

3.2 OBJECTIVES AND POSITIONING

Information Security controls must be considered at the systems and projects requirement specifications and design stage. Failure to do so can result in additional costs, less effective solutions, and in the worst case, inability to achieve adequate security. In order to assist the project owners to specify those security requirements, this document is developed, based on best practices and specialised organisation recommendations, such as OWASP, SANS, NSA and NIST. This document defines the minimum-security requirements in order to comply with [REDACTED] Information Security Requirements.

This set of security requirements is to be attached to each *Call-for-Tender* for information systems and/or IT related services issued by [REDACTED] Business / Procurement Office. The Service Provider selection criteria must include assurance to deliver their services in line with these requirements.

3.3 INFORMATION CLASSIFICATION

A realistic classification in terms of confidentiality must be defined by the system owner on the basis of the likely consequences that unauthorised disclosure might have for the interests of the company or other related parties.

The confidentiality levels are:

- **PUBLIC:** information system or information meant for [REDACTED] public disclosure.
- **RESTRICTED:** information system or information reserved for a limited number of persons on a need-to-know basis and whose disclosure to unauthorised persons might pose security concern to the data owners
- **CONFIDENTIAL:** Confidential system or information can only be transmitted strictly to specific parties.

An additional marking may be attached for information at this level of security identifying the categories of persons or bodies that are the recipients of the information or authorised to access it.

Integrity / Availability: Information systems and the information processed therein shall also be identified according to their level of integrity and availability, by the system owner, on the basis of the likely consequences that a loss of integrity or availability may have an impact on P [REDACTED] or other related parties.

3.4 RESPONSIBILITY FOR SECURITY REQUIREMENTS

The **Project / Systems Owner** is responsible for:

- applying the security requirements to the project and allocating financial, technical and human resources as required for meeting the security requirements of the project
- ensuring that the security controls are tested and validated during acceptance test phase
- maintaining the security controls throughout the life cycle of the product or the application

Product or service specifications must include the requirements for security controls. Contracts with the Service Providers must also address the identified security requirements.

Where the security functionality in a proposed product does not satisfy specific security requirements then the risk introduced must be evaluated and additional controls must be reconsidered prior to purchasing the product.

Where additional functionality is supplied and causes a security risk, this must be disabled or the proposed control structure must be reviewed to determine if advantage can be taken of the available enhanced functionality.

Design reviews must be conducted at periodic intervals during the development process to assure that the proposed design will satisfy the functional and security requirements specified.

Decisions not to implement security controls or to implement alternative controls, must be subject to formally documented exemption describing the residual risks. The exemption approval process must include the System Owner, Risk Committee, CIO and INFORMATION SECURITY OFFICE (ISO).

APPLICATION-LEVEL SECURITY

3.5 IDENTIFICATION, AUTHENTICATION, AUTHORIZATION

3.5.1 Web applications

- User access control rules must define what types of users can access the system, and what functions and content each of these types of users should be allowed to access must be documented and enforced (***Roles and Access Matrix***).
- USER_ID's can only be used to identify and reference users and not as proof of identity.
- Access control checks to access protected URL must not be bypassable by a user that simply skips over the page with the security check.
- Administrator access to the application shall be monitored and controlled
- The Web Applications will use SSO (Single Sign-On) and Identity Access Management software to enforce the below authentication policies.
- Users must be uniquely identified and authenticated with a password according to the following policy:
 - Password must be forced:
 - ☐ to contain at least 12 characters,
 - ☐ to be a mixture of at least 3 of the following character classes:
 - upper case letters (A .. Z),
 - lower case letters (a .. z),
 - digits (0 .. 9),
 - punctuation characters (~!@#\$%^&*()_+`-={}[]|\:~';'<>.,?/)
 - to be different from the USER_ID (also reversed, capitalized, doubled ...),
 - To prevent a reuse of the same passwords or similar passwords, a password history must be maintained. The system should not accept a password used for the previous 3 update.
 - An account must be locked after 5 erroneous user authentication attempts and locked for a minimum of 1 hour. Exception can only be over-written by administrators.
 - A password reset procedure must be defined.
 - ☐ the reset procedure must include out-of-band steps to re-authenticate the user. For example, such procedure might be to request the user to answer to some specific and personalised questions, whose answers were provided during the USER_ID initialisation phase,
 - ☐ the new generated password must be one-time usage,
 - ☐ if the new password is sent to the user e-mail address, then the email address shall not be disclosed and only sent to the email address if it is valid.

- Passwords must not be stored in the application system, but only a non-reversible hash (with SALT) of it. Passwords should never be hardcoded in any source code or executable.
- Repeated failed login attempts must be logged.
- The system should not indicate whether it was the username or password that was wrong if a login attempt fails.

3.6 Input data validation

3.6.1 Web applications

- Each Web applications input data from HTTP requests must be checked against a strict format that specifies exactly what input will be allowed (*Sanitisation*). All headers, cookies, query strings, form fields, and hidden fields (i.e., all parameters) must be "positively" validated against a rigorous specification that defines:
 - data type (string, integer, real, etc...)
 - allowed character set
 - minimum and maximum length
 - whether null is allowed
 - whether the parameter is required or not
 - whether duplicates are allowed
 - numeric range
 - specific legal values (enumeration) and specific patterns (regular expressions)
- Input checks must be performed at server-side. On top of the server side checks, client-side checking can also be included to enhance the user experience for legitimate users and/or reduce the amount of invalid traffic to the server.
- Raw data modifications in production databases must not be permitted. Add, modify, and delete procedures must be implement to data changes.
- Only files that are specifically intended to be presented to web users must be marked as readable using the Operating System's permissions mechanism, most directories should not be readable.
- Mechanisms, including HTTP headers and meta tags, must be used to be sure that pages containing sensitive information are not cached by user's browsers.
- Protection against injection flaws must be implemented. The simplest way to protect against injection is to avoid accessing external interpreters. For many shell commands and some system calls, there are language specific libraries that perform the same functions. Using such libraries does not involve the operating system shell interpreter, and therefore avoids a large number of problems with shell commands.
 - For those calls that must be used, such as calls to backend databases, the input data must be validated to ensure that it does not contain any malicious content.

- The use of stored procedures or prepared statements will provide significant protection, ensuring that supplied input is treated as data, and not as active commands such as SQL statements.
 - Web servers must not run as ROOT or access a database as DBADMIN, otherwise an attacker can abuse these administrative privileges granted to the web application. Instead, it must run with only the privileges it absolutely needs to perform its function.
 - The Java sandbox must be used, when feasible, to prevent the execution of system commands.
 - If an external command must be used, any user information that is being inserted into the command must be checked. Mechanisms must be put in place to handle any possible errors, timeouts, or blockages during the call.
 - All output, return codes and error codes from the call must be checked to ensure that the expected processing actually occurred.
- Session management:
 - Web applications must establish sessions to keep track of the stream of requests from each user.
 - Session IDs chosen by a user should never be accepted.
 - A connection time-out must be implemented.
 - User's entire session must be protected via TLS v1.3. Weak Ciphers/Protocols/Keys must be disabled.
 - Session IDs must:
 - never be included in the URL as they can be cached by the browser, sent in the referrer header, or accidentally forwarded,
 - be long, complicated, including random numbers that cannot be easily guessed,
 - must be changed when switching to SSL/TLS, authenticating, or other major transitions.
- Protections against Denial-of-Service attacks must be implemented
 - Application's session data must be as small as possible.
 - Resources allocated to any user must be limited to a bare minimum.
 - For authenticated users:
 - quotas should be used to limit the amount of load a particular user can put in the system,
 - one request per user should be handled at a time by synchronizing on the user's session,
 - any request being currently processed for a user should be dropped when another request from that user arrives.
 - For unauthenticated users, any unnecessary access to databases or other expensive resources must be avoided by:

- architect the flow of the web site so that an unauthenticated user will not be able to invoke any privileged operations,
- cache the content received by unauthenticated users instead of generating it or accessing databases to retrieve it.

3.6.2 Back-office applications

- Data input must be done via menu and selection in a list.
- If the input is captured from key string, then the format and syntax must be controlled by the application to reduce the risk of errors and to prevent classical attacks such as buffer overflow and code injection. Boundary checks or field limits to specific ranges of input data must be implemented to detect the following errors:
 - out-of-range values,
 - invalid characters in data fields,
 - missing or incomplete data,
 - exceeding upper and lower data volume limits,
 - unauthorized or inconsistent control data.

3.7 Control of internal processing

- Procedures and checks must be implemented:
 - to prevent programs running in the wrong order or running after failure of prior processing,
 - to recover from failures to ensure the correct processing of data,
 - to ensure integrity of data, records files or software downloaded, or uploaded, between computers (e.g., hash code).
- reconciliation control counts to ensure processing of all data,
- Web applications must avoid implicit trust between components whenever possible. Each component should authenticate itself to any other component it is interacting with unless there is a strong reason not to (the reason should be documented and risk assessment performed). If trust relationships are required, strong procedural and architecture mechanisms should be in place to ensure that such trust cannot be abused as the site architecture evolves over time.

3.8 Error Handling

Error handling mechanisms must be able to gracefully handle any feasible set of inputs, any errors that can be generated by internal components such as system calls, database queries, or any other internal functions.

- When errors occur, the site should respond with a specifically designed result that is helpful to the user without revealing unnecessary internal details.
- Error messages must be produced and logged so that their cause, whether an error in the site or a hacking attempt, can be reviewed.

3.9 Cryptographic controls

Use of cryptography should be applied to protect sensitive data transmission and storage. Cryptographic tools shall not use insecure algorithms (e.g., DES, SHA1). The choice of cryptographic tools should not result in:

- insecure storage of keys, certificates, and passwords,
- improper storage of secrets in memory,
- poor sources of randomness,
- poor choice of algorithm,
- attempting to invent a new encryption algorithm,
- failure to include support for encryption key changes and other required maintenance procedures.

3.10 Documentation and procedures

- Documented procedures must be prepared for each system activities. All information processing system documentation must be released to the Project / System owner, with access limited to the operators. The system documentation must be classified at the same level at the system it-self.
- System documentation must be assessed in terms of information confidentiality.
- **In each document, all technical descriptions, figures, tables, architectural designs, data transfers etc. (e.g., network topology, IP addresses, physical location of information resources) must be included**
- The operating procedures must specify the instructions for the detailed execution of each job including, amongst others:

- start-up and close-down procedure, including interdependencies with other systems, earliest job start and latest job completion times,
- processing and handling of information, including scheduling requirements,
- instruction for media handling,
- backup,
- equipment maintenance,
- support contacts in the event of unexpected operational or technical difficulties,
- instructions for handling events or other exceptional conditions, which might arise during job execution, including restrictions on the use of system utilities,
- system restart and recovery procedures for use in the event of system failure,
- the management of log file.

3.11 e-Commerce (if applicable)

If the application is meant for E-Commerce, it must be protected against fraudulent activity, contract dispute and disclosure or modification of information.

The risks must be assessed and the following considerations must be taken into account:

- the level of confidence each party requires in each other's claimed identity, e.g., through authentication in line with the authorization processes associated with who may issue or sign key trading documents,
- the requirements for confidentiality, privacy, integrity, proof of dispatch and receipt of key documents, and the non-repudiation of tendering and contracts,
- documented agreement which commits both parties to the agreed terms of trading, including details of authorization,
- compliance with all European directives and applicable international, national, regional and local laws, such as all tax acts, trade practices, Sale of Goods (or similar) acts, and so on.

If [REDACTED] implements further electronic commerce facilities with on-line payment and financial transactions, then the risks must be reassessed including:

- the level of trust required in the integrity of advertised price lists,
- the level of protection required to maintain the confidentiality and integrity of order information,
- the confidentiality and integrity of any order transactions, payment information, delivery address details, and confirmation of receipts,
- the degree of verification appropriate to check payment information supplied by a customer,

- the liability associated with any fraudulent transactions,
- the insurance requirements.

No Credit Card information shall be stored. The credit card detail should be routed to a reputable 3rd party payment gateway for processing.

3.12 Logging

- Application access logs must be enabled 24 hours per day, 7 days per week and kept for a mutually agreed period to assist in case of future investigations and access control monitoring
- Minimally, the following events must be logged:
 - Time Stamp
 - Source IP or hostname
 - Destination IP or hostname
 - Username (if possible)
 - Firewall ports (source and destination)
 - failed or rejected user authentication and access control policy violation,
 - failed or rejected user action,
 - use of system utilities,
 - all activities performed by high level privileges accounts (System administrators, system operators) amongst others:
 - system start-up and stop,
 - changes, or attempt to change, configuration and security settings.

3.13 Clock synchronization

- The applications' clock must be synchronised with [REDACTED] master clock.

SYSTEM-LEVEL SECURITY

3.14 System configuration hardening

- Applications agreed and defined under this Agreement to be hosted in [REDACTED] environment configured to only offer functionality that is absolutely necessary for the provision of the envisaged service (exceptions shall be documented). The Service Provider must specify the required operating system functionality, network services and security parameters.
- Software must be controlled and checked to protect against possible covert channels and Trojan code.
- Hardening requirements shall follow [REDACTED] INFORMATION SECURITY DEPARTMENT (ISD) hardening scripts. Deviations from the standardised [REDACTED] and agreed with the Project / System Owner, Information Systems Department (INFORMATION SECURITY DEPARTMENT (ISD)), Information Security Office (INFORMATION SECURITY OFFICE (ISO)).

3.15 System Utilities

All unnecessary system software, editors, and other development tools or system utilities are to be removed from [REDACTED] production servers.

- If the utilization of some system utilities is required for operational reasons, the utilization if the system utilities must be:
 - subject to a formal authorization from the System / Project Owner, Information Systems Department (INFORMATION SECURITY DEPARTMENT (ISD)), Information Security Office (INFORMATION SECURITY OFFICE (ISO)).
 - limited to a minimal number of trusted authorized individuals,
 - Monitored and logged.

3.16 Development, Test and production systems

- Development, test and production software must run on different systems.
- Development, test and production environment shall be Information isolated from each other.
- The test system environment should emulate the production system environment as closely as possible. [REDACTED] will provide masked production data in the test system environment to ensure emulation of the production environment

- Production data or files should not be used to be used for testing. If, for operational reasons, the test harness is constructed from production data:
 - then those data or files must be anonymised and declassified as "PUBLIC" information,
 - or the test system must be classified as 'LIMITED' and the same security controls must be applied as in the production environment.
- Prototypes must not be used in production.

3.17 Security System Acceptance Tests (SSAT)

- Prior to placing a system into production / operation, [REDACTED] will verify that the required functions are being performed completely and correctly, and that the technical, procedural and physical security controls are operational as per these security requirements. The Supplier will provide security test reports from independent parties to the Customer to verify the security tests.
- The security system acceptance procedure must include tests of:
 - all security related features of the information systems,
 - secure web server configurations,
 - resilience test against the applicable vulnerabilities:
 - OWAPS Top Ten Web application vulnerabilities,
 - SANS Top Twenty vulnerabilities.
- It is the responsibility of the Project / System owner to obtain such assurance by requesting the tests and reviews with the assistance of the INFORMATION SECURITY DEPARTMENT (ISD) and INFORMATION SECURITY OFFICE (ISO) team.

NETWORK-LEVEL SECURITY

- Every implementation of a new information system must be requested to Information Systems Department (INFORMATION SECURITY DEPARTMENT (ISD)) for tracking, hardening and provisioning of security functions.
 - For higher sensitivity applications/servers, these servers should be Information isolated in network segments of higher sensitivity in order to prevent attackers from reaching them through less sensitive network segments.
- Connection of information processing systems to [REDACTED] network must be performed by the [REDACTED] Network team.
- Connection of workstation or information systems not owned by [REDACTED], such as contractor's PC, is not allowed. Exceptions to be requested and reviewed by Project / Systems Owner, INFORMATION SECURITY DEPARTMENT (ISD) and INFORMATION SECURITY OFFICE (ISO).
- Remote access to [REDACTED] S information systems by third party users or Services Providers shall only be done with Virtual Private Network (VPN). The access shall be complimented with MFA and all access and activities performed shall be monitored and logged.

PHYSICAL SECURITY

Out of Scope

EXPLOITATION-LEVEL SECURITY

3.18 Change Management

production systems are subject to strict change control management.

- All changes made shall be logged and tracked by [REDACTED] Change Control System.
- All patches and service packs must be tested and validated before promotion to production.
- Automated updates must not be used as some updates may cause applications to fail.
- Any changes / installation made to the Production Systems shall be performed in agreement with business teams and service interruption procedure must be used in agreement with the production manager.

3.19 Business Continuity Management

████████████████████ has developed a comprehensive Business Continuity Management framework, supported by disaster recovery plan.

- The target system must be integrated into [REDACTED] IT Asset Inventory and evaluated as part of Risk Assessment.
- A copy of the accepted production site must be provisioned in a location distinct from the production site for Disaster Recovery (DR) purpose.

THIRD PARTIES' CONTRACTUAL OBLIGATIONS

3.20 Adherence to Requirements

- The criteria for selecting the contract shall include the capability of the contractor to meet and comply with these security requirements.
- All Service Provider's staffs working at [REDACTED] site(s) are required to comply with these security requirements and its supporting practices and baselines.

3.21 Non-Disclosure Agreement

- [illegible]

basis". Prior to disclosing any "Restricted" information to any third party the Service Provider will:

- inform that third party of the restrictions on the use and disclosure of the "Restricted" information,
 - ensure that the third party is bound by a confidentiality undertaking or obligations of confidence which protect the "Restricted" information to at least the extent that it is protected under the Service Provider agreement.
- Upon the written request of [REDACTED]

3.22 Third party access to [REDACTED] systems

- Third parties may not access [REDACTED]'S internal processing systems unless formal contractual agreement is signed.
- Only after signature, the third party is allowed to issue access requests with INFORMATION SECURITY DEPARTMENT (ISD) to provision for access to specified systems via secure access.

3.23 Private data protection

- The Service Provider acknowledges and agrees that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED] of the Data Regulators.

3.24 Intellectual Property (IP) Rights & legal software copies

- All materials (except for any pre-existing IP Rights of Supplier or owned by Supplier such as Malkom.AI), including documents in written or pictorial forms, on magnetic or non-magnetic media, drawings, designs, computer programs, and source code developed by the Service Provider or its contractors for [REDACTED]

- All materials supplied by [REDACTED]

[REDACTED]

[REDACTED]

3.25 Auditing & monitoring right

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

3.26 Obligation of reporting

- The Service Provider has the obligation to report all security incidents, software malfunctions, security weaknesses or threats to systems or services that their staffs notice or is made aware to [REDACTED]
- [REDACTED]
- All users shall be instructed that they must not, unless formally authorized by [REDACTED] attempt to prove a suspected weakness because this will be interpreted as a potential misuse of the system, could also cause damage to the information system or service and result in legal liability for the individual performing the testing.

Schedule 13

(Plan for Transition, Transformation, Technology and Operational Services)

1. INTRODUCTION

This Schedule sets out the Services which Supplier shall deliver to Customer and Customer Group Members in accordance with the Transition and Transformation Plan as defined in this Schedule and through the Term. The Transition and Transformation Plan comprises both the Transition Plan and the Transformation Plan.

This Schedule also sets out the operational services which the Supplier will perform and provide on the completion of the Transition Plan and throughout the Transition and Transformation Plan.

The Services to be provided are as follows:

- I) Transition Services
- II) Transformation Implementation Services and Transformation Recurring Services
- III) Technology Implementation Services and Technology Recurring Services
- IV) Operational Services

2. TRANSITION SERVICES

2.1. In this Schedule, the following definitions will apply:

“Transition Plan” refers to the detailed plan setting out the Transition Services to be undertaken over the Term of the Agreement and the timelines according to which they are to be completed.

“Transition Services” refers to the transition activities and services set out in section 2 of this Schedule.

“Transition Milestone” refers to specified Deliverables required to be completed pursuant to the Transition Plan for which a date or time of completion, whether estimated or fixed, is specified in the Transition Plan.

“Tollgate” refers to checkpoints in the Transition Plan demarcating the completion of different phases of each Wave.

“Success Criteria” refers to the criteria to be met for a Deliverable or Transition Milestone for such Deliverable or Transition Milestone to be considered to be completed.

“Artifact” refers to the end product or end result of the completion of a Deliverable or Transition Milestone.

“Wave” refers to a phase of the Transition and Transformation Plan whereby the Parties intend Transition Services and Transformation Services to be delivered by the Supplier to a particular Territory or a group of specified Territories.

2.2. In this Schedule, by the term “go-live” or “Go-Live”, the Parties refer to the phase, or the commencement of such a phase, in which development and testing of a Process, module,

product, or Technology Solution (in relation to a Process) is complete and when such Process, module, product, or Technology Solution is considered operational and Ready for Use.

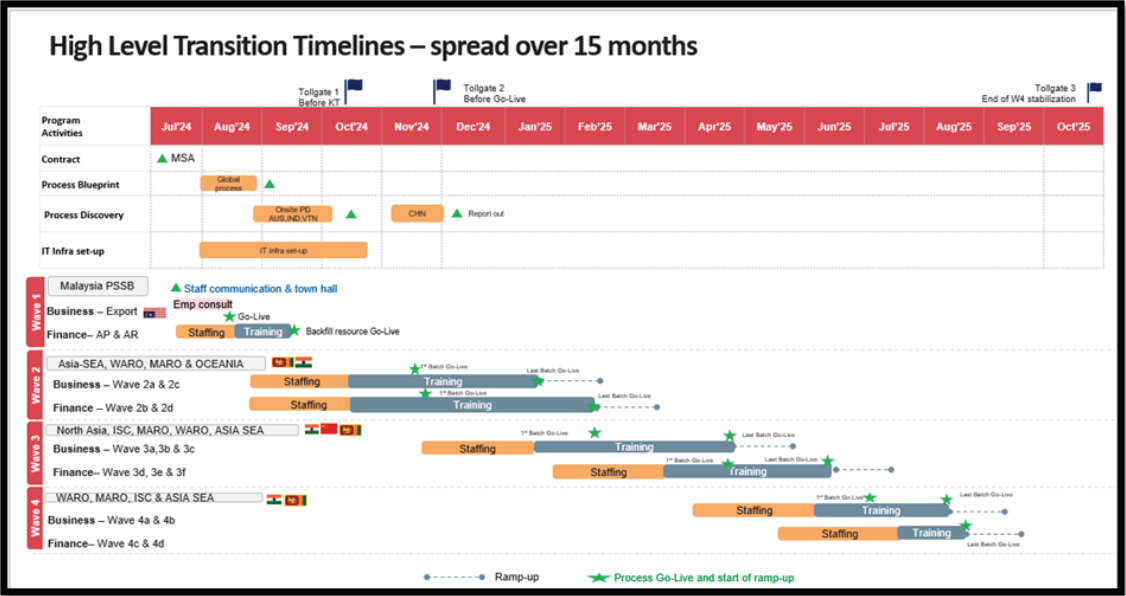
(A) Supplier and Customer responsibilities

- 2.3. The Supplier shall deliver the Transition Services in accordance with the Transition Plan and the terms of this Schedule. In its delivery of the Transition Plan, the responsibilities of the Supplier are as follows:
 - 2.3.1. Identifying the resources (including IT equipment, software and Personnel) that Supplier requires to complete the Transition.
 - 2.3.2. As soon as practicable, but no later than ten (10) business days after the Commencement Date, establishing a Transition project management office with sufficient members of Suppliers Personnel to manage the Transition Services set out in the Transition Plan.
 - 2.3.3. Managing and delivering where appropriate the Transition Services, including the Transition Plan and the management activities and Deliverables set out therein and overseeing the Deliverables contained in the detailed Transition Plan.
 - 2.3.4. Identifying the tasks required to be performed jointly by both Customer and Supplier to complete the Transition Services, which includes identifying and managing, with the assistance of Customer the business and technical issues that may affect the Transition Services
 - 2.3.5. Keeping Customer's management team informed of the current status of the Transition Plan activities
 - 2.3.6. Developing and implementing the processes necessary to complete the Transition Services as set out in the Transition Plan
 - 2.3.7. Supplier's responsibilities during knowledge transfer shall include:
 - 2.3.7.1. Monitoring and tracking progress of knowledge transfer (Training) against the knowledge transfer (Training) plan agreed between Customer and Supplier;
 - 2.3.7.2. Highlighting any risks and deviations against the agreed knowledge transfer (Training) plan and suggesting workaround/ mitigation plans for the same
 - 2.3.8. Supplier will provide transition reporting through Dashboard as stated in schedule 8
 - 2.3.9. Conducting Tollgate reviews with Customer
 - 2.3.10. Performing latency testing
 - 2.3.11. Performing such other tasks (1) as are set out in the Transition Plan, (2) that can reasonably be expected to be carried out, or (3) as are necessary to achieve a timely transition of Services
 - 2.3.12. deliver the Transition Services causing only minimal and non-adverse impact to the Customer's business and operations
- 2.4. Without prejudice to the Supplier's obligations to perform the Services in accordance with the Agreement, the Customer acknowledges that successful delivery of the Transition Services in accordance with the Transition Plan requires the Customer to:
 - 2.4.1. Establish a Transition team to support the Supplier Transition team and manage Customer's transition deliverables
 - 2.4.2. Provide information and assistance as reasonably requested by Supplier relating to Supplier' activities as described in the detailed Transition Plan
 - 2.4.3. Provide detailed and comprehensive process documentation for the in-scope activities and personnel as readily available. Documentation should include
 - 2.4.3.1. Comprehensive in-scope task list – at activity level (signed off by Customer)

- 2.4.3.2. "AS-IS" and available exception procedures and nuances
- 2.4.3.3. List of all reports, and other automation currently deployed across all business units
- 2.4.4. Allocated trainers /subject matter experts who will travel to Supplier's delivery location for providing training and post Go-Live support to the Supplier staff for Wave 2a (Hyderabad Business Operations) & 2b (Colombo F&A) further Country and end Customer nuances to be trained during Knowledge transfer trainings to Supplier staff.
- 2.4.5. Provide support to Supplier as specified in the Transition Plan and/ or wave wise project activity as stated in the detailed project plan.
- 2.4.6. Provide information as requested by Supplier for conducting the Due-Diligence for the Malaysia PSSB carve-out
- 2.4.7. Provide inputs to finalize approach for the knowledge transfer and agreement on the certification process for the Supplier resources
- 2.4.8. Provide inputs to finalize approach for hands-on practise during Knowledge Transfer – viz. dummy transaction creation and the volume ramp-up plan for each Customer country in-scope
- 2.4.9. Providing Supplier Personnel with necessary access to Customers applications/ systems (including test environments), Customer network and Customer software prior to commencement of knowledge transfer
- 2.4.10. Agreement and follow to the detailed volume ramp up / cut over plan and process stabilization plan. Supplier will deliver on new volumes while Customer will deliver on clearing the backlogs if any.
- 2.4.11. Support change management with impacted stakeholders, staff, Suppliers, Customers etc. to enable adoption of the new (outsourced) operating model.
- 2.4.12. Provide approval on activities, tollgates and relevant documentation as defined in the agreed Transition Plan.
- 2.5. In the absence of detailed and comprehensive process documentation and an in-scope task/ activity list, the Parties have agreed that the detailed task list will be developed by Supplier in conjunction with Customer at the completion of the process discovery activity and process documentation to be completed prior to the knowledge transfer completion. Such detailed task list will be reviewed and signed off by the Customer as per agreed Transition Plan.

(B) Transition Plan

- 2.6. A high-level indicative diagram of the Transition Plan is as follows:



- 2.7. The Transition Plan set out in this Schedule is based on the following assumptions:
- 2.7.1. The Transition Plan as set out herein is only preliminary and the Parties generally intend for the Transition to Plan to follow the high level indicative plan set out in the diagram above. The Transition Plan is to be finalised within the first 15 months of the Term. Once finalised, the Parties will agree on the applicable timelines and this Schedule and the Transition Plan will be amended accordingly.
 - 2.7.2. The Transition Plan shall be tracked as per the Governance process under Schedule 8.
 - 2.7.3. Any changes to the Transition Plan must be agreed between the parties..
 - 2.7.4. The Supplier shall notify Customer if it reasonably believes it will not be able to meet its obligations under this Schedule.
- 2.8. The Parties intend for the Transition Plan to be delivered in four Waves, as set out below. The table below illustrates the Territories in scope for each of the Waves and the estimated time for completion of the Transition Service to the Territories within that Wave.

Wave(s)	In-scope Territories	Estimated completion – no. of weeks after the Commencement Date
1	Malaysia PSSB	16 10
2	Malaysia, Australia, Cambodia, Indonesia, Kenya (Uganda & Rwanda) , Nigeria, New Zealand, Philippines, Singapore, South Africa, Thailand, UAE, Vietnam	38
3	China, Hong Kong SAR China, Taiwan China, Bangladesh, Egypt, Ghana, India, Korea	60
4	Sri Lanka, Pakistan, Benin, Cameroon, Cote D'Ivoire, Djibouti, Jordan, Mozambique (Malawi, Zimba bwe, Zambia), Myanmar, Sudan, Tanzania, Togo, Yemen	66 69

(1) *Wave 1 – Malaysia PSSB*

2.9. Transition Services to be performed for Wave 1 consist of conducting due diligence on employees and assets across the impacted work streams, as follows:

Area	Tasks
Human Resources	(a) Understand existing employee base (talent matrix with knowledge, skill, linguistic skills and seniority) and related cost structure (b) HR policies, compensation and benefits, experience levels, training and attrition (c) Transfer and compliance requirements
Information Technology	(a) Understand IT Organization structure and existing IT architecture (b) Understand Technology landscape and vendor / third party dependencies (c) List of IT assets, software and hardware, application support and related contracts and policies (d) Inspect the assets physical condition and evaluate whether any investment in asset replacement is required
Risk, Infosec and Business Continuity (BCP)	(a) Understand Risk Management Organization structure (b) Security/Privacy Policies and Certification details (c) Understand existing Risk, Infosec and BCP architecture (d) Pending security deployments (e) Business Continuity Plan (f) Remote working solution

Facility / Non-IT Infrastructure, Vendor contracts and related costs	(a) Assess capacity, utilization, terms of lease, options to optimize existing facilities and infrastructure. (b) Inspect the assets physical condition and evaluate whether any investment in asset replacement is required. (c) Understand related cost structure - rentals, running and maintenance costs, and capex requirements etc. (d) List of Vendor contracts and continuity of contracts or dependencies
Legal	(a) Understand legal aspects, certifications, licenses, etc. required. (b) Execution of Business Transfer Agreement (c) Employee communication and Townhall a. Employee consultation b. Focus group discussions (d) Transfer, Change Management and Go-Live

2.10. The Transition Milestones for Wave 1 are as set out below.

Transition Milestone	Expected Completion	Responsible	Success Criteria	Artifact
Completion of Due Diligence (HR, IT, Facility, Risk, etc.)	Week 1	Supplier	Receipt of complete information from the customer for enabling Supplier to conduct the end to end due-diligence	Due Diligence Report
Business Transfer Agreement	Week 1	Supplier & Customer	Mutual agreement and signing of the agreements	Executed Business Transfer agreement Assignment of Assets
Employee Communication & Townhall	Week 3	Supplier & Customer	Joint and transparent communication to the employees along with step by step approach for the way ahead	
Customer employee 1:1 consultation, Focus group discussions	Week 6	Supplier	Provide clarifications to employees and explain total	

Transition Milestone	Expected Completion	Responsible	Success Criteria	Artifact
			rewards being offered by Supplier	
Day 1 – Supplier New Hire Orientation & System Walk Through	Week 7	Supplier	Go-Live with Supplier	

(2) *Waves 2, 3, and 4*

- 2.11. Waves 2, 3, and 4 follow a different process from Wave 1 and the Transition Services delivered pursuant to Waves 2, 3, and 4 are not the same as those in Wave 1. The Transition Plan for Waves 2, 3, and 4 will be in accordance with the following process:

Steps	Description
Project Setup	- Setting up of transition team and kick-off the transition services - Develop and align transition plan with Customer - Develop communication plan
Transition workshop	Conduct discussions with Customer stakeholders to agree on the: - Transition plan - Identification of countries for grouping - Synergies within Regions/Countries - Wave-wise country sequencing
Process Blueprint	Conduct discussions with Customer stakeholders to agree on the: - Align on the standard process flow for BO & F&A scope. - Design Process flow for BO & F&A scope - Deploy DSite on customer stakeholder's systems to capture key stroke level screen shot while Customer SME finalizes the SOP with finer details of processing any particular transaction for the BO & F&A scope.
Process Discovery & Report-out	Conduct discussions with Customer stakeholders to finalise the: - In-scope and out-of-scope activities - FTE effort validation - IT connectivity solution and timelines - Knowledge Transfer approach and plan - Ramp-up approach and plan - SLA & KPI for in-scope processes - Process documentation plan - Project governance and reporting
IT Setup – connectivity	Discuss and align with Customer on the IT connectivity and setup related activities
IT Setup – Procurement	Supplier to complete procurement of IT equipment as per the agreed IT solution design document
IT Setup – User Access Provisioning	Discuss and finalise the user access provisioning requirements and timelines with Customer: - Supplier to raise systems access requirement as per the transition plan - Customer to provision user accesses as per timelines - Supplier to test and confirm if user access is granted to deliver all in-scope processes
Staffing	Supplier to hire the resources required for each wave and batch as per the agreed transition plan.

Steps	Description
Pre-process	One week of Pre-Process Training has been planned for all work streams to cover Supplier & Customer cultural orientation, essential regulatory trainings and new hire orientation
Process Training	- Customer trainers & SMEs to provide training (including country nuances) to the initial batch for all in scope process at Supplier delivery locations - Customer to provide oversight support for training conducted by Supplier trainers and help in query resolution - Customer to provide required IT setup (systems access, test environment) for Supplier staff to conduct hands-on practice
Certification	- Customer trainers & SMEs to certify Supplier trainers from the initial batch and agree on the certification criteria and approach for training Supplier staff. - Supplier certified trainers to conduct certifications for all the subsequent batches.
Documentation sign-off	- DPM - Customer to review and sign-off process documents created and amended by Supplier staff - SLA & KPI - Customer to review and sign-off Metric guide created by Supplier staff.
Go-Live	Supplier to commence service delivery post completion of process training;

Statements of Work (SOWs)

2.12. For each Territory covered within the Transition Plan, the Parties will agree on a Statement of Work setting out the provision of Operational Services to the Customer in the Territory. In accordance with the terms of the Agreement, the Statement of Work shall cover:

- 2.12.1.** The Operational Services to be provided to the Customer in the Territory;
- 2.12.2.** The [REDACTED] In-Scope FTEs allocated across the Processes underlying the Operational Services in the Territory;
- 2.12.3.** The FTEs allocated across the Processes underlying the Operational Services in the Territory;
- 2.12.4.** The Supplier Sites from which the Operational Services are provided;
- 2.12.5.** The Volume Baselines for such Processes; and
- 2.12.6.** The Resource Baselines for such Processes.

2.13. The methodology to be followed for the preparation of the Statements of Work shall be as set forth in this section.

Methodology and contents of Statements of Work

2.14. Pursuant to the Detailed Requirements Study conducted for the Territory prior to the execution of this Statement of Work, for each Process, the Parties will agree on:

- 2.14.1.** the [REDACTED] In-Scope FTEs allocated to each Process for the Territory; and
- 2.14.2.** the Resource Baseline, being the initial FTEs to be supplied and billed by the Supplier for each Process, allocated to the Supplier Sites providing the Operational Services.

2.15. The Parties have further agreed on a baselining methodology to determine the Volume Baselines for the Processes underlying the Operational Services in the Territory applicable on the Local Commencement Date (or Deemed Commencement Date, as applicable) to be calculated as follows:

2.15.1. The Volume Baseline for each Process underlying the Operational Services shall be determined by obtaining the average of the amount, quantity, volume or frequency of the Operational Services over the 12 months prior to the date of the Detailed Requirements Study.

2.15.2. The Processes, sub-Processes, and their corresponding unit of measurement for the relevant Operational Service and the calculation of the Volume Baseline shall be as follows:

Process	Sub-Process	Unit of measure for Volume Baseline
Rate & Contract Management	New Contracts	Number of contracts including amendments
Rate & Contract Management	Updates & Amendments	
Rate & Contract Management	Rate Filing Activity	
Rate & Contract Management	DAR Application	
Booking	Bookings - Manual	Number of bookings processed (including cancelled and confirmed)
Booking	Bookings - EDI	
Booking	Amendments - Booking	Number of booking amendments
Booking	Amendments - FCA	
Booking	SSE Filing	Number of bills of lading
Booking	VGM	
Booking	VGM Closure	
Export Documentation	SI Requests - Manual	
Export Documentation	SI Requests - EDI	
Export Documentation	MLO Export - SOC	
Export Documentation	BL Amendments	Number of bill of lading amendments
Import Documentation	Customs	Number of bills of lading
Import Documentation	Pre-Alerts	
Import Documentation	Cargo Release - DO	
Import Documentation	Vessel Handling - Arrival Documentation	
Equipment Control	Containers Movement Milestone	Number of container moves
Equipment Control	MT Container Repositioning	Number of empty bookings

Equipment Control	Container Movement Milestone - Manual	Number of container moves
Equipment Control	eEIR releasing	Number of containers
Equipment Control	Demurrage	Number of containers
Equipment Control	Invoice verification - TRS	Number of invoices
Equipment Control	Invoice verification - TES	
Equipment Control	Invoice verification - PSO	
Equipment Control	Invoice verification MNR	
Accounts Payable	Vendor contract management	Number of requests received
Accounts Payable	Invoice Processing	Number of invoices
Accounts Payable	Container Deposit Refund	Number of deposits
Accounts Payable	Payment/Funding	Number of payment runs
Accounts Payable	Vendor Account Reconciliation	Number of statements of account
Accounts Payable	Invoice verification - TRS	Number of invoices
Accounts Payable	Invoice verification - TES	
Accounts Payable	Invoice verification - PSO	
Accounts Payable	Invoice verification MNR	
Accounts Payable	Travel & Entertainment processing	Number of expense reports
Accounts Receivable	Biling	Number of advices received
Accounts Receivable	3rd Party Biling Recovery	
Accounts Receivable	Cash Apps / Receipting	
Accounts Receivable	Credit Review & Management	
Accounts Receivable	Dispute Management	
Accounts Receivable	Sending SOA's	
Accounts Receivable	Biling of Damaged container	
Accounts Receivable	Customer Code Creation	
Accounts Receivable	Ageing of Accounts	
Record to Report	Report to HQ	Number of posted transactions
Record to Report	Month End Closing - RHQ	
Record to Report	Month End Reporting - RHQ	
Record to Report	Budgeting - Local & RHQ	Number of GL accounts
Record to Report	Intercompany transactions	Number of posted transactions
Agent Statement of Account	Opening/Closing	
Agent Statement of Account	Commission	
Agent Statement of Account	ASA Reconciliation	Number of ASAs

- 2.16. Each Statement of Work shall set out the Operational Services to be provided by the Supplier in that Territory, excluding such Operational Services that Parties have agreed shall be excluded or such Services that shall not be provided in accordance with any mandatorily applicable Laws and Legal Requirements.
- 2.17. The Parties acknowledge that the full cut over and take over of PSSB i.e. the Supplier's Supplier Site in Malaysia will occur prior to the execution of the relevant Statements of Work for certain Territories, where the Supplier will be providing Operational Services for its Supplier Site in Malaysia. For such Territories, the Parties agree that (i) the [REDACTED] In-Scope FTEs shall include the [REDACTED] Scope FTEs in Malaysia attributable to the Territory prior to the commencement date of the Statement of Work; and (ii) that the commencement date for the provision of Operational Services by such FTEs shall be the cut over date of PSSB to the Supplier.

Tollgates

- 2.18. For the purpose of tracking the status of the Transition Plan in each of Waves 2, 3, and 4, the Parties have structured the completion of Deliverables to take place by Tollgates, with each Tollgate to demarcate the completion of different phases of the relevant Wave.
- 2.19. The Tollgates for each of Waves 2, 3, and 4 are as follows:
- 2.19.1. **Tollgate 1:** Signifies the end of planning and solution design phase and an approval on this tollgate is needed to commence knowledge transfer (Training)
- 2.19.2. **Tollgate 2:** Confirms that knowledge transfer (Training) has been completed successfully, IT and other enablers like infrastructure are in place for Supplier to Go-live. An approval on this tollgate is needed for Supplier to commence operations
- 2.19.3. **Tollgate 3:** This tollgate is conducted at the end of completion of 100% volume cut-over to the Supplier.
- 2.20. A Tollgate shall only be considered to be met when the Parties have discussed the status of the Tollgate and the Customer has confirmed its approval to proceed.
- 2.21. In the tables below, for each Wave, the Parties have set out the Transition Milestones to be included in each Tollgate, together with the week in the Term in which the relevant Transition Milestone is expected to be completed. Each Transition Milestone shall be considered to be completed on meeting the Success Criteria, which shall be tracked by full delivery/production of the Artifact.
- 2.22. For Wave 2, the activities and Transition Services to be included in Tollgates 1, 2, and 3 are as follows:

Wave 2 - Tollgate 1

Transition Milestone	Expected Completion	Responsible	Success Criteria	Artifact
Contract execution	Week 16	Supplier & Customer	15 Country SOWs executed	Executed 15 Country SOWs

Transition Milestone	Expected Completion	Responsible	Success Criteria	Artifact
Process Discovery completion for all processes	Week 16	Supplier	Process Discovery report Sign-off	Process Discovery Report
Application assessment for 15 countries processes in scope	Week 15	Supplier	Identification of required applications for production for Supplier users Access provisioning requirement and timelines captured	Applications list, requirement and timelines document
Finalise Transition Plan	Week 15	Supplier & Customer	Signed off transition plan	Transition plan
Volume and FTE Estimation for 15 countries processes in scope	Week 15	Supplier	Country wise volume and FTE mapping	Finalized country and process wise volume and FTE document
Job description validation	Week 14	Supplier	Approved Job Description across processes in scope	Job description document
Hiring of Supplier resources	Week 15	Supplier	100% of staff onboarded as per the Transition plan	Hiring Tracker
Assess availability of Customer resources for transition support	Week 14	Supplier & Customer	Approved RACI on Customer project support team	RACI document
Travel readiness for Customer trainers for training	Week 15	Customer	Travel documents are in place and logistics is completed	Travel documents
Knowledge Transfer plan & certification approach	Week 15	Supplier & Customer	Detailed Day-wise Training plan finalised with Customer Trainers Certification approach and criteria signed off by Customer	Day-wise process level training plan Certification framework document

Wave 2 - Tollgate 2

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Operating Governance Framework	Week 20	Supplier & Customer	Agreement on the Governance structure post Go-Live	Governance framework document

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Training completion of Supplier staff & trainers and commence Go-Live	Week 19	Customer	100% of Supplier Trainers & staff are certified basis the agreed certification criteria for each batch count as per the Transition Plan and commence Go-Live. Certification score of minimum 80% for BO & F&A and 2 re-test attempts in case any user scores less than 80% in 1 st attempt certification.	Batch-wise Training scores for all Supplier trainees
Complete Desktop Procedures manual (DPM)	Week 19	Supplier & Customer	Signed off DPM for all processes scheduled to go-live as per the transition plan	Signed off DPM document.
Agreement & closure on Volume Transfer Plan (cut-over plan) Any variation by process/country will be added into the country SOW	Week 19	Supplier & Customer	Incremental ramp-up within 4 to 6 weeks Supplier will cut over 100% of volume.	Country and Process wise volume transfer plan document
Use Acceptance Testing (UAT) by Supplier staff for all applications required for production	Week 19	Supplier & Customer	100% of Supplier staff is able to access all application and network to perform its deliverables (including Customer application as stated in Schedule 7)	UAT tracker document
Finalization of Metric guide including SLA/KPI & ramp targets	Week 19	Supplier & Customer	Signed off SLA / KPI and ramp targets	SLA / KPI and Ramp target document

Wave 2 - Tollgate 3

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Commencement of 100% volume take-over in accordance to the transition plan	26	Supplier	100% of volumes are processed by the Supplier staff	Ramp-up volume report
Reporting of all metrics as agreed in the reporting schedule	26	Supplier	Commencement of Performance metrics reporting	Performance metric reporting
Tollgate #3 - Project success criteria met	39**	Supplier	Completion of all transition activities as per the Transition plan and achievement of milestones	Milestones / Tollgate pack

2.23. For Wave 3, the activities and Transition Services to be included in Tollgates 1, 2, and 3 are as follows:

Wave 3 - Tollgate 1

Transition Milestone	Expected Completion	Responsible	Success criteria	Artifact
Contract execution	Week 28	Supplier & Customer	8 Country SOWs executed	Executed 8 Country SOWs
Application assessment for 8 countries processes in scope	Week 27	Supplier	Identification of required applications for production for Supplier users Access provisioning requirement and timelines captured	Applications list, requirement and timelines document
Volume and FTE Estimation for 8 countries processes in scope	Week 27	Supplier	Country wise volume and FTE mapping	Finalized country and process wise volume and FTE document
Hiring of Supplier resources	Week 28	Supplier	100% of staff onboarded as per the Transition plan	Hiring Tracker
Creation of Knowledge Transfer plan & certification approach	Week 28	Supplier & Customer	Detailed Day-wise Training plan finalised with Customer Trainers Certification approach / criteria signed off by Customer	Day-wise process level training plan Certification framework document

Wave 3 - Tollgate 2

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Operating Governance Framework	Week 34	Supplier & Customer	Agreement on the Governance structure post Go-Live	Governance framework document
Training completion of Supplier staff & trainers and commence Go-Live	Week 32	Supplier & Customer	100% of Supplier Trainers & staff are certified basis the agreed certification criteria for each batch count as per the Transition Plan and commence Go-Live. Certification score of minimum 80% for BO F&A and 2 re-test attempts in case any user scores less than 80% in 1 st attempt certification.	Batch-wise Training scores for all Supplier trainees
Complete Desktop Procedures manual (DPM)	Week 32	Supplier & Customer	Signed off DPM for all processes scheduled to go-live as per the transition plan	Signed off DPM document
Agreement & closure on Volume Transfer Plan (cut-over plan) Any variation by process/country will be added into the country SOW	Week 32	Supplier & Customer	Incremental ramp-up within 4 to 6 weeks, Supplier will cut over 100% of volume.	Country / Process wise volume transfer plan document
Use Acceptance Testing (UAT) by Supplier staff for all applications required for production	Week 32	Supplier & Customer	100% of Supplier staff is able to access all application and network to perform its deliverables (including Customer application as stated in Schedule 7)	UAT tracker document

Wave 3 - Tollgate 3

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Commencement of 100% volume take-over in	Week 39	Supplier	100% of volumes are processed by the Supplier staff	Ramp-up volume report

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
accordance to the Transition Plan				
Reporting of all metrics as agreed in the reporting schedule	Week 39	Supplier	Commencement of Performance metrics reporting	Performance metric reporting
Tollgate #3 - Project success criteria met	Week 58**	Supplier	Completion of all transition activities as per the Transition plan and achievement of milestones	Milestones / Tollgate pack

2.24. For Wave 4, the activities and Transition Services to be included in Tollgates 1, 2, and 3 are as follows:

Wave 4 - Tollgate 1

Transition Milestone	Expected Completion *	Responsible	Success criteria	Artifact
Contract execution	Week 47	Supplier & Customer	14 Country SOWs executed	Executed 14 Country SOWs
Application assessment for 16 countries processes in scope	Week 46	Supplier	Identification of required applications for production for Supplier users Access provisioning requirement and timelines captured	Applications list, requirement and timelines document
Volume and FTE Estimation & Validation for 16 countries processes in scope against Due-Diligence document	Week 46	Supplier	Country wise volume and FTE mapping	Finalized country and process wise volume and FTE document
Hiring of Supplier resources	Week 48	Supplier	100% of staff onboarded as per the Transition plan	Hiring Tracker
Creation of Knowledge Transfer plan & certification approach	Week 48	Supplier & Customer	Detailed Day-wise Training plan aligned with ■■■ Trainers Certification approach / criteria signed off by Customer	Day-wise process level training plan and certification framework document

Wave 4 - Tollgate 2

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Operating Governance Framework	Week 53	Supplier & Customer	Agreement on the Governance structure post Go-Live	Governance framework document
Training completion of Supplier staff & trainers and commence Go-Live	Week 53	Supplier & Customer	100% of Supplier Trainers & staff are certified basis the agreed certification criteria for each batch count as per the transition plan and commence Go-Live Certification score of minimum 80% for BO & F&A and 2 re-test attempts in case any user scores less than 80% in 1st attempt certification.	Batch-wise Training scores for all Supplier trainees
Complete Desktop Procedures manual (DPM)	Week 53	Supplier & Customer	Signed off DPM for all processes scheduled to go-live as per the transition plan	Signed off DPM document
Agreement & closure on Volume Transfer Plan (cut-over plan) Any variation by process/country will be added into the country SOW	Week 53	Supplier & Customer	Incremental ramp-up within 4 to 6 weeks, Supplier will cut over 100% of volume.	Country / Process wise volume transfer plan document
Use Acceptance Testing (UAT) by Supplier staff for all applications required for production	Week 53	Supplier & Customer	100% of Supplier staff is able to access all application and network to perform its deliverables (including Customer application as stated in Schedule 7). Certification score of minimum 80% for BO F&A and 2 re-test attempts in case any user scores less than 80% in 1st attempt certification.	UAT tracker document

Wave 4 - Tollgate 3

Transition Milestone	Expected Completion	Owner	Success criteria	Artifact
Commencement of 100% volume take-over in accordance to the transition plan	Week 58	Supplier	100% of volumes are processed by the Supplier staff	Ramp-up volume report
Reporting of all metrics as agreed in the reporting schedule	Week 58	Supplier	Commencement of Performance metrics reporting	Performance metric reporting
Tollgate #3 – Project success criteria met	Week 71**	Supplier	Completion of all transition activities as per the Transition plan and achievement of milestones	Milestones / Tollgate pack

3. TRANSFORMATION IMPLEMENTATION SERVICES AND TRANSFORMATION RECURRING SERVICES

3.1. In this Schedule, the following definitions shall apply:

“Technology Solutions” refers to the technology solutions intended to be deployed by the Supplier for the performance of the Transformation Services, including the following:

Technology Solution	Description
Malkom.ai	Proprietary Intelligent shipment execution platform for automating end to end shipment value chain powered by AI/ ML RPA infused with GenAI.
Intelligent Automation	Software robots act like humans when they interact with digital systems and software, offering a scalable automation solution for tasks that don't need much human input.
DSOP	A digital SOP utility featuring dynamic SOP creation and port pair validation assist functionalities aiding task execution.
Celonis	Process mining enabler for driving standardization and process optimization functionalities aiding task execution.
DsiTE	Step-by-Step digital knowledge transfer and knowledge management tool.
BOLT	Micro Learning Knowledge reinforcement & dissemination tool
Bridge	Real-time 360° visibility platform and reporting interface.

To support the deployment of all the technology solutions listed in the table above, a program management team will be deployed during the first 24 months of the contract.

“**Transformation Plan**” refers to the detailed plan setting out the Transformation Services to be delivered and the timelines by which the Transformation Services are to be delivered.

“**Transformation Milestone**” refers to the relevant Deliverable which pursuant to the Transformation Plan is to be completed by a specific time or date.

“**Transformation Implementation Services**” refers to the initial phase of installation and setting up of the Technology Solutions for the Customer in order to deploy the Technology Solutions to the Customer.

“**Transformation Recurring Services**” refers to the provision of ongoing support services and the delivery of licences for the Technology Solutions over the Term of the Agreement.

(A) Transformation Plan

- 3.2. The Parties intend for the Transformation Plan to commence 4 weeks from the Commencement Date.
- 3.3. A high-level Transformation Plan is as set out below. The Parties acknowledge that the completion of the Transformation Plan in accordance with the following is dependent on the successful implementation of the Technology Solutions in the relevant Territories as set out in the Transformation Plan.



(B) Technology Solutions – Transformation Implementation Services and Transformation Recurring Services

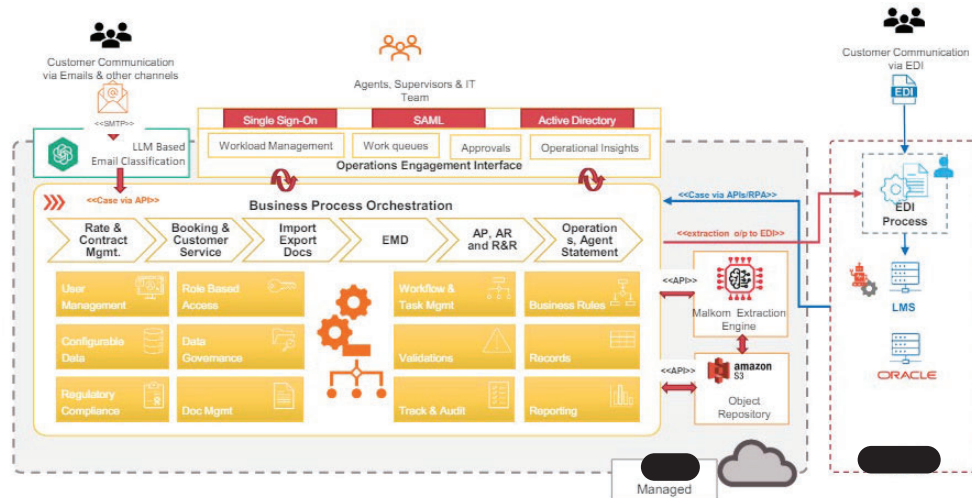
- 3.4. In the following tables, the Parties have set out each of the Technology Solutions to be delivered and for each of the Technology Solutions, the activities to be undertaken and Deliverables to be achieved for the Transformation Implementation Services and during the Transformation Recurring Services.

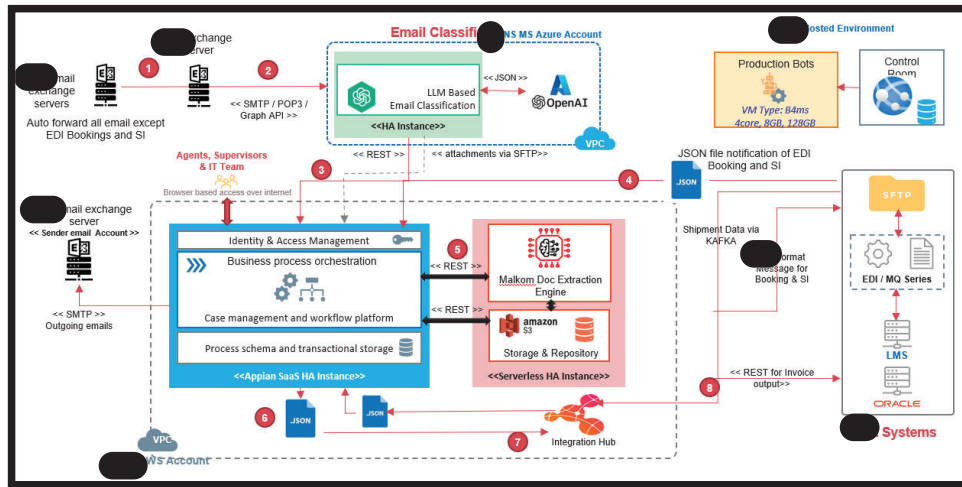
- (1) *Malkom.ai*

Malkom.ai is a tool with the following functionalities and is expected to be used in the following Processes:

Tool Name	Description	Key Functionalities	In scope towers/processes
Malkom.ai	Proprietary Intelligent shipment execution platform for automating end to end shipment value chain powered by AI/ ML RPA infused with GenAI	- Email & workflow Management - Intelligent document extraction - Document management system - Task Execution BOTs - GEN AI based classification, extraction & translation. - Shipment milestone Tracking	1.Rate Contract Management 2.Bookings 3.Export Documentation 4.Import Documentation 5.Operations 6.Equipment Control 7.Accounts Payable 8.Accounts Receivable 9.ASA (Agent Statement of Account) 10.Record to Report (R2R)

3.5. The architecture of Malkom.ai, with integration between the Customer and the Supplier, is as follows:





3.6. The high-level Transformation Plan for Malkom.ai is based on the following assumptions. In the event of a change in these assumptions, the Transformation Plan may need to be amended.

3.6.1. Supplier has considered 695K emails/month for the listed processes in scope.

3.6.2. Supplier has considered 239K pages/month for OCR extraction covering the processes of New Booking, New SI, Invoices and Remittance advice only

3.7. The Customer's responsibilities for Malkom.ai are as follows:

3.7.1. Customer will provide access to their test and production environments for integration with Malkom.ai. These integrations involve: (i) email integration for receiving & sending emails to/from Malkom; (ii) LMS integration; (iii) Oracle Fusion integration; (iv) Transient database (till Data Lake is available); (v) Customer Data Lake integration (To be available from September 2024)

3.7.2. Customer SMEs (subject matter expert) to be available during process discovery phase.

3.7.3. Customer infrastructure changes (including whitelisting, site to site VPN etc.) would be required for Customer staff to access Malkom.ai

3.7.4. Customer to work with Supplier to setup operational volume reconciliation mechanism pertaining to processes within scope.

3.8. The Supplier's responsibilities for Malkom.ai are as follows:

3.8.1. Supplier will be using Customer's customers/internal emails to fine tune Malkom's AI models.

3.8.2. Supplier will provide Malkom's access to Customer wherever needed. There are certain process streams where Customer's staff would be expected to work on Malkom. Customer would be involved in UAT (user acceptance testing) and process training for enabling these functionalities.

(a) Malkom.ai – Transformation Implementation Services

3.9. In the table below, the Parties have set out the Transformation Services to be delivered for Malkom.ai in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

i.

Transformation Milestone	Supplier Transformation Deliverables	Customer Dependencies & Transformation Requirements	Expected Completion
Booking and Equipment Control Implementation	- User Manual for Bookings and Equipment Control	- Customer IT support for infrastructure and environments access/integrations - Customer Infosec approval - access to test and production environments - sample documents and test data - Customer IT support for integrating Malkom.AI with LMS application including provisioning of Master data and Shipment Data based on agreed integration mechanism - Review and support operational volume reconciliation mechanism - Customer SME/users availability for UAT - Customer SME/users availability for getting trained on the product	M7
Export/Import Doc Implementation	- User Manual for Export and Import Documentation	- Customer IT support for infrastructure and environments access/integrations - Customer Infosec approval	M8

Transformation Milestone	Supplier Transformation Deliverables	Customer Dependencies & Transformation Requirements	Expected Completion
		- access to test and production environments - sample documents and test data - Customer IT support for integrating Malkom.AI with LMS application including provisioning of Master data and Shipment Data based on agreed integration mechanism - Review and support operational volume reconciliation mechanism - Customer SME/users availability for UAT - Customer SME/users availability for getting trained on the product	
Rate Contract Management & Operations Implementation	- User Manual for Rate Contract Management and Operations	- Customer IT support for infrastructure and environments access/integrations - Customer Infosec approval - access to test and production environments - sample documents and test data - Review and support operational volume reconciliation mechanism - Customer SME/users availability for UAT	M11

Transformation Milestone	Supplier Transformation Deliverables	Customer Dependencies & Transformation Requirements	Expected Completion
		- Customer SME/users availability for getting trained on the product	
F&A Implementation	- User Manual for F&A processes	- Customer IT support for infrastructure and environments access/integrations - Customer Infosec approval - access to test and production environments - sample documents and test data - Customer IT support for integration of Malkom.AI with GFS application based on agreed integration approach - Review and support operational volume reconciliation mechanism - Customer SME/users availability for UAT - Customer SME/users availability for getting trained on the product	M13

Success criteria for each Transformation Milestone for Malkom.ai:

Transformation Milestone	Success Criteria
Booking and Equipment Control Implementation	Malkom.AI application is deployed to production for Booking and Equipment Control, is accessible and is used by agents to process transactions.
Export/Import Doc Implementation	Malkom.AI application is deployed to production for Export and Import documentation, is accessible and is used by agents to process transactions.

Rate Contract Management & Operations Implementation	Malkom.AI application is deployed to production for Rate and Contract Management & Operations, is accessible and is used by agents to process transactions.
F&A Implementation	Malkom.AI application is deployed to production for F&A processes, is accessible and is used by agents to process transactions.

(b) Malkom.ai – Transformation Recurring Services

3.10. The Transformation Recurring Services for Malkom.ai are as follows:

Transformation Recurring Service	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	
Malkom.ai (appian workflow, malkom OCR, classification engine & hosting charges)	Weekly Availability Report consisting of information relating to availability of the platform, hosting and license details .	None	
Malkom.ai BAU Support	Weekly Report consisting of • Incidents and Issues • Change Requests • Service Requests • Details of resolved and un-resolved tickets • Volume details • Customer dependencies Upcoming upgrades/downtime	• Customer IT support to resolve any ticket that has dependency on customer applications or connectivity to customer systems • Customer Business Approval for any Change requests	

(2) DSOP (Digital Standard Operating Procedures)

- 3.13.2. Customer to provide IT SPOC from the LMS vendor for co-ordinating development and installation of DSOP plug-in.
- 3.13.3. DSOP Chrome Plugin is installed on all agent's local Chrome browser. LMS application should be natively accessible from the local Chrome browser on agent's desktop.
- 3.13.4. Customer to share the list of IP ranges from where users will access the application.
- 3.13.5. Supplier will use the Train the Trainer approach to train 1-2 batches of power users, on creation and approving of SOPs, and using SOPs in LMS. This batch will be guided to create initial SOPs in the system. These initial power users should then train the rest of the Customer and Supplier operations team members.
- 3.13.6. First time installation of Chrome Extension on Customer desktops will require Customer IT team support (in case users don't have access to install Chrome extensions)
- 3.13.7. Customer to identify and assign approvers for SOPs available via DSOP for approval.

(a) DSOP – Transformation Implementation Services

- 3.14. In the table below, the Parties have set out the Transformation Services to be delivered for DSOP in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

i.

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Phase1 - Discovery Bookings and Export DOCS	Business Requirements Document	- LMS access for Bookings and Export Docs pages of all countries - Standardized Customer, Country, Regulatory and Policy SOP in Supplier provided template. - Workshops between Customer and Supplier to discuss and understand Standardized SOPs - Ensure that required SME (country-wise) are made available for SOP clarification and a central SPOC is available to lead standardization. - Customer approval	M7
Phase 1- Design & Implementation	Architecture Design Document updated for Bookings and Export Documentation	- Support for SSO Integration - Infosec Approvals - Coordination with LMS Vendor, where needed. - Customer IT Support for data extraction and environment integration	M9
Phase 1- Commencement for Bookings and Export Documents	User Manual	- UAT approval - Production User Details - Customer IT Support	M11

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Phase 2 - Discovery- Import DOCS	Business Requirement Document updated for Import Documentation	- LMS access for Bookings and Export Docs pages of all countries - Standardized Customer, Country, Regulatory and Policy SOP in Supplier provided template. - Workshops between Customer and Supplier to understand Standardized SOPs - Ensure that required SME (country-wise) are made available for SOP clarification and a central SPOC is available to lead standardization. - Customer approval	M13
Phase2 - Design and Implementation	Architecture Design Document updated for Import Documentation	- Coordination with LMS Vendor, where needed. - Customer IT Support for data extraction and environment integration	M14
Phase2 - Commencement	User Manual.	- UAT approval - Production User Details - Customer IT Support	M16

DSOP success criteria for in scope services - (Booking, Export Docs and Import Docs)

Transformation Milestone	Success Criteria
Phase1 - Discovery Bookings and Export DOCS	Business Requirement Document for Bookings and Export Documentation is signed off by operations.
Phase 1- Design & Implementation	DSOP UAT commenced for Bookings and Export Documentation processes
Phase 1- Commencement for Bookings and Export Documents	DSOP Application deployed in production for Bookings and Export Documentation, is accessible and is used by business users to create Digital SOPs basis existing documents/procedures
Phase 2 - Discovery- Import DOCS	Business Requirement Document for Import Documentation is signed off by operations.
Phase2 - Design and Implementation	DSOP UAT commenced for Import Documentation processes
Phase2 - Commencement	DSOP Application deployed in production for Import Documentation, is accessible and is used by business users to create Digital SOPs basis existing documents/procedures

(b) DSOP – Transformation Recurring Services

3.15. The Transformation Recurring Services for DSOP are as follows:

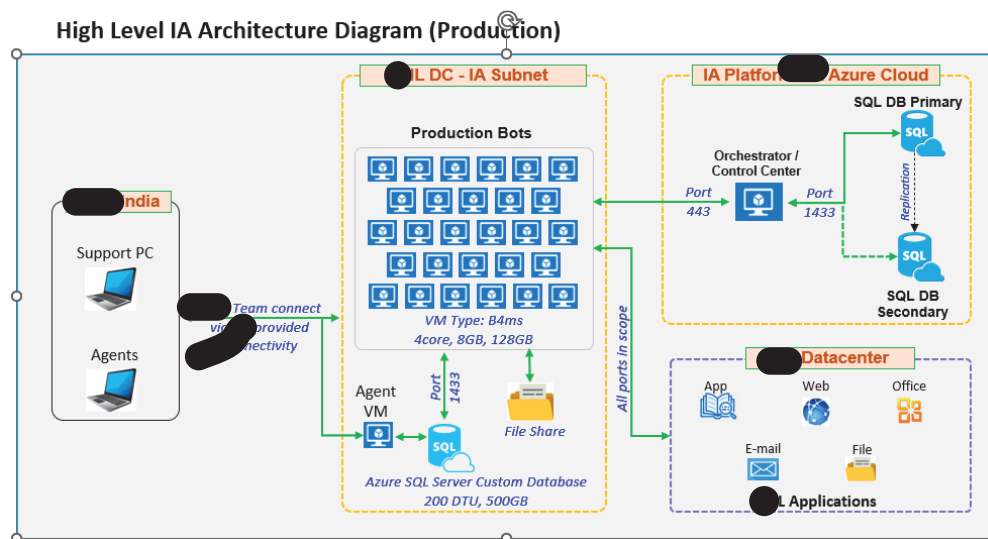
Transformation Recurring Service	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	
DSOP BAU Support	Weekly Report consisting of - Incidents and Issues - Change Requests - Service Requests - Details of resolved and un-resolved tickets - Customer dependencies - Upcoming upgrades/downtime	Customer IT support to resolve any ticket that has dependency on customer applications or connectivity to customer systems Customer Business Approval for any Change requests	
DSOP Hosting	Weekly Availability Report: Information relating to availability of the platform, and details of hosting and licenses	Any issue related to Chrome extension deployment to [REDACTED] users will require support from [REDACTED] IT teams	

(3) *IA (Intelligent Automation)*

- 3.16. IA is a tool with the following functionalities and is expected to be used in the following Processes:

Tool Name	Description	Key Functionalities	In scope towers/processes
IA (Intelligent Automation)	- Software robots that emulate humans' actions interacting with digital systems and software. - Scalable automation solution for repeatable tasks scoring low on human judgement & intervention.	- Ideal candidates are processes with repeatable, high-volume processes driven by business rules. - Virtual workforce controlled by business operations which can be utilized 24 x 7.	- Rate & Contract Management - Bookings - Export Documentation - Import Documentation - Equipment Control - CTM - Accounts Receivable - Agent Statement of Account

- 3.17. The architecture of IA, with integration between the Customer and the Supplier, is as follows:



3.18. The responsibilities of the Parties in the delivery of IA are as follows:

- 3.18.1. Customer Stakeholders participation needed to drive standard practices across all geographical locations as much as possible to have uniform Customer to-be SOP (with IA)
- 3.18.2. Infrastructure:
 - 3.18.2.1. The Transformation Implementation Services Charges for IA does not include the procurement of IA licences. The Customer may at its option procure all licences. Optionally, the Customer may request the supplier to procure all of the licenses on its behalf, in which case such licences shall be priced in accordance with Schedule 5 (Pricing).
 - 3.18.2.2. IA infrastructure to be hosted, provisioned, monitored and maintained by Customer infrastructure team. Development / Test infrastructure to be ready and access enabled before IA Kick-Start.
 - 3.18.2.3. Production environment set-up to be provided at least one month prior to Go-live of IA processes.
 - 3.18.2.4. Enable connectivity between Customer cloud and Supplier Malkom.ai cloud for enabling integration with IA BOTs.
- 3.18.3. Applications Access:
 - 3.18.3.1. Customer to permit IA scripting directly against the applications, and not via Citrix/remote connections.
 - 3.18.3.2. All approvals and provisioning of access related to accessing Customer applications or data by IA developers or BOTs such as the creation of user IDs, screen capture access for scraping, storage of system logs, registry settings, browser extension permissions, shared drive to be provided by Customer IT teams.
 - 3.18.3.3. Customer IT team to enable test data availability within the applications used in the processes for IA Developers and BOTs.
 - 3.18.3.4. Installation of desktop-based applications may be needed as part of the business process on Supplier IA virtual machines. Customer and Supplier IT teams to coordinate.
- 3.18.4. Customer Application Test Environment(s):

- 3.18.4.1. Customer application Test environments to be available during development and testing. The same should be functional replica of the production systems in scope.
- 3.18.4.2. Adequate test data (to be discussed and agreed between Supplier and Customer) would be needed to replicate all business scenarios and use cases.

(a) IA – Transformation Implementation Services

- 3.19. In the table below, the Parties have set out the Transformation Services to be delivered for IA in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

Transformation Milestone	SUPPLIER Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Bookings design	- Process design document - UAT approach and strategy	- Participation in standardization activities and ensuring relevant SMEs are available. - Process design document approval.	M12
Booking implementation	- Automated processes implementation	- UAT VM, application accesses, BOT email Set-up. - UAT test scenarios to be prepared. - Ensuring relevant SMEs from the design stage. participate in UAT activities.	M17
Booking go live	- How to guide	- UAT approval to go-live.	M18
Export Docs design	- Process design document - UAT approach and strategy	- Participation in standardization activities and ensuring relevant SMEs are available. - Process design document approval.	M12
Export Docs (release 1) implementation	- Automated processes implementation	- UAT VM, application accesses, BOT email Set-up. - UAT test scenarios to be prepared. - Ensuring relevant SMEs from the design stage. participate in UAT activities.	M16
Export Docs (release 1) go live	- How to Guide	- UAT approval to Go-Live.	M17
Export Docs (release 2) implementation	- Automated processes implementation	- UAT VM, application accesses, BOT email Set-up. - UAT test scenarios to be prepared. - Ensuring relevant SMEs from the design stage participate in UAT activities.	M18
Export Docs (release 2)	- How to guide	- UAT approval to go-live.	M19

Transformation Milestone	SUPPLIER Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
go live			
Accounts receivables, agents SoA design	- Process design document - UAT approach and strategy	- Participation in standardization activities and ensuring relevant SMEs are available. - Process design document approval.	M14
Accounts receivables, agents SoA implementation	- Automated processes implementation	- UAT VM, application accesses, BOT email set-up. - UAT test scenarios to be prepared. - Ensuring relevant SMEs from the design stage participate in UAT activities.	M18
Accounts receivables, agents SoA go live	- How to guide	- UAT approval to go-live.	M19
Rate & contract management and equipment control design	- Process design document - UAT approach and strategy	- Participation in standardization activities and ensuring relevant SMEs are available. - Process design document approval.	M17
Rate & contract management and equipment control implementation	- Automated processes implementation	- UAT VM, application accesses, BOT email set-up. - UAT test scenarios to be prepared. - Ensuring relevant SMEs from the design stage participate in UAT activities.	M20
Rate & contract management and equipment control go live	- How to guide	- UAT approval to go-live.	M21
Import Docs design	- Process design document - UAT approach and strategy	- Participation in standardization activities and ensuring relevant SMEs are available. - Process design document approval.	M19
Import Docs implementation	- Automated processes implementation	- UAT VM, application accesses, BOT email Set-up. - UAT test scenarios to be prepared. - Ensuring relevant SMEs from the design stage. participate in UAT activities.	M22
Import Docs go live	- How to guide	- UAT approval to go-live.	M23

Intelligent Automation success criteria for in scope services

Transformation Milestone	Success Criteria
Bookings design	Process Design Document for Bookings process is signed off by the operations.
Booking implementation	Development completed and UAT commenced for Bookings process.
Export Docs design	Process Design Document for Export documentation process is signed off by operations
Export Docs (release 1) implementation	Development completed and UAT commenced for Export Docs (release 1).
Export Docs (release 1) go live	UAT signed off for Export Docs (release 1)
Export Docs (release 2) implementation	Development completed and UAT commenced for Export Docs (release 2)
Export Docs (release 2) go live	UAT signed off for Export Docs (release 2)
Accounts receivables, agents SoA design	Process Design Document signed off for Accounts Receivables, agent SOA
Accounts receivables, agents SoA implementation	Development completed and UAT commenced for Accounts receivables, agent SOA
Accounts receivables, agents SoA go live	UAT signed off for Accounts receivables, agent SOA
Rate & contract management and equipment control design	Process Design Document signed off for Rate & contract management and equipment control by operations
Rate & contract management and equipment control implementation	Development completed and UAT commenced for Rate & contract management and equipment control
Rate & contract management and equipment control go live	UAT signed off for Rate & contract management and equipment control
Import Docs design	Process Design Document signed off for Import Documentation by operations
Import Docs implementation	Development completed and UAT commenced for Import Documentation
Import Docs go live	UAT signed off for Import Documentation

(b) IA – Transformation Recurring Services

3.20. The Transformation Recurring Services for IA are as follows:

Transformation Recurring Service	Transformation Supplier Deliverable	Customer Dependency & Transformation Requirements	
Intelligent Automation RPA BAU Support	Weekly Report consisting of - Incidents and Issues - Change Requests - Service Requests - Details of resolved and un-resolved tickets - Volume details - Customer dependencies - Upcoming upgrades/downtime	- Infrastructure management and ongoing support and maintenance - Connectivity of RPA BOTs to customer applications such as LMS, GFS, CFM, and supplier applications such as Malkom.AI	
Intelligent Automation RPA Licenses	Renewed License keys	License procurement, provisioning and renewals (if Customer procures the licenses)	

(4) *Celonis*

3.21. Celonis is a tool with the following functionalities and is expected to be used in the following Processes:

Tool Name	Description	Key Functionalities	In scope towers/processes
Celonis	Process mining enabler for driving standardization and process optimization functionalities aiding task execution	- Process Explorer with different variations - KPI Dashboard - Improvement areas and insights, as a part of the final readout	- Booking & Customer Service - Export Documentation - AP (Accounts Payable)

3.22. The responsibilities of the Parties for the delivery of Celonis is as follows:

- 3.22.1. Customer SMEs to be available to validate the data fields to be extracted. Post validation data extraction (minimum 3 months transaction data, preferably 6 months) to be provided to the Supplier's Celonis team.
- 3.22.2. All the above would be required 10 weeks before the commencement of process discovery.
- 3.22.3. It is assumed that the data extract contains digital footprint (Unique id to identify a transaction, field to identify the activity name and timestamp when the activity was carried out).
- 3.22.4. Single data file per process to be provided to Supplier.
- 3.22.5. All extracted data should be in English.

(a) Celonis – Transformation Implementation Services

- 3.23. In the table below, the Parties have set out the Transformation Services to be delivered for Celonis in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Process mining for Booking + Export Docs	- Process Maps for Booking and Export Docs processes. - Final readout(report) and insights.	- Infosec and IT approvals. - Process walkthrough. - Requirements and acceptance criteria review. - KPI and formulas identification. - Confirmation about presence of digital footprint (ID, Activity name and timestamp) in LMS data. - Data extraction from LMS. - Validation of Final readout	M2
Process mining for Accounts Payables	- Process Maps for Accounts Payable process. - Final readout (report) and insights.	- Process walkthrough. - Requirements and acceptance criteria review. - KPI and formulas identification. - Confirmation about presence of digital footprint	M4

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
		(ID, Activity name and timestamp) in LMS data. - Data extraction from LMS. - Validation of Final readout	

Note:

- There are no Transformation recurring charges for Tool Celonis since it's a one-time project for in scope processes

Celonis success criteria for in scope services

Transformation Milestone	Success Criteria
Process mining for Booking + Export Docs	Process Mining readout completed for Bookings and Export Documentation
Process mining for Accounts Payables	Process Mining readout completed for Accounts Payables

(5) DSiTE (Digital Site)

3.24. DSiTE is a tool with the following functionalities and is expected to be used in the following Processes:

1)

Tool Name	Description	Key Functionalities	In scope towers/processes
DSiTE	Step-by-Step digital knowledge transfer and knowledge management tool	- Process capture - Process editing - Content creation - Version control and management	1.Rate Contract Management 2.Bookings 3.Export Documentation 4.Import Documentation 5.Operations 6.Equipment Control 7.Accounts Payable 8.Accounts Receivable 9.ASA (Agent Statement of Account) 10.Record to Report (R2R)

3.25. The responsibilities of the Parties for the delivery of DSiTE are as follows:

- 3.25.1. Accessibility and Usability: DSiTE is easily accessible and made available to select few trainers/ SMEs
- 3.25.2. Content Capture: Selected Customer trainers/SMEs will be trained by Supplier on how to use the tool and capture processing steps.
- 3.25.3. Content Validation: Customer trainers/SMEs to validate the content after Supplier trainers build the content into DSiTE platform for training users in the future.

(a) DSiTE – Transformation Implementation Services

- 3.26. In the table below, the Parties have set out the Transformation Services to be delivered for DSiTE in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

i.

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Training and Tool Onboarding	- How to Guide -License keys	- Customer Infosec approvals - Customer IT team support for Whitelisting requirements - Customer IT team support to fulfill user system requirements - Customer SMEs to be available for getting trained on the tool and subsequent testing with content	M1
Make the finalized content available to the Operations users for the first process	Blueprint Process Documentation Finalized SOP modules for training	- Customer to work with the Supplier to finalize the content on the tool via Capturing and Editing - Customer IT to share location for content to be uploaded	M5

DSiTE success criteria for in scope services

Transformation Milestone	Success Criteria
Training and Tool Onboarding	Installation successfully completed SMEs trained and have commenced creating training content
Make the finalized content available to the Operations users for the first process	Digital simulation creation completed with Show, Guide and Test

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(6) **BOLT**

- 3.27. BOLT is a tool as part of DSITE suite with the following functionalities and is expected to be used in the following Processes:

Tool Name	Description	Key Functionalities	In scope towers/processes
BOLT	Micro Learning Knowledge reinforcement & dissemination tool	- Question bank creation - Process refresher module - E-Tests	1.Rate Contract Management 2.Bookings 3.Export Documentation 4.Import Documentation 5.Operations 6.Equipment Control 7.Accounts Payable 8.Accounts Receivable 9.ASA (Agent Statement of Account) 10.Record to Report (R2R)

(a) **BOLT – Transformation Implementation Services**

- 3.28. In the table below, the Parties have set out the Transformation Services to be delivered for BOLT in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

i.

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Tool Onboarding	- Licenses delivered and user access provided (for Enabling teams to upload content such as Tests, Assignments, Quizzes)	- Customer Infosec approvals - Customer IT approvals and support for whitelisting requirements	M4

Note:

(b) **DSITE/BOLT – Transformation Recurring Services**

- 3.29. The Transformation Recurring Services for DSITE/BOLT are as follows:

Transformation Recurring Service	Transformation Supplier Deliverable	Customer Dependency & Transformation Requirements	
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DSITE Licenses	Renewed License keys	None	
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(7) **BRIDGE**

- 3.30. BRIDGE is a tool with the following functionalities and is expected to be used in the following Processes:

Tool Name	Description	Key Functionalities	In scope towers/processes
BRIDGE	360° visibility and reporting platform	- Build and connect data from various sources. - Design and develop business specific dashboards. - Data exploration and insights for decision support	1.Rate Contract Management 2.Bookings 3.Export Documentation 4.Import Documentation 5.Operations 6.Equipment Control 7.Accounts Payable 8Accounts Receivable 9.ASA (Agent Statement of Account) 10.Record to Report (R2R)

- 3.31. The responsibilities of the Parties for the delivery of BRIDGE are as follows:
- 3.31.1. Customer infrastructure changes would be needed (including whitelisting, site to site VPN etc.) to enable Customer users to access BRIDGE dashboards.
- 3.31.2. Data from Customer applications (LMS, Oracle) to be ingested by the tool (hosted within Supplier cloud infrastructure).

(a) **BRIDGE – Transformation Implementation Services**

- 3.32. In the table below, the Parties have set out the Transformation Services to be delivered for BRIDGE in the phase of the Transformation Implementation Services, as well as the expected time of completion of these Deliverables.

i.

Transformation Milestone	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	Expected Completion
Instance setup and configuration	- License procurement - Environment for development and testing	- Customer IT Infosec approvals	M1
Implementation and Tool go live	- Operations KPI and metric dashboard	- Customer IT support for to enable access for key stakeholders - Identify and share list of users who would need access	M6

BRIDGE success criteria for in scope services

Transformation Milestone	Success Criteria
Instance setup and configuration	Development and Test Environment are accessible
Implementation and Tool go live	Dashboard operationalised and available for use.

(c) Bridge (Analytics Support) – Transformation Recurring Services

3.33. The Transformation Recurring Services for Bridge are as follows:

Transformation Recurring Service	Supplier Transformation Deliverable	Customer Dependency & Transformation Requirements	
Bridge (Analytics support)	Updated dashboard and metrics	Data provisioning to supplier for agreed use cases	

(8) Program Management Services**(a) Program Management – Transformation Recurring Services**

3.34. To deploy the Technology Solutions, the Supplier will deploy a program management team for the first 24 months of the contract. The activities below as a whole are part of the Program Management Support Services, which are delivered as a Transformation Recurring Service to the Customer.

Activity	Supplier transformation deliverable	Customer dependency and transformation deliverables
Plan, schedule and cost management	Plan	Customer to inform and help include any activities at their end which may impact the planned deliverables

Share program status as per the agreed governance	Status Report	
Communication management	Minutes of the meetings (MOM)	Customer to be available (and/or identify people as required) for meetings and discussions
Risk management	Risk, issues, actions and dependency log(s)	
Resource Management	Plan, Dependencies	Customer to provide resources as agreed in the plan

4. TECHNOLOGY IMPLEMENTATION SERVICES AND TECHNOLOGY RECURRING SERVICES

4.1. In this Schedule, the following definitions shall apply:

“Technology Implementation Services” refers to the deployment and integration of technological tools, systems, and equipment, including but not limited to the procurement of necessary equipment, software, and hardware; and the installation and configuration of such equipment, software, and hardware. Such Technology Implementation Services are further detailed in this section of this Schedule.

“Technology Recurring Services” refers to the technological resources, as described in this Schedule, provided on a continuous basis to maintain and operate the technological infrastructure of the Parties as required for the provision of the Services, including supplying and managing the internet and network bandwidth.

(A) Technology Implementation Services

4.2. The Supplier shall carry out the Technology Implementation Services as set out in the table below, including the necessary setting up at the Supplier Sites.

Deliverable	Description/quantity	Expected Completion
Dual Monitor	Hyderabad 214 Colombo 126 China 42	M1 – Contract Sign off
Internet Bandwidth	*1.5Mbps per Seat for application access & Teams Chat *2 Mbps per Seat for applications & Teams Chat + Audio calling	M1 – Contract Sign off
Headsets (Teams Calling)	Hyderabad - 76 Colombo - 86 Guangzhou - 14	M1 – Contract Sign off
MS Office licenses		

	Hyderabad 24 Colombo 22 Guangzhou 6	
Setting up of equipment and software for Supplier Sites		

Note:

Technology Implementation Services may change depending upon ■ In-Scope FTEs, additional Equipment, software licenses and bandwidth requirements.

4.3. The Supplier's responsibilities regarding the Technology Implementation Services are as follows:

- 4.3.1. The Supplier shall ensure that all Technology Implementation Services are performed and delivered by qualified and experienced personnel.
- 4.3.2. All equipment and materials used and procured shall be of quality and shall meet the specifications and requirements agreed by the Parties, including the procurement of headsets, monitors, and other devices.
- 4.3.3. Appropriate and comprehensive testing and validation procedures shall be carried out by the Supplier to ensure that all technological tools and solutions meet the Customer's requirements.
- 4.3.4.

(B) Technology Recurring Services

4.4. The Technology Recurring Services is the provision of internet bandwidth to the Supplier Sites at Colombo, Hyderabad, and Guangzhou for the delivery of the Services by the Supplier.

4.5. The Supplier shall perform the Technology Recurring Services in accordance with the table below:

Deliverable	Service standards/Success Criteria
System & Network uptime	99.5%

4.6. The Supplier's responsibilities regarding the Technology Recurring Services are as follows:

- 4.6.1. The Supplier shall ensure that all Technology Implementation Services are performed and delivered by qualified and experienced personnel.
- 4.6.2. The Supplier shall ensure the continuous and reliable provision of sufficient bandwidth to meet the Customer's operational requirements. Bandwidth services shall be monitored and adjusted as necessary to maintain optimal performance.
- 4.6.3. The Supplier shall ensure uninterrupted service delivery, with robust measures in place to prevent, detect, and resolve any service outages or disruptions. Maintenance activities shall be scheduled and communicated in advance to minimise operational impact.
- 4.6.4. The Supplier will provide support for business operations team. Support requests shall be addressed promptly and effectively, with clear communication throughout the resolution process.

5. OPERATIONAL SERVICES

- 5.1. Throughout the course of the Transition and Transformation Plan, the Customer shall transfer and the Supplier shall take over a number of services previously performed by employees of the Customer (the “**Operational Services**”) and identified by the Parties in accordance with this Schedule.
- 5.2. The Operational Services shall be performed for the following Processes and/or Towers
- 5.2.1. Bookings
 - 5.2.2. Export Documentation
 - 5.2.3. Rate Contract Management
 - 5.2.4. Import Documentation
 - 5.2.5. Operations
 - 5.2.6. Equipment Control
 - 5.2.7. Accounts Payable
 - 5.2.8. Accounts Receivable
 - 5.2.9. ASA (Agent Statement of Account)
 - 5.2.10. Record to Report (R2R)
- 5.3. These Operational Services are to be provided by the Supplier through from the Supplier Sites and the relevant allocated To-Be FTEs to the Customer and the Customer Group Members in the relevant identified Territories. The full scope of the Operational Services to be provided in each Territory shall be as set out in this Schedule unless otherwise amended in the applicable Statement of Work or Implementation Agreement.
- 5.4. In this section, the Parties shall set out a description of the Operational Services to be performed by the Supplier and the Customer’s involvement in the provision of the Operational Services. In the tables below, the roles and responsibilities of each Party are as indicated in the columns on the right, with the following legend:
- 5.4.1. “R” refers to the Party responsible for the completion of the task.
 - 5.4.2. “A” refers to the accountable Party i.e. the Party ensuring that the prerequisites for the task are met and signs off on the completion of the task.
 - 5.4.3. “C” refers to the Party who is to be consulted for the task.
 - 5.4.4. “I” refers to the Party who should be kept informed of the progress and/or completion of the task, as may be agreed by the Parties.

A. Bookings

i. Process Description

The booking process is a part of Customer Service that creates customer requests and secures space to transport goods from one port to another. Covers e-booking and manual requests, including General, Reefer, Dangerous, and Awkward. Completion is based on provided rules in the form of SOPs, country-specific SOPs, and customer SOPs. Also includes processing of Booking changes or amendments as requested.

ii. Activities break up

Process	Sub Process	Customer	Supplier
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Booking	New Booking Creation	C, I	R, A
	Confirming of space and equipment availability	R,A,C, I	-
	Sending of Booking confirmation	R,A C, I	-
	Booking Amendment (if requested)	C, I	R, A
	Detention and Demurrage monitoring and invoicing	C, I	R, A

B. Export Documentation

i. Process Description

The Export Documentation process is to create Bill Of Lading documents which act as proof of transaction between the Shipper and the Shipping Company. This process is the next stage after the booking has been confirmed and the SI has been received, starting from SI receipt from the customer to BL Release to the customer.

ii. Activities break up

Process	Sub Process	Customer	Supplier
Export Documentation	SI Indexing	C, I	R, A
	BL creation	C, I	R, A
	Inbound/Outbound custom manifest (If required)	R, A	C, I
	BL Release	C, I	R, A
	BL Amendment (If required)	C, I	R, A
	Customer communication	R, A, C	I

C. Rate Contract Management

i. Process Description

Rate Agreement is used to capture customized rate and service agreements offered to the customer. These are agreements that would not be offered in the tariff or are used to define specific customer's requirements. The process includes filing of rates in LMS. For larger contracts, requests are received from Sales with approval from Marketing. For spot rates, requests to file are received via email with customer acceptance of the rates along with Trade approval. Sales to submit acceptable market rates to Trade each month for Tariff and MRG finalization.

ii. Activities break up

Process	Sub Process	Customer	Supplier
Rate Filing	Share MRG (Minimum Rate Guidelines)	R, A, C	I
	Request for Filing / Contract Amendment	R, A C	I
	File / Update Contract in LMS	C, I	R, A
	Share Trade Approval	R, C	A, I

	Provide RFA Number	C, I	R, A
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D. Import Documentation

i. Process Description

The import process is about facilitating the customers in taking delivery of the cargo that they have moved from another country/ies to their own, while also ensuring that all legal compliances are adhered to and met. It is mainly about intimating the cargo arrival to the customers through the Arrival Notice, and also issuing the Delivery Order, thereby enabling them to take delivery of their container/s.

ii. Activities break up

Process	A Sub Process	Customer	Supplier
Pre-Alert (Outside Feeder)	Receiving Pre-Alert from POL / Last Trans-shipment Port	C, I	R, A
	Preparation of Arrival Notice of Vessel details and submitting it to Customs	C, I	R, A
Arrival Notice (Regular Call / Consortium)	Checking Terminal Departure Report to validate the Vessel ETA, Registry No. tagging time with Operator to send Arrival Notice to Main Line Operators	C, I	R, A
	Validating Booking confirmation details in LMS to print Freight Manifest	C, I	R, A
	Sending the Freight Manifest to Finance for billing	C, I	R, A
	Sending the Freight Manifest to the Checker for BOC manifest checking	C, I	R, A
	Sending Arrival Notice to Customers	C, I	R, A
Cargo Release / Delivery Order	Validating the B/I, customer payment, container guarantee, container deposit, Insurance and signatory/ies Ids	C, I	R, A
	Releasing Delivery Order to Consignee via Port Operator's Web Portal and sending a mail to consignee	C, I	R, A

E. Operations

i. Process Description

Planning and monitoring alongside Operations team for a smooth and accurate vessel handling. Prepares documents, manifests and reports to be submitted to corresponding agencies' portals for clearance. Monitors vessel activities making sure compliance with all requirements. Submission of operational reports post vessel operation.

ii. Activities break up

Process	Sub Process	Customer	Supplier
Vessel Operations	Planning and monitoring with Operations Team	C, I	R, A
	Preparation and submission of required documents	C, I	R, A
	Monitoring of vessel activities	C, I	R, A
	Preparation of post vessel operation	C, I	R, A

F. Equipment Control**i. Process Description**

The Equipment Management process manages the container events. Ensure that all EDI event updates are processed in the system and the Rejection Logs have been cleared. This includes Manuel Events update, Inventory Management, and Container linkage to Booking or BL as required. Making sure of the precise tracking of equipment and ascertaining the accuracy of shipment information.

Monitoring of detention and demurrage based on free time and clock end.

ii. Activities break up

Process	A Sub Process	Customer	Supplier
Equipment Management	Container movement monitoring and update	C, I	R, A
	Error clearance, exception management	C, I	R, A
	Inventory Management	C, I	R, A
	Container linkage to Booking or BL (Empty Container)	C, I	R, A

G. Accounts Payable**i. Process Description**

Accounts Payable vendor invoice processing involves the processing Transport invoices based on Work Orders, and Non-Transport Vendor Invoices based on the vendor rate agreement already created. These invoices are validated against the relevant work orders / as per rate agreements in OPUS and if successful, create a CSR (Consultation Slip Request) in LMS which will then be pass on for payment, requested via Biz Common Approval. Any queries are sent back to onshore, once resolved, invoice will be reprocessed in LMS. Invoices submitted for payment request will be proposed for payment thru GFS as per due dates.

ii. Activities break up

Process	Sub Process	Customer	Supplier
AP-vendor invoice processing- Transport (TRS)	Download invoice in mailbox/ vendor portal	C, I	R, A
	Check for the work order and verify if valid in LMS	C, I	R, A
	Check the container/s included in the billing	C, I	R, A
	If matched, CSR will be created	C, I	R, A
	If not matched, query will be sent to onshore	R, A	C, I
	After CSR creation, payment approval requested through Biz Common	C, I	R, A

Process	Sub Process	Customer	Supplier
	Download invoice in mailbox/ vendor portal	C, I	R, A

AP-vendor invoice processing- Terminal (TES)	Check the vessel voyage direction (VVD) / activity dates	C, I	R, A
	Review the vendor agreement rate if matches the billing	C, I	R, A
	Validates the container as per the movement/activities billed	C, I	C, I
	If matched, CSR will be created	C, I	C, I
	After CSR creation, payment approval requested through Biz Common	C, I	C, I
	In case of queries, onshore will address/ resolve	R, A	C, I

Process	Sub Process	Customer	Supplier
AP-vendor invoice processing- Port (PSO)	Download invoice in mailbox/ vendor portal	C, I	R, A
	Check the vessel voyage direction (VVD)	C, I	R, A
	Review the vendor agreement rate if matches the billing	C, I	R, A
	Validates the activities billed	C, I	C, I
	If matched, CSR will be created	C, I	R, A
	After CSR creation, payment approval requested through Biz Common	C, I	R, A
	In case of queries, onshore will address/ resolve	R, A	C, I
AP-vendor invoice processing- Maintenance & Repairs (MNR)	Download invoice in mailbox/ vendor portal	C, I	R, A
	Download the MNR report from MyPIL	C, I	R, A
	Review the billing if matches with the MNR report	C, I	R, A
	Upload the file in LMS	C, I	R, A
	If matched, CSR will be created	C, I	R, A
	After CSR creation, payment approval requested through Biz Common	C, I	R, A
	In case of queries, onshore will address/ resolve	R, A	C, I

Process		Customer	Supplier
AP-vendor invoice processing- Others	Download invoice in mailbox/ vendor portal	C, I	R, A
	Check if the billing/expense is valid as per SOP	C, I	R, A
	Enter the Journal entries in LMS	C, I	R, A
	If matched, CSR will be created	C, I	R, A

	If not matched / billing has some clarification needed, query will be sent to onshore	R, A	C, I
	After CSR creation, payment approval requested through Biz Common	C, I	R, A
	AP team will enter the JE in GFS after reviewing the documents submitted	C, I	R, A

Process			Supplier
AP-vendor invoice processing- non operational costs	Download invoice in mailbox/ vendor portal	C, I	R, A
	Check if the billing/expense is valid as per SOP	C, I	R, A
	AP team will enter the JE in GFS after reviewing the documents submitted/ Enter as per recurring JE	C, I	R, A
	Onshore will approve the journal entry in GFS	R, A	C, I
	If not matched / billing has some clarification needed, query will be sent to onshore	R, A	C, I

Container Deposit Refund- The process involves returning the excess funds to the customer for container deposits. The deposit will be reduced by any incidental charges related to the container such as but not limited to damages/ repairs.

Process		Customer	Supplier
Container deposit refund	Review the refund request submitted	C, I	R, A
	Check if the supporting documents are complete	C, I	R, A
	Check if there are any repairs / expense incurred associated to the containers	C, I	R, A
	Create the JE in GFS	C, I	R, A
	JE will be approved in GFS for payment to be scheduled	R, A	C, I

Travel & Entertainment (T&E) - The process involves reimbursing the employee for the expense/s incurred to carry out operational costs related to travel and others as per company policy. The activity will be from journal entry creation up to releasing the payments to employees

Process	Sub Process	Customer	Supplier
T&E Processing	Review the T&E reimbursement report	C, I	R, A
	Check if the supporting documents are complete	C, I	R, A
	Check if the expenses are aligned with the company guidelines	C, I	R, A
	Create the JE in GFS	C, I	R, A

	JE will be approved in GFS for payment to be scheduled	R, A	C, I
	Release the funds to employee's bank account	R, A	C, I

Payment Funding- The process involves generating the payables due to vendors/suppliers/service providers up to payment release. Schedules of payment will be pre-defined as weekly or otherwise stated. Urgent payment request will be processed outside the regular payment schedule.

Process	Sub Process	Customer	Supplier
Payment Proposal/ Funding	Download the payables in GFS	C, I	R, A
	Check if the supporting documents are complete	C, I	R, A
	Check the total balance due for payment as per schedule	C, I	R, A
	Check the bank balance if sufficient to cover the funding requirement	C, I	R, A
	If funds are sufficient, make the payment proposal in GFS	C, I	R, A
	If funds are not sufficient, request for additional funds to be transferred	R, A	C, I
	Release the funds in the bank portal	R, A	C, I

Accrual Accounting- The process involves estimating the amounts to be accrued related to vendor accounts. It could be through unused work orders, container movements not yet billed , or collating all invoices not yet registered in LMS.

Process	Sub Process	Customer	Supplier
Accrual accounting	Summarize the work orders and container/operations activities not yet invoiced	C, I	R, A
	Summarize newly received vendor invoices not yet registered in LMS/GFS	C, I	R, A
	Prepare recurring journal entries for monthly charges	C, I	R, A
	Prepare the accrual entries in GFS	C, I	R, A
	Ensure all accrual entries are automatically reversed the following period	C, I	R, A

Vendor Account Reconciliation- This activity will start from the review of the statement of account submitted by the service providers. The reconciliation report will show current status of the invoices as verified against LMS/ GFS.

Process	Sub Process	Customer	Supplier
Account reconciliation	Review the SOA received from vendors	C, I	R, A
	Download the invoices registered in LMS but not yet interfaced in GFS	C, I	R, A

	Download the open invoices in GFS	C, I	R, A
	Verify the status of each invoice as per the downloaded report	C, I	R, A
	Prepare the reconciliation report itemizing the status for each item and the required action needed	C, I	R, A

Reporting- All AP reports will be created as per predefined schedule, which is weekly, every 15th and end of the month.

Process	Sub Process	Customer	Supplier
Reporting	Download GFS/ LMS reports	C, I	R, A
	Transfer the data in the required template	C, I	R, A
	Consolidate the report for RHQ (if required)	C, I	R, A
	Submit the report to respective stakeholders as per timelines agreed	C, I	R, A
	Approval and validation of the report	R, A	C, I

Note: Vendor contract Management handled by local offices and approved by RHQ/GHQ. Offshore will only notify respective stakeholders for any vendor/s not yet registered in LMS/GFS

H. Accounts Receivable

i. Process description

Accounts receivable cash application is the receipting of payment or remittance received from customer via ACH, wires/ bank transfers, and any bank deposits. Any shortage/overages will be recorded in GFS.

ii. Activities break up

Process	Sub Process	Customer	Supplier
Accounts Receivable-Cash Application	Download bank statement for cash application processing	C, I	R, A
	Review remittance details received in mailbox	C, I	R, A
	Match the remittance details against balance in GFS	C, I	R, A
	Post bank charges as applicable	C, I	R, A
	Post tolerable variance/ rounding off difference	C, I	R, A
	Send receipt / remittance confirmation to onshore/customer	C, I	R, A
	Post to unapplied/ unidentified account for remittances without details	C, I	R, A
	Process offset (debit/credit zero balance) as requested by onshore	C, I	R, A

	Prepare daily receipt summary report	C, I	R, A
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Refund Processing - This process involves returning the funds to the customer for overpayment or container deposits.

Process	Sub Process	Customer	Supplier
Refund processing	Review of the request for refund from the customer/onshore	C, I	R, A
	Validating in GFS if the refund is valid against the AR outstanding balance	C, I	R, A
	Submitting the refund payment request along with the documentation to payables department for the release of payment	C, I	R, A

Statement of account (SOA) - This involves the SOA preparation for selected credit customers base on predefined schedules. This could be weekly, every 15th of the month, or monthly- last day of each month- unless otherwise specified.

Process	Sub Process	Customer	Supplier
SOA preparation	Download AR details from GFS	C, I	R, A
	Populate the data in the agreed format, capturing the customer/account requirements	C, I	R, A
	Will perform validation to ensure that the account balance matches the AR summary report	C, I	R, A
	Submit the SOA via email as per agreed timelines (weekly, bi-weekly, monthly) directly to customer or maybe thru onshore	C, I	R, A
	Monitor the response from customers	C, I	R, A
	If invoice/ BLs are disputed or will need additional supporting documents, inform respective department for resolution	C, I	R, A

Account Reconciliation - This activity will start from the generating of outstanding customer account balances from the system. Each open invoice will have to be validated with the current status whether it was disputed or pending resolution

Process	Sub Process	Customer	Supplier
Reconciliation	Download AR details from GFS	C, I	R, A
	Check the responses from customer for any disputes	C, I	R, A
	Check the overdue invoices or almost nearing due dates for any additional supporting documents needed to be submitted	C, I	R, A
	Perform necessary adjustment / offset / clearing	C, I	R, A

	Submit JE for any adjustment for approval by onshore	R,A	C , I
	Prepare the summary report as per agreed template	C, I	R, A

Ageing of Accounts - This activity will start from the generating of outstanding customer account balances from the system. Customer balances are aged as per pre-defined aging brackets.

Process	Sub Process	Customer	Supplier
Ageing of Accounts Report	Download AR details from GFS	C, I	R, A
	Prepare the customer aging report	C, I	R, A
	Notations will be done for highlights for top accounts (as required)	C, I	R, A
	Prepare the summary report as per agreed template	C, I	R, A
	Submit the report for review by onshore	R,A	C , I

Billing/ Invoice Issuance – This activity will be for the validation of the interfaced BLs in Paas-GFS prior to integrating to GFS-Saas. This is to ensure discrepancies, or interface issues are fully resolved prior to billing/ invoice issuance. Any revisions in LMS will have be considered.

Billing/ Invoice Issuance	Download the interfaced BLs in Paas	C, I	R, A
	Check if the count and value matches with the LMS report	C, I	R, A
	Make the correction as required	C, I	R, A
	If all information matches, interface to GFS	C, I	R, A
	For China, create the invoice in GTIMS	C, I	R, A
	For China, issue the invoice in golden tax systems	R, A	C, I

Third Party Billing recovery – This activity is to process the invoice for any third party recovery that was paid by Customer on behalf of the customer.

Third Party billing recovery	Check the vendor invoice submitted for recovery to customer	C, I	R, A
	Enter the Journal Entry required in GFS as per guidelines. Some mark up maybe observed as predefined.	C, I	R, A
	Issue the invoice in the required template	C, I	R, A

	Check that the invoice is reflecting in the AR outstanding line items	C, I	R, A
	For China, create the invoice in GTIMS	C, I	R, A
	For China, issue the invoice in golden tax systems	R, A	C, I

Credit Review – This activity will define the recommended/proposed credit limit to be granted to customers/ cargo agents.

Credit Review	Check the completion of documents submitted by respective customer service teams	C, I	R, A
	Validate if the recommended credit limit is within MCL	C, I	R, A
	Prepare the documentations and submit to RHQ finance for approval	R, A	C, I
	Secure approval from GHQ once RHQ approves the limit	R, A	C, I
	Set-up the credit limit / terms in GFS	C, I	R, A
	For any exception's approval, CS will provide the justification	R, A	C, I

Dispute Management – This process starts with the review of the dispute requests received from customers or local office. Any disputed invoice or BL will then be reviewed for proper resolution. If the resolution needed is for the responsibility of the other departments, the same will be coordinated by the AR team.

Process	Sub Process	Customer	Supplier
Dispute Management	Check the completion of documents submitted by respective customer / local office	C, I	R, A
	Identify which department should handle the dispute	C, I	R, A
	Submit the dispute request to respective teams (Customer Service/ EMD/ Finance) for their resolution	R, A	C, I
	Once accepted, make the correction in the invoice in GFS	C, I	R, A
	Notify the customer/ local office of the status of the request	C, I	R, A

Note: Customer code creation will be handled by local office with the approval of RHQ/GHQ. Offshore team will notify respective CS teams should there be a transaction for a customer that is not yet registered in the system.

Collections activity will be assisted through reports generation and SOA preparation.

I. ASA (Agent Statement of Account)

i. Process Description

Agent Statement of Account (ASA) – The process involves reconciling the receivables and payables between head office and agency offices. Each month/period is covered by ASA in LMS. All payables / receivables transactions must match with the items interfaced in GFS. Any discrepancies will have to be identified and resolved in the following period. If agents have receivables to head-office, the amount will be transferred to the head-office bank account. Likewise, if payables are higher than the revenues generated, head-office will transfer the funds to agency offices.

ii. Activities break up

Process	Sub Process	Customer	Supplier
Commissions Processing	Download the commissions report from LMS	C, I	R, A
	Check if the same balance is reflected in GFS	C, I	R, A
	If matched, CSR will be created	C, I	R, A
	If not matched, query will be sent to onshore	R, A	C, I
	After CSR creation, payment approval requested through Biz Common	R, A	C, I

Process	Sub Process	Customer	Supplier
Opening / Closing of ASA	Open a new ASA as per predefined schedule	C, I	R, A
	Check all the pending transactions and close as necessary	C, I	R, A
	Close the ASA as per predefined schedule	C, I	R, A
	Notify onshore for the ASA number created and when it was closed	C, I	C, I

Process	Sub Process	Customer	Supplier
ASA Reconciliation	Download the payables report from LMS	C, I	R, A
	Compare the AP report from LMS vs GFS	C, I	R, A
	Generate the AR report in GFS	C, I	R, A
	Check the beginning balance and ending balance are both accurate	C, I	R, A
	Resolve any discrepancies/ if only timing difference, just highlight the items involved	C, I	R, A
	Prepare the reconciliation report	C, I	C, I
	Highlight the discrepancies found along with the resolution/action required	C, I	C, I
	Complete the reconciliation report following the agreed template	C, I	C, I

	Due to/ Due from between agents and head office may need some settlement	R,A	C,I
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J. Record to Report (R2R)

i. Process Description

Month end closing- This process involves activities covered before closing of books for a particular period. Adjusting and accrual entries are done prior to report generation and variance analysis.

ii. Activities break up

Process	Sub Process	Customer	Supplier
Month end closing	Perform recurring journal entries	C, I	R, A
	Perform accrual journal entries	C, I	R, A
	Perform adjustment entries as needed	C, I	R, A
	Generate the month end balance data from GFS and prepare the reports and schedules as defined by RHQ/GHQ	C, I	R, A
	Perform variance analysis and submit the reports to RHQ/GHQ	C, I	R, A
	Review of month-end reports and schedules	R,A	C,I

Bank Reconciliation is the process of validating the bank balance and matching it against the bank records. Reconciliation is done daily with final report submitted every end of month

Process	Sub Process	Customer	Supplier
Bank Reconciliation	Download bank statement	C, I	R, A
	Download the GFS bank account balance report	C, I	R, A
	Match the posted items	C, I	R, A
	For unposted deposits / deductions, verify the nature of transaction and coordinate with the respective department	C, I	C, I
	Prepare journal entries for bank charges/ interest charges	C, I	C, I
	Prepare the reconciliation report	C, I	C, I
	Review the reconciliation report	R,A	C,I

Report preparation- All reports will be prepared as per the agreed templates provided by RHQ/GHQ with timelines as defined for every month end schedule. The reports will be validated against GFS financial records.

Process	Sub Process	Customer	Supplier
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Reporting	Download balance sheet, income statement and account balance aging in GFS	C, I	R, A
	Prepare the reports required by RHQ	C, I	R, A
	Prepare the reports required for consolidation per region	C, I	R, A
	Prepare reports required by GHQ	C, I	C, I
	Prepare variance analysis as required comparing actual vs budgets/forecasts	C, I	C, I
	Make corrections/ revisions as required	C, I	C, I
	All reports will be reviewed and approved by onshore	R,A	C,I

Budgeting – The activity will start with collating historical data and using the assumptions/forecast provided by either RHQ / GHQ. Actual vs targets are tracked on a monthly basis. Any gaps will have be highlighted with necessary action / plans as appropriate.

Process	Sub Process	Customer	Supplier
Budgeting	Download balance sheet, income statement and account balance aging in GFS for the historical data	C, I	R, A
	Prepare the budget reports using the assumptions/ forecast provided by RHQ / GHQ	C, I	R, A
	Track the adherence to budget/ forecast	C, I	R, A
	Prepare variance analysis as required comparing actual vs budgets/forecasts	C, I	C, I
	All reports will be reviewed and approved by onshore	R,A	C,I

Intercompany transactions – This process is to post/ create journal entries as required for transactions between local offices, RHQ and GHQ.

Process	Sub Process	Customer	Supplier
Intercompany transactions	Review the transaction submitted by other office	C, I	R, A
	Check for the completion of the supporting documents	C, I	R, A
	Post the journal entry in the respective books	C, I	R, A
	Perform clearing when required	C, I	C, I
	All reports will be reviewed and approved by onshore	R,A	C,I

Schedule 14
(Key Supplier Personnel)

Role	Key Roles in the Program	Responsibilities	Key Personnel Designation	Dedicated (Y/N)	Personnel Name	Duration
Service Delivery	Overall Service Delivery Head	Overall responsible for service delivery for [REDACTED] and ensuring compliance to MSA & SOWs	Corporate Sr. Vice President / Sr. General Manager - Operations	N	[REDACTED]	Contract Term
	Service Delivery Head	Overall responsible for service delivery for [REDACTED] and ensuring compliance to MSA & SOWs	Sr. General Manager – Operations	N	[REDACTED]	Contract Term
	Operations Head	Responsible for Service Delivery and management of SLAs and KPIs	General Manager – Operations	Y	[REDACTED]	Contract Term
	Operations Managers - Business Ops / F&A	Multiple Operations Manager responsible for Service Delivery of their respective processes in each tower including ontime hiring and training of resources and meeting & exceeding agreed SLAs	Sr. Group Manager / Group Manager – Operations	Y	[REDACTED]	Contract Term
Support Roles	Human Resources	Responsible for overall hiring, onboarding and HR related matters for [REDACTED] Sites and including MY PSSB	Corporate Vice President / Sr. General Manager [REDACTED]	N	[REDACTED]	15 months from Commencement Date or end of Transition period,
	Transformation	Responsible for overall the delivery of all the	Corporate Vice President / Sr.	N	[REDACTED]	

	transformation tools as agreed with [REDACTED]	General Manager / General Manager		whichever is later
IT	Responsible for ensuring all IT related activities planned for [REDACTED] are delivered as per the plan, including network connectivity, system readiness, etc.	Corporate Vice President / Sr. General Manager / General Manager	N	[REDACTED]
Transition	Responsible for overall delivery of all the transition timelines as agreed with [REDACTED]	Corporate Vice President / Sr. General Manager / General Manager	N	[REDACTED]
Client Partner / Account Manager	Responsible for building and maintaining relationships with clients is the primary responsibility. This involves understanding the client's needs, preferences, and concerns, and acting as the main point of contact for any inquiries or issues.	Corporate Vice President / Sr. General Manager	N	Contract Term

Note: rather specific named personnel, this table is intended to set out the roles which are required for the provision of the Services.

**Schedule 15
(Supplier Sites)**

Site Number	Site Name	City	State	Country	Address
1		Guangzhou		China	
2		Hyderabad	Telangana	India	
3				Malaysia	
4		Colombo		Sri Lanka	

Schedule 16 (Post-Termination Transfer Procedures)

1. Definitions

The definitions in this paragraph apply in this Schedule 16 (Post-Termination Transfer Procedure).

Assets: all assets and rights required to provide any of the Services in accordance with this Agreement including without limitation the Supplier's Materials but excluding the Customer Materials and Customer Systems.

Dedicated Assets: those Assets which are used by the Supplier or a Supplier Subcontractor in connection with the provision of the Services for 90% of the time.

Employee Liability Information: in respect of each of the Supplier Personnel:

- (a) the identity and age of the Supplier Personnel;
- (b) particulars of employment contracts as notified by the Customer;
- (c) information about any disciplinary procedure taken against the Supplier Personnel and any grievances raised by the Supplier Personnel within the previous two years
- (d) information about any court or tribunal case, claim or action either brought by the Supplier Personnel against the Customer within the previous two years or where the Customer has reasonable grounds to believe that such action may be brought against the Supplier arising out of the Supplier Personnel's employment with the Customer; and
- (e) information about any collective agreement which will have effect.

Net Book Value: the net book value of the relevant Asset(s) calculated in accordance with the Supplier's depreciation policy on the date of exercise of the Transfer Option.

Non-Dedicated Assets: those Assets which are not Dedicated Assets used by the Supplier or a Material Subcontractor in connection with the provision of the Services but which are also employed by the Supplier or Material Subcontractor for other purposes.

Registers: the registers and database referred to in paragraph 3.1(a) and paragraph 3.1(b) of this Schedule.

Staffing Information: in relation to all persons detailed on the Supplier's Provisional Staff List, such information as the Customer may reasonably request (subject to the applicable data protection laws) but including in an anonymised format:

- (a) the functions they perform and details of the proportion of working time each spends in providing the Services (or any part of the Services);
- (b) their ages, dates of commencement of employment or engagement and gender;
- (c) details of whether they are employees, workers, self-employed, contractors or consultants, agency workers or otherwise;
- (d) the identity of their employer or relevant contracting party;

- (e) their relevant notice periods and any other terms relating to termination of employment or engagement, including any redundancy procedures and contractual redundancy payment schemes;
- (f) the current wages, salaries (including holiday pay), profit sharing, incentive and bonus arrangements applicable to them and how they are calculated;
- (g) details of other employment-related benefits including (without limitation) medical insurance, life assurance, pension or other retirement benefit schemes, share option schemes and customer car schemes applicable to them;
- (h) any outstanding or potential contractual, statutory or other liabilities in respect of such individuals (including in respect of personal injury claims);
- (i) details of any such individuals on long-term sickness absence, maternity or other statutory leave or otherwise absent from work; and
- (j) copies of all relevant documents and materials relating to such information including copies of relevant contracts of employment or engagement (or relevant standard contracts if applied generally in respect of such individuals).

Supplier's Final Staff List: the list of all the Supplier's Personnel engaged in or wholly or mainly assigned to the provision of the Services or any part of the Services at the expiration or termination of the Agreement.

Supplier's Provisional Staff List: a list prepared and updated by the Supplier of all the Supplier's Personnel engaged in, or wholly or mainly assigned to, the provision of the Services or any part of the Services at the date of preparation of the list.

Transfer Date: means the date of the expiration or termination of the Agreement or another date which may be agreed by the Parties.

Transfer Option: has the meaning given to it at paragraph 2.1 of this Schedule.

Transferable Assets: those of the Dedicated Assets which are capable of legal transfer to the Customer.

Transferable Contracts: the Subcontracts, licences for Supplier's Systems, licences for Third Party Software or other agreements which are necessary to enable the Customer or any Successor to perform the Services.

Transferring Assets: has the meaning set out in paragraph 4.1(a) of this Schedule.

Transferring Contracts: has the meaning set out in paragraph 4.1(c) of this Schedule.

Transferring Employee: has the meaning set out in paragraph 4.1(d).

2. Purpose of Schedule

- 2.1 The Customer shall have the option ("**Transfer Option**") to exercise a transfer ("**Transfer**") of assets, contracts and employees as set out in this Schedule.
- 2.2 This Schedule sets out the principles of the Transfer.

- 2.3 For the avoidance of doubt, the Supplier is responsible for the overall management of the Transfer.

3. Obligations during the Term

- 3.1 During the Term, the Supplier shall:

- (a) create and maintain a register of:
 - (i) all assets and their Net Book Value; and
 - (ii) all Subcontracts and other agreements required to perform the Services;
- (b) create and maintain a database setting out the Supplier's technical infrastructure through which the Services are delivered. Such database shall be capable of allowing staff of the Successor and/or the Customer to acquire sufficient technical understanding of how the Supplier provides the Services to ensure the smooth transition of the Services with the minimum of disruption; and
- (c) at all times keep the Registers up to date and shall maintain copies of any agreements referred to in any Register.

- 3.2 The parties shall agree on the format of the Registers as part of the process of agreeing to the first Termination/Expiration Assistance Plan.

- 3.3 At the same time as the Supplier submits a revised Termination/Expiration Assistance Plan and upon the Customer's request from time to time, it shall also submit to the Customer up-to-date Registers.

- 3.4 At the Customer's request, the Supplier shall, within 30 days of such request, provide to the Customer a list of:

- (a) all assets, detailing their ownership status as either Dedicated Assets (separately identifying Transferable Assets) or Non-Dedicated Assets and their Net Book Value; and;
- (b) all Subcontracts and other agreements (separately identifying Transferable Contracts) required to perform the Services.

- 3.5 The Supplier will assist the Customer in the process of procuring that all licenses for Third Party Software entered into with effect from or after the Effective Date and all Subcontracts shall be assignable or capable of novation at the request of the Customer to the Customer and/or any Successor without restriction (including any need to obtain any consent or approval) or payment by the Customer. If such rights cannot be obtained, then the Supplier shall consult with the Customer on whether the rights that can be obtained are nevertheless acceptable to the Customer or whether the Supplier should seek an alternative provider of the goods or services to which the relevant agreement relates.

4. Exercise of Transfer Option

- 4.1 Not less than six months before expiry or, in the case of termination, within 30 days from the receipt of notice of termination if a notice of termination is issued, and if not, as soon as practicable (**Option Period**), the Customer, subject to section 3.4 of this Schedule, shall exercise the Transfer Option by notifying the Supplier:

- (a) which, if any, of the Transferable Assets the Customer requires to be transferred to it and/or any Successor (**Transferring Assets**);
- (b) which, if any, of the Dedicated Assets which are not Transferable Assets and which of the Non-Dedicated Assets the Customer and/or the Successor requires the continued use of;
- (c) which Transferable Contracts the Customer requires to be transferred to it and/or to the Successor or any other licences of the Supplier's Software or Third Party Software required by the Customer and/or the Successor (**Transferring Contracts**);
- (d) which, if any, of the Supplier Personnel which is dedicated to the performance of the Services the Customer requires to be transferred to it and/or to the Successor (**Transferring Employee**) in accordance with paragraph 7 of this Schedule,

in order for the Customer or the Successor to provide the Services from the termination or expiration of the Agreement. At the request of the Customer the Supplier shall provide such assistance as may be necessary to help the Customer and/or the Successor to identify which Assets and which Transferable Contracts are required for the continued provision of the Services and the provision of the Replacement Services.

- 4.2 In the event the Transfer Option is not exercised within the Option Period, the Transfer Option shall lapse and shall not be exercisable unless with the mutual agreement of the parties.

5. Transfer of assets and contracts

- 5.1 The Supplier shall sell the Transferring Assets to the Customer or the Successor (as determined by the Customer) with effect from the expiration or termination of the Agreement and the sale shall take place at such place as the Customer shall specify. The Customer or the Successor shall acquire the Transferring Assets (subject to acceptable "wear and tear") at Net Book Value. Risk in such Transferring Assets shall pass to the Customer or the Successor (as appropriate) at the with effect from the expiration or termination of the Agreement and title to such Transferring Assets shall pass to the Customer or the Successor (as appropriate) on payment for the same.
- 5.2 Where the Supplier is notified in accordance with paragraph 4.1(b) that the Customer and/or the Successor requires continued use of any of the Dedicated or Non-Dedicated Assets, the Supplier will assist the Customer in the process of procuring a non-exclusive, perpetual, royalty-free license (or license on such other terms that have been agreed by the Customer) for the Customer and/or the Successor to use such assets (with a right of sub-license or assignment on the same terms).
- 5.3 The Supplier shall at the Customer's request and with the co-operation of the Customer procure the novation or assignment to the Customer and/or Successor of the Transferring Contracts. The Supplier shall not be liable to any cost or damages (direct or indirect) to the Customer in the event the Transferring Contracts cannot be novated for reasons not due to the default of the Supplier.
- 5.4 The Customer shall:
- (a) accept assignments from the Supplier or join with the Supplier in procuring a novation of each Transferring Contract; and

- (b) once a Transferring Contract is novated or re-assigned to the Customer or the Successor, the Customer shall carry out, perform and discharge all the obligations and liabilities created by or arising under that Transferring Contract and exercise its rights arising under that Transferring Contract or, as applicable, procure that the Successor does the same.

5.5 The Supplier shall indemnify the Customer (or the Successor, as applicable) against each loss, liability and cost arising out of any claims made by a party to a Transferring Contract which is assigned or novated to the Customer (or Successor) pursuant to paragraph 5.3 of this Schedule. in relation to any matters arising prior to the date of such assignment or novation.

6. Post-termination support of Supplier's System

6.1 The Supplier shall at the Customer's request provide ongoing support of the Supplier's System (which are not licensing/subscription based) on its normal commercial terms at the lower of a price no less favourable than the Supplier's then current standard rates in respect of such support services or as set out in Schedule 4 for a period of [] after completion the transfer the Transferable Assets and Transferable Contracts.

6.2 For the Supplier's System which are licensed/subscription based, the Supplier shall at the Customer's request provide ongoing support at an agreed normal market license or subscription rate.

7. Employment Transfer Provisions

7.1 The Supplier agrees that, subject to compliance with applicable data protection laws:

- (a) within 20 days of the earliest of:
 - (i) receipt of the giving of notice of early termination of this agreement or any part thereof; or
 - (ii) the date which is 8 months before the expiry of the Initial Term or any renewal term,

and, in any event, on receipt of a written request of the Customer at any time, it shall provide the Supplier's Provisional Staff List and the Staffing Information to the Customer or, at the direction of the Customer, to a Successor and it shall provide an updated Supplier's Provisional Staff List when reasonably requested by the Customer or, any Successor;

- (b) at least 30 days before the Transfer Date, the Supplier shall prepare and provide to the Customer and/or, at the direction of the Customer, to the Successor, the Supplier's Final Staff List, which shall be complete and accurate in all material respects.
- (c) the Customer shall be permitted to use and disclose the Supplier's Provisional Staff List, the Supplier's Final Staff List and the Staffing Information for informing any tenderer or other prospective Successor for any services which are substantially the same type of services (or any part thereof) as the Services; and

- (d) on reasonable request by the Customer the Supplier shall provide the Customer or at the request of the Customer, the Successor, with access (on reasonable notice and during normal working hours) to such employment records (and provide copies) as the Customer reasonably requests,

provided always that the Customer shall require any such prospective Successor or other tenderer:

- (i) to treat such information in confidence;
- (ii) not to communicate such information except to persons within their organisation and to such extent as may be necessary for the purpose of preparing a response to an invitation to tender issued by the Customer; and
- (iii) not to use it for any other purpose.

7.2 From the date of the earliest event referred to in paragraph 7.1 of this Schedule, the Supplier agrees that it shall not without the prior written consent of the Customer, assign any person to the provision of the Services (or the relevant part) who is not listed in the Supplier's Provisional Staff List and shall not without the prior written consent of the Customer (such consent not to be unreasonably withheld or delayed):

- (a) increase the total number of employees listed on the Supplier's Provisional Staff List save for fulfilling assignments and projects previously scheduled and agreed with the Customer;
- (b) make, propose or permit any changes to the terms and conditions of employment of any employees listed on the Supplier's Provisional Staff List;
- (c) increase the proportion of working time spent on the Services (or the relevant part) by any of the Supplier's Personnel save for fulfilling assignments and projects previously scheduled and agreed with the Customer;
- (d) introduce any new contractual or customary practice concerning the making of any lump sum payment on the termination of employment of any employees listed on the Supplier's Provisional Staff List; and
- (e) replace any of the Supplier's Personnel listed on the Supplier's Provisional Staff List or deploy any other person to perform the Services (or the relevant part) or increase the number of employees or terminate or give notice to terminate the employment or contracts of any persons on the Supplier's Provisional Staff List.

7.3 The Supplier will promptly notify the Customer or, at the direction of the Customer, the Successor of any notice to terminate employment received from any persons listed on the Supplier's Provisional Staff List regardless of when such notice takes effect.

7.4 At least 60 days before the expected Transfer Date, the Supplier shall provide to the Customer or any Successor, in respect of each person (subject to compliance with applicable data protection laws) on the Supplier's Final Staff List who is a Transferring Employee, their:

- (a) pay slip data for the most recent month;
- (b) cumulative pay for tax and pension purposes;

- (c) cumulative tax paid;
- (d) tax code;
- (e) voluntary deductions from pay; and
- (f) bank or building society account details for payroll purposes.

- 7.5 The Supplier shall indemnify the Customer and any Successor in respect of any claims arising from any act or omission of the Supplier in relation to any other Supplier's Personnel who is not a Transferring Employee during any period whether before, on or after the Transfer Date.
- 7.6 The Customer or the Successor can, at its discretion, identify and make to any of the Transferring Employee an offer, in writing, to employ that Supplier Personnel under a new contract of employment to take effect at the earliest reasonable opportunity.
- 7.7 The Supplier must provide the Customer or the Successor with reasonable access to the Transferring Employee and shall not interfere with Customer or Successor's recruitment efforts.
- 7.8 When the offer has been made by the Customer or Successor and accepted by any Transferring Employee, the Supplier shall permit the employee or worker to leave their employment on the Transfer Date without the employee or worker having worked his full notice period.
- 7.9 Supplier must use all reasonable efforts to not subject any Supplier Personnel to any obligation, contractual or otherwise, that would conflict with or would otherwise be inconsistent with the rights of Successor set out in this Schedule and, to the extent that such obligations exist, Supplier must, where possible, waive any right to enforce the obligation.
- 7.10 If the Transferring Employee does not accept an offer of employment made by the Customer or Successor, the employee shall remain in the employment of the Supplier and all claims in relation to the employee shall remain with the Supplier.

8. Payment for the Transfer Option

- 8.1 The Customer shall pay to the Supplier the price determined in accordance with paragraph 4 of this Schedule:
 - (a) for the Transferring Assets; and/or
 - (b) for the continued use of the Dedicated Assets and Non-Dedicated Assets as referred to in paragraph 4.1(b) of this Schedule on its normal commercial terms at the lower of a price no less favourable than the Supplier's then-current standard rates or as set out in Schedule 4.
- 8.2 The Customer will pay a "Transfer Fee" calculated as follows:

"Transfer Fee": $6 \times \text{average monthly Operational Service Charges during the preceding 12 months} \times (\text{number of the Transferring Employee actually transferred} / \text{number of Transferring Employee identified under paragraph 4.1(d)})$

Schedule 17
(Supplier Parent Guarantee)

GUARANTEE

This guarantee (the “**Guarantee**”) is made on this day of 2024 by and between:

(1)

[REDACTED]

[REDACTED]

Whereas:

- (A) The Customer has entered into a business process outsourcing agreement dated ____ June 2024 with [REDACTED] (UK) International Limited (the “**Supplier**”) (the “**Agreement**”).
- (B) The Customer requires the Supplier Parent, being the parent company of the Supplier, to provide a supplier parent guarantee in accordance with Clause 46 of the Agreement to the Customer.
- (C) The Supplier Parent has agreed to provide this Guarantee on the terms and conditions set out below.
- (D) The Supplier Parent and the Customer have agreed to execute this Guarantee as a deed.

It is hereby agreed:

1. Definitions

“**Guaranteed Obligations**” means all obligations, undertakings, covenants, representations, warranties, moneys, and liabilities of every kind due from or owing or incurred or to be observed or performed by the Supplier to Customer and/or Customer Group Member from time to time and at any time under or in connection with (a) the Agreement, (b) any Implementation Agreement(s) which may be entered into by the Supplier and a Customer Group Member from time to time, and (c) any Statement of Work(s) agreed by the Supplier and the Customer and/or a Customer Group Member from time to time.

2. Unless otherwise set out herein, capitalised terms in this Guarantee have the meaning given to those terms under the Agreement.

3. In consideration of Customer and Customer Group Members entering into the Agreement, any Implementation Agreement(s) and any Statement(s) of Work, as the case may be, with the Supplier, the Supplier Parent irrevocably and unconditionally guarantees to Customer as a primary obligation and not as surety, due and punctual performance of the Guaranteed Obligations in accordance with the Agreement, any Implementation Agreement(s) and any Statement(s) of Work. Without prejudice to the foregoing, to the extent that the Guarantee relates to Supplier's performance (as opposed to financial) obligations under the Agreement, Statement of Work, or Implementation Agreement, the Supplier Parent may procure that a member of the Supplier Parent's Group shall fully perform the obligations under the Agreement, Statement of Work, or Implementation Agreement (as the case may be).

4. Without prejudice to the foregoing, Supplier Parent agrees to indemnify and keep indemnified the Customer in full and on demand against all liabilities, losses, damages, cost and expenses suffered or incurred by Customer and/or any Customer Group Members arising out of and or in connection with any act, failure, default or omission on the part of the Supplier in performing and observing its obligations under and in accordance with the Agreement, any Implementation Agreement(s), or any Statement(s) of Work.
5. The Supplier Parent agrees as principal obligor and as a separate and independent obligation that in the event any sum due to the Customer or any Customer Group Member from the Supplier under the terms of the Agreement, Implementation Agreement(s), or Statement(s) of Work, including but not limited to any order of court, judgment, or arbitral awards in favour of the Customer or any Customer Group Member, is not recoverable from or paid by the Customer for any reason whatsoever, such sum shall be recoverable from the Supplier Parent and shall be paid by the Supplier Parent on demand.
6. The Supplier Parent's obligations under this Guarantee shall remain in full force and effect and shall not be affected, reduced or discharged in any way by (and any right to notice is waived):
 - i. any suspension of the Services and/or Deliverables, variation to or amendment of the Agreement, any Implementation Agreement(s) or any Statement of Work(s) or any concession or waiver by in respect of the Supplier's obligations under the Agreement, any Implementation Agreement(s), or any Statement of Work(s);
 - ii. any alteration, addition, deletion or variation (however fundamental), illegality, invalidity or unenforceability of or any defect in any terms of the Agreement, any Implementation Agreement(s) or any Statement of Work(s);
 - iii. the termination of the Agreement, any Implementation Agreement(s) or any Statement of Work(s) (whether in part or in whole);
 - iv. any forbearance, discharge or waiver of any right of action or remedy Customer and/or Customer Group Member, as the case may be, may have against the Supplier or delay or refrain by Customer and/or Customer Group Member in enforcing any such right of action or remedy, whether under the Agreement, any Implementation Agreement(s), or any Statement(s) of Work;
 - v. any intermediate payment, settlement of account or discharge in whole or in part of the Guaranteed Obligations;
 - vi. any arrangement or compromise, whether arising out of or in relation to the Agreement, any Implementation Agreement(s), or any Statement(s) of Work, agreed between the Supplier and/or the Supplier Parent, on one hand, and the Customer and/or the Customer Group Members, on the other, as the case may be;
 - vii. the insolvency, bankruptcy, liquidation, administration or winding up, or any incapacity, limitation, disability, discharge by operation of law or change in the constitution, name or style, of the Customer, any Customer Group Member or Supplier
 - viii. any bond, undertaking, security or other guarantee held or obtained by Customer and/or Customer Group Member for any of the obligations of the Supplier under the Agreement,

any Implementation Agreement(s) or any Statement of Work(s) or any associated release or waiver;

- ix. any act, omission, matter or thing which would not have discharged or affected the liability of the Supplier Parent had it been a principal obligor instead of a guarantor;
- x. any other thing done or omitted or neglected to be done by the Customer and/or a Customer Group Member; or
- xi. Any other dealing or circumstance which may constitute a legal or equitable discharge of or defence available to the Supplier Parent as surety or guarantor,

and this Guarantee is a continuing guarantee which shall remain in full force and effect until all the Guaranteed Obligations are performed and discharged in full and no sum remains payable (whether actually or contingently) by the Supplier to the Customer or a Customer Group Member under or in connection with the Agreement, any Implementation Agreement(s), or any Statement of Work(s), notwithstanding any intermediate satisfaction or performance of the Guaranteed Obligations by the Supplier, the Supplier Parent or any other person.

- 7. By this Guarantee the Supplier Parent authorises the Supplier, the Customer and/or a Customer Group Member to make any addendum or variation to the Agreement, any Implementation Agreement(s), or any Statement of Work(s), and agrees to guarantee the due and punctual performance of the Guaranteed Obligations as so amended or varied in accordance with the terms of this Guarantee.
- 8. This Guarantee is in addition to any other security which Customer and/or the Customer Group Member may at any time hold and may be enforced without first having recourse to any such security or taking any steps or proceedings against the Supplier.
- 9. The Customer and/or the Customer Group Member shall not be obliged, before taking steps to enforce any of its rights and remedies under this Guarantee, to:
 - i. take any action or obtain any judgment in any court against the Supplier or any other person;
 - ii. make or file any claim in a bankruptcy, liquidation, administration, or insolvency of the Supplier, or any other person; or
 - iii. demand, or enforce, or seek to enforce any claim, right, or remedy against the Supplier or any other person.
- 10. The Customer and/or the Customer Group Member shall be entitled after any demand has been made under this Guarantee to continue dealing with the Supplier without thereby affecting or discharging the Supplier Parent's liability for all the Guaranteed Obligations whether outstanding at the date of the demand or subsequent thereto.
- 11. Until all amounts which may be or become payable by the Supplier under or in connection with this Guarantee have been irrevocably paid in full, and unless the Customer otherwise directs in writing, the Supplier Parent shall not exercise any security or other rights which it may have by

reason of performance by it of its obligations under this Guarantee, whether such rights arise by way of set-off, counterclaim, subrogation, indemnity or otherwise.

12. This Guarantee is in addition to and shall not affect nor be affected by or merge with any other judgment, security, right or remedy obtained or held by the Customer or a Customer Group Member from time to time in respect of the discharge and performance of the Guaranteed Obligations by the Supplier.
13. The Supplier Parent represents and warrants that:
 - i. it is a duly incorporated limited liability company validly existing under the law of its jurisdiction of incorporation;
 - ii. it has the power to enter into, deliver, and perform its obligations under and has taken all necessary actions to authorise its entry into, delivery, and performance of this Guarantee. The Supplier Parent has accordingly obtained all required or desirable authorisations to enable it to enter into, deliver and comply with its obligations under this Guarantee and to make this Guarantee admissible in evidence in its jurisdiction of incorporation;
 - iii. the entry into, delivery and performance of the obligations in this Guarantee do not and will not contravene or conflict with any law or regulation or judicial or official order applicable to it, the Supplier Parent's constitutional documents, or any agreement or instrument binding on the Supplier Parent or its assets;
 - iv. no litigation, arbitration or administrative proceedings are taking place or pending or, to the best of the Supplier Parent's knowledge and belief, have been threatened against it, any of its directors or any of its assets which might reasonably be expected to have a material adverse effect on the ability of the Supplier Parent to perform its obligations under this Guarantee; and
 - v. the Supplier Parent's obligations under this Guarantee are legal, valid, binding, and enforceable.
14. Customer may assign the benefit of this Guarantee to any Customer Group Member at any time without consent, and such assignment shall not in any way discharge, impair, or affect the Supplier Parent's liability under this Guarantee.
15. Any notice required by this Guarantee shall be deemed to be duly given when delivered (in the case of personal delivery) or forty-eight (48) hours after being despatched by prepaid registered post or recorded delivery (in the case of letter) or as otherwise advised by and between the parties. Save as set out herein, notices to the Customer or the Customer Group Members shall be given in accordance with the notice provisions in cl 66 of the Agreement, the relevant Statement(s) of Work, and/or the relevant Implementation Agreement(s), as the case may be. Notices to the Supplier Parent shall be given in accordance with the following:

Supplier Parent
[Redacted]
[Redacted]
[Redacted]
[Redacted]

- 16. This Guarantee shall be governed by and construed pursuant to Section 55 (Governing Laws and jurisdiction) of the Agreement and Supplier Parent agrees to any dispute arising out of or in connection with this Guarantee, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre in accordance with the Arbitration Rules of the Singapore International Arbitration Centre for the time being in force, which rules are deemed to be incorporated by reference in this clause. The seat of the arbitration shall be Singapore and the language of the arbitration shall be English.
- 17. This Guarantee may be executed in counterparts. Delivery of a counterpart of this Guarantee by email attachment constitutes an effective mode of delivery. Each of the Supplier Parent and the Customer shall execute such documents or take such other steps as may reasonably be necessary to fulfil the provisions of this Guarantee and to give effect to this Guarantee.
- 18. This Guarantee is executed as a deed.

Signed, sealed, and delivered as a deed by
[Redacted]
[Redacted] in the presence of:

.....
Group CEO and Director

.....
[SIGNATURE OF WITNESS]
[NAME, ADDRESS [AND OCCUPATION] OF WITNESS]
[Redacted]
[Redacted] [insert name]

.....
[NAME AND TITLE]

Schedule 18
(Non-Commercially Available Supplier Materials)

Unless the Parties agree otherwise, "*Non-Commercially Available Supplier Materials*" consist only of the following (for so long as such software or material listed below is not offered, licensed or otherwise made available for a fee or charge by Supplier):

Not applicable

Schedule 19
(Specific Commercially Available Supplier Materials)

Unless the Parties agree otherwise, “*Specific Commercially Available Supplier Materials*” consist only of the following (for so long as such software or material listed below continues to be offered, licensed or otherwise made available for a monthly fee or charge by Supplier):

Malkom.ai to be provided after termination or expiry of this Agreement on the following terms:

Item	Price	Payment term
Malkom.ai licence	122 USD per user per er month	Monthly

DSOP to be provided after termination or expiry of this Agreement on the following terms:

Item	Price	Payment term
Hosting charges	An evaluation of the existing infra will be performed on the termination or expiry of the Agreement to assess if the provisioned infrastructure needs an upgrade. The price would be provided at that stage and in consultation with Customer	Monthly
Support charges	38 USD per user per month	Monthly

DSiTE to be provided after termination or expiry of this Agreement on the following terms:

Item	Price	Payment term
DSiTE licence	USD 18/user/month	Monthly

IA to be provided after termination or expiry of this Agreement on the following terms:

Item	Price	Payment term
IA licence	Annual price of USD 282,187/-, subject to a minimum of: e. Two (2) IA (RPA) – Control Room licences; f. Seventy-five (75) IA (RPA) – Production BOTs licences;	Annual upfront

	g. Ten (10) IA (RPA) – Developer licences; and h. Five (5) IA (RPA) Production support licences	
IA Support inclusive of incremental licenses	114 USD/user/month	Monthly
IA Hosting	To be provided by Customer	N/A
IA per unit license charges under managed services agreement	1) UiPath Orchestrator / Control Room = USD 12,500 per license per annum 2) UiPath Developer License = USD 2000 per license per annum 3) UiPath Production Unattended Robot = USD 5500 per license per annum	Annual Upfront

Schedule 20 (Form of Implementation Agreement)

This **Implementation Agreement** ("**Implementation Agreement**") is entered into between [insert name of the Customer Group Member] (the "**Customer Group Member**") and [redacted] (UK) International Limited having its registered office address at [redacted] Kingdom ("**Supplier**") and is effective as of the Local Effective Date (defined below). The IA Services (defined below) to be provided by the Supplier pursuant to this Implementation Agreement will commence on the Local Commencement Date (defined below).

In consideration of the mutual covenants and agreements contained herein, the Parties (defined below) hereto agree as follows:

1. Definitions and Interpretation

1.1 Definitions

1.1.1 In this Implementation Agreement, the following terms have these meanings:

- (i) "**Local Commencement Date**" means the relevant date set out in this Implementation Agreement or the Statement of Work.
- (ii) "**Local Effective Date**" is [●].
- (iii) "**Local Term**" is defined in Clause 8 of this Implementation Agreement.
- (iv) "**IA Services**" means all Services set out in the Business Process Outsourcing Agreement "**Business Process Outsourcing Agreement**" means the Business Process Outsourcing Agreement dated as of [insert date] between [redacted] and [redacted] (UK) International Limited.
- (v) "**Party**" means either the Customer Group Member or the Supplier, and "**Parties**" means the Customer Group Member and the Supplier.

1.2 Interpretation & References

1.2.1 **Certain References:** Unless otherwise provided or defined in this Implementation Agreement:

- (i) Capitalised terms used in this Implementation Agreement that are not defined in this Implementation Agreement shall have the meanings given to them in the Business Process Outsourcing Agreement.
- (ii) Schedules of the Business Process Outsourcing Agreement appearing or used in this Implementation Agreement or incorporated by reference into this Implementation Agreement, shall mean the Schedules attached to the Business

Process Outsourcing Agreement, as may be modified by this Implementation Agreement.

- (iii) References to the “*Supplier*” in the Business Process Outsourcing Agreement shall be read in this Implementation Agreement as references to the Supplier, except when such term is part of another phrase or defined term, which by their context require a different meaning.
 - (iv) References to the “*Customer*” in the Business Process Outsourcing Agreement shall be read in this Implementation Agreement as references to the Customer Group Member, except when such term is part of another phrase or defined term, which by their context require a different meaning.
 - (v) References to “*Party*” or “*Parties*” in the Business Process Outsourcing Agreement shall be read in this Implementation Agreement as references to the Customer Group Member and/or the Supplier, as the case may be.
 - (vi) References to “*Statement of Work*” in the Business Process Outsourcing Agreement shall be read in this Implementation Agreement as a reference to Appendix A of this Implementation Agreement, unless otherwise expressly provided.
 - (vii) References in this Implementation Agreement to a Clause, Section, Exhibit, Attachment, Schedule, Annex or Appendix shall be to such Clause, Section, Exhibit, Attachment, Schedule, Annex or Appendix of this Implementation Agreement, unless otherwise expressly provided.
- 1.2.2** Except as otherwise set forth in the body of this Implementation Agreement or in any Appendices, in the event of a conflict or inconsistency between the provision in the body of this Implementation Agreement and the provisions in the Appendices, the provisions in the body of this Implementation Agreement shall prevail to the extent of such conflict. In the event of any conflict or inconsistency between the terms of the Business Process Outsourcing Agreement and this Implementation Agreement, the terms of the Business Process Outsourcing Agreement shall prevail to the extent of such conflict.

2. Scope

- 2.1** This Implementation Agreement governs the provision and the reception and utilisation of, the IA Services by the Supplier to the Customer Group Member and its Authorised Users in the Country. The IA Services will be invoiced by the Supplier in accordance with Clause 4 of this Implementation Agreement. The Supplier shall observe, perform and comply with the provisions of Business Process Outsourcing Agreement on the part of the Supplier to be observed, performed and complied with in so far as they relate and apply to the IA Services.
- 2.2** Commencing as of the Local Commencement Date and continuing throughout the Local Term, the Supplier shall be responsible for providing to the Customer Group Member and Authorised

Users, the IA Services as the Customer Group Member or any Authorised User may from time to time require or authorise the Supplier to provide.

- 2.3** By entering into this Implementation Agreement, both the Customer Group Member and the Supplier shall be deemed to have agreed to the terms and conditions of the Business Process Outsourcing Agreement with respect to the IA Services, and all of the Customer's rights and obligations under Business Process Outsourcing Agreement with respect to the IA Services shall inure to, and be adopted by, the Customer Group Member, except as may otherwise be expressly modified by this Implementation Agreement.
- 2.4** **Incorporation of Business Process Outsourcing Agreement:** This Implementation Agreement expressly incorporates by reference all the terms and conditions of the Business Outsourcing Agreement (including any amendments made thereto from time to time) so as to apply to the provision of the IA Services by Supplier, save as otherwise provided, modified, varied or excluded in this Implementation Agreement. The Supplier hereby:
- 2.4.1** agrees that any and all amendments to Business Process Outsourcing Agreement validly agreed between Customer and Supplier under Business Process Outsourcing Agreement, from time to time, shall become effective in this Implementation Agreement from the date such amendments are expressed to be effective in Business Process Outsourcing Agreement and Supplier does not reserve any rights to object to such amendments; and
- 2.4.2** undertakes to Customer Group Member to do any and all acts and execute any and all documents in such manner and in such location as may be required by Customer Group Member in Customer Group Member's absolute discretion to ensure that all amendments of Business Process Outsourcing Agreement validly agreed between Customer and Supplier under Business Process Outsourcing Agreement, from time to time, are incorporated into this Implementation Agreement.
- 2.5** For the avoidance of doubt, the Parties declare that it is their intention that this Implementation Agreement should not in any way alter the Business Process Outsourcing Agreement as it applies between the Customer and the Supplier.
- 2.6** **IA Services:** The IA Services provided by the Supplier to the Customer under this Implementation Agreement shall comprise all Services set out in Clause 4 of the Business Process Outsourcing Agreement, including provision of the Transition Services, Transformation Implementation Services, Transformation Recurring Services, Technology Implementation Services, and Technology Recurring Services, in accordance with Schedule 13 (Transition and Transformation Plan) of the Business Process Outsourcing Agreement. The Parties' agreement as to the provision of Operational Services to the Customer under this Implementation Agreement shall be as set forth in Appendix A, in a Statement of Work in the form set out in Schedule 3 (Forms of Statements of Work and Acceptance Certificate).

3. Territory-specific Terms and Conditions

- 3.1** Without prejudice to the provisions of the Business Process Outsourcing Agreement, to the extent that certain of the mandatory Laws and Legal Requirements of the Country require modification of any terms and conditions of the Business Process Outsourcing Agreement as incorporated into this Implementation Agreement or where Parties agree that there are other terms and conditions of the Business Process Outsourcing Agreement that require modification for purposes of this Implementation Agreement, such terms and conditions are set forth in Appendix B (Territory-specific Terms and Conditions) attached hereto.

4. Payment

- 4.1 Fees:** In consideration of the Supplier providing the IA Services to the Customer Group Member, the Customer Group Member shall pay to the Supplier the Fees in accordance with Clause 15 of the Business Process Outsourcing Agreement as modified by Appendix B (Territory-specific Terms and Conditions).
- 4.2** Except as expressly set forth above, there shall be no charge or fees payable by the Customer Group Member in respect of the Supplier's performance of its obligations pursuant to this Implementation Agreement.
- 4.3 Additional Documentation:** The Parties agree that if any separate document or agreement shall be reasonably required for tax or accounting purposes they will with due expedition enter into or execute such appropriate separate document or agreement and, where required, timely provide the necessary documentation to the other Party (e.g., tax certificates for withholding taxes).
- 5. Withholding Tax:** Withholding taxes shall be borne by the Customer Group Member and Customer Group Member shall pay to Supplier such sums due to Supplier as will after such deduction or withholding has been made to leave Supplier with the same amount as Supplier would have been entitled to receive in the absence of any such requirement to make a deduction or withholding.

6. English Language

- 6.1** This Implementation Agreement: (i) is written and was negotiated in English; (ii) is the complete and exclusive agreement between the Parties regarding the subject matter of this Implementation Agreement; and (iii) replaces any prior oral or written communications between the Parties with respect to the subject matter of this Implementation Agreement. In the event of a conflict or inconsistency between the English language version and any translated version of this Implementation Agreement, the original English language version of this Implementation Agreement shall prevail.

7. Counterparts

- 7.1** This Implementation Agreement may be executed in any number of counterparts. All counterparts, taken together, constitute one instrument. A Party may execute this Implementation Agreement by signing any counterpart.

8. Term

- 8.1** This Implementation Agreement is coterminous with the Business Process Outsourcing Agreement unless it is terminated earlier in accordance with the terms of the Business Process Outsourcing Agreement. For the avoidance of doubt, the term of this Implementation Agreement shall commence on the Local Commencement Date and continue until it is terminated, which shall in no event be later than the termination or expiration of Business Process Outsourcing Agreement (the term of this Implementation Agreement to be referred to as the “**Local Term**”).

9. Notices

- 9.1** All notices in connection with this Implementation Agreement must be in accordance with Clause [●] of the Business Process Outsourcing Agreement to the address and/or e-mail address and addressee designated by the Parties below;

The Customer Group Member

Address: _____

Email: legal@sgp.pilship.com

Attention: Legal Department

The Supplier

10. Governing law

- 10.1** This Implementation Agreement and its performance shall be subject to, governed by and construed in accordance with the laws of Singapore and the Parties hereby submit to the non-exclusive jurisdiction of the Singapore courts unless specified otherwise in Appendix B.

Appendix A

Statement of Work

A Statement of Work in the form set out in Schedule 3 (Forms of Statements of Work and Acceptance Certificate of the Business Outsourcing Agreement is to be set out here.

Appendix B Territory-specific Terms and Conditions

[\[Click here to start contents\]](#)

In witness whereof this Implementation Agreement has been entered into on the date stated at the beginning.

The Customer Group Member

SIGNED by [\[Click here and type individual name\]](#)

for and on behalf of

[\[Click here and type company name\]](#)



in the presence of:

Witness' signature

Name:

Address:

The Supplier

SIGNED by **[Click here and type individual name]**

for and on behalf of

[Redacted signature area]



in the presence of:

Witness' signature

Name:

Address:

Schedule 21
(Territory & Implementation Agreement Countries)

PART (A) – Territory

Malaysia, Australia, Cambodia, Indonesia, Kenya (Uganda & Rwanda) , Nigeria, New Zealand, Philippines, Singapore, South Africa, Thailand, UAE, Vietnam, China, Hong Kong SAR China, Taiwan China, Bangladesh, Egypt, Ghana, India, Korea, Sri Lanka, Pakistan, Benin, Cameroon, Cote D'Ivoire, Djibouti, Jordan, Mozambique (Malawi, Zimba bwe, Zambia), Myanmar, Sudan, Tanzania, Togo, Yemen

PART (B) - Implementation Agreement Territories

Territories	Customer Group Member
AUSTRALIA	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
SUDAN	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
CAMEROUN	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

[illegible]

Schedule 22 (Change Control)

4. Change Control Procedures

4.1 Customer may by notice in writing to Supplier (using the agreement change request form prescribed by Customer), request a change, variation or amendment to this Agreement or any part thereof, giving details of the proposed change, variation or amendment (such request to be referred to as an **"Agreement Change Request"**), in which case:

4.1.1 Within two Business Days of receipt of Customer's notice requesting a change, variation or amendment, Supplier will respond to Customer specifying a time frame (the **"Evaluation Period"**) within which Supplier will provide Customer with an evaluation of the change, variation or amendment. The Evaluation Period shall be no longer than is reasonably practicable for Supplier to make the evaluation; and

4.1.2 Supplier shall evaluate the proposed change, variation or amendment and within the Evaluation Period, provide Customer with a full written evaluation of the proposed change, variation or amendment which will specify:

- (i) the feasibility of implementing the change, variation or amendment;
- (ii) the impact of the change, variation or amendment on the Services;
- (iii) the resources required to implement the change, variation or amendment;
- (iv) whether any adjustment, changes or variations will be required to the Fees, Service Levels, ■■■ In-Scope FTEs, Productivity Guarantee, any deadlines or other obligations or provisions under this Agreement and the Schedules, and if so, the basis for such variations;
- (v) the likely implementation date of the change, variation or amendment;
- (vi) any Customer resources required to undertake any of the activities required in the Agreement Change Request;
- (vii) any corresponding amendments required to the Implementation Agreements; and
- (viii) any other relevant details,

at no additional charge to Customer.

4.2 Where the implementation of the change, variation or amendment will result in an increase in the Fees or be additionally chargeable, Supplier's quotation for implementing the change, variation or amendment shall be reasonable and shall not deviate materially from the prevailing market practice in relation to the price or rates charged for such work and shall also not exceed Supplier's standard charges for such work (where applicable).

4.3 Customer will consider the evaluation report and may within 30 days of receipt of the evaluation report, elect in writing to:

4.3.1 accept the evaluation report and instruct Supplier to proceed to implement the change, variation or amendment or any part thereof, in which case this Agreement shall be

amended in accordance with the evaluation report or such other variation or addendum to this Agreement as may be executed by the Parties in writing;

- 4.3.2** request Supplier to amend and re-submit such evaluation report, in order to make the evaluation report or any quotation therein reasonable which Customer shall consider in accordance with this Paragraph 4.3; or
- 4.3.3** withdraw the proposed change, variation or amendment in which case this Agreement shall continue in force unchanged. Customer shall be entitled to engage any other party or parties to implement the proposed change, variation or amendment in which event Supplier shall co-operate with such party or parties in connection with any work relating to the proposed change, variation or amendment.
- 4.4** Supplier may also propose a change, variation or amendment and in such a case, it shall prepare and submit to Customer an evaluation report which will be dealt with in accordance with Clause 16 (Change) which shall apply accordingly, except that Customer is entitled to refuse any such change, variation or amendment proposed by Supplier in its discretion.
- 4.5** Subject to Clause 16.2, all change, variation or amendment to this Agreement shall be made in accordance with the procedures outlined in this Paragraph 4, provided that the Parties may dispense in writing with the aforesaid procedure in respect of minor changes, alterations or modifications with no change to the Fees.

5. Change Management Processes

- 5.1** Prior to the Commencement Date, Supplier will develop for Customer's approval, the processes relating to planning and performing all changes in the Customer Group's operational environment pertaining to the Services (including changes to individual components and coordination of changes across all components), including:
 - 5.1.1** processes that govern all operational and technical changes associated with the Services; and
 - 5.1.2** identifying the checkpoints and setting out the procedures for updating, revising or changing the Schedules of this Agreement, to reflect the implementation of operational and technical changes to the Services.
- 5.2** Supplier shall implement and comply with the Change Management Processes during the Term.

Schedule 23 (New Services)

1. New Services

- 1.1** Any request for a New Service shall be in accordance with Paragraphs 2.1 to 2.4 of this Schedule.
- 1.2** Supplier agrees that the implementation of a New Service may reduce or eliminate other Services or Resources required to perform the Services, leading to a reduction in the Fees payable by Customer.
- 1.3** **Charges for New Services:** At the time any New Service is requested by Customer, Supplier shall quote to Customer a charge for such New Service(s). that is no more than what Supplier generally charges its other customers for substantially similar services taking into account the terms on which those Services are provided. The price for such New Service(s) shall take into account savings from Resources and expenses of Supplier for then-existing Services that would no longer be required if the New Service(s) were performed by Supplier.

2. Request for New Services

- 2.1** Customer may from time to time request Supplier to submit to Customer a written proposal for the provision of a New Service, within such reasonable time period as Customer may request.
- 2.2** The proposal shall be:
- 2.2.1** reasonable; and
 - 2.2.2** consistent with the Objectives.
- 2.3** The proposal shall be prepared at Supplier's cost and expense.
- 2.4** Supplier may initiate a proposal for a New Service at any time.
- 2.5** **Content of proposal for New Services:** Supplier shall include in its proposal for the New Services such information as Customer notifies Supplier it requires whereby such proposal shall include the following, at a minimum and as may be applicable or appropriate:
- 2.5.1** any deviations from contract terms embodied in this Agreement;
 - 2.5.2** a detailed description of the work or services Supplier anticipates performing;
 - 2.5.3** the charges, fees or other expenses which Customer will be required to pay for the New Service(s), including changes, if any, to the Termination Assistance Fee;
 - 2.5.4** the financial responsibilities of the Parties;
 - 2.5.5** any applicable transition or implementation plan;
 - 2.5.6** a Risk Assessment and Mitigation Plan;
 - 2.5.7** a quality assurance plan;

- 2.5.8** a timeline for commencement and completion, including any significant interim milestones;
- 2.5.9** the [REDACTED] In-Scope FTE for the New Services;
- 2.5.10** the implication to the Productivity Guarantee;
- 2.5.11** the implications on Resources, including:
 - (i) the Resources required to perform the New Service, including to develop and operate any new tools or Software;
 - (ii) any new Resources to be provided by Supplier in connection with the New Service; and
 - (iii) any Customer Resources required to develop, test or operate the New Service;
- 2.5.12** subject to Paragraph 1.3 of this Schedule, Supplier's charges including a detailed breakdown of Resource Units, Additional Resource Charge, Reduced Resource Credits and other matters contemplated in the proposal;
- 2.5.13** any impact or change to the Services or Termination/Expiration Assistance Plan resulting from the provision of the New Services, including:
 - (i) any increase, reductions to or omission of a Service currently being performed, or Resources currently being used, which would result from the provision of the New Service;
 - (ii) any ancillary services which may be necessary or desirable for Supplier or Customer to perform or receive in connection with the proposed New Service, including training;
 - (iii) any part of the Services which may be desirable or appropriate to reduce or remove so as not to increase the overall Fees;
 - (iv) if appropriate:
 - (a) acceptance test criteria;
 - (b) procedures; and
 - (c) recovery plans, relevant to the New Services;
 - (v) if appropriate, any proposed variation from the standard terms and conditions for New Services;
 - (vi) the applicable Service Levels, including whether Critical Service Levels or Key Measurements apply and any proposed variations to the existing Service Levels; and
 - (vii) all other relevant information, including information concerning proposed Supplier warranties in relation to the proposed New Services.

2.6 Acceptance of proposals

- 2.6.1** Customer is not obliged to accept or proceed with a proposal submitted to it under Paragraphs 2.1 to 2.4 of this Schedule. Where Customer does not accept such proposal, this Agreement shall continue in force unchanged.
- 2.6.2** Within a reasonable period after receiving Supplier's proposal, Customer agrees to notify Supplier in writing of whether or not it wishes to proceed with the New Service(s). If Customer does not respond in writing within a reasonable period, and in any event, within 30 days thereafter, it shall be deemed that Customer does not accept Supplier's proposal and Supplier shall not commence providing the New Service(s).
- 2.6.3** Where Customer accepts such proposal in writing, Paragraph 2.8 of this Schedule shall apply.

2.7 Supplier unable to perform

- 2.7.1** Without limiting Clause 25 (Third Party suppliers), if Supplier is unwilling or unable itself, for any reason, to provide a New Service requested by Customer, Customer may require Supplier to engage a Third Party approved or selected by Customer to perform the New Service.
- 2.7.2** The provisions in this Agreement relating to Supplier Subcontractors shall apply to any Third Party engaged by Supplier under Paragraph 2.7.1 of this Schedule as if such Third Party was a Supplier Subcontractor.

2.8 Implementation of New Service

- 2.8.1** If Customer appoints Supplier, or requires Supplier through a Third Party under Paragraph 2.7.1 of this Schedule, to perform a New Service, then the Parties shall execute a written addendum to this Agreement to incorporate the mutually agreed New Service (such addendum to this Agreement to be referred to as a "**Work Order**"). A Work Order shall include, if applicable, at least:
 - (i) a statement of work for the New Service;
 - (ii) service levels applicable to the New Service;
 - (iii) amendments to the Termination/Expiration Assistance Plan in relation to the New Service;
 - (iv) the price to be paid, or method of pricing, for the New Service, and the resultant changes, if any, to the Termination Assistance Fee;
 - (v) the terms on which the New Service is to be provided;
 - (vi) such other matters from Supplier's proposal under Paragraph 2.5 of this Schedule with which Customer agrees;
 - (vii) such other information as Customer may reasonably require; and
 - (viii) any other variation to this Agreement, including the Statements of Work, which was identified in the proposal submitted by Supplier under Paragraphs 2.1 to 2.4 of this Schedule and agreed to by Customer.
- 2.8.2** Each Work Order shall be signed by duly authorised representatives of each Party (and

in the case of Customer, shall be authorised in writing by the Customer Contract Executive or by a person expressly designated or authorised in writing by the Customer Contract Executive). If Supplier performs a New Service without a Work Order then Supplier shall not charge Customer for the New Service and Customer is under no obligation to pay for any such New Service.

- 2.8.3** Upon the execution of a Work Order by the Parties, the New Service which is the subject of the Work Order shall form part of the Services and be subject to this Agreement as varied to the extent set out in the Work Order.

Schedule 24

(Joint Innovation Fund)

1. The Supplier and the Customer will establish a joint innovation fund (the “**Joint Innovation Fund**”).
2. This Schedule is intended to set out the general principles governing the Joint Innovation Fund.
3. The Joint Innovation Fund will be established in the 3rd Contract Year by the Supplier and the Customer each contributing USD 300,000 on the 3rd Anniversary Date to the Joint Innovation Fund. In the event the Customer exercises its option to extend the term of this Agreement for a further two 2 years in accordance with Clause 3.2, each Party shall contribute a further USD 200,000 to the Joint Innovation Fund.
4. The Joint Innovation Fund can be utilized for new transformation projects like process consulting, developing new MVPs (minimum viable products), data analytics and creating proof of concepts
5. Either Party may propose initiatives for consideration for funding from the Joint Innovation Fund.
6. The Joint Transformation Committee will have representation from the Supplier and the Customer and shall own, manage and govern the Joint Innovation Fund.
7. Each initiative will be defined as an Innovation Project and the following will be required:
 - a. Scope of work / Project Charter
 - b. Project Team
 - c. Financial Business Case
 - d. Deliverables
 - e. Project Plan
 - f. Dependencies
 - g. Measurable Benefits / Value Delivered
 - h. Success Criteria
8. The Parties will enter into definitive agreement(s) to give effect to the Innovation Project(s).
9. The Parties may enter into a Collaboration Agreement to set out further details on the governance and operation of the Joint Innovation Fund.

Schedule 25
(Periodic Productivity Commitment Table)

1. The Periodic Productivity Commitment Table means Tables 25-1, 25-2 and 25-3 below (read collectively), as may be amended from time to time in accordance with this Agreement.
2. Each of the stated percentage (%) Periodic Productivity Commitment Table is the cumulative productivity under the relevant "Month x", and "x" is the number of months from the Commencement Date e.g. Month 1 is the 1st month after the Commencement Date. "CY" means Contract Year.
3. Productivity Guarantee for the relevant month in relation to each Tower / Process under each Supplier Site under all then in-force Statement of Works and Implementation Agreement = total [REDACTED] In-Scope FTEs designated for the relevant Tower / Process under the Supplier Site under all then in-force Statement of Works and Implementation Agreement X (100% - stated % in the Periodic Productivity Commitment Table).

Illustration

If, in Month 10, for Supplier Site in Sri Lanka, the [REDACTED] In-Scope FTEs is 100, as follows:

- (a) 30 [REDACTED] In-Scope FTEs designated for Business Operations
- (b) 30 [REDACTED] In-Scope FTEs designated for Accounts Payable
- (c) 20 [REDACTED] In-Scope FTEs designated for Accounts Receivables
- (d) 10 [REDACTED] In-Scope FTEs designated for General Ledger
- (e) 10 [REDACTED] In-Scope FTEs designated for SOA

The stated % in the Periodic Productivity Commitment Table for all the Tower / Process is 23% for Month 10.

Productivity Guarantee = $100 \times (100\% - 23\%) = 77$ FTE. This means that the Supplier is entitled to charge the Customer for up to 77 FTEs (based on the Operational Service Charges): For the avoidance of doubt, if the Supplier has deployed 70 FTEs for all the above Tower / Process in Month 10, it would only charge the Customer for 70 FTEs. However, if the Supplier has deployed 80 FTEs, applying the Productivity Guarantee, the Supplier would only be entitled to charge the Customer 77 FTEs in Month 10.

Table 25-1: Productivity Commitment Table – Contract Years 1 and 2

		Cumulative Productivity % - Month on Month (CY means "Contract Year")																							
		CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2
Supplier Site	Tower / Process	Mont h 1	Mont h 2	Mont h 3	Mont h 4	Mont h 5	Mont h 6	Mont h 7	Mont h 8	Mont h 9	Mont h 10	Mont h 11	Mont h 12	Mont h 13	Mont h 14	Mont h 15	Mont h 16	Mont h 17	Mont h 18	Mont h 19	Mont h 20	Mont h 21	Mont h 22	Mont h 23	Mont h 24
Sri Lanka - Colombo	Business Operations	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	49%
		23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
Sri Lanka - Colombo	Accounts Payable	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
Sri Lanka - Colombo	Accounts Receivable	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
Sri Lanka - Colombo	General Ledger	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
Sri Lanka - Colombo	SOA	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
Total - Sri Lanka		23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
India - Hyderabad	Business Operations	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
		23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
India - Hyderabad	Accounts Payable	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
		23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
India - Hyderabad	Accounts Receivable	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
		23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
Total - India		23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	23%	39%	39%	44%	44%	44%	44%	49%	49%	51%
China - Guangzhou	Business Operations	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	12%	12%	12%	12%	12%	12%	12%	12%	12%
		10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	10%	12%	12%	12%	12%	12%	12%	12%	12%	12%
China - Guangzhou	Accounts Payable	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%
		0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%
China - Guangzhou	Accounts Receivable	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%
		0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%

[illegible]

Table 25-2: Productivity Commitment Table – Contract Years 3 and 4

[illegible]

[illegible]

Table 25-3: Productivity Commitment Table – Contract Year 5

Cumulative Productivity % - Month on Month (CY means "Contract Year")

[illegible]

Sri Lanka - Colombo	Accounts Payable	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
Sri Lanka - Colombo	Accounts Receivable	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
Sri Lanka - Colombo	General Ledger	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
Sri Lanka - Colombo	SOA	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
Total - Sri Lanka		53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
India - Hyderabad	Business Operations	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
India - Hyderabad	Accounts Payable	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
India - Hyderabad	Accounts Receivable	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
Total - India		53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%	53%
China - Guangzhou	Business Operations	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%
China - Guangzhou	Accounts Payable	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%
China - Guangzhou	Accounts Receivable	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%	0%
Total - China		15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%	15%
Malaysia	Business Operations	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%
Malaysia	Accounts Payable	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%
Malaysia	Accounts Receivable	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%
Total - Malaysia		32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%	32%
Overall Productivity %		48%																	

Schedule 26 (Model for Withholding Tax Estimation)

1. The model for calculation of withholding tax as referred to in Clause 15.9.5 means Tables 26-1 to 26-18 below (read collectively), as may be amended from time to time in accordance with this Agreement.
2. For the avoidance of doubt, the figures set out in Tables 26-2 to 26-18 of this Schedule are intended to set out the projected figures that the Customer may use in assessing the Expected ██████████ Total Fees, the Expected IA Fees, the Updated Expected ██████████ Total Fees, and the Updated Expected IA Fees and shall in no way override the Parties' agreement as to the pricing for the Services set forth in Schedule 5 (Pricing).

Table 26-1: Model for WHT Estimation Table – FTE Rate

Supplier Site	Process	Annual Rate - Year 1	Annual Rate - Year 2	Annual Rate - Year 3	Annual Rate - Year 4	Annual Rate - Year 5
Sri Lanka - Colombo	Business Operations	\$ 18,265	\$ 18,996	\$ 19,755	\$ 19,755	\$ 19,755
Sri Lanka - Colombo	Accounts Payable	\$ 18,265	\$ 18,996	\$ 19,755	\$ 19,755	\$ 19,755
Sri Lanka - Colombo	Accounts Receivable	\$ 18,265	\$ 18,996	\$ 19,755	\$ 19,755	\$ 19,755
Sri Lanka - Colombo	General Ledger	\$ 18,265	\$ 18,996	\$ 19,755	\$ 19,755	\$ 19,755
Sri Lanka - Colombo	SOA	\$ 18,265	\$ 18,996	\$ 19,755	\$ 19,755	\$ 19,755
Total - Sri Lanka						
India - Hyderabad	Business Operations	\$ 22,525	\$ 23,426	\$ 24,363	\$ 24,363	\$ 24,363
India - Hyderabad	Accounts Payable	\$ 22,525	\$ 23,426	\$ 24,363	\$ 24,363	\$ 24,363
India - Hyderabad	Accounts Receivable	\$ 22,525	\$ 23,426	\$ 24,363	\$ 24,363	\$ 24,363
Total - India						
China - Guangzhou	Business Operations	\$ 34,945	\$ 36,343	\$ 37,797	\$ 37,797	\$ 37,797
China - Guangzhou	Accounts Payable	\$ 34,945	\$ 36,343	\$ 37,797	\$ 37,797	\$ 37,797
China - Guangzhou	Accounts Receivable	\$ 34,945	\$ 36,343	\$ 37,797	\$ 37,797	\$ 37,797
Total - China						
Malaysia	Business Operations	\$ 29,000	\$ 30,160	\$ 31,366	\$ 31,366	\$ 31,366

360

Malaysia	Accounts Payable	\$	29,000	\$	30,160	\$	31,366	\$	31,366	\$	31,366
Malaysia	Accounts Receivable	\$	29,000	\$	30,160	\$	31,366	\$	31,366	\$	31,366
Total - Malaysia											
Overall	Global Transformation Lead	\$	98,500	\$	102,440	\$	106,538	\$	106,538	\$	106,538
Overall	Global Delivery Lead	\$	98,500	\$	102,440	\$	106,538	\$	106,538	\$	106,538

Table 27-2: Model for WHT Estimation Table – Projected FTE in Contract Years 1 and 2

FTEs month on month after applying assumed Productivity Guarantee (CY means "Contract Year")

Supplier Site	Tower / Process	CY - 1 Mont h 1	CY - 1 Mont h 2	CY - 1 Mont h 3	CY - 1 Mont h 4	CY - 1 Mont h 5	CY - 1 Mont h 6	CY - 1 Mont h 7	CY - 1 Mont h 8	CY - 1 Mont h 9	CY - 1 Mont h 10	CY - 1 Mont h 11	CY - 1 Mont h 12	CY - 2 Mont h 13	CY - 2 Mont h 14	CY - 2 Mont h 15	CY - 2 Mont h 16	CY - 2 Mont h 17	CY - 2 Mont h 18	CY - 2 Mont h 19	CY - 2 Mont h 20	CY - 2 Mont h 21	CY - 2 Mont h 22	CY - 2 Mont h 23	CY - 2 Mont h 24
Sri Lanka - Colombo	Business Operations	-	-	-	-	36	36	36	82	125	125	125	130	130	130	104	104	104	96	96	96	86	86	86	84
Sri Lanka - Colombo	Accounts Payable	-	-	-	-	-	0	2	2	2	2	2	2	2	2	2	2	2	2	2	2	1	1	1	1
Sri Lanka - Colombo	Accounts Receivable	-	-	-	-	-	2	7	7	7	7	8	8	8	8	7	7	7	6	6	6	6	6	6	5
Sri Lanka - Colombo	General Ledger	-	-	-	-	-	5	23	30	30	30	44	60	75	81	64	64	64	59	59	59	53	53	53	52
Sri Lanka - Colombo	SOA	-	-	-	-	-	1	2	2	2	2	3	5	6	6	5	5	5	5	5	5	4	4	4	4
Total - Sri Lanka		-	-	-	-	36	44	70	123	165	165	182	206	222	228	181	181	181	167	167	167	150	150	150	146
India - Hyderabad	Business Operations	-	-	-	-	51	106	106	130	162	162	162	162	181	205	163	163	163	150	150	150	135	135	135	131
India - Hyderabad	Accounts Payable	-	-	-	-	-	2	5	5	5	5	7	8	8	8	6	6	6	6	6	6	5	5	5	5
India - Hyderabad	Accounts Receivable	-	-	-	-	-	3	15	19	19	19	25	30	32	32	26	26	26	24	24	24	21	21	21	21

Total - India	-	-	-	-	51	110	126	153	185	185	194	199	220	245	195	195	180	180	161	161	161	157
China - Guangzhou	-	-	-	-	-	-	-	33	40	40	40	40	40	40	39	39	39	39	39	39	39	39
China - Guangzhou	-	-	-	-	-	-	-	-	-	-	1	1	1	1	1	1	1	1	1	1	1	1
China - Guangzhou	-	-	-	-	-	-	-	-	-	-	1	1	1	1	1	1	1	1	1	1	1	1
Total - China	-	-	-	-	-	-	-	33	40	40	41	42	42	42	41	41	41	41	41	41	41	41
Malaysia	-	-	-	-	54	54	54	54	54	54	49	49	46	46	43	43	36	36	31	31	31	31
Malaysia	-	-	-	-	12	15	17	17	17	17	16	16	8	8	8	8	3	3	3	3	3	3
Malaysia	-	-	-	-	-	0	1	1	1	1	1	1	-	-	-	-	-	-	-	-	-	-
Total - Malaysia	-	-	-	-	66	69	72	72	72	72	66	66	61	61	57	57	57	57	49	49	49	49
Global Transformation Lead	-	-	-	-	-	-	-	-	-	-	-	-	1	1	1	1	1	1	1	1	1	1
Overall	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Overall	-	-	-	-	-	-	-	-	-	-	-	-	1	1	1	1	1	1	1	1	1	1
Total	-	-	-	-	-	-	-	-	-	-	-	-	2	2	2	2	2	2	2	2	2	2
Total FTEs	-	-	-	-	153	224	268	381	462	462	483	513	547	577	476	476	447	447	404	404	404	395

Table 27-2: Model for WHT Estimation Table – Projected FTE in Contract Years 3 and 4

FTEs month on month after applying assumed Productivity Guarantee (CY means "Contract Year")

Supplier Site	Tower / Process	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 1	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 2	CY - 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[illegible]

Total	2	2	2	2	2	2	2	2	2	2	2	2	2	2	2	2	2
Total FTEs	395	395	395	395	395	395	395	395	395	395	386	386	386	386	378	378	378

Table 27-3: Model for WHT Estimation Table – Projected FTE in Contract Year 5

FTEs month on month after applying assumed Productivity Guarantee (CY means "Contract Year")

[illegible]

[illegible]

Table 27-4: Model for WHT Estimation Table – Projected Transformation Recurring Services Charges for Contract Year 1

(CY means "Contract Year")

	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1
	Month 1	Month 2	Month 3	Month 4	Month 5	Month 6	Month 7	Month 8	Month 9	Month 10	Month 11	Month 12	
Transformation Recurring Service	Month 1	Month 2	Month 3	Month 4	Month 5	Month 6	Month 7	Month 8	Month 9	Month 10	Month 11	Month 12	
DSOP Support Services	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	\$4,703	
DSOP Hosting Services	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	
IA Support Services	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	
IA Licences (Optional)	\$-												
Malkom.ai Support Services								\$17,023	\$17,023	\$17,023	\$17,023	\$17,023	
Malkom.ai Licences	\$507,000						\$195,118						
DSITE Licences	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	\$13,308	
Program Management Support Services	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	\$28,000	
Bridge (Analytics) Support Services	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	\$5,708	
Total Transformation Recurring Services Charges	\$563,786	\$56,786	\$56,786	\$56,786	\$56,786	\$56,786	\$251,903	\$73,809	\$73,809	\$73,809	\$73,809	\$73,809	

Table 27-5: Model for WHT Estimation Table – Projected Transformation Recurring Services Charges for Contract Year 2

Program Management Support Services	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-
Bridge (Analytics) Support Services	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156	\$4,156
Total Transformation Recurring Services Charges	\$944,420	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638	\$57,638

Table 27-7: Model for WHT Estimation Table – Projected Transformation Recurring Services Charges for Contract Year 4

(CY means “Contract Year”)

	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4
Transformation Recurring Service	Month 37	Month 38	Month 39	Month 40	Month 41	Month 42	Month 43	Month 44	Month 45	Month 46	Month 47	Month 48					
DSOP Support Services	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297	\$9,297
DSOP Hosting Services	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067	\$5,067
IA Support Services	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596	\$19,596
IA Licences (Optional)	\$280,427																
Malkom.ai Support Services	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864	\$13,864
Malkom.ai Licences	\$598,385																
DSITE Licences	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423	\$6,423
Program Management Support Services	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-	\$-
Bridge (Analytics) Support Services	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343	\$4,343
Total Transformation Recurring Services Charges	\$937,401	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590	\$58,590

Table 27-8: Model for WHT Estimation Table – Projected Transformation Recurring Services Charges for Contract Year 5

(CY means “Contract Year”)

	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5
Transformation Recurring Service	Month 49	Month 50	Month 51	Month 52	Month 53	Month 54	Month 55	Month 56	Month 57	Month 58	Month 59	Month 60					
DSOP Support Services	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735	\$9,735

Technology Recurring Services, being annual recurring charges (Internet Bandwidth) for Colombo, Hyderabad and Guangzhou locations for ISB and FNA tower.	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826
Total Technology Recurring Services Charges	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826	\$15,826

Table 27-11: Model for WHT Estimation Table – Projected Technology Recurring Services Charges for Contract Year 3

CY means “Contract Year”)

	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3	CY -3
Technology Recurring Services Charges	Month 25	Month 26	Month 27	Month 28	Month 29	Month 30	Month 31	Month 32	Month 33	Month 34	Month 35	Month 36	Month 37	Month 38	Month 39	Month 40	Month 41	Month 42	Month 43
Technology Recurring Services, being annual recurring charges (Internet Bandwidth) for Colombo, Hyderabad and Guangzhou locations for ISB and FNA tower.	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148
Total Technology Recurring Services Charges	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148	\$12,148

Table 27-12: Model for WHT Estimation Table – Projected Technology Recurring Services Charges for Contract Year 4

CY means “Contract Year”)

	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4	CY -4
Technology Recurring Services Charges	Month 37	Month 38	Month 39	Month 40	Month 41	Month 42	Month 43	Month 44	Month 45	Month 46	Month 47	Month 48	Month 49	Month 50	Month 51	Month 52	Month 53	Month 54	Month 55
Technology Recurring Services, being annual recurring charges (Internet Bandwidth) for Colombo, Hyderabad and Guangzhou locations for ISB and FNA tower.	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643
Total Technology Recurring Services Charges	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643	\$11,643

Table 27-13: Model for WHT Estimation Table – Projected Technology Recurring Services Charges for Contract Year 5

CY means "Contract Year")

[illegible]

Table 27-14: Model for WHT Estimation Table – Projected One-Time Charges for Contract Year 1

(CY means "Contract Year")

	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1	CY -1
One-Time Charges	Month 1	Month 2	Month 3	Month 4	Month 5	Month 6	Month 7	Month 8	Month 9	Month 10	Month 11	Month 12	
Transition Service Charges	\$150,000	-	-	-	-	-	\$150,000	-	-	-	-	-	
Transformation Implementation Services Charges	\$260,000	-	-	\$130,000	-	-	\$130,000	-	-	-	-	-	
Technology Implementation Services Charges	\$27,107	-	-	-	-	-	-	-	-	-	-	-	
Total One-Time Charges		-	-	\$130,000	-	-	\$280,000	-	-	-	-	-	

Table 27-15: Model for WHT Estimation Table – Projected One-Time Charges for Contract Year 2

(CY means "Contract Year")

	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2	CY -2
One-Time Charges	Month 13	Month 14	Month 15	Month 16	Month 17	Month 18	Month 19	Month 20	Month 21	Month 22	Month 23	Month 24

Transition Service Charges	\$340,000	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Transformation Implementation Services Charges	\$260,000	-	-	-	-	-	-	-	-	-	-	-	\$130,000	-	-
Technology Implementation Services Charges	\$27,107	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Total One-Time Charges	\$627,107	-	-	-	-	-	-	-	-	-	-	-	\$130,000	-	-

Table 27-16: Model for WHT Estimation Table – Projected One-Time Charges for Contract Year 3

(CY means “Contract Year”)

	CY -3	CY -3	Month 25	CY -3	Month 26	CY -3	Month 27	CY -3	Month 28	CY -3	Month 29	CY -3	Month 30	CY -3	Month 31	CY -3	Month 32	CY -3	Month 33	CY -3	Month 34	CY -3	Month 35	CY -3	Month 36
One-Time Charges																									
Transition Service Charges			\$150,000		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Transformation Implementation Services Charges			\$520,000		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Technology Implementation Services Charges			\$27,107		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Total One-Time Charges			\$697,107		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-

Table 27-17: Model for WHT Estimation Table – Projected One-Time Charges for Contract Year 4

(CY means “Contract Year”)

	CY -4	CY -4	Month 37	CY -4	Month 38	CY -4	Month 39	CY -4	Month 40	CY -4	Month 41	CY -4	Month 42	CY -4	Month 43	CY -4	Month 44	CY -4	Month 45	CY -4	Month 46	CY -4	Month 47	CY -4	Month 48
One-Time Charges																									
Transition Service Charges			\$300,000		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Transformation Implementation Services Charges			\$520,000		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Technology Implementation Services Charges			\$27,107		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Total One-Time Charges			\$847,107		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-

Table 27-18: Model for WHT Estimation Table – Projected One-Time Charges for Contract Year 5

(CY means "Contract Year")

	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5	CY -5
	Month 49	Month 50	Month 51	Month 52	Month 53	Month 54	Month 55	Month 56	Month 57	Month 58	Month 59	Month 60								
One-Time Charges																				
Transition Service Charges	\$298,384	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Transformation Implementation Services Charges	\$520,922	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Technology Implementation Services Charges	\$27,107	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Total One-Time Charges	\$846,413	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-

In witness whereof this Agreement has been entered into on the date stated at the beginning.

Customer

[Redacted]

[Redacted]

for and on behalf of

[Redacted]

DocuSigned by:
[Redacted]
3090C8248F42400...

7/3/2024

Supplier

[Redacted]

Director

for and on behalf of

[Redacted]

DocuSigned by:
[Redacted]
4A0DE4B19CA148B...

7/3/2024

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Security Level: Email, Account Authentication (None) Electronic Record and Signature Disclosure: Accepted: 4/28/2023 11:04:02 AM ID: 27029631-9335-468e-9ce2-dc17d69db561	COPIED	Sent: 7/3/2024 4:08:10 AM
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